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**PUBLIC GOVERNANCE DIRECTORATE
PUBLIC GOVERNANCE COMMITTEE**

OECD Public Governance Reviews: Uzbekistan

TOWARDS A MORE MODERN, EFFECTIVE AND STRATEGIC PUBLIC ADMINISTRATION

This document presents the draft report “OECD Public Governance Reviews: Uzbekistan”, which assesses Uzbekistan’s governance system and, to support the country’s reforms and boost the efficiency and effectiveness of its public administration, provides recommendations aligned with OECD standards on enhancing policy co-ordination and strategic planning, civil service capacity, public integrity and regulatory quality.

Delegates to the Public Governance Committee are invited to approve and declassify this draft report for publication. Please provide any comments by 22 October 2024. If no objections have been received by that date, the draft report will be considered approved.

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Foreword

1. Governments around the world are navigating a dynamic and complex landscape characterised by multiple, conflicting priorities, short-term emergencies, long-term challenges, declining public trust and the urgent need to tackle the environmental and digital transitions. More than ever, modern, agile and effective government structures and mechanisms are needed to effectively assess, co-ordinate and implement policies that address citizens' needs in a timely and efficient manner. Meeting these challenges requires public administrations to improve performance, strategic planning and collaboration across public agencies, develop the right skills and competencies across the administration, enhance regulatory quality, develop evidence-informed policies, and adopt the highest standards of integrity, in order to ultimately achieve their long-term strategic visions and objectives.

2. In a context of global crises, Uzbekistan has committed to implementing an ambitious reform agenda including on public governance reforms. As in many other countries, successive crises such as the COVID-19 pandemic, Russia's war of aggression against Ukraine, and the global economic slowdown all have intensified pressures on the government to achieve its policy priorities while providing public services and support to citizens. To navigate both external and internal challenges, Uzbekistan has developed a series of national strategic plans and measures that outline a vision for national development, emphasising the pivotal role of the public administration in driving reforms. By strengthening its public sector, Uzbekistan aims to build a modern, effective and just state that effectively serves the needs of its citizens.

3. The *OECD Public Governance Review of the Republic of Uzbekistan* provides an assessment of the central public governance and administrative system of the country. In so doing, it supports the implementation of public administration reforms highlighted in the *Concept of Administrative Reform*, the *Development Strategy of New Uzbekistan*, and *Uzbekistan 2030 Strategy*. The Review looks at priority public governance areas identified jointly with the government of Uzbekistan to support the achievement of its long-term goals. These areas include the effectiveness and modernisation of public administration, policy co-ordination, strategic planning and performance management, gender mainstreaming, public integrity, evidence-informed policy and regulatory quality, and civil service and public administration capacity. The Review builds upon OECD public governance standards, frameworks and insights. Based on the analysis, the Review provides tailored recommendations to help Uzbekistan boost the effectiveness of its public administration.

4. The evidence and data collected for this Review contributes to the OECD 's broader programme of work on effective, innovative, fit-for-the-future and digitally enabled government and citizen-centred services, and on reinforcing trust in government.

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6. The publication was approved and declassified by the Public Governance Committee on XX 2024 and prepared for publication by the Secretariat.

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Abbreviations and acronyms

2030 Strategy	Uzbekistan 2030 Strategy
ACA	Anti-Corruption Agency
APA	Academy of Public Administration
APS	Australian Public Service
ARGOS	Agency for the Development of Public Service under the President of the Republic of Uzbekistan
ASR	Agency for Strategic Reforms under the President of the Republic of Uzbekistan
ASVB	Australia Social Value Bank
BAK	Federal Bureau to Prevent and Fight Corruption of Austria (Bundesamt zur Korruptionsprävention und Korruptionsbekämpfung)
CCTV	Closed-Circuit Television
CGU	Office of the Comptroller General
CoG	Centre of Government
EIPM	Evidence Informed Policy Making
GRPs	Good Regulatory Practices
HATVP	French High Authority for Transparency in Public Life (Haute Autorité pour la Transparence de la Vie Publique)
HRM	Human Resource Management
ILLP	Institute of Legislation and Legal Policy under the President of the Republic of Uzbekistan
KPI	Key Performance Indicator
MEF	Ministry of Economy and Finance
MIIT	Ministry of Investment, Industry and Trade
MoJ	Ministry of Justice
NHMRC	National Health and Medical Research Council
OECD	Organisation for Economic Co-operation and Development
OA	Anti-corruption Office of Argentina (Oficina Anticorrupción)
OSCE	Organisation for Security and Co-operation in Europe
PA	Presidential Administration
PAR	Public Administration Reform
PMDU	Prime Minister's Delivery Unit
PPO	Public Prosecutor's Office
PSLC	Public Service Leadership and Capability
RIA	Regulatory Impact Assessment
SIPEF	Public Integrity System of the Federal Executive Branch
UGI	Integrity Management Units
USPC	UNDP Seoul Policy Centre

Executive summary

7. Uzbekistan has developed an ambitious reform agenda to support its socio-economic development, which has contributed to reducing poverty, attracting investment and liberalising the economy. As such, Uzbekistan's economic growth has consistently outpaced the Central Asian average since 2017. Extreme poverty in Uzbekistan has declined significantly, decreasing from 8% in 2016 to less than 1% in 2023. However, challenges relating to growing socio-economic inequality, regional disparities, transparency and public service delivery persist. While the public administration in Uzbekistan remains centralised and hierarchical, policymakers have identified reforms to its concentrated public governance system as an important step in addressing these challenges and achieving the long-term objectives of the country.

Modernising the public administration

8. Uzbekistan has made significant strides in modernising and promoting the effectiveness of its public administration since 2017. The country has demonstrated notable improvements in regulatory quality, the rule of law, responsiveness and inclusiveness of its public administration, contributing to increased government efficiency. For example, significant progress was made in increasing women's representation in parliament, with the number of female parliamentarians rising from 16% in 2019 to 33.3% in 2022. Public administration reform (PAR) remains a key priority for Uzbekistan as it seeks to create a more efficient, effective, accountable, and citizen-centred public sector that supports the country's socio-economic development goals. Uzbekistan aims to modernise and reorganise its public administration, strengthen local governance, promote digitalisation and reinforce accountability and effective policy implementation. While recent PAR reforms outlined in strategic documents, driven by the Ministry of Justice, have introduced positive change, they have also led to some ambiguity regarding institutional mandates and competencies for PAR. Uzbekistan could consider:

- Clarifying mandates and competencies for public administration reform.
- Enhancing the effectiveness, capabilities and flexibility of the public administration, including to engage citizens in policymaking.

Strategic planning

9. The Government of Uzbekistan recognises the pivotal role of strategic planning in achieving its ambitious socio-economic transformation and in shaping the country's future. The Presidential Decree and the Strategic Planning Act currently being drafted should help formalise and strengthen Uzbekistan's current planning framework. Other steps to consider include:

- Providing a clear, stable and strong mandate with the relevant capabilities for the central strategic planning entity, the Agency for Strategic Reforms (ASR). This would allow the ASR to communicate the central role of Strategy 2030 and avoid strategic ambiguity across ministries.

- Enhancing the ASR's review function to ensure all strategies meet quality standards and align with the 2030 Strategy, and to more actively drive performance management on strategic priorities.
- Improving co-ordination within the centre of government and between national and local levels to ensure cohesive implementation of priorities.
- Establishing a high-level committee under the President, with the ASR as its technical secretariat, to further support the implementation of the 2030 Strategy.

Promoting gender equality

10. The adoption of the Strategy for Achieving Gender Equality in the Republic of Uzbekistan until 2030 ("2030 Strategy") in 2021 is an important achievement in the country's journey to gender equality. However, adopting a strategic approach to planning will be key to ensure sound implementation of the 2030 Strategy. This could entail:

- Developing evidence-based short-, medium- and long-term objectives and identifying key areas for action based on consultations with relevant stakeholders. Systematic performance assessment against targets will also be important for monitoring progress.
- Developing a more robust institutional set-up to implement and monitor the 2030 Strategy, including greater involvement of the Gender Advisory Councils and co-ordination from the centre of government.
- Systematically integrating core gender mainstreaming practices, including gender budgeting, gender impact assessment and gender data collection.

Anti-corruption reforms

11. Backed by political commitment at the highest level, Uzbekistan is undertaking ambitious anti-corruption reforms to overhaul many areas of public governance, including the recent enactment of dedicated conflict-of-interest legislation. However, these reforms are still at an early stage and more should be done to align procedures and guidelines with the upcoming legislative framework. For example, Uzbekistan could consider:

- Bolstering conflict-of-interest and asset declaration systems by improving implementation and co-ordination among key stakeholders.
- Strengthening the management of conflict of interest, as well as training and guidance for both public officials and managers.
- Continuing to close loopholes with respect to the framework for pre- and post-employment regulations and develop a single common system of disclosure of assets and interests by public servants.
- Boosting the institutional development of and resources for the bodies responsible for developing and implementing anti-corruption strategies and prevention measures.

Evidence-informed policy and regulatory quality

12. Uzbekistan has made significant progress in developing an evidence-informed law-making framework. Reforms over the past four years, particularly for law-making, have heightened the relevance of employing good regulatory practices (GRPs). The challenge for the administration now, however, is to ensure that these policies are effectively translated into everyday practices. Some areas of consideration for reinforcing evidence-informed policymaking in the country could be the following:

- Continue advancing the development of sound and effective regulatory practices while reinforcing communication on the importance of better regulation across the Uzbek administration.
- Enhancing and reinforcing the analytical skills of the public service to ensure the effective application of GRPs.
- Improving the use of data for policymaking in Uzbekistan, and maintain that data is easy to access for all civil servants.
- Maintaining a whole-of-government, yet proportional, approach to rulemaking and reinforce the methodologies that underpin regulatory management tools.
- Ensuring as far as possible an inclusive approach to policymaking, maintaining that a diversity of stakeholders are consulted, including vulnerable populations, those who are underrepresented as well as those who may not typically engage in government procedures.

Civil service reform

13. Uzbekistan's civil service reforms aim to create a modern, efficient, merit-based and trustworthy public sector. To achieve this goal, it is crucial to prioritise projects with clear implementation roadmaps. Other steps could include:

- Strengthening the Public Council, the entity under the Agency for the Development of Public Service (ARGOS) for discussing the development of the civil service in Uzbekistan, through technical working groups to enhance co-ordination and focus.
- Bolstering meritocracy by effectively implementing the online recruitment platform by ARGOS, along with a competency framework in recruitment, training and performance management.
- Targeting reforms for the senior civil service, as they are instrumental in driving organisational performance and shaping public service culture. Limiting senior appointments to the National Personnel Reserve is a positive step towards enhancing meritocracy and reducing political influence. In addition, refining selection criteria, increasing transparency, investing in continuous professional development, and regularly evaluating the Reserve's effectiveness are critical for success.

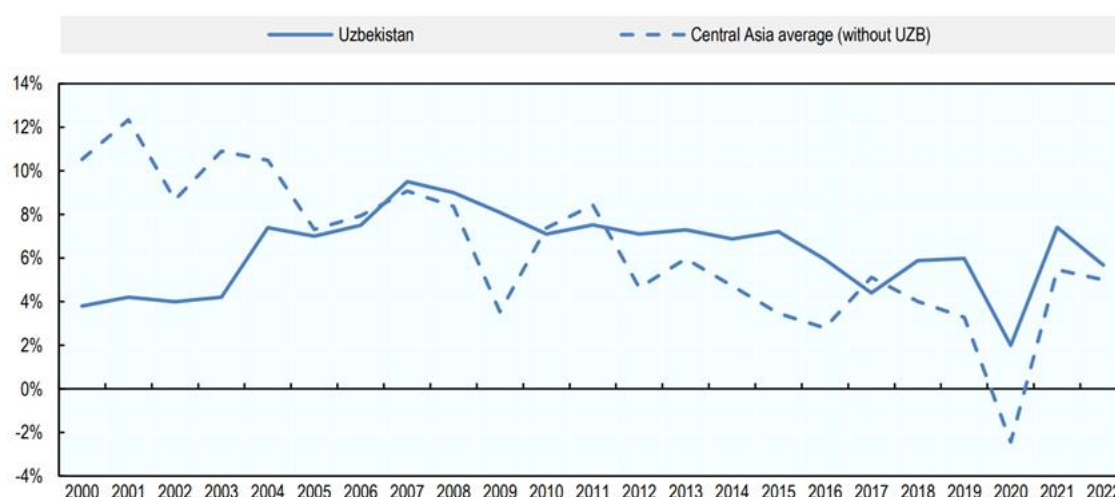
1 Public Administration Effectiveness and Modernisation in Uzbekistan

This chapter provides a comprehensive analysis of Uzbekistan's public administration landscape, evaluating its effectiveness and modernisation efforts. By examining key aspects such as size, scope, agility, resilience, responsiveness, inclusiveness, and cross-cutting issues, the chapter assesses the current state and progress of public sector performance in Uzbekistan. Focusing on three main strategic documents - the *Concept of Administrative Reform*, the *Development Strategy of New Uzbekistan*, and *Uzbekistan 2030* - the chapter then explores how Uzbekistan's public administration reform (PAR) can enhance the capacity of public administration to successfully implement national priorities. It specifically focuses on successes and remaining challenges of delivering reform agendas, as well as institutional composition for PAR in Uzbekistan. The chapter concludes with recommendations to strengthen plans and institutional frameworks for more effective implementation of Uzbekistan's PAR.

Introduction

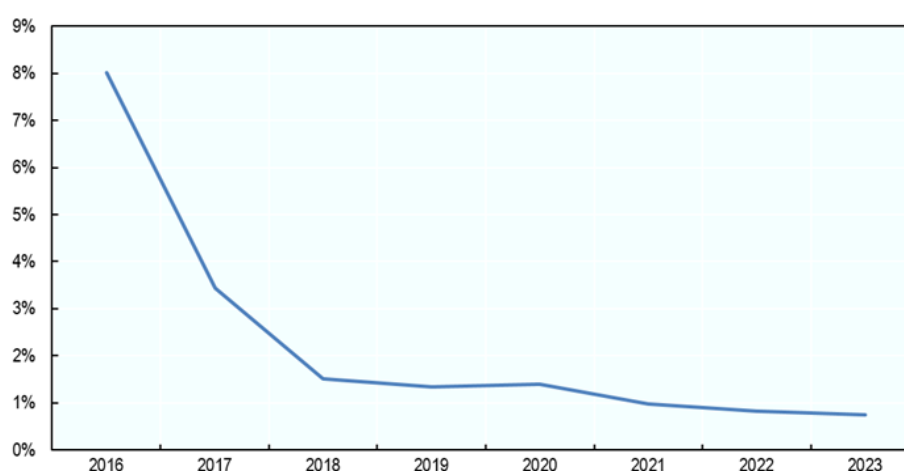
14. Uzbekistan has undergone a period of significant socio-economic advancement since 2017, characterised notably by its transition to a more open and competitive economy, reductions in poverty rates, and a concerted, high-level commitment towards the modernisation and reform of its governance systems (OECD, 2023^[1]). As such, since 2018, Uzbekistan's GDP growth has consistently outpaced the regional average, even in the face of the COVID-19 pandemic (Figure 1.1). Uzbekistan has experienced a significant decline in poverty levels, as evidenced by a decrease in the poverty headcount ratio from 8% in 2016 to less than 1% in 2023 (Figure 1.2), accompanied by a rise in the total income of the population (Statistics Agency under the President of the Republic of Uzbekistan, 2024^[2]). This transformative journey has been shaped by a succession of national strategic plans, each building upon the achievements of its predecessor while addressing emerging challenges head-on.

Figure 1.1. Real GDP growth in Uzbekistan and Central Asia (2000-2022)



Source: (OECD, 2023^[1]).

Figure 1.2. Poverty headcount ratio at \$2.15/day in Uzbekistan (2016-2023)



Note: International data reflective of general decreasing trend of share of low-income population reported by Statistics Agency of Uzbekistan (Statistics Agency, 2024^[3]).

Source: Author's elaboration based on (World Data Lab, 2023^[4]).

15. Building on the momentum generated by the *Action Strategy 2017-2021*, the *Development Strategy of New Uzbekistan for 2022-2026* emerged as a natural evolution in the country's trajectory, emphasising economic diversification, equitable public policies, and the development of human capital, and reflecting Uzbekistan's commitment to fostering inclusive growth and societal well-being (President of the Republic of Uzbekistan, 2022^[5]). This strategy placed a strong emphasis on the consolidation of justice and the rule of law, the establishment of a citizen-centred public administration and the promotion of civil society as cornerstones for Uzbekistan's sustainable development. Looking forward, the current *Uzbekistan 2030 Strategy* delineates a long-term national vision aimed at creating an enabling environment for realising its citizens' potential, ensuring economic prosperity, and safeguarding environmental sustainability. The strategy prioritises citizen well-being achieved through socio-economic prosperity and the rule of law, underscoring the country's aspirations to build a safe, prosperous, and harmonious society (President of the Republic of Uzbekistan, 2023^[6]).

16. Amidst these strides, Uzbekistan remains cognisant and committed to the need to address persistent challenges in areas such as public service delivery, socio-economic inequality, and regional disparities, to ensure that the benefits of its development are equitably distributed across society. Uzbekistan remains steadfast in its pursuit of inclusive growth, social inclusiveness, and equitable prosperity for its citizens and has adopted a strategic approach to navigate these challenges.

17. As outlined in *Uzbekistan 2030*, the country aims to establish a just and modern state, prioritising citizen welfare and driving sustainable socio-economic growth in the decade ahead. Central to this strategy are public administration reform (PAR) initiatives aimed at enhancing the efficiency of the public sector, streamlining regulations, and promoting greater public participation in governance processes. Effective public governance is crucial for ensuring the delivery of essential public services and promoting the overall well-being of citizens, providing a framework for responsive and inclusive decision-making processes that address the evolving needs of citizens. Efforts to strengthen the public sector have yielded tangible outcomes, evidenced by improvements in regulatory quality, the rule of law and government effectiveness. These initiatives reflect Uzbekistan's commitment to fostering an efficient, accountable, and citizen-oriented governance practices, aligned with the goals of *Uzbekistan 2030*.

18. This chapter provides an overview of the public administration landscape in Uzbekistan, assessing its effectiveness, strengths, and challenges, and how the country's public administration reform objectives can effectively strengthen its capacity in support of *Uzbekistan 2030*. Uzbekistan's public administration faces a number of challenges amid both domestic and global challenges to public governance, notably the aftermath of the COVID-19 pandemic, slowing global economic and trade growth, and ongoing geopolitical tensions (OECD, 2023^[7]). This Public Governance Review will examine how ongoing reforms within the framework of Uzbekistan's public administration aim to navigate this complex environment and foster resilience in the face of evolving global dynamics.

19. The chapter will present a comparative analysis of Uzbekistan's public sector effectiveness, leveraging key performance indicators to benchmark against OECD member countries and countries in the Central Asia region. The chapter will then analyse the current state of PAR initiatives in Uzbekistan, mapping the trajectory of recent and ongoing reform efforts since 2017, paying particularly attention to what has been successful in delivering reform agendas in the country. The chapter further examines the institutional landscape for PAR in Uzbekistan, identifying the key public agencies involved and their relevant mandates in delivering the strategic objectives of *Uzbekistan 2030*.

20. The following chapters in the PGR are structured around several public governance challenges that have been jointly identified with Uzbekistan and that can be transformative to reach the long-term goals outlined in *Uzbekistan 2030*.

21. Chapter 2 evaluates Uzbekistan's capacity in strategic visioning, planning, co-ordination and performance management, focusing on its ability to implement the *Uzbekistan 2030 Strategy*. It examines co-ordination mechanisms for strategy and policy implementation, including key performance indicators, to ensure alignment with strategic priorities. The chapter will also assess gender mainstreaming efforts in decision-making and compare them with OECD best practices, reviewing the institutional framework and co-ordination mechanisms for gender equality promotion.

22. Chapter 3 analyses Human Resource Management (HRM) policies in Uzbekistan, focusing on current and planned institutional arrangements. Guided by the OECD Recommendation on Public Service Leadership and Capability Recommendation, it assesses the role of ARGOS, the central body for HRM, in defining and implementing workforce management policies, with a specific emphasis on the new job classification system, the recruitment and training of public servants.

23. Chapter 4 explores the legal and institutional frameworks for public sector integrity, emphasising the responsibility of public sector organisations to manage integrity effectively. Providing guidance on strengthening these frameworks, the chapter aims to help build stronger institutions, enhance public sector integrity and improve policy outcomes.

24. Chapter 5 examines evidence-informed policymaking and regulatory quality in Uzbekistan's public administration. It will assess the government's utilisation of evidence, data and regulations, focusing particularly on regulatory impact assessments (RIAs) to improve economic and social outcomes for citizens and businesses. It aims to analyse and support current efforts to enhance data utilisation, reduce regulatory burdens, promote RIAs and improve regulatory quality, with comparisons drawn from peer countries to inform recommendations.

Public sector modernisation and effectiveness in Uzbekistan

25. Modernising and enhancing the effectiveness of the public administration are crucial to the overall success of a government's plans and policies. This requires a multi-pronged approach, including improving the quality, access and responsiveness of services provided by the state while simultaneously investing in skilled civil servants. Altogether, achieving more effective and inclusive public governance entails enhancing the capacity of public institutions and bolstering their responsiveness to citizens' needs.

26. Governments currently find themselves navigating a system of increasingly complex and overlapping crises. Events such as the COVID-19 pandemic and Russia's war of aggression in Ukraine have brought about immediate and urgent spillover effects on geopolitical stability and the global economy. Economic growth is projected to slow across OECD member countries as governments are confronted with high inflationary pressures and growing public debt. Uzbekistan faces similar economic trends – while the economy has experienced robust growth in the past, it is forecasted to slow down in 2024 and 2025 (Asian Development Bank, 2024^[8]). Despite recent annual increases as in OECD member countries, Uzbekistan's government has taken measures to keep total public debt below 60% of GDP, currently reaching 36.3% of GDP in 2023, compared to 23% in Kazakhstan and 27.8% in the wider Central Asia and Caucasus region (Asian Development Bank, 2024^[8]; IMF, 2024^[9]). As the result of annual limits on fiscal deficits and a new public debt law enacted in May 2023, Uzbekistan's external debt is predicted to fall by 10 percent in the next five years (IMF, 2024^[10]). In parallel, governments must also address long-term challenges, particularly regarding climate change, sustainable development, and the digital transformation, that have an impact on the priorities and policies to be implemented by the public administration.

27. An effective public administration is pivotal in navigating these challenges, ensuring that public institutions remain citizen-oriented, equitable and efficient. However, the increasing prevalence of cross-cutting challenges poses a significant hurdle to the capacity of public administrations. Yet, these challenges can spur meaningful reforms that enhance public sector capacity, citizen accessibility, resilience to future

crises and the integrity of public institutions. As the primary interface between governments and their citizenry, public administrations play a crucial role in meeting these challenges.

28. The strategic approach adopted by Uzbekistan in public administration reform reflects a steadfast commitment to sustainable development and inclusive growth. In recent years, Uzbekistan has prioritised strengthening its public sector, aiming to create a “just and modern state that serves the needs of its people” as outlined in the *Uzbekistan 2030 Strategy* (President of the Republic of Uzbekistan, 2023^[6]). To achieve this, Uzbekistan has identified numerous objectives and actions for the years ahead to make the public administration more effective. This ambitious plan includes streamlining regulations, eliminating redundancies within government agencies, digitalising virtually all public services, as well as enhancing local governance and creating necessary conditions for public participation in the activities of public sector agencies.

29. Using key performance indicators on public governance, this section analyses Uzbekistan’s public sector effectiveness through benchmarking against OECD members and other selected countries across four dimensions:

- **Size and scope of government:** this measures the government’s role in the economy and society.
- **Agility and resilience:** this assesses the government’s ability to adapt to changing circumstances.
- **Responsiveness:** this analyses the government’s ability to deliver public services that meet citizens’ needs.
- **Inclusiveness:** this evaluates how effectively the government serves all citizens, including marginalised groups.

30. The section also briefly examines Uzbekistan’s **capacity to address cross-cutting policy issues**, particularly its climate commitments.

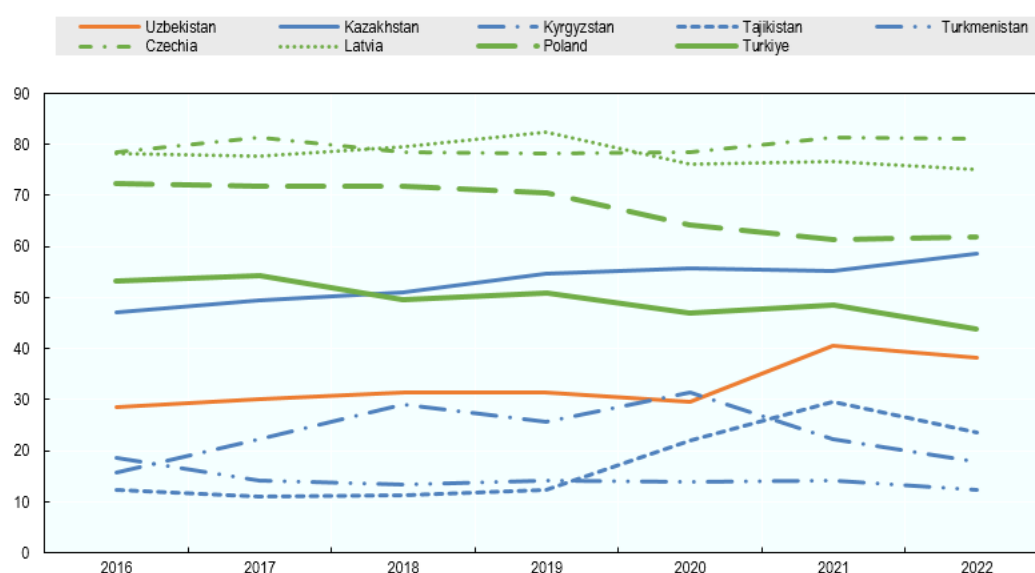
Uzbekistan has made efforts to enhance the effectiveness of its public sector, as evidenced by advancements across various governance dimensions.

31. Uzbekistan’s ongoing efforts to increase the effectiveness of its public sector are yielding positive results; yet there is still room for improvement, particularly regarding stability, transparency and citizen participation in decision-making processes. In recent years, the country has seen improvement across all six dimensions of governance measured by the World Bank’s Worldwide Governance Indicators (WGIs). These indicators provide an indication of the current performance and effectiveness of a country’s public governance system. These areas include “Voice and Accountability”, “Political Stability and Absence of Violence/Terrorism”, “Regulatory Quality”, “Rule of Law”, “Control of Corruption”, and “Government Effectiveness”. Notably, the “Government Effectiveness” dimension, which reflects perceptions of the quality of public services and policy implementation, civil service independence and the credibility of the government’s commitment to policies (World Bank, n.d.^[11]), reached a record high of 40.5 in 2021. This represents a significant improvement compared to 28.6 in 2016. Other dimensions have also recorded significant progress: “Regulatory Quality” and “Rule of Law” dimensions have seen significant increases, rising from 11.9 to 31.6 and 13.3 to 21.7 respectively, between 2019 and 2022 (Kaufmann and Kraay, 2023^[12]).

32. Uzbekistan generally displays a stronger governance performance than most countries in Central Asia but tends to fall behind Kazakhstan and comparable OECD member countries. According to the World Bank’s WGIs data from 2022, Uzbekistan outperforms Kyrgyzstan, Tajikistan and Turkmenistan in “Government Effectiveness”, “Control of Corruption”, “Regulatory Quality”, and “Rule of Law” (Kaufmann and Kraay, 2023^[12]). However, Uzbekistan scores lower than Kazakhstan in virtually all WGI indicators, as well as lower than Kyrgyzstan in the “Voice and Accountability” dimension. Similarly, OECD countries including Czechia (81.1), Latvia (75.0), and Poland (61.8) hold significantly higher scores in “Government

Effectiveness" as well as the other WGI dimensions, whereas Uzbekistan's scores are closer to Türkiye among OECD member countries (Figure 1.3).

Figure 1.3. Government Effectiveness in Central Asian countries and selected OECD member countries (Percentile Rank)



Source: Author's work based on (Kaufmann and Kraay, 2023^[12]).

Size and scope: the size of the government in Uzbekistan has steadily increased over recent years but remains significantly below the OECD average.

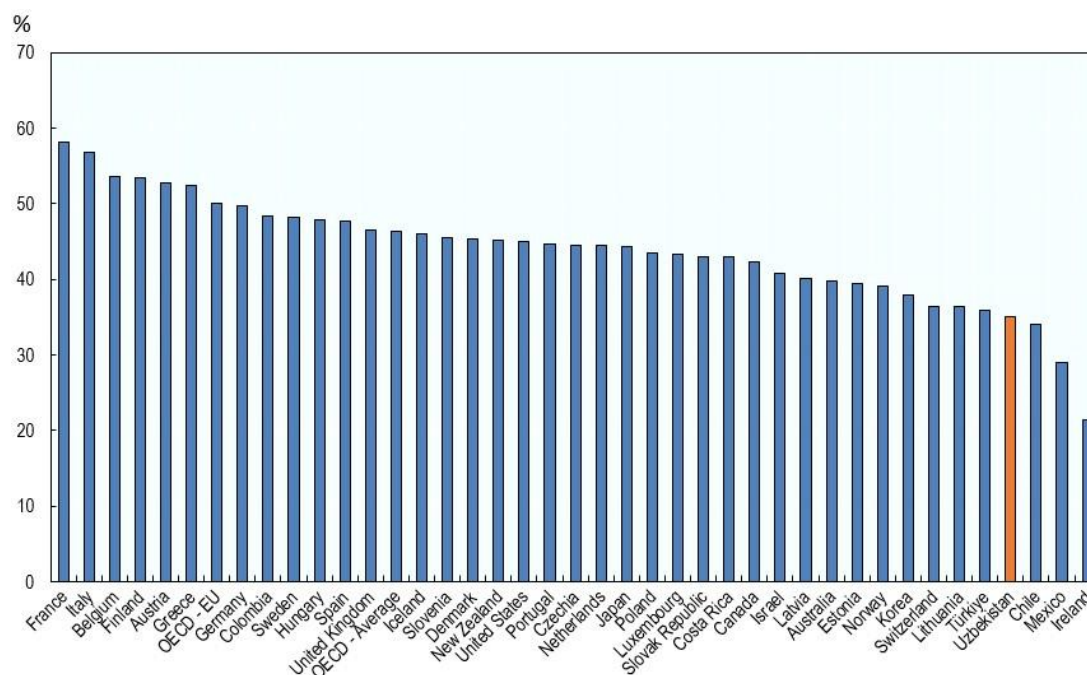
33. The size and scope of the public administration vary greatly from country to country, often serving as a reflection of a country's political system, history and tradition. In essence, these characteristics highlight the different approaches governments use to deliver on their commitments to citizens. While this dimension alone does not guarantee public sector efficiency, comparing Uzbekistan's public sector to others helps to further understand its model and to cluster with comparable countries.

34. Over the last few years, streamlining the civil service and boosting its overall effectiveness has been an important reform area for Uzbekistan. As stipulated by the presidential decree *On Measures to Implement Administrative Reforms of New Uzbekistan*, creating an effective public sector management system is "an important condition for building a New Uzbekistan" (President of the Republic of Uzbekistan, 2022^[13]). This reform entails optimising government structures by eliminating redundant agencies and simplifying services provided to citizens. Moreover, Uzbekistan's plans to improve its public administration incorporate a more prominent role for the private sector. To this end, the country's long-term strategy *Uzbekistan 2030* aims to transfer 40 percent of public services to the private sector and triple private sector participation in healthcare, construction, transport and education (President of the Republic of Uzbekistan, 2023^[6]). These measures collectively strive to create a more agile and compact public administration.

35. General government expenditures in Uzbekistan are relatively low compared to the OECD average. In 2022, general government expenditure amounted to 35% of GDP in Uzbekistan, whereas in OECD countries, government expenditure accounted for 46.3% of GDP on average (Figure 1.4). This places Uzbekistan among comparable, moderately centralised countries including Chile (34.1%), Türkiye (35.9%) and Lithuania (36.5%), all of which spend slightly less than 50% of government expenditure at the central level. Uzbekistan's central government expenditure is slightly lower than Kyrgyzstan (36.8%) but

markedly higher than Kazakhstan, having spent 22.6% of GDP in 2023 (World Bank, 2023^[14]) (International Monetary Fund, 2023^[15]). In Uzbekistan, government expenditure has steadily risen since 2017, when it accounted for 22.4% of the country's GDP (International Monetary Fund, 2023^[15]). This trend reflects the expanding priorities of the state, particularly on key areas including job creation and support of SMEs during the COVID-19 pandemic (OECD, 2023^[16]). It is worth noting that among OECD countries, government expenditure peaked in 2020, largely due to the heightened fiscal demands of the COVID-19 pandemic (OECD, 2023^[17]).

Figure 1.4. General government expenditures as a percentage of GDP, 2022 or latest data

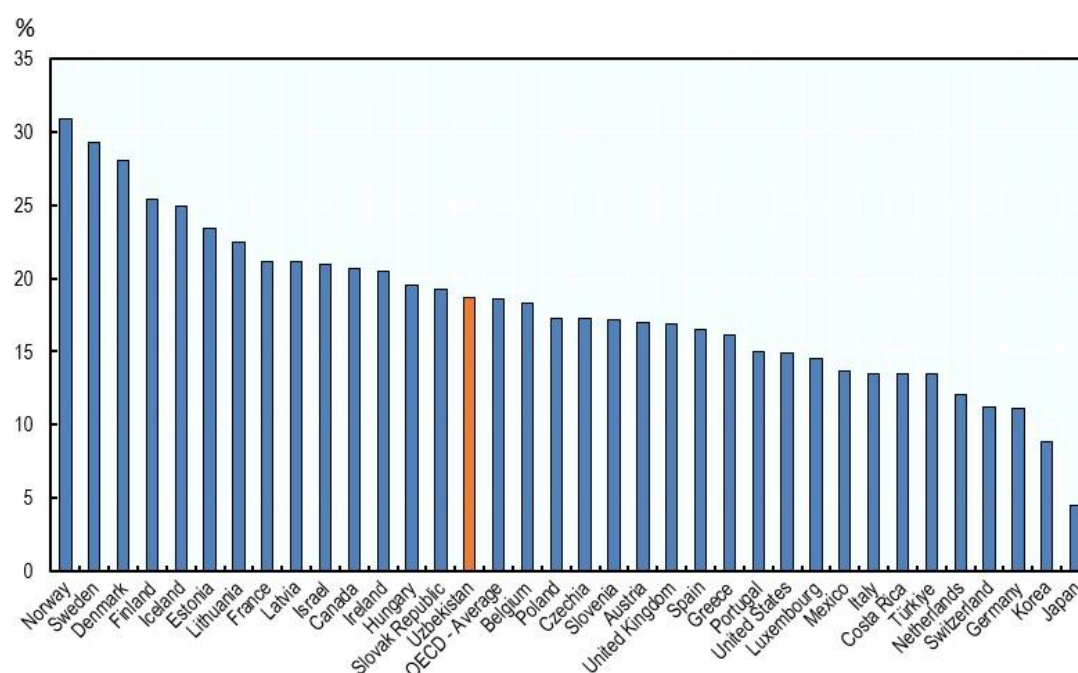


Note: Data for Australia, Chile, Columbia, Costa Rica, Israel, Japan, Korea, Mexico, New Zealand, Switzerland, United Kingdom, United States refer to the year of 2021; data for Türkiye refer to the year of 2020.

Source: (OECD, 2023^[18]); Data for Uzbekistan obtained from (International Monetary Fund, 2023^[15]).

36. General government employment in Uzbekistan is at the average level of the OECD. In 2021, according to the Ministry of Employment and Poverty Reduction, public sector employment accounted for 18.69% of total employment in 2021 (Statistics Agency under the President of the Republic of Uzbekistan, 2024^[19]), slightly above the OECD average of 18.63% (Figure 1.5). This suggests Uzbekistan has medium-sized public sector employment compared to OECD member countries. This is broadly similar in size to Central European countries such as Hungary (19.57%), Slovak Republic (19.3%), Poland (17.3%) and Slovenia (17.17%). While Hungary has a fairly centralised public administration with more than two-thirds of civil servants working in the central government, other countries have moderately centralised public administration with approximately half of government employees working at sub-national levels (OECD, 2023^[17]).

Figure 1.5. Public sector employment as a percentage of total employment, 2021 or latest data



Note: Data for Australia, Chile, Colombia, New Zealand is not available. Data for Costa Rica and Switzerland refer to the year of 2020; data for Iceland refer to the year of 2019.

Source: (OECD, 2023^[18]); Data for Uzbekistan is authors' own elaboration based on (Statistics Agency under the President of the Republic of Uzbekistan, 2024^[19]).

37. In comparison to Uzbekistan, OECD member countries with similar levels of expenditure as Uzbekistan, including Türkiye and Korea, tend to spend comparatively less on personnel costs and more on infrastructure and outsourced services to non-government entities. Exceptionally, Lithuania spends more on remuneration of public employees.

Agility and resilience: Uzbekistan has demonstrated capabilities to adapt its institutions to emerging challenges and priorities that demand more clarity on roles and responsibilities.

38. A government's effectiveness depends on its ability to be both agile and resilient. Agility refers to a government's capacity to make swift decisions, co-ordinate their implementation, and adapt its organisation and resource allocation (OECD, 2015^[20]). This allows governments to respond effectively to evolving needs, new priorities, and changing contexts. Resilience focuses on a government's ability to absorb shocks, recover from them, and prepare for future challenges, including socio-economic, institutional or environmental, among others (OECD, 2023^[21]). Ideally, governments should strive for both qualities to navigate a complex policy environment.

39. As in other countries, the COVID-19 pandemic was a significant stress test for Uzbekistan's public institutions, which weathered the crisis well. Uzbekistan's government rose to the challenge with notable adaptability and resilience, implementing a multifaceted strategy to combat the pandemic, fortify the healthcare system, and pave the way for economic recovery. At the beginning of the pandemic, the public administration's focus shifted towards expanding the country's capacity for testing and treatment. Uzbekistan's government created and leveraged an Anti-Crisis Fund of US\$ 1 billion, around 2% of GDP, to bolster the economy and provide support to those most affected by the pandemic (International Monetary

Fund, 2021^[22]). The government of Uzbekistan quickly expanded its funding to healthcare, expanded the number of families with children to receive social benefits, and supported businesses in the most need.

40. The public administration in Uzbekistan remains centralised and hierarchical. Established in August 2018 by presidential decree *On the Establishment of the Administration of President of the Republic of Uzbekistan*, the Presidential Administration (PA) plays a central role in shaping and monitoring strategic directions of the country and supports the implementation of the decrees and decisions of the President (President of the Uzbekistan, 2024^[23]). Tasked with providing comprehensive support in organisational analysis oversight, the PA assumes the central role in shaping the trajectory of governance reforms. It articulates the overarching directions for public administration reform in Uzbekistan, entrusting sectoral-specific reform mandates to line ministries. The government, headed by the Prime Minister, is the main execution body that ensures the guidance and execution of the economic, social and cultural development of the country (Government of Uzbekistan, 2024^[24]). Line ministries are mainly tasked with the implementation of policies in their respective sectors and have subordinate committees, agencies and inspectorates to help them in implementation. All four republican executive bodies – ministries, their committees, agencies and inspectorates – are mandated to develop a unified state policy in the relevant area and ensure methodological assistance for local executive authorities (President of the Republic of Uzbekistan, 2022^[25]). Nonetheless, current efforts, supported by the Agency for Strategic Reforms, seek to accelerate the decentralisation of the government to the regional and local level.

41. Recent reforms addressing the reorganisation of ministries have demonstrated the government's capacity to adapt to changing issues and priorities yet have contributed to heightened personnel instability within nascent ministries and unclear mandates between public entities. The December 2022 presidential decree *On Measures to Implement Administrative Reforms of New Uzbekistan* outlines significant institutional changes within the ministries and agencies operating under the Government of Uzbekistan (President of the Republic of Uzbekistan, 2022^[13]). The decree introduces modifications to the executive structure of the Cabinet of Ministers aimed at abolishing agencies deemed redundant or inefficient, while establishing a new hierarchy of ministries to more strongly address the priorities outlined in the *Development Strategy of New Uzbekistan for 2022-2026*. In detail, the reforms reduce the number of independent executive bodies from 61 to 28, including ministries from 25 to 21, and transfers several committees, state committees, agencies and state inspectorates, previously operating under the President of the Republic of Uzbekistan or the Council of Ministers to the jurisdiction of line ministries (see Table 1.1). Furthermore, the decree underscores a focus on increasing the independence and efficiency of line ministries regarding budget and personnel needs and promoting the formation of public-private partnerships for service delivery and the transfer of further government functions to the private sector. However, these institutional reforms have generated high turnover in management personnel, contributing to a lack of clear, delineated mandates across ministries, slowing implementation. Effective reorganisation of the executive bodies system necessitates defining clear mandates for all entities involved, for example through legislation, to prevent duplication of roles, improve accountability and foster policy delivery.

Table 1.1. Reorganisation of ministries by presidential decree *On Measures to Implement Administrative Reforms of New Uzbekistan*

Name of the reorganised Ministry	Name of the Ministry being formed
Ministry of Public Education	Ministry of Preschool and School Education
Ministry of Preschool Education	
Ministry of Investment and Foreign Trade	Ministry of Investment, Industry and Trade
Ministry of Economic Development and Poverty Reduction	Ministry of Economy and Finance
	Ministry of Employment and Poverty Reduction
Ministry of Finance	Ministry of Economy and Finance
Ministry of Construction	Ministry of Construction and Housing and Communal Services
Ministry of Housing and Communal Services	
Ministry of Employment and Labour Relations	Ministry of Employment and Poverty Reduction
Ministry for Support of Mahallas and Older Generation	
Ministry of Higher and Secondary Special Education	Ministry of Higher Education, Science and Innovation
Ministry of Innovative Development	
Ministry for Development of Information Technologies and Communications	Ministry of Digital Technologies
Ministry of Tourism and Cultural Heritage	Ministry of Culture
Ministry of Culture	
Ministry of Sports Development	Ministry of Sport
State Committee for Ecology and Environmental Protection	Ministry of Ecology, Environmental Protection and Climate Change
State Committee for Geology and Mineral Resources	Ministry of Mining and Geology

Source: Adapted from (President of the Republic of Uzbekistan, 2022^[13]).

42. The government has also identified one theme per year to support and accelerate its reform efforts in a targeted field. For instance, the year 2023 was declared as “The Year of Human Care and Quality Education”, serving as a launchpad for sectoral reforms (President of the Republic of Uzbekistan, 2022^[26]).

Responsiveness: Uzbekistan holds ambitious plans to increase responsiveness of its public administration, especially in the digitalisation of public services.

43. Responsiveness in public administration refers to actively serving citizens and addressing their diverse needs. This fosters inclusive growth, through which all citizens can benefit from economic progress. A responsive government listens to its people’s concerns and expectations and reacts in a timely and flexible manner.

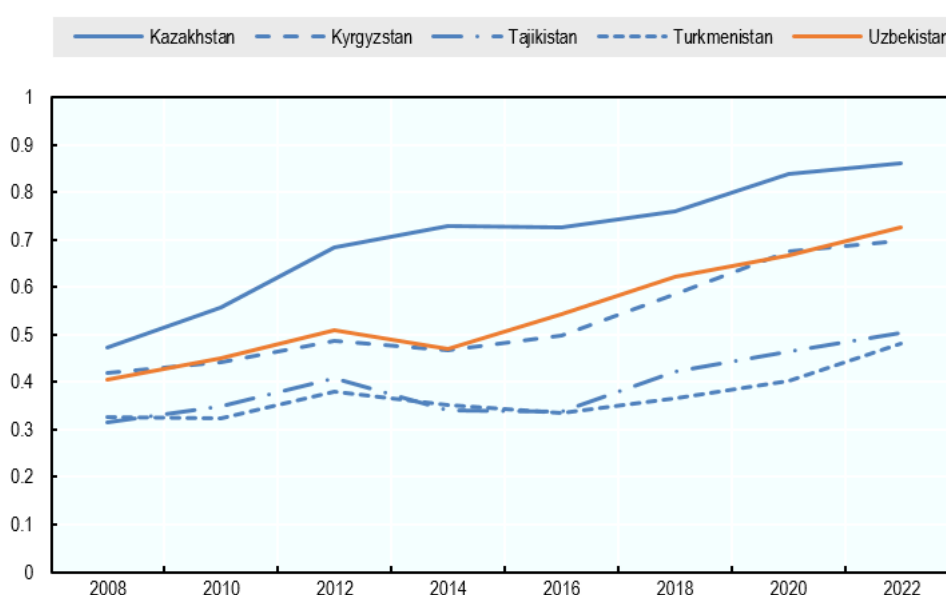
44. In late 2016, the government of Uzbekistan launched an ambitious economic and social reform programme, also recognising the need to boost the responsiveness of its public services. While initial focus was on improving economic parameters, the government also devoted its attention to improving responsiveness and accountability of its public sector. This mainly translated into establishing various communication and feedback channels for citizens, such as complaint mechanisms, online meetings with officials and platforms for feedback on regulations and budgeting (World Bank, 2022^[27]).

45. As Uzbekistan enters a new era of development under *Uzbekistan 2030*, the government has acknowledged the need to further increase the responsiveness of its public administration. In particular, these needs are most addressed in education, health and social protection, youth politics and digitalisation of public services through the pursuit of ambitious sectoral plans. The current performance in digitalisation and education is further discussed in this sub-section as illustration of recent developments and remaining issues in public service delivery in Uzbekistan.

Digitalisation of public services

46. Uzbekistan has paid particular attention to the digitalisation of public services and has made important strides over recent years. Launched in 2013, the E-Government portal currently offers more than 60% of public services online (Development Strategy Center, 2022^[28]). The country's progress is reflected in the E-Government Development Index (EGDI), which measures online service quality and scope, telecommunication infrastructure development, and human capital. Since introducing the central portal, Uzbekistan's EGDI has risen from 0.47 (out of 1) in 2014 to 0.73 in 2022 (United Nations, 2022^[29]). This surpasses neighbouring Turkmenistan (0.48), Tajikistan (0.50) and Kyrgyzstan (0.69), but falls short of regional leader Kazakhstan (0.86) (Figure 1.6). The percentage of individuals using the Internet has also notably increased, reaching 83.9% in 2022 compared to 70.4% in 2019 (International Telecommunication Union, 2022^[30]).

Figure 1.6. E-Government Development Index in Central Asian countries (2008-2022)



Source: Author's work based on (United Nations, 2022^[29]).

47. In recent years, Uzbekistan has put forth significant reforms for open government and online participation. However, further progress can be made in increasing public awareness of the availability of online services and the opportunities for citizens to participate online. For example, the country has developed an open data portal, as well as several public participation, dialogue, and petition portals. Although over 50% of citizens believe online public services can help to save time and cost and ensure better quality of services, nearly half of urban residents surveyed had limited awareness of these services (Kuldosheva, 2021^[31]). Rural populations face even greater limitations due to infrastructural shortcomings.

Box 1.1. Public service delivery in education

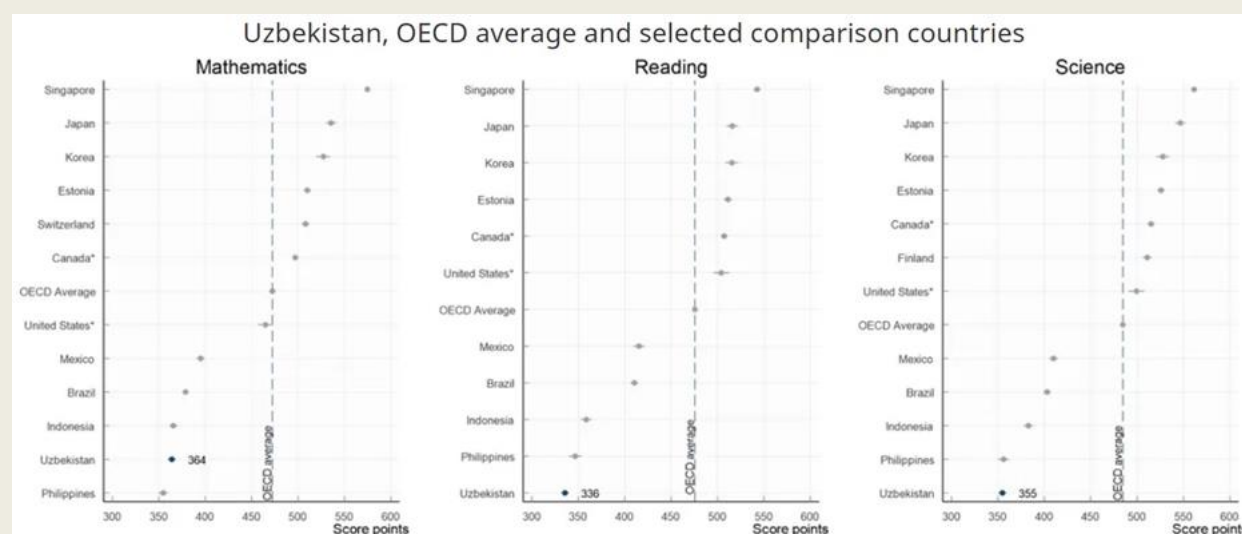
Uzbekistan offers universal access to education; however, quality and accessibility challenges remain. The country provides free primary and secondary education to all citizens starting at age 7. Although the country has expanded its network of schools, the administration can further increase the quality of school instruction and access to pre-school and tertiary education (World Bank, 2022^[27]). As such, almost half (46%; 2022) of children aged 36-59 months attend an early childhood education programme in Uzbekistan, slightly above Turkmenistan (41%; 2019) but less than in Kazakhstan (55%; 2015) (UNICEF, 2023^[32]). Due to significant reform efforts in this area in the last few years, Uzbekistan has improved its tertiary school enrolment rates, increasing pupils enrolling into higher education from 12.8% in 2019 to 31.5% in 2022 (World Bank, n.d.^[33]). Nevertheless, this value is at half the rate of neighbouring Kazakhstan, where tertiary school enrolment rates represent almost 65%. These disparities in access and quality of education are particularly acute in rural areas and regions with higher poverty levels, leading to significant differences between schools in the regions and in the capital, Tashkent.

Education stands as an important reform priority for Uzbekistan. It is particularly crucial in the context of a fast-growing population – in present-day 60% of Uzbekistan's population are people under 30 years of age, creating the potential for the country in next decades to have the largest labour force it ever faced (UNICEF, 2020^[34]). Highlighted as the first area for improvement in the *Uzbekistan 2030 Strategy*, the government is committed to enhancing the quality of pre-school and secondary education, as well as improving teacher training (President of the Republic of Uzbekistan, 2023^[6]). This is particularly crucial as public concerns linger about Uzbekistan's education system. As revealed in a 2020 public opinion study, over half of citizens worry about their children receiving a good education (World Bank, 2021^[35]).

In 2022, Uzbekistan participated in the Programme for International Student Assessment (PISA) for the first time, marking a significant step for the country's education system, gaining valuable insights for future improvements. Students in Uzbekistan scored less than the OECD average in the PISA. Overall, 15-year-old students in Uzbekistan scored 364 points in mathematics, 336 points in reading and 355 points in science compared to 472, 476 and 485 points respectively in OECD countries (Figure 1.7).

Despite lower performance scores, Uzbek students reported positive experiences at school. A high percentage (71%) felt a sense of belonging (compared to the OECD average of 75%), and an even greater majority (86%) felt they can easily make friends at school (compared to the OECD average of 76%) (OECD, 2023^[36]). Only 10% of students reported that they were not satisfied with their lives (OECD, 2023^[36]).

Figure 1.7. Mean performance in mathematics, reading and science in PISA 2022



Note: Comparison countries include the six highest-performing countries in each subject and the five countries with the largest population of 15-year-old students. Horizontal lines that extend beyond the markers represent a measure of uncertainty associated with mean estimates (the 95% confidence interval).

Source: (OECD, 2023^[36]).

Inclusiveness: Uzbekistan has made strides in reducing poverty and building an inclusive public administration, however, continued efforts are required to foster participation and tackle inequality effectively.

48. Inclusiveness refers to the degree to which an environment is accessible and equitable for all people regardless of their age, sex, identity, or ability. In the public administration, this translates to a diverse workplace that is open to people irrespective of their backgrounds and the inclusion of different voices in the work of civil servants. On a societal level, governments hold responsibility for removing barriers people face in their daily life and fostering participation in order to build a more inclusive society.

49. Since the launch of a broad economic transformation in 2017, Uzbekistan has implemented various reforms promoting greater economic and social inclusion. Notably, these measures address inequality, poverty, gender equality and civil participation, which are further discussed in this sub-section.

Social inclusion: poverty and inequality

50. Over the past two decades, Uzbekistan has made significant strides in reducing poverty. The number of people living below the international poverty line of \$2.15 per day (as of 2017) has plummeted from 19.7% in 2015 to 0.73% in 2023 (World Data Lab, 2023^[4]). This represents a near eradication of extreme poverty, bringing Uzbekistan closer to Kazakhstan. The Statistics Agency under the President of Uzbekistan has communicated that in the last three years, the poverty rate in the country dropped from 17% in 2021 to 11% in 2023, lifting more than 2 million people out from poverty (Embassy of the Republic of Uzbekistan in Malaysia, 2024^[37]).

51. In contrast, income inequality has fluctuated in Uzbekistan, with a general increasing trend observed over the past few years. According to the State Committee of the Republic of Uzbekistan on Statistics, the GINI index fluctuated between 0.26 and 0.29 over the past decade (State Committee of the

Republic of Uzbekistan on Statistics, 2022^[38]), reaching the lowest level of 0.26 from 2017 to 2019. The COVID-19 pandemic had a negative impact on income inequality, increasing it to 0.28 in 2022. This indicates a level of inequality similar to OECD countries such as Czechia and Hungary (OECD, 2024^[39]).

52. While the most basic needs of citizens are now largely met and the government is committed to further reducing poverty and inequality, there is greater room for strengthening social nets in Uzbekistan. Poverty and inequality remain highest in rural areas (World Bank, 2022^[27]). Uzbekistan's relatively comprehensive social protection system, inherited from the Soviet Union, requires adaptation to address current inequality and poverty challenges.

Inclusiveness in public administration: gender equality and civil society participation

53. Uzbekistan has enshrined gender equality in its Constitution and is one of the regional leaders in advancing women rights. However, women continue to be underrepresented in public administration, particularly in leadership positions. As such, the *2023 Amendments to the Constitution* asserted the equality of women and men (Article 58) and prohibited discrimination against women in employment based on their parental status (Article 42) (The Republic of Uzbekistan, 2023^[40]). In addition, the country has issued laws that promote women rights and address gender-based violence, for instance, the *Law on Guarantees of Equal Rights and Opportunities for Women and Men* (2019) and the *Law on Strengthening the Protection System for Women and Children* (2023). It is also worth noting that Uzbekistan criminalised domestic violence in 2023, becoming the fifth country in Eastern Europe and Central Asia to do so as a separate criminal offence (Amnesty International, 2023^[41]).

54. In terms of gender equality in Uzbekistan's public administration, in 2022, women held 33.3% of national parliament seats, exceeding the European and Central Asian average (30.9%) (World Bank, n.d.^[42]). This represents a significant rise from 16% in 2019. However, all 13 regional governors, or *khokims*, were men. As communicated by the Social Institutions and Gender Index (SIGI), a profound gender gap in management exists in Uzbekistan, with 98% of middle and senior managers being men (OECD, 2023^[43]). Additionally, discrimination in the family against women remains one of the region's highest at 41.7% (OECD, 2023^[43]). The majority of Uzbekistan's population believe that men are more entitled to work and are better in leadership positions. These factors significantly contribute to the imbalanced gender representation in Uzbekistan's public administration.

55. The government of Uzbekistan has taken steps to encourage civil society participation in policy-making processes and the country has progressed in this matter. However, civil society engagement remains limited in Uzbekistan. Particularly, the civil society participation index rose from 0.12 (out of 1) in 2016 to a record high 0.31 in 2021 (Varieties of Democracy, 2023^[44]). However, this has since declined to 0.26 in 2023, falling behind Kazakhstan (0.48) and Kyrgyzstan (0.43) in citizen and NGO consultation, and overall civil society involvement in decision-making. The World Bank's "Voice and Accountability" Indicator, which captures the perception of the extent to which citizens can participate in choosing their government, and in freedom of expression, association and media, exhibits a similar trend: Uzbekistan has improved its ranking from 3.0 (out of 100) in 2016 to 12.6 in both 2021 and 2022 (Kaufmann and Kraay, 2023^[12]). In this indicator, Uzbekistan scores lower than Kazakhstan (19.8; 2022) and the regional leader in public participation Kyrgyzstan (29.0).

56. In order to enhance public participation and public scrutiny of government activities, Uzbekistan has employed new initiatives. For example, in 2016, the country created a "virtual reception" of the President of the Republic, an official online platform for citizens to petition government and state services and directly send appeals to ministries and departments (President of the Republic of Uzbekistan, 2024^[45]). Three months after launching the platform, more than one million applications were received, which state agencies were reported to have treated with high urgency (Karshiev, 2020^[46]). Furthermore, in 2018, Uzbekistan set up a system of public councils (*Jamoatchilik kengashlari*) under numerous ministries, state committees and government agencies. A similar stakeholder engagement system exists in neighbouring

Kazakhstan (OECD, 2020^[47]) that largely served as an inspiration for Uzbekistan. After being in place for several years, the public councils have been effective to an extent. In particular, not all public councils are active (Karshiev, 2020^[46]) and openness and transparency in rulemaking procedures are often limited, which hinders public participation in decision-making processes of the country (Nabijonov, 2022^[48]).

57. As underlined by Uzbekistan's score on the WB voice and accountability indicators, the country can further enhance citizen participation in service design and policy making to make policies and services more human centric and responsive to citizens' needs. This could involve studying the experiences of countries such as Ireland and Finland in advancing the participation agenda and using innovative citizen engagement mechanisms, including National Policy dialogues and online consultation platforms (OECD, 2020^[47]).

Cross-cutting issues: Uzbekistan has some capacity in dealing with cross-cutting challenges, however it should be further strengthened including climate change mitigation and adaptation.

58. Cross-cutting issues, by demanding engagement across most or all sectors, pose a significant challenge to governments' activities. Governments are increasingly faced with these issues and must develop the internal capabilities and instruments to deliver on long-term and horizontal commitments. To this end, governments must strengthen their capacity to integrate efforts across all policy development processes and adopt long-term thinking. This necessitates clear objectives, stable resource allocation, strong political support at the highest levels, and whole-of-government co-ordination along with commitment from senior officials, civil servants, and civil society.

59. Climate change mitigation and adaptation are prime examples of cross-cutting issues. As global temperatures rise and natural disasters become more frequent, governments around the world grapple with the multifaceted challenges of climate change, including air pollution, ecosystem destruction and more. Box 1.2 highlights Uzbekistan's vulnerability to climate change and demonstrates its government's efforts to address these issues.

Box 1.2. Climate change as a cross-cutting issue in Uzbekistan

Uzbekistan stands among the most vulnerable nations in Central Asia to climate change impacts. The ND-GAIN Country Index ranks Uzbekistan, alongside with Tajikistan, as the region's most susceptible to climate-related disruptions (Notre Dame Global Adaptation Initiative, 2024^[49]). Since 2010, air pollution has worsened in Uzbekistan, exposing over half the population to unhealthy levels of PM2.5 particulates (OECD, 2023^[50]). The country experiences significant hydrometeorological hazards and natural disasters, including seasonal floods and recurring droughts. Climate projections indicate that Uzbekistan will face rising temperatures, increased drought frequency, more intense extreme weather events, and heavy precipitation variability (Climate links, n.d.^[51]).

Recognising the importance of addressing climate challenges, Uzbekistan has accelerated its transition to a green economy. To this end, the country has placed the Sustainable Development Goals (SDGs) at the core of its development planning (OECD, 2023^[52]). In 2019, the government approved the Strategy on Green Economy Transition 2019–2030, tasking the Ministry of Employment and Poverty Reduction with overseeing its implementation and co-ordinating relevant ministries and agencies (President of the Republic of Uzbekistan, 2019^[53]). Additionally, Uzbekistan has adopted various sectoral strategies and reforms like the National Strategy on Biodiversity Conservation 2019-2028 and transformation plans to develop the Aral Sea Region into a Zone of Ecological Innovation and Technology. Uzbekistan also hosts the largest solar energy development programme in the region, aiming to increase renewable energy in production of electricity to 25% of total demand by 2030

(International Renewable Energy Agency, 2023^[54]). In its updated Nationally Determined Contribution (NDC), Uzbekistan pledges a 35% reduction in greenhouse gas emissions per unit of GDP by 2030 compared with 2010 levels, exceeding the initial 10% target.

Uzbekistan commits to further increase its co-ordination capacity around climate change. To this end, there are plans to set up a working group on climate change comprised of the Agency for Strategic Reforms under the President of the Republic of Uzbekistan, line ministries and public agencies.

Altogether, these measures combined with existing experience in managing climate disasters suggest Uzbekistan is relatively well-positioned for adaptation. However, the ND-GAIN Country Index, while acknowledging Uzbekistan's strong adaptation potential, also highlights remaining challenges that require continued efforts (Notre Dame Global Adaptation Initiative, 2024^[49]).

60. In its efforts to enhance co-ordination for climate action, Uzbekistan could consider developing new horizontal and co-ordination instruments and mechanisms to ensure a consistent whole-of-government response to climate change. OECD member countries have developed a number of governance instruments to support co-ordination from the centre on climate. As such, these instruments can follow a centralised arrangement with a lead co-ordination unit situated at the centre of government or a line ministry. For example, in Poland, climate policies related to EU law are handled within the Chancellery of the Prime Minister, particularly the unit responsible for the co-ordination of Poland's European policy, reporting to the Minister for European Affairs (Kaur et al., 2023^[55]). In contrast, Estonia at first established and co-ordinated climate policies from its centre of government before moving this function to the Ministry of Climate (Box 1.3). Other mechanisms used in OECD member countries include permanent intergovernmental committees or commissions, climate "focal" points within ministries or agencies that serve as a mechanism to address co-ordination gaps and specific taskforces for co-ordination activities in specific areas (Kaur et al., 2023^[55]). In practice, OECD countries utilise different instruments and approaches in tandem in order to co-ordinate their climate change policies. Box 1.3 describes Estonia's and Sweden's co-ordination approaches to their climate policies in more detail.

Box 1.3. Co-ordination of climate policy in Estonia and Sweden

Estonia

In Estonia, the green transition policy has initially been centrally co-ordinated by the Government Office with the main aim to draw up a clear and concise action plan for the coming years to ensure the effective implementation of green transition and climate policy. This was in response to the acknowledgement that climate and green transition policies need a fundamental shift in policy design and implementation. Estonia emphasised the importance of a government-wide approach, which considers the environmental, social, and economic aspects of these policies to be of major importance. In addition, as climate and green transition policies lead to fundamental transformation of the society and economy, the government-wide leadership of these processes needs to be ensured.

To achieve their aim, three main steps were taken:

- Establishment of the Committee of Green Transition Policy (led by the Prime Minister, consists of relevant Ministers).
- Creation of an expert group, whose task was to make recommendations on the main priorities in green transition policy (consisted of experts, scientists, and private sector representatives).
- Establishment of the green transition team at the Government Office, whose responsibility was to co-ordinate the government-wide green transition process and to draw up the above-mentioned action plan.

All these steps were necessary to acquire the political mandate, which gave the co-ordination team a lever to push all the sectors to set up their respective plans. Estonia noted that political leadership, flexibility and the need for sufficient time for changes to occur were key lessons learnt.

From September 2023, the Committee of Green Transition Policy is led by the Minister of Climate, indicating a shift in approaches for the implementation.

Sweden

Sweden has developed a number of practices and mechanisms on the governance of cross-cutting topics that could be streamlined, particularly by establishing a strong framework for cross-cutting priorities to signal it as a clear priority, developing strategies and using joint assignments. Climate change is one such example, as it has been supported by the establishment of a strong framework with the Climate Policy Act. This has set the need for a Climate Action plan every four years (one year out from elections), clear objectives and a Council/governance arrangement.

The country has often used inter-ministerial Councils and Working Groups at different levels to support policymaking and co-ordination on horizontal priorities, including climate, innovation and digital. They were sometimes short-lived, lacking a specific mandate or did not have a clear enough institutional anchor. For instance, the Ministerial Working Group on Climate Policy was given a very broad mandate with limited resources to fulfil it. The latter was a forum for meetings and discussions composed by a secretariat, and it had two bodies reporting to it: an inter-ministerial group of State Secretaries and an inter-ministerial group of civil servants. The experience of long-standing Councils in Sweden and in other OECD member countries shows that councils can be a valuable asset provided that they are given a clear agenda and/or objective to foster collaboration and provide value added.

Source : (Kaur et al., 2023^[55]); (OECD, 2023^[21]).

Public administration reform and governance in Uzbekistan

61. Since 2017, Uzbekistan has prioritised public administration reform (PAR) as a cornerstone of its national strategic documents. In the *Concept of Administrative Reform in the Republic of Uzbekistan*, the country laid the foundation for a modernised and efficient public administration, focusing on refining institutional governance frameworks, enhancing the independence of executive authorities and modernising performance assessment systems. The subsequent *Development Strategy of New Uzbekistan for 2022-2026* outlined a comprehensive roadmap for long-term sustainable development, placing a strong emphasis on citizen well-being and effective governance. These objectives have been reinforced in the country's current long-term strategic document, *Uzbekistan 2030*, which aims to build a prosperous and inclusive society by empowering local governance structures, modernising administrative processes and frameworks, and enhancing civil service standards (President of the Republic of Uzbekistan, 2023^[6]).

62. Uzbekistan demonstrates a strong, high-level commitment to public administration reform, aiming to establish a transparent, efficient, and citizen-centred public administration to drive socio-economic progress and sustainable development through 2030. Current reforms, outlined in the *2023 Administrative Reform Process*, largely address the organisational structure of government institutions, civil service reform, enhancing local governance and digitalisation. The country's key priorities in PAR are broadly aligned with public administration reform strategies in OECD countries, more than half of which have implemented comprehensive PARs to enhance good governance and achieve policy outcomes since 2015 (OECD, 2024^[56]).

Box 1.4. Client-oriented Public Administration 2030 PAR in Czechia

Czechia's public administration reform strategy, *Client-oriented Public Administration 2030*, was published in 2020 by the Department of Strategic Development and Coordination of Public Administration, which operates under the Ministry of the Interior. While Centres of Government (CoG) in OECD countries are often involved in designing, steering and monitoring public administration reform, this role is devoted to the Ministry of Interior in Czechia.

The strategic document envisions "a client-oriented public administration creating conditions for the growth of prosperity in Czechia and further increasing the quality of life of its population". The PAR articulates three overarching global objectives, subdivided into five strategic aims: quality and accessible services of public administration, efficient system of public administration, efficient public administration institutions, competent human resources and informed and engaged citizens. To achieve these aims, the PAR delineates key projects, including the digitalisation of public services, optimisation of control mechanisms, promotion of evidence-based decision-making and enhancement of skills-based training of both local and state civil servants. The PAR further underscores the importance of improving communication between public administration entities and citizens, as well as raising awareness about citizen participation in public affairs. Special attention is directed to specific population groups, such as individuals with disabilities, to ensure their equal access to public services.

The implementation timeline is structured around three Action Plans, with the initial two spanning three years each and the final Plan extending over four years. In preparation of the PAR, public feedback was solicited through online questionnaires in 2018. This input was thoroughly reviewed and integrated into both the PAR and the corresponding Action Plan.

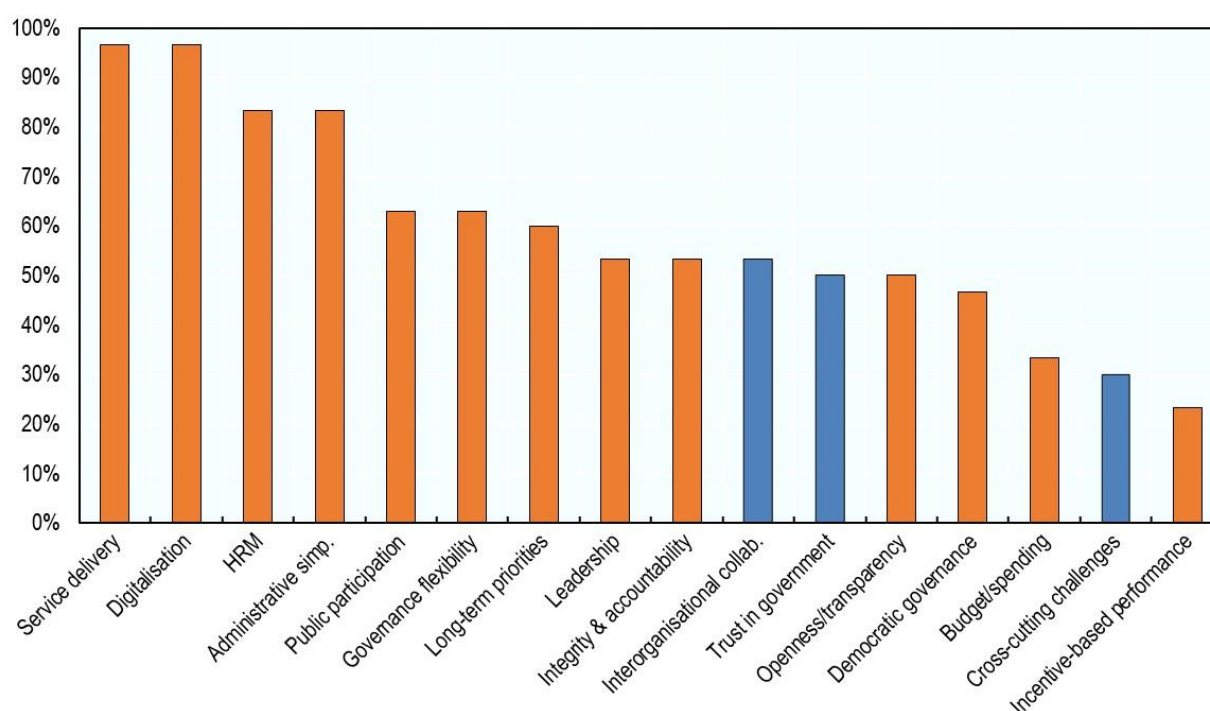
Source: (OECD, 2023^[57]); (Ministry of the Interior, 2020^[58]).

63. These comprehensive reform strategies have most prominently targeted public service delivery, digitalisation and administrative simplification, human resource management (HRM) and leadership, public participation, flexibility in governance, long-term priorities and integrity and accountability (see Figure 1.8). New areas in public governance are becoming increasingly relevant with half of reform strategies making reference to them. This translates for instance into the development of new objectives and pillars on public participation, or the shift of public service modernisation objectives from effectiveness-driven to citizen-oriented efforts, particularly on public services.

64. Further areas of improvement should focus on improving mechanisms for inter-ministerial co-ordination and clarifying reform mandates among relevant agencies, ensuring a skilled and stable workforce within line ministries, aligning KPIs with actionable inputs to support heightened monitoring and evaluation, and streamlining key reform priorities between the country's two active long-term strategic documents. These improvements are particularly crucial to support the sweeping institutional reforms currently underway in *2023 Administrative Reform Process Stages 1 and 2*.

Figure 1.8. Public administration reform plans in OECD member countries focus both on traditional policy areas and in new areas such as participation

More than 95% of reforms cover service delivery or digitalisation and around 50% are linked to democratic governance or trust in government.



Note: Data analysed for 30 OECD countries having implemented PARS or Separate Initiatives since 2015; thematic areas in orange are addressed in the *Uzbekistan 2030 Strategy*.

Source: Author's own elaboration; preliminary findings from desk research.

Uzbekistan has established public administration reform as a key priority of its national development strategies, linking an efficient, effective, and accountable public administration to the country's socio-economic ambitions.

65. In September 2017, Uzbekistan released a dedicated and comprehensive strategic document for PAR, *Concept of Administrative Reform in the Republic of Uzbekistan*, to support the successful implementation of the key priority areas of the whole-of-government *Action Strategy 2017-2021*, including the improvement of state and social institutional systems. The *Concept* intended to address systemic shortcomings within the public administration, including ineffective organisation and coordination of executive authorities operating within outdated and unaccountable systems, to improve both Uzbekistan's socio-economic progress and citizen welfare (President of the Republic of Uzbekistan, 2017^[59]). The strategy sought to overhaul the public administration by (i) refining the institutional framework and boosting independence of executive authorities, alongside advancing electronic governance; (ii) clarifying tasks and improving coordination, introducing new performance assessment systems; (iii) reducing administrative interference in the economy, fostering public-private partnerships; (iv) decentralising governance, empowering local bodies; (v) integrating modern planning and technology; and (vi) enhancing civil service and anti-corruption measures, ensuring transparency (President of the Republic of Uzbekistan, 2017^[59]). The *Concept* includes a detailed road map detailing the responsible executors and deadlines for implementing the mandated reforms, with the final deadline set for March 1st, 2018. Despite this, no evaluation assessment has been conducted since the conclusion of the timeline outlined in the strategy.

66. In January 2022, Uzbekistan released the *Development Strategy of New Uzbekistan for 2022-2026*, a comprehensive plan delineating the country's vision for progress and prosperity over a five-year period. The *Development Strategy* serves as a roadmap for Uzbekistan's continued state transformation and aims to further enhance the well-being of citizens and socio-economic prosperity. It consists of seven priority directions and one hundred goals, including measures to reinforce accountability and enhance organisational and service delivery capacities within the public administration. These measures, outlined in "Priority Area I: Building a human state through the elevation of human honour and dignity and the further development of a free civil society", address:

- **Institutional strengthening and empowerment:** enhance the capacities of local governance bodies, including mahallas and *Kengashes* of people's deputies. These reforms reinforce financial autonomy and avenues for citizen engagement in decision-making, with a focus on empowering *Kengashes* to address regional challenges in *mahallas*.
- **Modernisation of governance structures:** restructure institutional frameworks to meet contemporary demands. This includes adopting a citizen-centric approach to public administration to improve service delivery by prioritising citizen needs.
- **Professionalisation and efficiency enhancement:** optimise administrative processes within the public sector. This is achieved through targeted training programmes for officials and streamlining administrative mechanisms to improve resource allocation and efficiency.
- **Technological advancement and e-government implementation:** leverage digitalisation for better service delivery. This includes expanding online services, deploying digital identification systems, and enhancing data exchange between public agencies to streamline procedures and enhance accessibility.
- **Civil service improvement and public engagement:** elevate the civil service system and involve the public in government processes. This includes modernising recruitment standards, refining performance assessment procedures, and promoting professional development. The reforms seek to strengthen mechanisms for public dialogue to ensure citizen involvement in decision-making.
- **Public control and accountability:** enhance oversight mechanisms and accountability within governance structures. This involves reforming organisational and legal frameworks to strengthen

public oversight, foster transparency, and fortify citizen-led mechanisms, reinforcing public sector accountability and effective policy implementation.

67. The *Development Strategy of New Uzbekistan for 2022-2026* and the 2017 *Concept of Administrative Reform* share several common priorities, reflecting a coherent approach to addressing systemic challenges within Uzbekistan's public administration. Both strategies underscore the critical importance of strengthening institutional frameworks, modernising governance structures, and improving service delivery. The *Concept* adopts a strong focus on reforming institutional and operational characteristics of the public administration. The *Development Strategy* expands upon these objectives by placing a human-level emphasis on public administration reform, including investing in the professional development of civil servants, leveraging digitalisation for service enhancement, and fostering greater public engagement and control in decision-making processes.

68. The December 2022 presidential decree *On Measures to Implement Administrative Reforms of New Uzbekistan* operationalises the implementation of the *Development Strategy's* priority areas for PAR. In addition to its modifications to the hierarchy of government ministries and agencies (see Table 1.1), the decree introduces reforms to streamline the process for submitting and reviewing draft legal acts and enhance the accountability of government officials by mandating the selection of target indicators by the President for the evaluation of executive agencies. (President of the Republic of Uzbekistan, 2022^[13]). The decree establishes these reforms within the scope of the *2023 Administrative Reform Process*, with the initial stage focusing on reforming the organisational structure of republican executive bodies, followed by the second stage addressing the reform of local government bodies.

69. Following the adoption of the new edition of the Constitution in April 2023, current PAR priorities in Uzbekistan are organised in the *Uzbekistan 2030 Strategy*, a comprehensive long-term strategic plan that outlines the country's vision for the next decade; the strategy was developed following public discussion and the experience acquired from the implementation of the *Development Strategy of New Uzbekistan for 2022-2026* (President of the Republic of Uzbekistan, 2023^[6]). The strategy aims to build a free and prosperous, strong New Uzbekistan through the achievement of one hundred goals within five key priority areas. The strategy is underpinned by a commitment to providing opportunities for every citizen to realize their potential, nurturing a healthy, educated, and spiritually enriched generation, fostering a resilient economy that plays a significant role in global production, and ensuring justice, the rule of law, security, and stability. The plan outlines public administration reforms within "Priority Area 4.1. Reforms on the organisation of public administration oriented towards the service of the people and the improvement of public administration", including:

- **Enhancement of *mahalla* functionality:** strengthening *mahallas* as intermediary bodies between the public and government agencies, including directing funds to resident-approved projects, expanding services, and digitising interactions.
- **Empowering local governance structures:** strengthening local governance to better represent citizen interests and efficiently address community needs, including removing *khokims* from leading *Kengashes* to promote increased public participation in decision-making, and revamping and rationalising the role of *khokimiyats* by empowering them in staffing decisions and establishing a legal framework for their formation and dismissal.
- **Introduction of a "service state" system:** revolutionising public service delivery by digitising processes and enhancing efficiency, including achieving full digitisation of services, increasing the share of services provided through online platforms, offering composite and proactive services, and transferring certain services to the private sector.
- **Reorganisation of the public administration:** streamlining the public administration and fostering private sector involvement, including increasing private sector participation, fully digitising public administration functions, reducing regulatory burdens and decentralising administrative tasks.

- **Strengthening parliamentary role:** empowering parliamentary chambers and enhancing their digital capabilities, including digitising parliamentary processes, enabling electronic submission and consideration of legislative proposals, and implementing a mixed electoral system.
- **Improving legal policy foundation:** enhancing the legal framework and regulatory environment by reducing regulatory burdens, increased the share of direct-action laws, ensuring comprehensive monitoring of regulatory act implementation, and expanding regulatory impact assessments.
- **Advancement of civil service standards:** modernising and professionalising the civil service by fully digitising personnel divisions, extending professional development coverage to all civil servants, incorporating more state agencies into the civil service system, and maintaining a reserve of leadership candidates.
- **Enhanced citizen interaction:** improving citizen-state interaction processes and efficiency by abolishing paper-based appeals, enabling electronic applications to all state agencies, ensuring prompt resolution of complaints, and reducing repeat requests.

70. *Uzbekistan 2030* exists in tandem with its predecessor, complementing and reinforcing the objectives outlined in *Development Strategy of New Uzbekistan for 2022-2026* (see Figure 1.9). While both strategies emphasise enhancing local governance, a citizen-centred approach to public administration, legislative and regulatory reforms, and administrative simplification and digitalisation, the current strategic plan builds upon the foundations of the previous strategy by linking its objectives to measurable, achievable key performance indicators (KPIs). This evolution towards more quantifiable objective-setting marks a significant improvement in Uzbekistan's PAR capacities; however, further improvement could include the integration of KPIs with input-linked action plans, allowing for more effective monitoring and evaluation.

Figure 1.9. Public governance reforms in the *Development Strategy of New Uzbekistan for 2022-2026* and *Uzbekistan 2030 Strategy*

	Development Strategy of New Uzbekistan for 2022-2026	Uzbekistan 2030 Strategy
Thematic Areas	Goal Objectives	Goal Objectives
Enhancing local governance	- Increasing the efficiency of the mahalla institution, turning it into a basic link in public management and control - Turning the <i>Kengashes</i> of people's deputies into the main link in solving the problems existing in the regions - Bring the institutional framework for the activities of local public authorities in line with modern requirements	- Turning the <i>mahalla</i> into a "connecting bridge" between the public and government agencies in ensuring the well-being of the population and solving everyday issues in the regions - Turning the representative bodies of state power at the local level into the real voice of the people - Transformation of the activities of the executive bodies of state power at the local level, the establishment of territorial administration on the basis of the principle of "serving the interests of the population"
Citizen-oriented approach & public engagement	- Transform public administration into a "citizen-centred" approach - Improve mechanisms for dialogue with the people	- Organisation of the activities of public administration bodies on the basis of the principle of "State serving the people" - Improving the effectiveness of the system for identifying and solving the problems of the population by further expanding the dialogue with the people - Further development of a free civil society and the activities of the media, turning Uzbekistan into a hub for the development of civil society
Legislative and regulatory reforms	- Further enhancement of the role of the chambers of the Oliy Majlis and political parties in the consistent continuation of reforms in the country - Modernisation of rule-making processes, ensuring unconditional implementation of legislative acts - Improvement of the organisational and legal framework for the implementation of effective public control	- Further enhancement of the role of the chambers of the Oliy Majlis and political parties in the construction of the New Uzbekistan - Ensuring the harmonisation of rule-making activities and reforms, the development of the institutional foundations of the state's legal policy
Administrative simplification & digital transformation	- Development of the "E-Government" system, bringing the share of e-government services to 100 percent and eliminating bureaucracy - Implementation of a lean, professional, equitable and high-performance public administration system - Reduction of administrative apparatus in the public administration system and optimisation of work processes - Establishment of a public civil service system based on modern standards	- Introduction of the "Service State" system for the population by expanding the scale of digitalisation of public services, eliminating bureaucratic procedures in the relationship between the citizen and the state. - Organisation of the state civil service system based on the principles of meritocracy, honesty and professionalism

Source: Author's analysis based on (President of the Republic of Uzbekistan, 2022^[5]); (President of the Republic of Uzbekistan, 2023^[6]).

Uzbekistan's recent acceleration of public governance reforms through the adoption of new strategic documents has blurred institutional mandates and competencies for PAR.

71. Recent governance reforms in Uzbekistan have led to a pronounced centralisation of institutional responsibility for public administration reform within the Presidential Administration (PA), delineating mandates and competencies among line ministries, agencies, committees and inspectorates.

72. The PA has spearheaded the formulation of *Uzbekistan 2030*, and as such provides the strategic guidance on strategic and governance reforms stemming from *Uzbekistan 2030*. Each line ministry is mandated to address relevant PAR priorities in their individual sectoral strategies, which are exclusive to

a ministry's scope of work. In contrast, the PA has mandated three executive bodies with whole-of-government PAR responsibilities:

- **The Agency for Strategic Reforms (ASR):** Instituted in September 2022 by presidential decree *On Additional Measures to Accelerate Strategic Reforms*, the ASR functions as the vanguard of cross-sectoral reform initiatives, including the *Development Strategy of New Uzbekistan for 2022-2026*, *Uzbekistan 2030* and the two stages of the *2023 Administrative Reform Process*. While the ASR has a broader strategic and thematic mandate, the ASR's mandate for PAR includes (i) craft reform proposals to enhance the efficiency and competitiveness of targeted sectors within the public administration; (ii) evaluate the effectiveness of reforms, addressing systemic challenges within the bureaucracy and working to reduce administrative obstacles that hinder smooth execution; (iii) coordinate and monitor implementation of national development plans, overseeing their execution across government agencies; (iv) engage with international partners to enrich reform initiatives and secure essential resources necessary for successful implementation; (v) establish expert groups to analyse sectors of the public administration and develop reform roadmaps; and (vi) maintain a transparent reporting mechanism to track progress and ensure accountability (Agency for Strategic Reforms, 2022^[60]).
- **The Agency for the Development of Public Service (ARGOS):** Entrusted with the implementation of a unified state policy on human resources development and personnel management, the ARGOS has the mandate to transform and enhance the efficiency of Uzbekistan's civil service through the application of key performance indicators and public opinion to rate the transparency of government entities. Its responsibilities encompass (i) the development of a platform for the transformation of the public service, (ii) coordination of state personnel policy, (iii) monitoring and analysis of trends in the civil service sector, (iv) implementation of innovative methods for personnel management, (v) management of the National Personnel Reserve, (vi) implementation of performance evaluation systems, (vii) talent acquisition and development efforts, (viii) integration of information and communication technologies, (ix) and protection of the rights and interests of civil servants. Its decisions hold binding authority across government bodies, contributing to the standardisation and enhancement of public service delivery mechanisms (Agency for the Development of Public Service, 2024^[61]).
- **The Ministry of Justice (MoJ):** The MoJ is tasked with a broad mandate encompassing lawmaking and law enforcement. The Ministry has increasingly assumed a more focused role in PAR in recent years, addressing structural reforms within local administrations, *mahallas* and the civil service. Within the MoJ, the Department for Analysing the Efficiency of the Public Administration is responsible for monitoring and analysis of the public administration based on foreign best practices and current development trends. Since 2017, the Ministry has been entrusted with the co-ordination and monitoring of draft regulatory acts developed as part of the *Concept of Administrative Reform* and the *Development Strategy of New Uzbekistan for 2022-2026* (see Box 1.5). In response to evolving needs, the Ministry underwent organisational changes in 2022 and 2024, restructuring its Department of Public Administration into Law Enforcement Department. This alteration expanded its responsibilities to include analytical support to ministries and agencies, facilitating organisational changes and ensuring the successful implementation of assigned reforms within line ministries. As enshrined in presidential decree *On Further Increasing Responsibility and Forming a Compact Management System of Justice Bodies and Institutions within the Framework of Administrative Reforms*, the MoJ and justice institutions are responsible for the provision of methodological assistance to state and local bodies, organisations and citizen entities in the area of forming a unified law enforcement practice (President of the Republic of Uzbekistan, 2024^[62]). The MoJ has maintained close collaboration with the ASR, submitting quarterly analytical reports to the Agency on progress in key reform areas.

Box 1.5. Co-ordinating whole-of-government public administration reform through the Ministry of Justice

Since 2017, the Ministry of Justice (MoJ) has been entrusted with the co-ordination and monitoring of regulatory acts developed as part of the *Concept of Administrative Reform* and the *Development Strategy of New Uzbekistan for 2022-2026*. In 2018, the Department for Analysing the Efficiency of Public Administration was created to analyse and monitor public administration based on foreign best practices and development trends.

Strategic framework and alignment to national priorities

The MoJ's objectives for public administration reform and modernisation are outlined in the *Uzbekistan 2030* strategy, including the comprehensive digitalisation of government services, simplifying regulatory processes and enhancing efficiency and transparency through the "Service State" concept. The MoJ's interventions are also designed to contribute to the achievement of key priorities of the *Development Strategy of New Uzbekistan for 2022-2026*. To help achieve these objectives, presidential decree *On Further Increasing Responsibility and Forming a Compact Management System of Justice Bodies and Institutions within the Framework of Administrative Reforms* defines the responsibilities for the MoJ to identify and eliminate common legal problems encountered by citizens and make proposals to optimise government's agencies and organisations functioning through business process reengineering methods.

The ministry's operational framework is guided by a strategic vision geared towards driving public administration reform (PAR) and institutional development, underpinned by four principles to enhance administrative efficiency, promote accountability and integrity, foster a culture of excellence and professionalism, and strengthen international co-operation and knowledge exchange in the public administration.

Co-ordination of whole-of-government bodies

Given the absence of both a strategic framework for PAR and structured co-ordination instruments with other key bodies such as the ASR, most co-ordination activities take place ad hoc. Nonetheless, the MoJ submits quarterly analytical reports to the ASR on reform progress and co-ordinates closely with the Ministry of Economy and Finance in project selection. Co-ordination of regulatory policymaking is also a key area of responsibility for the MoJ, which manages the platform "Project.gov.uz," a single system for the development and agreement of draft regulatory documents.

However, these tools do not constitute co-ordination mechanisms per se, as they do not allow for continuous stakeholder collaboration to ensure cohesive PARs. There can be working groups to systematically address PAR, but none of them has yet been formally instituted.

Strengths and challenges

The MoJ has a clear and well-defined mandate to lead and co-ordinate PAR efforts. The adoption of the business re-engineering (BPR) approach from the private sector reflects an innovative spirit for reform. This methodology enables a systematic analysis and redesign of workflows and processes to improve service delivery, reduce costs, and enhance overall effectiveness. Additionally, the MoJ's engagement in international co-operation initiatives facilitates knowledge exchange, further bolstering its reform efforts.

However, there is weak alignment between the MoJ's BPR system and broader national strategy frameworks. While national strategic documents provide overarching principles and objectives, the MoJ's actions do not adequately inform actions or utilise the strategies' goals in decision-making and

project selection. Furthermore, the MoJ's work on PAR is often conducted on an ad hoc basis without a comprehensive, integrated strategy. The absence of a broad strategy and a co-ordinating body hampers the coherence of public administration reform efforts across different government bodies.

Source: (President of the Republic of Uzbekistan, 2022^[51]); (President of the Republic of Uzbekistan, 2020^[63]); (President of the Republic of Uzbekistan, 2024^[62]).

73. Several challenges persist in the effective implementation of Uzbekistan's PAR activities. These challenges encompass various areas, including skills gaps in the civil service and the absence of robust performance management mechanisms on the implementation of the Concept and on *Uzbekistan 2030*.

74. Inter-ministerial co-ordination is crucial to ensure that PAR reform priorities plans are aligned, enhancing capacity for monitoring implementation progress and exploring solutions to address gaps or delays. There is a lack of inter-ministerial coordination mechanisms in Uzbekistan, with ministries relying on ad hoc solutions for coordinating PAR priorities directed to them by the Presidential Administration. This is exacerbated by limited capacity for inter-ministerial data exchange, hindering the development of evidence-based action plans at the ministerial level. While a digital platform for inter-ministerial open data exchange exists, its utilisation among ministries remains low.

75. Most OECD member countries have developed dedicated inter-ministerial co-ordination mechanisms to steer and co-ordinate the implementation of their PAR plans. These dedicated structures provide critical support in facilitating collaboration and coherence across government agencies involved in PAR initiatives. In France, the Inter-ministerial Committee for Public Transformation oversees the operational implementation, co-ordination and political direction of PAR initiatives. Similarly, in the United States, the President's Management Council serves as the primary whole-of-government advisory body, offering guidance on management issues across agencies and overseeing the execution of PAR reform objectives (see Box 1.6). By fostering inter-ministerial dialogue, co-ordination and alignment of efforts, these mechanisms help ensure the execution of PAR agendas, enhancing evidence-based decision-making through knowledge sharing, and improved public sector performance.

Box 1.6. Inter-ministerial co-ordination mechanisms to support PAR implementation

France

In France, public administration modernisation initiatives are overseen by the Ministry of Public Transformation and steered and implemented by the Inter-ministerial Directorate of Public Transformation (DITP). The DITP is responsible for the execution of the reform programme and monitoring the implementation of priority reforms set by the French government, in liaison with line Ministries and prefectures to ensure effective implementation.

The implementation of the reform agenda has demonstrated a high level of inter-ministerial co-ordination through two strategic committees and an operational monitoring committee:

- The Inter-ministerial Committee for Public Transformation is tasked with ensuring operational implementation, monitoring inter-ministerial co-ordination and political steering of the Action Publique 2022 reform strategy. It convenes members of government biannually or triannually, chaired by the Prime Minister, with secretarial support provided by the DITP.
- A high-level strategic committee comprising directors of the central administration and the Minister for Public Transformation focuses on strategic oversight and direction.
- An operational monitoring committee brings together local administration directors to discuss monitoring of reform commitments and key performance indicators.

The PAR is effectively translated into administrative and regional networks for implementation. Each network commits to and contextualises the PAR objectives to their sectoral and local interests and contexts. Data is collected at the local level, ensuring proximity to users, and updated regularly.

United States

In the United States, the President's Management Agenda (PMA) is led by an inter-departmental President's Management Council (PMC), providing guidance to the President and the Office of Management and Budget on various management issues across government agencies. Chaired by the OMB Deputy Director for Management, the PMC comprises Deputy Secretaries and Administrators from 24 Federal agencies, alongside the Director of the Office of Personnel Management, the Administrator of the General Services Administration and the White House Cabinet Secretary.

Operating as a central hub for organisational performance and management leadership, the PMC oversees the implementation of whole-of-government reform programmes, providing overall direction for the execution of priorities outlined in the PMA.

The PMA outlines three whole-of-government priorities for the Federal Workforce through a concise list of objectives yet allocates the responsibility for implementation and indicator development to each individual Department. Each priority area has an interagency goal team dedicated to its implementation. Interagency forums, executive management councils and communities of practice offer agencies platforms to collaborate, share best practices and foster continuous learning. Each reform initiative, action plan and indicator list developed across all Departments is catalogued on the website Performance.gov, administered by the U.S. General Services Administration.

Source: (Inter-ministerial Directorate of Public Transformation, 2019^[64]); (Inter-ministerial Directorate of Public Transformation, 2022^[65]); (General Services Administration, 2024^[66]).

76. An additional challenge lies in the lack of a comprehensive framework outlining the mandates and responsibilities of executive bodies involved in PAR. The absence of a whole-of-government monitoring framework for the implementation of *Uzbekistan 2030* underscores the need for enhanced clarity and co-ordination to ensure that all agencies understand their responsibilities in advancing public administration reform initiatives. The presidential decree *On Measures to Further Improve the Activities of the Agency for Strategic Reforms* defines the Agency for Strategic Reforms responsible for monitoring the implementation of medium- and long-term strategies, concepts, state programmes and other documents, thus identifying and eliminating factors that impede their comprehensive implementation (President of the Republic of Uzbekistan, 2023^[67]). However, in practice, the reduced clarity on what executive body is the *de facto* co-ordinator for PAR exists. This highlights the imperative of establishing robust monitoring mechanisms to track implementation progress and ensure alignment of reform efforts with overarching strategic priorities.

77. In response to these challenges, Uzbekistan is taking proactive steps to enhance policy coherence and institutionalise monitoring mechanisms. The ASR seeks to develop a dashboard to assist in monitoring and evaluation of *Uzbekistan 2030*, addressing the challenge of data exchange and tracking implementation progress. Furthermore, the establishment of a Delivery Unit within the PA aims to enhance monitoring and evaluation capacities by leveraging key performance indicators for effective oversight, addressing the challenge of limited performance management mechanisms. There is additionally a strong desire to enhance the capacity of the civil service through training and professional development programmes. In addressing significant technical and soft skill gaps in the public administration, these programmes would equip civil servants with the necessary skills and knowledge to effectively contribute to the implementation of key priorities for PAR.

78. Addressing these challenges necessitates a multifaceted approach that encompasses not only clarifying government mandates and strengthening co-ordination mechanisms on PAR but also addressing the underlying issues related to digital infrastructure and skill development within the civil service.

79. Improving the implementation of PAR priorities necessitates the strengthening of institutional frameworks that precisely define the mandates of each government body involved in public administration reform. This entails ensuring clear delineation of roles and responsibilities among the PA, the ASR and the MoJ, as well as with line Ministries, through enhanced inter-ministerial co-ordination to ensure sectoral alignment with overarching priorities. Bolstering digital infrastructure is crucial for facilitating inter-ministerial data exchange and streamlining communication channels between government bodies, particularly on sharing key data on the public administration and on civil servants. This can include levels of satisfaction and delivery of public services, the payroll of civil servants and other key government data related to public governance. Investment in technological capabilities, such as upgrading existing systems and implementing new software solutions, is essential for improving efficiency and transparency in PAR initiatives. Additionally, establishing standardised protocols for data sharing and interoperability can further enhance collaboration and decision-making processes across ministries. Uzbekistan is for instance lacking data on public services access, quality and satisfaction. While this information could be collected with surveys, it could be shared electronically across government agencies and help make evidence-based policy making on the redesign and improvement of services.

80. Addressing skill gaps within the civil service requires comprehensive training and professional development programmes aimed at equipping civil servants with the necessary competencies to navigate complex implementation challenges effectively. There is also an increased need in the civil service for the enhancement of not only technical skills but also high-level cognitive and complex social competencies (OECD, 2023^[68]). Training and workforce development programmes should thus encompass a wide range of topics, including project management, data analysis, and policy evaluation, as well as soft skills, to empower civil servants with the tools and knowledge needed. Fostering a culture of continuous learning and innovation is essential for cultivating a skilled and adaptive workforce capable of responding to evolving needs. This involves creating opportunities for knowledge sharing and collaboration among

government employees, as well as incentivising professional growth through performance-based incentives and recognition programmes. These topics will be further explored in Chapter 3 on the future of the public service.

81. Monitoring and evaluation are essential to fuel performance dialogue on PAR reforms, enabling stakeholders to assess progress, identify challenges and make informed decisions for future reforms. Through systematic tracking of key performance indicators to evaluate outcomes, governments can gauge the success of their PAR strategies and adjust implementation as needed. Kazakhstan has established an Action Plan to implement the Concept for the Development of Public Administration until 2030, which is annually monitored and evaluated by the Ministry of National Economy (see Box 1.7). This evaluation assesses progress towards creating a service-oriented and human-centric model of governance outlined in the Concept. Furthermore, Kazakhstan has synthesised a series of OECD recommendations into a single roadmap for policy implementation, endorsed and monitored by the Office of the Prime Minister.

Box 1.7. Monitoring of the implementation of the Concept for the Development of Public Administration in Kazakhstan

The *Concept for the Development of Public Administration in the Republic of Kazakhstan until 2030* aims to establish a service-oriented and “human-centric” model of governance. To achieve this, the Concept outlines nine key tasks, including the formation of a client-oriented government apparatus, improvement of strategic planning approaches, and enhancement of the quality of human resources. These tasks are further subdivided into 35 projects, with implementation planned until 2030 to drive the transformation of Kazakhstan’s public administration.

To aid in monitoring and evaluation of the PAR strategy, the government has developed an Action Plan for the implementation of the above themes, which is monitored and evaluated on an annual basis by the Ministry of National Economy. The monitoring assessment pairs each thematic reform area to pursued reform objectives, detailing the key performance indicator, the government agencies responsible for their execution, and an evaluation of the reform’s current progress. The evaluation provides specific context as to whether the reform has been completed, not yet reached, or is still in progress, and includes evidence to support these findings. The report is available online for consultation by partners and citizens, displaying achievements and progress in several areas.

Source: (Ministry of National Economy of the Republic of Kazakhstan, 2022^[69]).

82. By prioritising the development of robust monitoring mechanisms, investing in digital infrastructure, and promoting skill development within the civil service, Uzbekistan can pave the way for a more efficient, effective, and transparent public administration system capable of driving sustainable socio-economic development.

Recommendations regarding plans and institutional frameworks

Uzbekistan's commitment to public administration reform (PAR) is evident in its strategic documents, notably the *Concept of Administrative Reform*, the *Development Strategy of New Uzbekistan*, and *Uzbekistan 2030*. These documents lay out a roadmap for modernising public administration, enhancing governance frameworks, and promoting citizen well-being. However, to ensure the successful implementation of these reforms and address existing challenges, several recommendations can be made:

- **Clarify mandates and responsibilities:** develop a comprehensive mandate document outlining the roles and responsibilities of public sector agencies involved in PAR. This document should clearly define the objectives, tasks, and expected outcomes for each agency, particularly the delineation of roles between the MoJ and ASR, ensuring clarity and accountability in the reform process.
- **Update the 2017 concept** to further align with *Uzbekistan 2030* and to consider new cutting-edge priorities that are included in OECD member country plans, for instance on participation, the use of AI and technology in the public service or human-centred public services.
- **Enhance inter-ministerial co-ordination:** strengthening mechanisms for inter-ministerial co-ordination is crucial to ensure coherence and synergy in PAR efforts. Establishing dedicated councils or inter-institutional committees can facilitate collaboration and streamline decision-making processes on the public administration reform agenda. This could include a high-level committee at Ministerial level that meets once a year, and quarterly working group meeting with representatives from all key ministries led by the MoJ and the ASR. Regular consultations and information-sharing sessions among ministries can help align reform priorities and avoid duplication of efforts.
- **Streamline priority reforms across strategic documents:** harmonise priorities between the country's active long-term strategic documents, namely the *Development Strategy of New Uzbekistan for 2022-2026* and *Uzbekistan 2030*. Aligning reform objectives and action plans between these documents can enhance coherence and focus on PAR efforts, maximising their impact on socio-economic development.
- **Improve monitoring and evaluation frameworks:** establish robust monitoring and evaluation mechanisms to track the progress of PAR initiatives and ensure alignment with strategic objectives. This calls for using the KPIs that are mentioned in *Uzbekistan 2030*, such as achieving complete digitalisation of public services and ensuring 100 percent coverage of state civil servants with continuous professional development, and to cascade them into the other documents. This includes developing KPIs linked to actionable inputs, enabling more effective monitoring and evaluation of reform outcomes. Regular reviews and assessments can help identify areas for improvement and adjust strategies accordingly.
- **Promote skill and professional development in the civil service:** prioritise training and professional development programs to equip civil servants with the necessary competencies to navigate complex implementation challenges effectively. This includes training in project management, data analysis, policy evaluation, and other relevant areas. Fostering a culture of continuous learning and innovation can help cultivate a skilled and adaptive workforce capable of driving sustainable socio-economic development (see chapter 3 for more details).
- **Establish effective performance management and feedback mechanisms:** implement mechanisms for integrating feedback from stakeholders, including NGOs, the private sector and

citizens, to ensure their active participation in the reform process, for instance through online feedback platforms, or national dialogues. Engaging stakeholders in decision-making and policy formulation can enhance the legitimacy and effectiveness of PAR initiatives.

By implementing these recommendations, Uzbekistan can accelerate progress towards building a transparent, efficient, and citizen-centred system of public administration that drives socio-economic development and improves the quality of life for its citizens.

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2 Improving policy co-ordination, strategic planning and performance management in Uzbekistan

This chapter provides an in-depth exploration of Uzbekistan's strategic planning and governance framework, with a particular focus on the 2030 Strategy's delivery and measurement mechanisms. It examines the roles, instruments, and mandates of key institutions, such as the Agency for Strategic Reforms under the President, and their evolving contributions to effective planning efforts, especially in light of the new Presidential Decree on strategic planning. Additionally, it discusses the support and guidance provided by central institutions to line ministries, emphasising the importance of robust co-ordination mechanisms. Through dedicated case studies, the chapter assesses a whole-of-government approach to strategic planning. The chapter concludes with evidence-based recommendations designed to further strengthen Uzbekistan's strategic planning framework, ensuring the nation's continued advancement towards inclusive development.

Introduction

83. The Government of Uzbekistan recognises the pivotal role of strategic planning in achieving its ambitious socio-economic transformation and in shaping the country's future, especially in an increasingly volatile environment marked by disruptive crises and cross-cutting policy challenges. It has embarked on a robust reform trajectory towards long-term development, underscored by two key strategic frameworks: the *Development Strategy of New Uzbekistan for 2022-2026* and *Uzbekistan 2030* that encapsulate a vision for the future, emphasising sustainable growth, educational enhancement, environmental protection, effective governance, and socio-economic advancement. The latter also serves as an enhanced five-year strategic plan taking into account the national reform dynamics and the challenging geopolitical landscape, such as regional shocks, and national shifts such as its constitutional referendum that was held on 30 April 2023. The 2030 Strategy is bolstered by stakeholder engagement, drawing insights from citizen feedback and consultations across all ministries, thus aiming to ensure a holistic and responsive planning approach.

84. In a time where numerous OECD member and non-member countries are refining their long-term strategic visions towards 2030, Uzbekistan's strategic planning efforts, particularly through the lens of the 2030 horizon, encapsulate an ambition to reflect current global changes and align with international good practices, while taking into account its country-specific developmental, social, and governance challenges.

85. This second chapter of the OECD Public Governance Review of Uzbekistan will therefore take a closer look into Uzbekistan's strategic planning and governance framework, with a particular focus on its 2030 Strategy delivery and measurement mechanisms. It explores the country's strategic planning ecosystem, spotlighting the roles, instruments, and mandates of the Agency for Strategic Reforms (ASR) under the President and other pivotal institutions steering the country's strategic direction, as well as their evolutions, particularly those envisaged in the new decree on strategic planning. The chapter discusses the expertise, support and guidance provided by central institutions to line Ministries on strategic planning. An in-depth analysis of Uzbekistan's existing co-ordination mechanisms is also presented, aiming to analyse its efforts in implementing key and cross-cutting priorities. This includes examining vertical co-ordination between central and local government tiers and proposing enhancements to foster more effective collaboration.

86. The country has been reinforcing its strategic planning framework and system over recent years by designing key overarching strategic documents, establishing institutions like the ASR, creating bodies on strategic planning and currently working on the creation of a comprehensive legislative framework for strategic planning. While significant efforts have been made to reinforce the strategic planning system, strengthening a number of governance practices and tools, adopting new ones or modernising others, could boost Uzbekistan's efforts for strategic planning and unlock its untapped potential to deliver on inclusive and sustainable outcomes over time. This chapter concludes with a set of tailored, evidence-based actionable recommendations inspired by OECD good practices and relevant to its country-specific context.

87. In the form of dedicated case studies, this chapter will also assess the co-ordination and functioning of three key ministries that play horizontal functions and are tasked with delivering crucial priorities for the government. Most notably the Ministry of Economy and Finance, due to the intrinsic link between budget and strategic planning and its role vis-à-vis state-owned enterprises (SOEs); the Ministry of Investment, Industry and Trade, which plays an important role in economic policy formulation and implementation, and the Ministry of Digital Technologies considering the cross-cutting nature of the digital transformation.

88. Finally, the chapter is followed by a focused chapter on gender mainstreaming, by analysing the integration of gender equality in its decision-making processes. It compares Uzbekistan's institutional frameworks and practices with those in OECD member countries, providing insights into the mechanisms

and strategies employed to promote gender equality, including the implementation of the *Strategy for Achieving Gender Equality in Uzbekistan until 2030*.

Uzbekistan's strategic planning framework

89. As identified in the OECD's Policy Framework on Sound Public Governance (OECD, 2020^[1]), strategic planning is crucial for all levels of government to pursue and achieve policy goals essential for growth, development, and wellbeing. The ability to build and mobilise around a shared vision of the future is fundamental to this process, as it facilitates co-ordination across administrative silos and policy areas, enabling a whole-of-government approach to address multidimensional strategic priorities in a coherent manner. This approach is increasingly important in a complex and volatile policy environment, where governments face unpredictable and interacting challenges. By fostering a common vision, strategic planning helps to integrate and steer efforts towards coherent policy responses that address the multidimensional nature of these challenges efficiently and proactively.

90. Moreover, in the face of growing cross-cutting issues while governments are operating in a growingly complex environment, the necessity for adaptable long-term strategic planning intensifies. Global dynamics and fiscal constraints underscore the importance of a long-term vision that can guide government actions, balancing immediate pressures with the pursuit of overarching goals. Such planning not only promotes synergies and provides a coherent country vision but also ensures that governmental actors consistently implement policies and actions aimed at achieving long-term objectives. Thus, strategic planning serves as a structured approach to tackle complex challenges, providing a coherent vision for a country, and encourages actors in the administration to consistently implement the actions and policies aimed at achieving the long-term country goals (OECD, 2020^[1]).

91. Ensuring effective strategic planning frameworks requires several critical elements, which will be discussed in this chapter, starting with the clear alignment and hierarchy of strategic documents to ensure that high-level priorities are consistently implemented across all levels of governance. Consulted stakeholders identified a lack of prioritisation, stability and alignment in current planning efforts, leading to misalignment and duplication in the system, where the assignments from the top are often unclear and evolving, including on institutional mandates and roles. Insufficient steering and limited capabilities also make it difficult for central strategic planning entities to provide much-needed support, expertise and guidance to line ministries, and need reinforcement to deliver. These units need robust performance management and coordination mechanisms to ensure coherence across policy areas and public institutions, aligning planning efforts with national objectives. Effective co-ordination is essential for tracking progress and identifying priority areas. Currently, this process is hampered by poor data quality and a lack of data exchange and interoperability.

92. These units need robust performance management and co-ordination mechanisms to ensure coherence across policy areas and public institutions, aligning planning efforts with national objectives. Finally, robust performance information is imperative to track progress and identify priority areas, a step currently hampered by poor data quality and a lack of data exchange and interoperability (OECD, 2023^[2]).

93. Uzbekistan is currently engaged in the adoption of a draft Presidential Decree that aims to formalise and strengthen its strategic planning system. This is done most notably by reinforcing the roles and responsibilities of the involved actors and by clarifying its hierarchy of strategic documents by placing the 2030 Strategy firmly on top, while stressing the quality of sectoral strategies as a precondition for major government performance and delivery of results to the citizens, as well as reinforcing links with programme-based budgeting. It is crucial for such a decree to be passed to introduce the necessary stability, as well as standards for development, monitoring and evaluation of strategic planning documents, thus paving way for the implementation of the future Law on Planning and reinforce the overall planning system in Uzbekistan.

94. The government of Uzbekistan recognises the crucial role of strategic planning in shaping the country's future and has defined a trajectory set by the mid-term five-year strategies starting with the 2017-2021 Strategy and subsequently the 2022-2026 Strategy. However, more efforts and strategic planning instruments are needed to ensure their consistent monitoring and implementation. The recent adoption of the 2030 Strategy, intended to adapt to regional shocks and constitutional changes, provides a shared and consistent high-level strategic guidance for the country and highlights the necessity for continual updates and revisions to strategic plans. Without such adaptability, plans risk becoming obsolete in rapidly changing contexts. The Latvian approach toward creating their main strategic document, as presented in Box 2.1, offers a potential model for Uzbekistan to follow, emphasising the need for clear, actionable strategies over mere announcements or decrees.

Box 2.1. Adjusting the course: planning in Latvia

In 2020, the Latvian government and parliament approved the National Development Plan 2021-2027. The plan defines the strategic goals, priorities, measures and indicative investment needs for seven years to achieve sustainable and balanced development. The NDP2027 sets 4 strategic goals for 2027 in 6 priority areas and 18 directions for key policies.

The creation of the NDP2027 was centrally led by the Cross-Sectoral Co-ordination Centre (PKC), a CoG entity now integrated into the State Chancellery, with a mandate to develop a long-term strategic approach to public policy making. The unique position of the PKC made it possible to develop the NDP coherently and collaboratively in accordance with the Latvian Sustainable Development Strategy 2030 and the United Nations Sustainable Development Goals (SDGs).

In addition, the NDP incorporates engagement with citizens, experts and other stakeholders. Over 150 different stakeholders work in six working groups organised by the PKC under the prime minister's authority. These activities helped the CoG gather insights from different groups, providing valuable input for the plans while building advocacy.

The plan outlines the long-term vision and how it translates into operational plans, including information on indicators, responsible authorities and funding.

Finally, the NDP2027 was created in line with the resources available in the country. Policy changes are supported by public investment from the national budget, European Union (EU) funds and other financial instruments. In this context, abrupt crises might change financial possibilities, as was the case with the COVID-19 pandemic and the EU Recovery and Resilience Facility response to it.

Source: (Government of Latvia, 2024^[3]).

95. Currently, Uzbekistan's whole-of-government planning landscape is delineated by three primary documents, each with distinct goals and timelines, that aim to guide the nation's development across various sectors and timeframes, reflecting the government's ambitions and policy directions:

- the Development Strategy of New Uzbekistan for 2022-2026 (2022-2026 Strategy)
- the Uzbekistan 2030 Strategy (2030 Strategy)
- the National Sustainable Development Strategy 2018-2030 (NSDS)

Development Strategy of New Uzbekistan for 2022-2026

96. The Development Strategy of New Uzbekistan for 2022-2026 is central in Uzbekistan's planning efforts. It follows the format of mid-term five-year strategies, which started in 2017. It comprises 100 goals

across multiple domains, namely the politico-institutional, judicial, socio-economic, cultural, foreign policy, and defence sectors. It establishes seven priority areas:

1. Building a humane state by improving the honour and dignity of humans and the further development of a free civil society;
2. Turning the principles of justice and the rule of law into a fundamental and necessary condition for the development of the country;
3. Accelerated development of the national economy and ensure high rates of growth;
4. Implementing a fair social policy, developing human capital;
5. Provision of spiritual development and raising this sphere to a new level;
6. Approach to global issues based on national interests;
7. Strengthening the country's security and defence potential, maintaining an open, pragmatic, and active foreign policy.

97. Despite its comprehensive scope, interlocutors consulted during the OECD's fact-finding mission identified a lack of clearly defined outcome indicators, targets, and deadlines, which complicates the monitoring and evaluation of its implementation.

98. While the plan has been mostly created by working groups under the Cabinet of Ministers, the responsibility of overseeing this strategy falls on various entities, including the Ministry of Justice, the Accounts Chamber, and the Centre for Development Strategies, underpinned by the President's Decree No. 216 as of 8th September 2022 that mandates the Agency for Strategic Reforms (ASR) to ensure its thorough and effective execution: *"to control the implementation of the Development Strategy of the New Uzbekistan and the state programmes, and also, having built on this, to co-ordinate their full and high-quality implementation"*. However, consulted stakeholders clearly identified that the ASR currently lacks the institutional or legal mechanisms to carry out this mandate effectively.

Uzbekistan 2030 Strategy

99. The Uzbekistan 2030 Strategy is a crucial step in the country's strategic planning framework. Its aim is to extend and refine the trajectory set by the above identified mid-term five-year strategies which started with the 2017-2021 strategy and subsequently the 2022-2026 strategy. The 2030 Strategy, adopted in September 2023, is designed as a natural successor to the Development Strategy of New Uzbekistan for 2022-2026, with a long-term vision that extends beyond the immediate five-year horizon. The progression to that was strongly impacted by regional and national changes, maintaining continuity with previous goals while introducing refinements such as KPIs to enhance strategic effectiveness. The strategy sets five priority directions, entailing one hundred goals for their realisation, as follows:

1. **Creating decent conditions for realising the potential of every person:** focuses on extensive educational reforms, including preschool, secondary, and higher education, along with vocational training. Key initiatives include improving infrastructure, enhancing teacher salaries, and increasing the use of technology in education.
2. **Ensuring the welfare of the population through sustainable economic growth:** targets macroeconomic stability, digital economy expansion, tourism development, and improvements in fiscal policies. Goals include increasing per capita income, developing tourism, and enhancing the digital and physical infrastructure.
3. **Conservation of water resources and environmental protection:** emphasizes sustainable water use, environmental conservation, and addressing climate change impacts. Strategies include modernizing irrigation systems, expanding green spaces, and improving waste management and recycling.

4. **Ensuring the rule of law, organising public administration oriented at service to the people:** aims to transform public administration to be more service-oriented, enhancing the legal framework, and ensuring effective governance. Efforts include increasing transparency, improving local governance, and digitizing public services.
5. **Consistent continuation of the policy based on the principle of “a safe and peace-loving state”:** aims to continue an open and pragmatic good-neighbourly foreign policy, establishing a balanced and ongoing dialogue on regional and global issues.

100. While many goals from the 2022-2026 strategy are carried forward to ensure sustained progress, the 2030 strategy introduces more detailed goal setting to heighten its impact. Ministries and public entities are therefore expected to continue their efforts towards these continued targets.

101. A notable difference between the 2022-2026 and the 2030 Strategy, is the incorporation of public input in its development. The constitutional amendment on 30 April 2023 catalysed the inclusion of the public, highlighting a new participatory approach to national planning. This was facilitated through an initiative titled “the President's Reception”, which allowed citizens to contribute their perspectives on the various strategic goals. Furthermore, interactions between the President or prime minister with regions and societal groups also informed the strategy to ensuring that it resonates with societal needs.

National Sustainable Development Strategy 2018-2030

102. The National Sustainable Development Strategy 2018-2030 reflects Uzbekistan's commitment to aligning with the United Nations' Sustainable Development Goals (SDGs) of its 2030 Agenda for Sustainable Development, aiming to enhance the nation's international standing. It comprises 16 goals and 126 tasks, underpinned by a monitoring system with 190 indicators. The strategy has spurred several initiatives, such as the issuance of SDG sovereign bonds and the submission of two Voluntary National Reports (VNR) to the UN's High-Level Political Forum on Sustainable Development, indicating a strong national and international commitment to sustainable development.

103. However, while the 2022-2026 Strategy covers all the national sustainable development goals and targets, its second Voluntary National Review (Government of Uzbekistan, 2023^[4]) recognises as a main problem the development of specific measures within the framework of the implementation of the 2022-2026 Strategy and individual targets of the SDGs. Furthermore, the NSDS does not seem to refer to the 2030 Strategy making it not perceived as central to the system, severely impacting its effectiveness. There is also no obligation for sectoral strategies to align with it, which further dilutes its impact. Finally, while the Ministry of Employment and Poverty Reduction is in charge of drafting the VNR, the overall leadership of the strategy seems to be unclear.

Uzbekistan's main strategic documents show a certain level of alignment, but for many stakeholders a lack of clarity remains regarding prioritisation and sectoral linkage

104. Table 2.1 below compares the three strategic planning documents of Uzbekistan: the Development Strategy of New Uzbekistan for 2022-2026, the Uzbekistan 2030 Strategy, and the National Sustainable Development Strategy 2018-2030. These documents serve as the foundation for the nation's strategic direction over different time periods and encompass a range of priorities, from socio-economic development to compliance with the United Nation's sustainable development goals (SDGs).

Table 2.1. Comparing Uzbekistan's main strategic documents

Feature	Development Strategy of the New Uzbekistan 2022-2026	Uzbekistan 2030 Strategy	National Sustainable Development Strategy 2018-2030
Initiation	Central five-year strategic plan	A seven-year plan that forms a continuation and refinement of the 2022-2026 strategy	Reflects commitment to UN SDGs
Goals	100 goals across various domains	100 specific goals across five primary areas	16 goals with 126 sustainable development tasks
Priority Areas	Socio-economic development, rule of law, and foreign policy	Education, economic growth, environmental protection, rule of law, foreign policy	Sustainable development aligned with UN SDGs
Monitoring and Evaluation	Lacks clearly defined indicators and timelines	KPI's have been developed	Dedicated monitoring system with 190 indicators, but weak linkage to goals
Public Involvement	Strategy implementation monitored by MoJ, Chamber of Auditors, and other entities	Incorporates public feedback through "President's reception" and regional consultations of President and Prime Minister	Limited public involvement in goal formation
Steering	ASR recognised as leading organisation	ASR recognised as leading organisation	Unclear leadership
Legal and Institutional Framework	Absence of clear mechanisms for ASR to enforce strategy	Pending regulatory framework to define strategic planning process	No mandatory alignment of sectoral strategies with SDGs
Outcome	Aimed at holistic national development	A comprehensive roadmap focusing on sustainable growth and socioeconomic improvement taking into account regional and global development	International commitment towards the UN sustainable development process.

Source: Author's own elaboration.

105. The Development Strategy of New Uzbekistan for 2022-2026 sets a broad array of goals across multiple sectors, aiming for comprehensive national progress, but seems to lack specific metrics for evaluation. The Uzbekistan 2030 Strategy, building further on this strategy, focuses on long-term goals in areas like education, economic growth, and environmental protection. The National Sustainable Development Strategy aligns with international sustainable development goals, with a detailed monitoring system, yet struggles with effective goal linkage and sectoral integration. While each strategy reflects different aspects of Uzbekistan's development aspirations and operational approaches, highlighting the country's evolving strategic planning landscape, the more elaborate development process by actively involving ministries and citizens, and the wider time horizon ensure that the Uzbekistan 2030 Strategy effectively acts as a fortified strategic planning document.

106. However, the high-level planning documents of Uzbekistan, notably the Uzbekistan 2030 Strategy and the Development Strategy of New Uzbekistan for 2022-2026, exhibit a strong level of strategic ambiguity that impacts their effective implementation. While certain sectoral frameworks like the Digital Uzbekistan 2030 Strategy (see Box 2.2) aim to include both strategic documents, there seems to be confusion among consulted ministries in the framework of this review regarding which document should guide their functioning and planning efforts. This lack of clarity risks duplication of efforts and resources, as several consulted interlocutors during the OECD's fact-finding mission mentioned they continue to prioritise the 2022-2026 Strategy, while others shared a clear shift towards the 2030 Strategy as instructed by the ASR.

107. Additionally, among the consulted line ministries that acknowledge the central role of the 2030 Strategy, effectively linking it with sectoral strategies proves to be a significant challenge. This disconnection undermines the potential for coherent and integrated planning, raising concerns about the efficiency and effectiveness of strategic initiatives across the country's governance landscape.

Box 2.2. Co-ordinating the digital transformation through the Ministry of Digital Technologies

The Ministry of Digital Technologies (MDT) seeks to position Uzbekistan as a digital frontrunner in Central Asia by 2030. The ministry's responsibilities encompass the formulation and implementation of a unified state policy across various digital domains, including the development of information and communication technologies, ensuring information security, and advancing the digital economy and e-commerce.

Strategic framework and alignment to national priorities

The MDT's main strategic framework is the "Digital Uzbekistan 2030" strategy, formalised under the Decree of the President (UP-6079 from 6 October 2020). Developed in collaboration with other relevant ministries, the private sector and academia, the document defines four strategic directions: investments in digital infrastructure, expanding internet access, enhancing the quality of digital access and positioning Uzbekistan as a leading digital nation.

The decree emphasises alignment with broader national priorities outlined in the "Development Strategy of New Uzbekistan for 2022-2026" and "Uzbekistan 2030". The MDT actively participates in the 2030 progress meetings within the Cabinet of Ministers. However, this alignment takes place mainly at the conceptual level and not at the operational one, considering that "Digital Uzbekistan 2030" serves as the strategic framework guiding the ministry's actions. With the new planning framework, the development of new strategies will require the creation of a working team with the MoJ and the ASJ.

Co-ordination of whole-of-government bodies

Supported by the Deputy Prime Minister, the MDT acts as the working body of a central monitoring committee, to which heads of government entities must report monthly on implementation progress. A Digital Government Centre monitors the projects in the country, updating the MDT on their monthly progress using specific KPIs. The MDT has also developed a portal to conduct online surveys to engage citizens on digital initiatives.

Each ministry and local entity appoints a Chief Digital Officer (CDO) responsible for developing and implementing the digital transformation programme and reporting its progress to the Cabinet of Ministers. An advisor to the Prime Minister is responsible for continuous monitoring of achievements and making recommendations for rewarding or disciplining CDOs based on their effectiveness.

Areas of opportunities

"Digital Uzbekistan 2030" consolidates a unified and coherent policy towards digitalisation, with clear priorities and objectives. The involvement of the President and Deputy Prime Minister showcases the political commitment towards the strategy's implementation, and the existence of CDOs is also a good practice to foster co-ordination.

However, challenges include developing digital skills and consistent training programmes within the civil service, where digital literacy has reached no more than 30%. Keeping pace with technological advancements is also difficult, as the MDT struggles to adapt the planning system to new developments.

Source: (Ministry of Digital Technologies of Uzbekistan, 2024^[5]); OECD interview with the Ministry Digital Technologies as part of the project.

Formalising Uzbekistan's strategic planning framework through a legal framework for strategic planning

108. In the absence of a clear legal framework for strategic planning, the lack of clarity, hierarchy, and stability in the planning system in Uzbekistan hamper the delivery and alignment of strategic objectives and documents. As shared by consulted stakeholders, key elements of the planning framework, including the link between national and sectoral plans also remain unclear.

109. This is recognised at the top-most political level as a new presidential decree is aimed at laying out the groundwork for a more comprehensive strategic planning framework. This upcoming legal instrument is anticipated to clarify crucial components for the development, monitoring and reporting on the implementation of sectoral strategies of five-year planning strategies, enhancing co-ordination, and effectively linking sectoral strategies with the 2030 Strategy which will act as the main overarching strategic document.

110. The draft presidential decree ends with a provision for the elaboration and submission to the Cabinet of Ministers of a draft strategic planning act by the end of 2025 that should complete this work. The responsible institutions for the draft Act are to be the MEF, the MoJ, the ASR and the Institute for Strategic and Regional Studies (ISRS), as well as other stakeholders from ministries and agencies. The Act should establish further the powers of the actors in the strategic planning process as it pertains to the formulation of development goals, forecasting, planning, budget policies, as well as the control and monitoring of implementation of strategic documents. This anticipated decree should make Uzbekistan's strategic planning framework more formally structured and consistent. The Latvian Law on the Development Planning System could inspire the ASR as it regulates the entire strategic planning system in Latvia (see Box 2.3).

111. In the following paragraphs general elements from the draft presidential decree that was shared with the OECD will be discussed and compared, namely: enhancing prioritisation through a clearer hierarchy of strategic documents, clarifying roles and responsibilities of the involved actors, and establishing strategic planning principles.

Box 2.3. Latvia's strategic planning law

The 2009 Latvian Law on the Development Planning System regulates the entire strategic planning system in Latvia. The most notable regulations prescribed by the Law include:

- Regulation No 737 Development and Impact Assessment of Development Planning Documents of the Cabinet of Ministers (02.12.2014.):
 - describes in detail policy frameworks, plans, conceptual reports, as well as institutional management documents. The appendix to the Regulations also provides templates for policy frameworks, plans and conceptual reports that ministries and agencies must follow;
 - describes the types of impact assessments to be done at different stages of the policy cycle;
 - gives a timeframe for the revision of policy documents;
 - describes institutional operational management documents – that are called institutions operational strategies in Latvia. The operation documents mainly aim to attain output indicators; however, some include outcome (policy) indicators.
- Regulation No 970 On public participation in the development planning process of the Cabinet of Ministers (19.10.2011) defines the methods of public participation in different phases of development planning, requirements for public institutions on announcing public participation opportunities and responding to comments received.

- Regulation No 979 On the system of results and performance indicators (01.09.2009) defines the typology of indicators that can be used at different levels and purposes across the planning and budgeting system. It was created by the Ministry of Finance which in the early 2000s was tasked to develop results-orientated system in order to tie budget and strategic planning together.
- Regulation No 38 On the National Development Council (21.01.2014) describes the role of this advisory body convened by the Prime Minister when fundamental decisions are to be made on development planning.
- Regulation No 606 Rules of Order of the Cabinet of Ministers (07.09.2021) describes in detail the steps to create the Government Declaration and Action Plan.
- Regulation No 816 Procedure for development, implementation, monitoring and public discussion of the National Development Plan for 2014-2020 provides detailed methodology on the creation of the previous NDP. The next NDP was created in a similar fashion, only using an institution approved methodology.

The Law also establishes a specific hierarchy across documents. It implies that shorter term documents either emanate from higher level documents or are not incoherent with them. The system includes overarching national level planning documents, as well as sectoral and cross-sectoral ones and requires coherence from regional and local level planning documents. Development plans are created on the initiative of the relevant national and local government authorities to achieve goals defined by higher authorities, laws or regulations. Planning in defence and security are the exception and are not covered by this Law.

According to the Law, Latvia's Sustainable Development Strategy (currently until 2030) determines Latvia's long-term development priorities and the spatial development prospective. The National Development Plan (NDP) is the country's main medium-term development plan that includes objectives, priorities, results, directions of action, responsible authorities. It programmes EU and other external financial instruments. In fact, the last two NDPs had an annex of measures with the projected amount of extra funding needed (from the national budget, EU funding and other sources) for measures to achieve the quantified outcome indicators.

Source: (Saeima, 2009^[6]).

Enhancing strategic prioritisation through a clearer hierarchy

112. To address the above identified strategic ambiguity and to link high-level planning documents more effectively with sectoral strategies, Uzbekistan could outline more clearly the hierarchy between the Uzbekistan 2030 Strategy and the Development Strategy of New Uzbekistan for 2022-2026 and communicate this broadly. This would involve more clearly designating one of these documents as the overarching framework to guide all governmental activities, ensuring that all ministries and agencies align their efforts accordingly. This hierarchical clarity would help clarify with which national documents should the sectoral, regional, and institutional strategies and concepts be aligned. It would also prevent duplication of efforts and uncertainties, as seen during the OECD's fact-finding mission where some interlocutors favoured one strategy over the other.

113. The necessity for a comprehensive strategic planning framework is acknowledged in the draft Presidential decree on strategic planning. This decree delineates the following hierarchy within the system of strategic planning documents:

1. The Uzbekistan 2030 Strategy (and the successive national development strategies);
2. The President's Message to the Oliy Majlis (the Uzbek Parliament) and the People of Uzbekistan;

3. Medium- and long-term development concepts defining the main directions, objectives and tasks for the development of a region or a sector;
4. Medium- and long-term development plans for state institutions and major state-owned enterprises (SOEs).

114. Furthermore, a direct link is established in the decree by a separate provision between the system of strategic planning documents and a list of policy documents key to the proper functioning of strategic planning, being the budget and implementation programmes:

1. The state budget;
2. Government programmes that define the system of measures and mechanisms guaranteeing the achievement of the objectives of the Uzbekistan 2030 Strategy and the following national development strategies;
3. Programmes defining the system of measures and mechanisms as it pertains to the implementation of strategies, concepts and government programmes, including the comprehensive programmes for socio-economic development of regions and roadmaps;
4. Annual action plans of state institutions, local government authorities and major SOEs.

115. These efforts would offer an important step in tackling the disjointed approach to policy development and strategic planning, where the importance and adherence to the 2030 Strategy is inconsistent across various governmental levels and sectors. It would also impact the current duplication of work and inefficient use of resources and would address the misalignment of sectoral strategies such as the Strategy on Agricultural Development, that failed to align with broader national objectives set out in overarching documents like the 2030 strategy.

116. Different approaches have been established by countries to create a clear strategic framework, with a hierarchy of planning instruments, articulated across different timeframes. Latvia (see Box 2.3) embedded the hierarchy of strategic documents and results in a legal framework for strategic planning in order to increase policy coherence and coverage. Romania (see Box 2.4) created a specific Governmental Decision to lay out its hierarchy of government strategies. Both approaches specifically include their respective sustainable development strategies which is a notable absentee in the hierarchy proposed in the draft Presidential decree.

Box 2.4. Hierarchy and typology of planning documents in Romania

In recent efforts to refine its strategic planning framework, Romania has implemented Government Decisions (GD) 379/2022 and 427/2022 to bring clarity and structure to its governmental strategies. At the core of these enhancements is the establishment of a well-defined hierarchy within the strategic planning landscape, as outlined in GD 427/2022. This effectively lays out the hierarchy of Romanian government strategies, differentiating between sectoral (focusing on specific domains) and intersectoral (addressing cross-cutting issues) approaches. This ensures all strategies align with national priorities outlined in overarching documents like the Government Program, promoting coherence and avoiding duplication of efforts.

Both decisions underscore the importance of aligning various strategies to achieve overarching goals. GD 427/2022 assigns to the General Secretariat of the Government (GSG) the crucial role of verifying proposed strategies against national priorities. GD 379/2022 further reinforces this by advocating for complementarity and integrated approaches across strategies. This emphasis on alignment helps ensure efficient resource allocation in order to maximise the impact of its strategic planning efforts.

Specifically, GD 379/2022 also underscores the integration of the United Nations 2030 Agenda for Sustainable Development into the Romanian strategic planning framework. This inclusion ensures that Romania's strategic initiatives not only serve national interests but also align with global sustainability goals, illustrating a forward-thinking and holistic approach to strategic planning.

Source: (OECD, 2023^[7]).

Clarifying roles and responsibilities

117. According to the draft decree, the main driver of the strategic planning process is clearly identified with the ASR, that would be tasked with the leading role in regulating the system and co-ordinating all other institutional actors involved in the process. As can be seen from the provisions of the document, the ASR is the main initiator of many of the elements of the draft decree. It has been granted a co-ordination role, but also strong challenge functions – a *de facto* veto on all strategic planning documents – coupled with prerogatives for financial stimulus to the other institutions. This makes it the main actor for communicating and guiding Uzbekistan's way forward.

118. The strategic planning departments within each relevant institution are responsible for coordinating the development of all strategic planning documents in their respective ministries and for serving as the initial quality-control filter for draft strategies before they are submitted to the ASR for opinion. The main tasks of the strategic planning departments include, alongside the analysis, prioritisation, and establishment of indicators – relevant to the elaboration process – also monitoring the implementation of strategic documents and evaluating their effectiveness.

119. The role of the ASR here is especially important – not only the heads of the strategic planning departments are to be appointed and dismissed in co-ordination with the ASR, but the ASR will also have the right to -propose financial stimulus to be granted to the heads and officials of strategic planning departments from a particular fund according to the results of their work. In addition, the strategic planning departments are to present a quarterly report to the ASR as to the progression of their respective strategic planning document.

Establishing strategic planning principles

120. Establishing clear principles across the planning system is a key component of robust legal planning framework observed in OECD Member countries. Principles are expected to be met throughout the entire planning system and in all planning documents and usually evolve around unity, hierarchy, collaboration, and the link between budget and planning.

121. The draft decree also clearly outlines the main goals of Uzbekistan strategic planning efforts:

- Creating a unitary and comprehensive approach for elaborating strategic planning documents on a national, sectoral and regional level;
- Guaranteeing hierarchy and compatibility of strategic planning documents;
- Introducing systemic budgetary mechanisms;
- A clear definition of powers, spheres of responsibility and functional duties of ministries and agencies, as well as of the other actors in the strategic planning process;
- A formulation of strategic planning objectives based upon clear, transparent and measurable indicators for their achievement and the creation of an evaluation system of the effectiveness of their achievement;
- Digitalisation of the strategic planning processes.

122. Notably, this is followed by a list of requirements for the strategic planning documents that is currently absent and is one of the main areas of improvement. These proposed requirements play a role similar to that of general principles for strategic planning:

- Justification for the adoption of a strategic planning document;
- Inclusion of objectives and tasks linked with them, real and measurable target indicators, as well as timespans for achieving these indicators, along with the allocation of responsibility for the achievement of each objective;
- Mutual compatibility between the documents, following their hierarchy;
- Transparency and public participation;
- Correspondence to the national objectives in the sphere of sustainable development until 2030, taking into account international rankings;
- Digitalisation, reduction of bureaucracy, broadening public participation and private sector participation;
- Awareness of budgeting constraints;
- Analysis of challenges and expectation in the relevant sphere, forecasting and scenario planning.

The draft decree would bring Uzbekistan closer to the legal framework observed in several OECD and EU countries

123. Comparing the strategic planning legal acts of Uzbekistan with those from European countries (Latvia, Croatia, Bulgaria) that share elements of a similar legal and administrative culture reveals significant disparities (see Table 2.2). All three European countries base their strategic planning on formal legal acts in the form of a strategic planning Law, with Uzbekistan utilising a Presidential Decree in absence of the legal act under preparation of the ASR. Latvia and Bulgaria have specified central strategic planning bodies, emphasising involvement from various governmental and non-governmental sectors, while Croatia and Uzbekistan have not detailed these entities. This role could potentially be fulfilled by the ASR in co-operation with the Presidential Administration and/or the Cabinet of Ministers. The main driver of strategic planning varies, from a co-ordination centre under the Prime Minister in Latvia to specific ministries or agencies in other countries but all entities are located within the CoG.

Table 2.2. Comparative analysis between the legal frameworks for strategic planning of Bulgaria, Croatia, Latvia and Uzbekistan

	Latvia	Croatia	Bulgaria	Uzbekistan
Type of legal act	Law	Law	Law	Presidential Decree
Central strategic planning body	National Development Council (featuring the Prime Minister, line ministers and representatives of the local authorities and the business community)	Not specified in detail	Development Council (the Council of Ministers in another configuration)	Not specified in detail
Main driver of strategic planning	Cross-Sectoral Co-ordination Centre (the supreme institution of direct administration for state development planning and co-ordination under the Prime Minister)	Co-ordination authority (Ministry of Regional Development and EU Funds)	Strategic Planning Directorate at the Council of Ministers Administration	Agency for Strategic Reform within the Presidential Administration
General principles/requirements	Detailed	Detailed	Not detailed	Included
Types of strategic planning documents	Sustainable Development Strategy, National Development Plan, regional and local development planning documents	National Development Strategy, supra-sectoral and sectoral strategies, national plans, regional and local development plans	National Development Strategy, national strategies, action plans, national programmes	National Development Strategy, President's Message to the Oliy Majlis and the People of Uzbekistan, medium- and long-term development concepts, medium- and long-term development plans
Levels of strategic planning documents	National, regional, local	National, regional, local	National	National, regional
Time horizon of strategic planning documents	Long-term (up to 25 years), medium-term (up to 7 years), short-term (up to 3 years)	Long-term (at least 10 years), medium-term (5-10 years), short-term (1-5 years)	At least 10 years for the National Development Strategy and the national strategies, up to 3 years for the action plans	Not specified in detail
Hierarchy of strategic planning documents	1. Sustainable Development Strategy (long-term); 2. National Development Plan (medium-term); 3. A further-down developed system of both level-related and time horizon-related subordination tracks	1. National Development Strategy; 2. supra-sectoral and sectoral strategies; 3. national plans; 4. government programmes; 5. implementation programmes; 6. action plans for implementation of national plans; 7. others	1. National Development Strategy; 2. national strategies; 3. action plans/national programmes	1. National Development Strategy; 2. President's Message to the Oliy Majlis and the People of Uzbekistan; 3. medium- and long-term development concepts; 4. medium- and long-term development plans
Online element	Not mentioned	Yes	Yes	Yes
Guidance document on the application of the act	Yes	Yes	Yes	Yes (the four Appendixes)

Source: Author's own elaboration.

124. A notable aspect is the level of detail in strategic planning principles. Latvia and Croatia provide detailed frameworks, whereas Bulgaria and Uzbekistan's principles are less detailed. The types of strategic planning documents are comprehensive across all countries, covering national to local levels, with

Uzbekistan additionally including the President's Message to the Oliy Majlis and the People as part of its strategic documents.

125. The time horizon for strategic planning shows variation, with Latvia having a clear long-term vision up to 25 years, while other countries have less specified durations. The hierarchy of strategic planning documents in each country illustrates a structured approach, with Latvia and Croatia having more layers in their planning hierarchy compared to Uzbekistan. Finally, the presence of an online element and guidance documents in all four countries indicates an effort towards transparency and accessibility in strategic planning processes.

Strengthening the institutional set-up for strategic planning in Uzbekistan

The institutional framework for strategic planning at the CoG

126. As identified in the OECD's compendium: *Steering from the centre of government in times of complexity* (OECD, 2024^[8]), centres of government (CoGs) (see Box 2.5), such as Prime Minister Offices, Government Offices or autonomous agencies, play a crucial role in shaping a country's vision, strategy, and priorities. From their unique central positioning, they can set the overall vision and co-ordinate strategic planning and prioritisation efforts across the public administration. The OECD's survey on "strategic decision making at the centre of government" (OECD, 2023^[9]) revealed a widespread recognition of this role, with 69% of member and accession countries prioritising the formulation of a long-term vision as a key function of their CoGs and 58% of responding countries having the CoG lead the identification and setting of policy priorities (see Figure 2.1).

Box 2.5. What is the centre of government?

The strategic role of the Centre of Government (CoG) has been expanding over the course of the last decade due to the increasing complexity of policymaking and the emergence of whole-of-government strategy-setting and implementation, strategic monitoring of government performance over the medium term, and strategic issues management.

The CoG is "the body of group of bodies that provide direct support and advice to Heads of Government and the Council of Minister, or Cabinet". The CoG is mandated to ensure the consistency and prudence of government decisions and "to promote evidence-based, strategic and consistent policies".

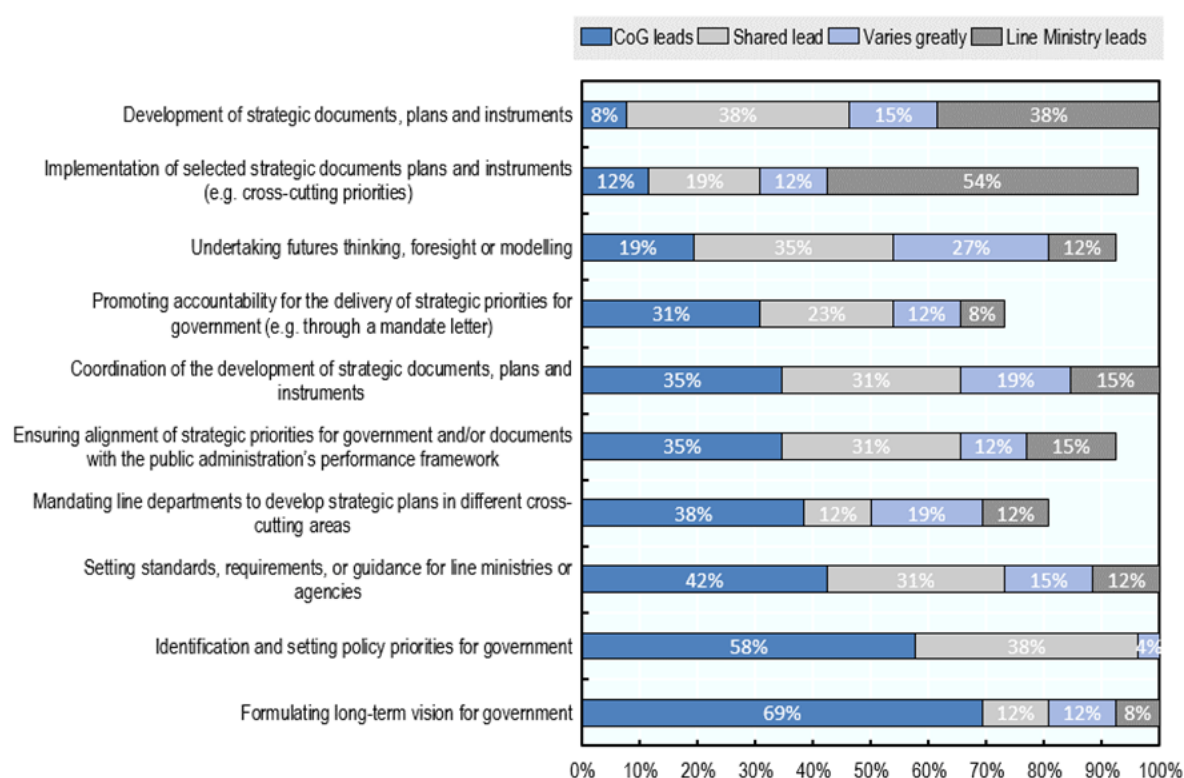
The CoG concept does not make explicit reference to any particular organisational structure: institutions vary from one country to another, depending on the constitutional order, the political system, the administrative structure of the country, contextual and historical actors and even the personality of the chief executive. Therefore, expanded definitions of the CoG can include institutions or agencies which perform core cross-cutting governmental functions, such as finance or planning ministries, even if they are not reporting directly to, or supporting, the Head of Government/Head of State and Council of Ministers.

Source: (OECD, 2020^[1]).

127. In Uzbekistan, the role of the CoG, which is formed by the Presidential Administration, the Cabinet of Ministers led by the Prime Minister, and the ASR, is crucial in shaping the country's strategic direction. Furthermore, the Ministry of Economy and Finance and the Ministry of Justice, also play significant roles in planning efforts. Particularly through the ASR, the CoG's influence is evident as steers and monitors the main national strategic documents and establishes a performance framework, thereby enhancing

Uzbekistan's planning ecosystem. Further strengthening the CoG's functioning and developing more structured instruments for the ASR would thus strengthen Uzbekistan's planning ecosystem.

Figure 2.1. CoGs are crucial for the development of a long-term vision



Note: Note: n=26. Respondents to the OECD survey were asked: "For each of the below activities regarding setting the vision, priorities and strategic planning, please indicate who has the primary responsibility".

Source: (OECD, 2023^[9]).

The Agency for Strategic Reforms under the President of the Republic of Uzbekistan (ASR)

128. The ASR, established by Presidential Decree No. 216 on 8th September 2022, plays a pivotal role in shaping the future of Uzbekistan through strategic planning and reform. It has recently been moved directly under the President, and is a central actor in this review.

129. Firstly, and most crucially, the ASR oversees the implementation of the Development Strategy of New Uzbekistan for 2022-2026 and its successor the Uzbekistan 2030 Strategy for which it is clearly the leading entity. Furthermore, the ASR's responsibility extends to the systematic co-ordination of preparing state programmes and generating relevant reports, cementing its role in the strategic planning process.

130. Secondly, the ASR is also tasked with the development of proposals for the reform of various sectors, and leverages the expertise of both domestic and international specialists to ensure the thorough planning and execution reforms. This empowers the ASR to introduce significant changes in Uzbekistan's strategic planning framework and to serve as a central authority for policy co-ordination, ensuring the quality and consistency of strategic documents while providing essential methodological support to line ministries.

131. Thirdly, the ASR is responsible for monitoring and evaluating the effectiveness of reforms, conducting a critical analysis to identify and rectify systemic issues that contribute to bureaucracy,

inefficiency, and corruption. By developing monitoring and evaluation criteria, the ASR enhances the accountability and transparency of sector strategies, again offering vital methodological guidance to the line ministries involved. By establishing comprehensive information databases and reporting systems, as envisaged by the draft Presidential Decree, the ASR aims to bolster the implementation of strategic planning reforms.

132. Finally, the agency also systematically works to attract support from international financial institutions, international organisations, and specialists, alongside securing grant facilities.

The Presidential Administration (PA) in strategic planning

133. The responsibilities of the Presidential Administration extend beyond strategic planning to encompass a broad spectrum of support functions crucial for the President's activities. It was established in accordance with the Decree of the President of the Republic of Uzbekistan from 26 August 2018, and serves as a vital source of information and analysis, offering insights into socio-economic and socio-political trends that are essential for informed decision-making at the highest levels of government. This analytical support helps in assessing the current state of the nation and in envisioning future pathways that align with the President's vision for the country (Government of Uzbekistan, 2024^[10]).

134. The Presidential Administration occupies a central role in the nation's governance and strategic planning architecture, as the linchpin for the formulation and execution of national development strategies. The President of the Republic of Uzbekistan sets the overarching direction for the country's progress and endorses all strategic development plans, therefore the Presidential Administration is instrumental in creating key national development blueprints, such as the Development Strategy of New Uzbekistan for 2022-2026 and its successor Uzbekistan 2030.

135. Moreover, the Presidential Administration plays a pivotal role in providing organisational oversight. It ensures that the President's directives are implemented efficiently and effectively across various sectors and levels of government. In doing so this oversight maintains the coherence and consistency of policy implementation, ensuring that all government actions are synchronised with the national development strategies and the President's overarching vision.

The Cabinet of Ministers (CoM) in strategic planning

136. The Cabinet of Ministers of Uzbekistan, under the leadership of the Prime Minister, plays a crucial role in the execution of comprehensive cross-sectoral policies. It is responsible for developing and executing programmes that span the realms of science, culture, education, healthcare, and other vital sectors of the economy and social sphere and is therefore pivotal in shaping the country's trajectory. The Cabinet of Ministers takes proactive measures to implement strategies, concepts, programmes, and roadmaps that address the most critical and priority areas of Uzbekistan's economic and social development, spanning short, medium, and long-term objectives.

137. The Apparatus of the Cabinet of Ministers provides essential support to the functioning of Uzbekistan's government. This includes legal, organisational, technical, informational, analytical, and protocol support, ensuring the smooth operation of government activities. It plays a key role in the preparation of meetings, and in the drafting of laws, Presidential and ministerial acts. Additionally, it is involved in developing roadmaps, schedules, and action programmes that are crucial for executing the country's priority socio-economic development tasks. Recent structural changes within the Cabinet of Ministers have led to the establishment of the Secretariat of the Prime Minister, further enhancing the support system for the head of government.

The Ministry of Economy and Finance (MEF)

138. The MEF, established through the merger of the ministries responsible for economy and finance, plays an important role in linking the strategic planning and budgeting framework. It is at the forefront of programme-based budgeting, aligning financial resources with strategic goals. This is recognised as an important area of work for OECD countries. In 2023, half of the surveyed OECD countries reported that their CoG works with their respective Central Budget Authority to strengthen the link between plans and budget instruments (OECD, 2023^[9]). This ministry's collaboration with the ASR is therefore crucial, especially in ensuring that the action plans for strategy implementation are not only formulated but also financially backed. Furthermore, the MEF is instrumental in drafting overarching economic development documents. These documents guide sectoral strategies and regional development, illustrating the ministry's involvement in economic policy formulation.

The Ministry of Justice (MoJ)

139. The MoJ plays a role in reviewing the legal and regulatory integrity of the strategic planning process. It also takes on the responsibility of monitoring the implementation of the main strategic documents, including on public administration reform (see chapter 1) and conducting regulatory impact assessments, thus laying the groundwork for evidence-informed policymaking. This topic will be further discussed in Chapter 6. The ministry's commitment to public administration reform underscores its broader agenda to enhance the strategic planning and implementation mechanism across government bodies and the execution and monitoring of strategic initiatives.

Ensuring clear roles and responsibilities for enhanced effectiveness of planning efforts

140. This institutional setup on strategic planning with several entities involved is not unique to Uzbekistan and reflects a common structure among OECD members like Portugal and non-member countries like Kazakhstan (see Box 2.6), which have also established dedicated institutions for strategic planning allowing them to set and co-ordinate the nation's priorities and long-term vision, akin to the 58% of surveyed OECD countries that view priority setting as a crucial function of their CoGs (see Figure 2.1). The institutional structure of the Uzbek CoG, with its direct access to the President's administration and senior government leaders epitomises the 'engine room' of decision-making. This enables the CoG to converge various actors and issues, setting a clear direction for the country's future.

Box 2.6. Different institutional set-up for strategic planning

In most OECD member countries, CoGs play a leading role in strategic planning activities under different institutional configurations. While the strategic planning function is most often located in the CoG, it may involve several entities both within and outside the CoG, necessitating whole-of-government coordinate on among different Ministries and government agencies.

Portugal

In Portugal, the CoG assumes a critical role in steering strategic planning activities amidst a diverse institutional landscape. This involves a constellation of various entities, both within and outside the CoG, contributing to strategic planning, including but not limited to: the Prime Minister's Cabinet, the Ministry of the Presidency and the Ministry of Finance.

At the core of the CoG is the competence centre PlanAPP, situated under the Ministry of the Presidency and responding directly to the Prime Minister, serving as a linchpin in orchestrating strategic initiatives and ensuring coherence across government actions. It is mandated to ensure macro-co-ordination on

strategic planning; reinforce the consistency and readability of national strategies; shape and steer the strategic planning process; reinforce and co-ordinate sectoral efforts; and support and develop the line capabilities of line Ministries.

PlanAPP also organises inter-ministerial coordination through its REPLAN network that involves line Ministries as well as civil society and academia to discuss, provide insights and coordinate on key policy issues.

Dedicated units for strategic planning exist within several line Ministries, including the Ministry of Labour, Solidarity and Social Security, the Ministry of Economy and the Sea, the Ministry of Agriculture and Food, and the Ministry of Culture.

Kazakhstan

In Kazakhstan, the institutional model of the CoG involves several key entities sharing mandated responsibilities for strategic planning.

The Executive Office of the President is actively engaged in planning and evaluation processes that determine government decision-making. It provides qualitative and timely analytical, organisational and documentation support and plays a key role in implementing the *Kazakhstan 2050 Strategy*.

The Prime Minister's Office (PMO) is responsible for the co-ordination of the activities of state entities in the preparation and execution of government programmes, as well as monitoring the timely execution of state decisions. A recent reform has transformed the PMO into a more compact Office of the Government focusing on decision-making, coordination and administrative tasks, while more role on sectoral and policy development was transferred to line Ministries.

The Agency for Strategic Planning and Reforms (ASPIRE) serves as a central link in the strategic planning system in Kazakhstan, overseeing strategic planning, statistical analysis and reforms. It develops state policy in strategic planning, and monitors and evaluates the implementation of strategic development plans. ASPIRE operates under the President of the Republic of Kazakhstan and reports directly to the President.

The Ministry of the National Economy (MNE) is responsible for the coordination of strategies and policies and for the monitoring of strategies and Action plans across the government. It also supports the coordination, implementation and monitoring on Kazakhstan 2030 and other long-term national strategies.

Source: (OECD, 2023^[11]); (Prime Minister of the Republic of Kazakhstan, 2024^[12]); (President of the Republic of Kazakhstan, 2021^[13]); (President of the Republic of Kazakhstan, 2012^[14]); (President of the Republic of Kazakhstan, 2024^[15]); (OECD, 2017^[16]).

141. Clear leadership and steering are essential for effective strategic planning, and the recent 2030 Strategy prominently positions the ASR in the driving seat. However, Uzbekistan's CoG seems to face frequent institutional changes and a lack of stability and clarity, both for stakeholders within and outside of government, that can disrupt co-ordination and undermine effectiveness, and risk of significantly affecting the planning horizon and the implementation of the long-term strategic vision of the country.

142. The recent move placing it directly underneath the President can give the ASR more political gravitas and can be seen as a way to strengthen its functioning. However, the move appears to have significantly impacted the ASR's budget and human resources, thereby hindering its ability to act as a centre of expertise that coordinates and supports line ministries in their planning efforts. This has particularly affected its capacity for effective co-ordination, its role in providing oversight, and its monitoring responsibilities. Consequently, respondents to the OECD questionnaire indicated that the division of labour for strategic planning at the CoG is not always clear. For example, ensuring legal conformity, defining

strategic priorities, and leading the government's strategic priorities and work programme show variations in the assigned responsibilities between the Presidential Administration and the Council of Ministers. These variations indicate a lack of uniform understanding or potentially fluid dynamics in role allocation. It is important for the ASR to not only establish clear leadership roles, but also communicate them effectively to all stakeholders to prevent disruptions and to allow it to effectively communicate the strategic vision of the government throughout the overall public administration and society as a whole.

143. As such, the CoG in Uzbekistan could benefit from more stable and predictable roles and responsibilities in strategic planning to enhance its effectiveness. This issue is far from unique to Uzbekistan; between 2012 and 2017, 70% of surveyed countries experienced changes in the number and 64% in the type of units within their CoGs (OECD, 2018^[17]). The phenomenon of bicephalic or even multi-institutional CoGs, that is to say CoGs that are composed of several entities, are observed in numerous OECD countries, displaying varied divisions of power and responsibilities. For instance, Romania recently restructured its CoG into a bicephalic system, expanding the Prime Minister's Chancellery's roles and creating new departments to improve co-ordination across various government segments (see Box 2.7) (OECD, 2023^[7]). Similarly, in the United Kingdom, the Cabinet Office collaborates with the Treasury to ensure government efficiency, while the Prime Minister's Office, though part of the Cabinet Office, maintains a distinct identity, focusing on delivering government strategy and communication. Drawing lessons from OECD countries can provide valuable insights into structuring Uzbekistan's CoG for better coordination and effectiveness.

144. The following elements can be used by Uzbekistan to stabilise its CoG:

- To avoid duplication in the CoG it is crucial to clearly define and communicate the distinct roles of entities like the ASR and other players in strategic planning. While the institutions have different mandates, their activities and relations are not always explicit in practice neither for them, nor for other players particularly line Ministries. This can be achieved by creating explicit "statements of purpose" and practical "who does what" guides, ensuring each entity understands its unique functions. Enhancing this clarity will prevent effort duplication and promote optimal use of financial and human resources. It's vital that both bodies possess the necessary skills, capacity, and resources to effectively disseminate their roles across the public administration, so the division of labour is also clear for all involved stakeholders.
- Co-operation between the different bodies at the CoG on strategic planning is essential to bridge gaps in information sharing and prioritisation and prevents administrative burdens and duplication of work. This requires establishing clear working routines and practical tools, like shared digital platforms and possibly co-located offices, to ensure seamless daily interaction. These measures should also guide line ministries and agencies in understanding command lines, feedback mechanisms, and information exchange processes, thereby reducing administrative overhead and enhancing transparency and accountability.
- Given the historical frequency of institutional changes within CoGs, as seen in OECD member countries and elsewhere, it is imperative to prepare for potential restructuring or dissolution of government bodies. This preparation involves maintaining skills and institutional memory to tackle the challenges posed by long-term structural reforms. Strategies should be in place to manage transitions smoothly, including change management plans, clear communication channels for disseminating changes and their implications, and mechanisms for collecting feedback to refine and adapt the operational framework, ensuring sustained policy leadership, co-ordination, and coherence. The establishing of manuals, like Cabinet manuals, can also help having a shared understanding of the processes, roles and interactions for strategic planning between CoG institutions.
- To strengthen the functional capacity to design, update, implement, and evaluate the 2030 Strategy and associated strategies, more formal and regular coordination between the three main CoG units

and between the CoG and the MEF would be necessary. This would ensure alignment between the strategic framework and the national fiscal framework. Thought should be given to formalising and strengthening this intra-CoG co-ordination as the “*primus inter pares*” coordination mechanism, which broader whole-of-government coordination mechanisms can emulate. Strengthening the focus on data—such as KPIs, targets, and alignment with spending targets and the budget’s performance indicators (part of the transition to results-based budgeting)—is hereby crucial. This could involve creating or strengthening a subcommittee focused on a performance dialogue, ensuring it reports regularly to the main inter-ministerial committee and the CoG steering committee, and should comprise relevant players including the MEF and the statistics agency.

Box 2.7. The strategic planning function in the centre is characterised by frequent institutional changes

Reunification of the Chancellery and the Cross-sectoral Co-ordination centre in Latvia

In Latvia, the State Chancellery, and the Cross-sectoral Co-ordination centre (PKC) which were separate institutional structures at the Centre of Government since 2011, have established close functional links, support and co-ordinating procedures and share the same offices.

Nevertheless, as of 2023 the two structures were merged into one under the authority of the Prime Minister, in view of strengthening national development planning and co-ordination, improving oversight of government programme implementation, reducing fragmentation and overlaps in public administration, strengthening the centre of government and improving international cooperation, considering the lessons learned from managing the financial sector reforms, COVID-19 pandemic and other major policy challenges.

The merger aimed to improve the effectiveness and efficiency by delivering “professional, competent and compact public administration proofed for addressing today’s and future challenges” with a strong lead from the centre of government. Essentially, a single structure at the centre of government was deemed to provide less fragmentation and better steer than two separate ones, even while functionally close.

Recreating additional bodies within the CoG in Romania

Romania’s Centre of Government (CoG) has undergone significant restructuring, now comprising the General Secretariat of the Government (GSG) and the Prime Minister’s Chancellery (PMC). Initially, both entities were involved in interministerial co-ordination; the GSG handled formal co-ordination, while the PMC, with around 15 state councillors, provided policy expertise.

However, in January 2017, the PMC was dismantled, its functions absorbed by the GSG, and then reconstituted under successive administrations, albeit with reduced capacity and members, particularly under the Orban government.

In 2021, the PMC regained its status as a separate legal entity through Emergency Ordinance No. 121/2021, with further structuring by Government Decision No. 832 on 27 June 2022. This decision expanded the PMC’s competences and established additional departments, including the Resource Assurance Department, Legal Department, and Strategic Evaluation, Analysis and Co-ordination Department. It also defined the PMC’s co-ordination role across various government departments and agencies, enhancing its function in strategic policymaking and government co-ordination, underpinned by a consultative council for advice and analysis within the Prime Minister’s domain.

Source: (OECD, 2023^[7]) (Government of Latvia, 2021^[18]).

Tools to strengthen Uzbekistan's planning ecosystem

145. In an effort to enhance the effectiveness and coherence of strategic planning efforts, (OECD, 2020^[11]); (OECD, 2024^[8]) has identified several key tools and approaches. Uzbekistan's strategic planning system could benefit from developing new tools and instruments to increase the harmonisation, consistency and quality of strategic planning documents. The ASR could play a role of centre of expertise on strategic planning to provide guidance and support to line ministries, provided additional capabilities are developed in the agency.

146. This chapter will discuss these tools that can inspire Uzbekistan's efforts, beginning with the provision of support to line ministries to bolster their planning capabilities. It also examines the pivotal role of evidence in reinforcing strategic planning processes and the importance of improving co-ordination for a more integrated whole-of-government approach. Furthermore, the chapter explores the use of strategic foresight to anticipate and prepare for future challenges and underscores the critical alignment between budgeting and strategic planning to ensure fiscal resources are optimally allocated to achieve strategic objectives.

Expertise, guidance and support to line ministries for more effective whole-of-government planning

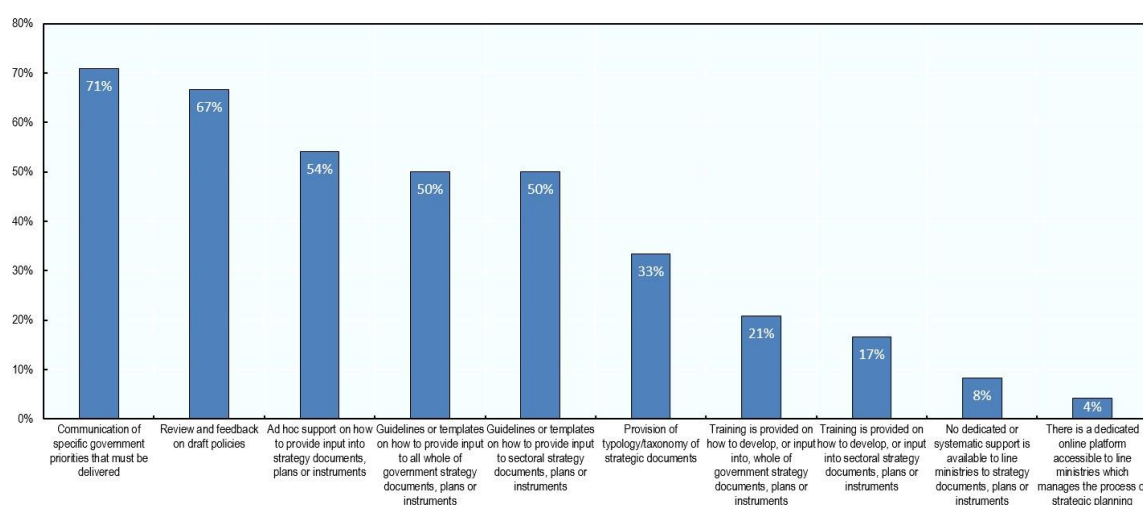
Acting as a centre of expertise and providing guidance and support

147. The 2023 Centres of Government survey (OECD, 2023^[9]) results show that CoG support to ministries in strategic planning in OECD countries is considered an important responsibility and they provide support in practice in various ways. Accordingly, 62% of surveyed OECD CoGs reported setting frameworks, standards, guidance and building capacity in strategic planning as their priorities.

148. In terms of practical activities, the majority of OECD member countries' CoGs contribute to the communication of specific government targets and priorities, as well as engage in providing review and feedback on draft policies (see Figure 2.2).

149. Moreover, several countries exhibit support mechanisms beyond the aforementioned, with at least one half of countries implementing ad hoc assistance and providing guidelines or templates to ensure consistent, harmonised and high-quality strategic planning documents that can support the alignment and achievement of strategic objectives. Some OECD CoGs extend their support to training initiatives aimed at enhancing the skills related to the development and input into strategy documents, plans, and instruments.

Figure 2.2. Support provided by the CoG to line ministries and agencies in developing strategic plans



Note: n=24; Respondents to the survey were asked: "What support does CoG provide to line ministries and other agencies to develop strategy documents, plans and instruments?".

Source: (OECD, 2023^[9]).

150. As is the case for planning centres of expertise such as the above discussed PlanAPP in Portugal (see Box 2.6), the ASR plays a crucial role in supporting line ministries and agencies in the development of strategic documents, plans, and instruments, and can further expand this role. The ASR's support is twofold: it involves setting clear government targets or priorities that line ministries and agencies need to adhere to and provides the necessary guidance and inputs for the development of aligned sectoral strategies.

- Firstly, the ASR steers and clarifies specific government targets or priorities, which ensures that line ministries and agencies align their strategic documents and plans with the overarching goals of the government. This is essential for maintaining coherence and focus on the strategic planning process across different sectors of the government. By setting clear targets, the ASR ensures that the strategic efforts of various ministries and agencies are not only aligned with national priorities but also contribute effectively to the broader objectives of the government.
- Secondly, the ASR is tasked with offering training and guidance on developing sectoral strategy documents, plans, or instruments. Delivering on this support is crucial, especially in a context where stakeholders noted a lack of clear instructions, guidelines, or manuals for the strategic planning units within ministries. Such units are primarily responsible for drafting co-ordinating the development of strategic documents and integrating inputs from various internal and external stakeholders. However, the absence of effective guidance has resulted in strategic documents that are often not sufficiently relevant or aligned at the national and sectoral levels. The ASR could strengthen its guidance by taking into account the guidance provided to line ministries for the elaboration of sectoral or cross-sectoral strategies in Czechia (see Box 2.8 below).

151. If the ASR aims to be better recognised as a centre of expertise that drives and communicates Uzbekistan's strategic planning narrative and overall direction, it must continue to engage in these critical activities, thereby positioning itself as a central and effective player in the strategic planning landscape that contributes actively towards the line ministries' efforts.

Box 2.8. Guidance provided to line ministries for the elaboration of sectoral or cross-sectoral strategies in the Czechia

The Ministry of Regional Development is in charge of providing guidance and support to line Ministries on strategic planning in Czechia and has developed a dedicated methodology for preparing public strategies. methodology streamlines and articulates the procedure for creating strategic documents with the aim of increasing their quality and interconnectedness. It describes the process of individual strategy preparation and implementation, from identifying the need for strategy creation, its preparation for approval and actual implementation. The methodology also includes resources on how the typology of strategic and implementation documents, the use of knowledge in strategic work, the evaluation of strategies and their impacts, and summarizes all this graphically in individual figures.

Guidance available to line ministries can be found on the [Government Portal for Strategic Planning](#) and includes the following resources:

- Typology of strategic documents.
- The process of creating a strategic document.
- Templates and tools (model for determining the type of strategic document needed, organisational structure of strategy creation, strategy structure, strategy creation plan, matrix of measures and activities, strategy creation budget, strategy creation schedule, co-operation and communication plan, risk management plan, etc.).
- Comparative analysis of methodological approaches to planning.

The [portal](#) is maintained and updated by the Ministry of Regional Development that is administering a second portal that consists in an online registry of all strategic documents. All ministries, agencies and local governments are required to publish their strategies on the portal. The Ministry also uses an Expert Group on Strategies to animate the portals and the technical discussions with line Ministries. This also fosters a sense of community among strategic planners in Czechia and allows alignment on the quality and format of strategic plans. The Ministry also provides capacity building for line Ministries including training sessions to which line Ministries can register online and find more details on the portals.

Source: (Government of Czechia, 2024^[19]).

Enhancing strategic planning units and capacities within line ministries

152. The recent establishment of strategic units or focal points within line ministries for strategic planning marks a proactive approach towards more structured planning in Uzbekistan. These units enhance the effectiveness of strategic planning by fostering coherence, as seen in Latvia and Romania (see Box 2.9). They strengthen leadership and align sectoral policies with national priorities, crucial for integrating strategic objectives across different policy areas. In support of these efforts, the ASR has made commendable strides by establishing a Strategic Planning Network. This network, with key meetings held in October 2023 and June 2024, provides a platform for collaboration and knowledge sharing among ministries. However, while this initiative is a significant step forward, the ASR has not fully utilised this mechanism to its potential. The irregularity of meetings and the turnover of key staff between meetings pose challenges to the network's effectiveness. To maximise impact, the ASR should consider holding regular meetings and ensuring continuity in participation from the relevant ministries. This would strengthen the network's role in fostering strategic planning across the government.

153. By maintaining consistency, these units ensure that various sectors and levels of government work synergistically rather than in silos. They are uniquely positioned to oversee the progress of strategic

initiatives and conduct evaluations to compare outcomes against set objectives, strongly supporting inter-ministerial committees. Furthermore, these units can effectively disseminate information within the government and to the public, enhancing transparency and fostering trust. They also identify training needs in strategic planning, project management, and communication within ministries, building capacity and ensuring personnel are well-equipped for effective planning.

154. By embedding these functions within strategic planning units, governments can significantly improve the coherence, execution, and monitoring of their strategic initiatives, thereby ensuring more robust governance and better outcomes for their strategic planning efforts.

155. However, consulted interlocutors shared significant challenges, primarily due to the absence of systematic checks to verify the operational status of these units. Possible closures or mergers of strategic units highlight a critical oversight and co-ordination gap, leading to a disjointed strategic planning process across various ministries. Despite their institutional recognition following the Presidential Decree on Public Administration Reform (PAR), these units seem to lack recognition, and a wider cultural shift towards the importance of strategic planning within the overall administration seems to be necessary.

156. To address these challenges, the ASR needs to regularly monitor and evaluate the strategic units' functionality and effectiveness. This mechanism should include clear performance indicators and regular reporting requirements to ensure that these units are not only active but also contributing effectively to strategic goals. Additionally, formal co-ordination mechanisms need to be put in place to facilitate seamless collaboration and information sharing among the strategic units across different ministries. This would help in aligning their activities with the national strategy and ensuring a unified approach to strategic planning.

157. Moreover, the ASR should enhance its support for these units, perhaps through establishing a dedicated secretariat to handle basic co-ordination tasks, like sending out meeting invites, to overcome the current lack of control, guidance, and structured interaction. These efforts should not be underestimated and would strongly contribute towards aligning sectoral activities with national strategies and ensuring a unified approach to strategic planning.

Box 2.9. Bringing together focal points for strategic planning

Meeting of strategic planners in Latvia

The most significant asset in strategic planning is people. The State Chancellery of Latvia fulfils its co-ordination role by convening meetings of civil servants responsible for policy planning from the ministries and other public institutions.

Routine co-operation work takes place online. For example, this can occur via WhatsApp group chat exchange – with information flowing back and forth when the Prime Minister prepares to address the Parliament on sustainable development progress towards the National Development Plan or the Government Action Plan.

Rare physical meetings are important to exchange ideas and create solutions to problems identified in the planning process. During one of such meetings, Latvia's policy planners actively discussed the results of a questionnaire on planning challenges previously answered by the group. Another Strategic Planners' meeting resulted in embedding the Sustainable Development Goals into the country's planning process. CoG recognises that the "salt" is in the details, and that perspectives can be so different in the different fields.

Sustainable development hubs in Romania

Recent efforts in Romania have enhanced the strategic planning framework by focusing on bolstering line ministry capacity and reforming the budgetary process. Of particular significance are institutional innovations, such as the establishment of Sustainable Development Hubs within each ministry. These hubs aim to promote coherence and co-ordination by ensuring that all institutions are actively involved in the implementation of the 2030 Romanian Sustainable Development Strategy (ROSDS) which is Romania's strategic framework with the longest timeframe.

The hubs are mandated to align a whole of government implementation of the SDGs and play a central role in promoting and supporting sustainable development policies and expertise beyond the central authorities and the Department of Sustainable Development located within the Prime Minister's Chancellery. Furthermore, they ensure that other policies do not work at cross-purposes with the ROSDS. Concretely, each hub pursues the implementation of the SDGs related to the field of activity of each institution while acting as liaison between its institution and the Department for Sustainable Development and the National Institute of Statistics. The hubs also contribute to the ROSDS's monitoring framework to report on the progress of dedicated sustainable development indicators and to monitor the overall implementation of the NSDS.

A hub is formed by existing staff with competency in the field of sustainable development. As of 2020 each line ministry has appointed one or two persons to their respective hub. Dedicated training programmes have been developed to counter the issue of insufficient expertise of the involved staff.

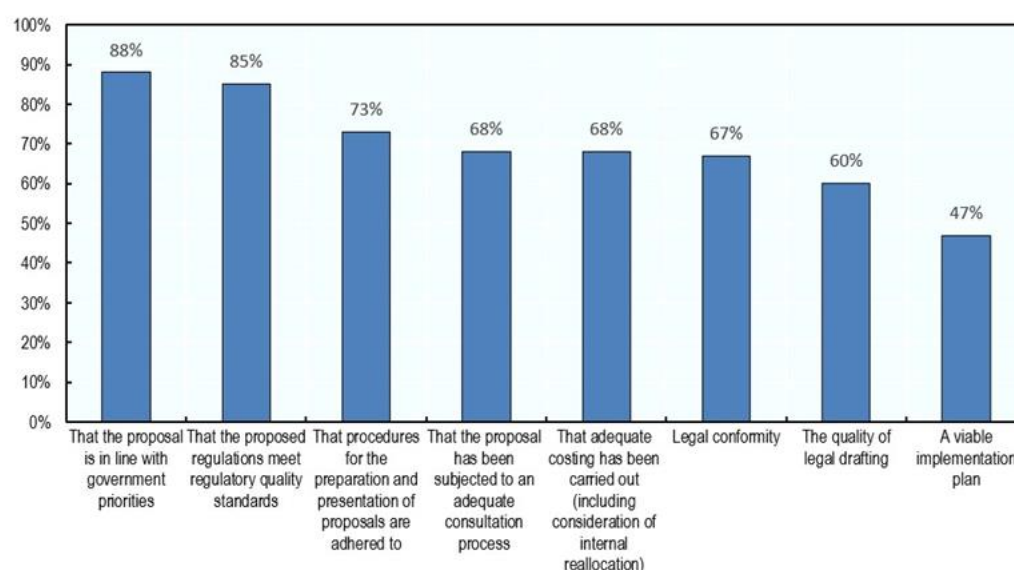
The Sustainable Development Hubs across the government in Romania, constitute a successful deployment of a new co-ordination mechanism that strengthens coherence, co-ordination and strategic planning. These efforts can be replicated in other cross-cutting policy areas thanks to strong leadership. This innovative governance framework for sustainable development has also been recognised by the United Nations Department of Economic and Social Affairs (UNDESA) as Romania received the 2021 UN "prize for innovation and excellence in public service".

Sources: (OECD, 2023^[7]); (OECD, n.d.^[20]).

Review and challenge functions

158. In numerous OECD countries, the CoG also assumes review function of documents submitted to the cabinet. This function usually entails assessing whether the proposed item is aligned with the government priorities, proper quality standards of the documents, processes and procedures have been followed and that the document conforms to consultation, financial and legal criteria (see Figure 2.3). For some of these functions, for example, legal and fiscal conformity, the centre can share its responsibility with other entities (OECD, 2018^[17]). Overall, in 2023, 66% of the surveyed OECD countries declared this quality review function as top or significant priority for their CoGs (OECD, 2023^[9]).

Figure 2.3. Revision of policy proposals, legislation and other policy documents



Note: n=24; Respondents to the survey were asked: "When reviewing draft policy proposals, legislation, or other policy documents, which aspects does the CoG ensure?"

Source: (OECD, 2023^[9]).

159. The ASR, and potentially the Cabinet of Ministers given its steering function, should have the responsibility to review strategic documents and ensure they are of good quality, sufficiently resourced, and aligned with the strategic priorities of Uzbekistan, particularly stemming from Uzbekistan 2030. However, consulted interlocutors have identified there is a capacity gap within the ASR to effectively take on a control function.

160. The draft presidential Decree aimed at strengthening Uzbekistan's strategic planning framework expects the ASR to enhance its review function by implementing a strong challenge mechanism coupled with financial stimulus prerogatives for other institutions. In several OECD and non-OECD Member countries like Canada and Kazakhstan, this translates into the capacity for the central planning unit to reject a document and send it back for revision to the authoring institution. Additionally, it is crucial to note that there is already a dedicated department within the PA focused on legal conformity and strategic alignment. However, this department currently operates without clear guidelines and methodologies, resulting in unclear decisions and expectations for line ministries. The below practice of Estonia (see Box 2.10) could inspire the ASR and the PA to strengthen the guidance offered to line ministries.

Box 2.10. Guidance and quality control offered by Estonia's CoG

Estonia's Strategy Unit, situated within the Office of the Government, plays a crucial role in translating the Coalition Agreement into a comprehensive four-year action plan known as the Government Programme. This unit collaborates closely with other central government institutions and line ministries to refine policy objectives across various sectors and sub-sectors, ensuring alignment with the coalition's political commitments.

Moreover, it oversees the translation of the Government Programme into actionable commitments, fostering effective strategic planning and resource allocation. Working in tandem with deputy secretaries-general and the Ministry of Finance, the Strategy Unit monitors performance and maintains coherence between the Government Programme, Estonia 2035, and multi-year budget framework.

Notably, the unit empowers the Prime Minister to exercise quality control over government-wide strategies, streamlining processes and reducing redundancy. Estonia's approach exemplifies the importance of co-ordinated strategic planning in achieving national objectives and optimising resource utilisation. The unit has the following key functions:

- The Strategy Unit translates the broad ambitions outlined in the Government Programme into concrete, actionable commitments for individual ministries. This ensures clarity and focus in translating political goals into tangible deliverables.
- The unit acts as a central co-ordinator, harmonising individual ministry plans with overarching national strategies and ensuring consistency across government initiatives. This fosters a unified approach to achieving national objectives.
- The unit establishes clear and concise minimum standards for all strategic documents. This includes mandating elements like performance indicators, cost analysis, and explicit links to the budget, contributing to transparency and accountability.
- The unit facilitates communication and collaboration across ministries, encouraging joint efforts and eliminating potential siloed approaches. This promotes synergy and avoids duplication of efforts.
- The unit acts as a valuable resource for ministries throughout the planning process, providing guidance and expertise from initial conception to implementation. This ensures quality control and adherence to best practices.

The unit's effectiveness is underpinned by well-defined procedures and guidelines that flow from a ministerial note and a strategic planning handbook:

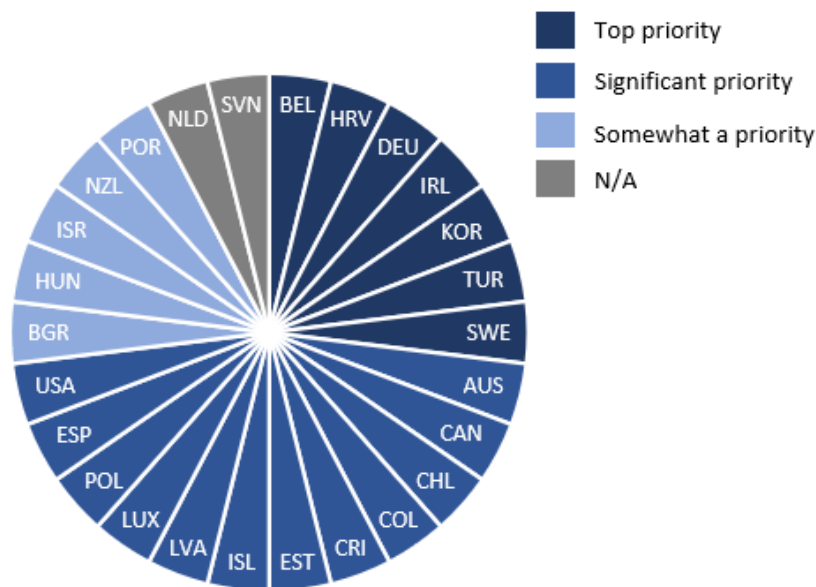
- Clear steps are outlined for drafting sectoral development plans, covering every stage from initiation to implementation. This transparency fosters accountability, predictability, and uniformity.
- The process mandates stakeholder involvement and incorporates regular evaluations to ensure plans remain relevant and effective.
- Strategic documents must demonstrably contribute to long-term national goals and align with Estonia's commitment to sustainable development.
- Financial considerations are central, with mandatory cost estimations and clear links established between plans and the state budget.

Source: (OECD, n.d.^[20]).

Leveraging performance management tools and evidence to strengthen strategic planning

161. As indicated in the OECD’s policy framework for sound public governance, robust evidence is crucial for effective strategic planning (OECD, 2020^[1]). Performance information, especially when collected systematically in discussed routinely in performance dialogues, can be used to measure progress of policies and priorities against set targets. It can reveal whether policies and projects are moving the country along the path to achieving the results and outcomes they were adopted to pursue. Robust performance information can thus enable the government to identify and address any issues that arise and, using effective feedback loops that integrate evidence into the policy-making process, help the government adjust course if policy and spending efforts are not achieving projected results or when results are sub-optimal. As such monitoring whole-of-government performance is seen as a clear priority for consulted CoGs in OECD (see Figure 2.4) and Box 2.11 for Latvia’s practice regarding monitoring national development policies from the CoG (OECD, 2023^[9]).

Figure 2.4. Priority of monitoring whole-of-government performance for the CoG



Note: n=26. Respondents to the OECD survey were asked: “How much of a priority are the following functions in the CoG? [Monitoring whole-of-government performance]”.
Source: (OECD, 2023^[9]).

162. At the CoG in Uzbekistan, the ASR and the MoJ both share monitoring duties within the existing planning framework for the Uzbekistan's 2030 Strategy. However, a lack of cooperation leads to lacking leadership and creates a risk of inefficiencies and overlaps. As the ASR helps line ministries in the preparation of strategic documents, the ASR should also evaluate the impact and performance of these documents to ensure effectiveness. Consulted stakeholders however revealed that the ASR lacks crucial tools and capacities like dashboards and data analysis platforms, as well as the necessary staff to engage in this work in an effective manner. This is further complicated by the absence of a clear requirement for individual ministries to track the implementation of strategic documents and compile results in dedicated monitoring reports. Furthermore, no entity seems to be in charge of reviewing and analysing the implementation reports if ministries do decide to create them. The ASR should ensure it has sufficient capacities to do so and should cooperate with the MoJ to divide the work. While the MoJ could build on its

expertise related to gathering monitoring data, the ASR could focus on evaluations to make sure strategic long-term goals such as the 2030 strategy are being met.

163. The existing situation leads towards an overall broader challenge in Uzbekistan: the clear gap between the strategic ambitions, as outlined in its key documents, and its actual implementation. The current monitoring and evaluation system appears to be incoherent, hindering progress tracking and lacking sound assessment against strategic goals. The lack of a robust data system further exacerbates this issue, as the existing framework is incomplete and overall leadership is unclear with involved actors also lacking the necessary tools and capabilities.

Box 2.11. Monitoring national development policies from the centre in Latvia

Latvia aimed to create a flexible and measurable monitoring framework to connect policy planning with the country's longer-term vision. The objective of the system is to monitor and maintain sector-specific priorities and budget alignment with national development priorities.

The state policy planning framework manages, adjusts and monitors the different levels of policy planning documents, changes in political actors (governments) and their priorities. It includes managing long-term development plans, the government's medium- to short-term action plans and sector plans.

At defined periods, line ministries report to the CoG on the progress of the plans and explain the implementation of tasks that have not been sufficiently achieved. The existing system is flexible, as it provides continuity for national long-term development; meanwhile, if political actors change, it allows revision of adopted long-term development planning documents and offers new solutions.

Additionally, the Government Project Monitoring Office, an internal body in the Prime Minister's Office, also serves an important monitoring function. This office monitors selected public policies and serves as an important source of information for the Latvian Central Council on its portfolio of specific strategic projects.

Source: (OECD, 2024^[8]).

Creating a legal framework for monitoring to clarify the system and roles

164. A clear step to combat these inconsistencies and inefficiencies would be the creation of a dedicated legal framework for monitoring and implementing strategic objectives. As seen in OECD member countries (OECD, 2024^[8]), embedding monitoring efforts in legal frameworks contributes strongly towards the clarity of roles and mandates. This is crucial, given that the ASR's monitoring role for the 2030 Strategy will create demands on line ministries and will need a clear division of labour vis-à-vis the MoJ. It also ensures continuity following changes in the government and boosts the uptake of monitoring practices by civil servants by integrating monitoring activities in the policy cycle. The frameworks countries used to underpin monitoring can take various forms depending on their context. Some countries emphasise monitoring of their government-wide strategies, while other countries focus on monitoring well-being goals. Legal frameworks can also be supported by secondary documents, for example guidelines, to support standardisation and the promotion of good practices.

165. The draft presidential decree to strengthen Uzbekistan's strategic planning framework envisages the implementation of the of Methodology for elaborating and monitoring strategic planning documents and for control over these processes, already prepared by ASR, while the Institute of Legislation and Legal Policy is tasked to focus on elaborating models for strategic foresight. However, to avoid duplication of work it would be beneficial for this decree to also include more details on the related monitoring system

instead of creating a separate decree on a later time. Special training activities on strategic planning are also provided for officials in the MEF, the MoJ, the ISRS, the ACSD and the ASR, as well as for heads of ministries, agencies, and local authorities. In particular, the officials from strategic planning departments are to have such special training sessions at least once per year.

166. The legal framework for performance information in the United States (Box 2.12) could be inspirational for Uzbekistan as it offers a clear example of a whole-of-government approach towards the use of performance information established by introducing a strong legal framework within the federal government and the agencies that is resilient to change.

Box 2.12. Legal framework to promote the use of performance information in the United States

The 2010 Government Performance Results and Modernization Act (GPRAMA) introduced a set of rules, procedures and routines for setting federal and agency objectives, monitoring implementation and achievements and performance reporting. The GPRAMA identifies the White House Office of Management and Budget (OMB) as the custodian of this process and provides it with steering, co-ordination and quality control functions across all phases of the policy cycle. In doing so, the GPRAMA establishes a legal and institutional framework for performance information:

- The OMB co-ordinates with agencies to develop the Federal Government Performance Plan, which sets performance goals and defines the level of performance to be achieved at the federal level. In this regard, the OMB also verifies compliance with the quality standards (related to both federal and agency performance plans) and ensures that all mandatory information is concurrently made publicly available and updated periodically.
- The OMB works with the lead government official and officials from the agencies, organisations and programme activities that contribute to the accomplishment of each federal government priority goal to review the progress achieved during the most recent quarter, overall trend data and the likelihood of meeting the planned level of performance. It assesses whether agencies, organisations, programme activities, regulations, tax expenditures, policies and other activities are contributing as planned to each federal government priority goal. Moreover, it categorises the federal government's priority goals by risk of not achieving the planned level of performance. For the federal government, priority goals at the greatest risk of not meeting the planned level of performance identify prospects and strategies for performance improvement. The OMB reports on unmet goals to the head of each agency, parliamentary committees and the Government Accountability Office. In return, the head of each agency that has not met performance expectations has to prepare a Performance Improvement Plan addressing the OMB's recommendations.
- The GPRAMA also contributes to transparency by providing clear rules related to the publication of agencies and the federal government's performance. In this regard, the head of each agency makes information about each agency's priority goal available to the OMB for publication on the website. Based on the quality criteria and content requirements provided by the GPRAMA, the OMB issues guidance to agencies on providing concise and timely performance information for publication. The OMB ensures that such information is provided in a way that presents a coherent picture of all federal programmes, the performance of the federal government as a whole, as well as individual agencies. The OMB ensures the effective operation of the single performance website and its quarterly update.
- Finally, in relation to each federal performance goal, the GPRAMA organises quarterly data-driven meetings for the director of the OMB, with the support of the Performance Improvement

Council, to discuss the achieved progress, overall trend data and the likelihood of meeting the planned level of performance.

Furthermore, the 2018 Foundations for Evidence-Based Policymaking Act strengthens the legal framework for using evidence in policy making. The act allows the OMB to play a key role in improving data use in the federal agencies' decision making. The act requires agency data to be accessible and agencies to develop statistical evidence for supporting policy making.

Source: (United States Congress, 2010^[21]) (United States Congress, 2018^[22])

Enhancing the performance management and data system through dashboards and tools

167. A clear framework for monitoring could also contribute towards Uzbekistan's overall data management efforts which are currently hampered by low-quality data and a lack of interoperable data systems. The prevalent focus on outputs, rather than outcomes, combined with a lack of data culture, severely undermines the efforts towards effective monitoring. Despite the existence of several digital platforms like www.project.gov.uz, www.regulation.gov.uz, and www.implementation.gov.uz these seem to be underused and as such reflect a need to be scaled up and better integrated into the overall data framework. Given the role and function of the ASR related to improving the system of strategic planning, it would be pragmatic that, in parallel with developing adequate legislation and guidance in the form of a framework, a dedicated digital monitoring platform would be included to monitor the implementation of the objectives of the 2030 Strategy. This platform should be able to collect key information and data from sectoral strategic documents such as linkages to the 2030 Strategy, performance indicators, implemented activities or achieved outcomes.

168. In alignment with these efforts, the ASR is currently working on the creation of the Electronic Platform, an online tool for monitoring the progress of objectives in strategic planning documents. All strategic documents are to be present there in a systematic and hierarchical order, and all reports on the progress of each objective are to be uploaded there as well, alongside info charts and other analytic material. This platform is to be fully operational by 1 July 2024; however, this deadline has now been extended to a later date, with the responsibility for it allocated to a group of institutions consisting of the MDT, the Statistics Agency, the Chamber of Accounts, the MEF, the MoJ and the ASR. The below practice (see Box 2.13) from the United Kingdom could inspire the ASR in the development process.

Box 2.13. Next generation platforms for performance information as used in the United Kingdom

In 2019, the CoG in the United Kingdom started moving towards real-time performance tracking. Triggered by the preparation of Brexit and sped-up by the Covid-19 pandemic, the new internal delivery dashboard, called "Government Performance App" was extended to the top 200 and top 35 government priorities (Government Major Project Portfolio – GMPP). It provides an up-to-date situational picture and allows for early identification of performance risks.

The Government Performance App (GPA) is managed by the Cabinet Office and the HM Treasury and fed by the different departments leading the government priority projects. Consistently with standard operational procedures, at least each four weeks lead departments are requested to coordinate with "contributing" departments and agencies and regularly provide the CoG with information on progress against milestones and deliverables, and related schedules, on expenditures, and on major concerns. In relation to the whole project, each milestone, and expenditures, the Senior Responsible Owners (SROs) of projects in the GMPP also provide their own assessment (on track/off track/pending) and

qualitative commentaries in relation to actions planned or taken, deviation from planned schedule, and budget/forecast variance.

The GPA ensures up-to-date information, which is used for drafting monthly delivery notes presenting the state of affairs to the Prime Minister. The Prime Minister's Delivery Unit has full access to information; though focusing on a limited number of key policies, it can get a structured situational overview of progress on the overall Government Major Project Portfolio and draw general conclusions.

Source: (Government of the United Kingdom, 2022^[23]).

169. The OECD has also defined specific Public Administration Principles (OECD / SIGMA, 2023^[24]) that include dedicated advice on purposeful monitoring (OECD, 2020^[1]) (OECD, 2017^[25]) Uzbekistan could therefore:

- Set concrete objectives and targets in planning documents.
- Define a set of performance indicators (aligned with objectives) that monitor progress on the implementation of policies in planning documents.
- Ensure that performance indicators are measurable and relevant to the objectives and support accountability arrangements between institutions and responsible managers.
- Establish a data-collection system for all identified indicators that provides ministers and officials with timely and accurate data.
- Conduct overall progress reports at least every two years and ensure that they are publicly available and form a basis for discussion of implementation at political and top administrative levels.
- Put in place functioning central steering and strategy review processes. Involving civil society and the business community in the monitoring and review process by ensuring transparency and access to information and enable them to provide input on implementation performance and challenges.

170. The ASR could make use of these digital platforms to make sure that indicators linked to the 2030 Strategy are cascaded down at all levels of governance. This is essential for ensuring that every sector and level of government—from national to local—aligns with overarching strategic objectives, thereby enabling a coherent approach to strategic planning. This systematic alignment of indicators contributes towards measurable and consistent priority-setting. This practice, as exemplified by Egypt's Ministry of Planning and Development initiatives such as the ISIPPM and ADAA (Box 2.14), offers a model that the ASR might consider optimising its monitoring frameworks.

171. One of the significant advantages of such an approach is the ability to aggregate results from sectoral plans to main strategic level of the 2030 Strategy. This not only allows for a comprehensive view of progress but also ensures that all initiatives contribute effectively to national priorities.

172. Furthermore, the selection of relevant and measurable indicators with clearly defined targets and baselines at each level of the results chain—from outputs to outcomes and impacts—is crucial. This ensures that indicators are not only measurable over time but also comparable across different levels and entities. Detailed indicator definition sheets and methodology notes can help establishing a common understanding of each indicator, which enhances the comparability and reliability of assessments across different governance levels.

173. Incorporating a mix of output, outcome, and impact indicators is also recommended. This diversity allows for a more nuanced evaluation of performance and the various contributions to the results chain. By emphasizing outcome-level indicators while still incorporating outputs and impacts, governance bodies can more effectively attribute and track contributions to overarching goals.

Box 2.14. Integrating indicators into every level of planning and performance in Egypt

Egypt's efforts to strengthen performance frameworks have also resulted in the establishment of specialised monitoring and evaluation units in certain ministries and government bodies. In addition, its Ministry of Planning and Economic Development (MPED) has created two electronic systems, linking SDGs with investment planning and with performance management.

Egypt's Integrated System for Investment Plan Preparation and Monitoring

The first one is the Integrated System for Investment Plan Preparation and Monitoring (ISIPPM). The aim of the ISIPPM is to establish an integrated electronic system that enables public entities to formulate development plans, request appropriate funding through simplified electronic forms, and facilitates the monitoring of projects. It serves as the main information structure for proposed projects, supporting the achievement of the SDGs, Egypt Vision 2030 objectives, and the government programme.

The ISIPPM system standardises assessments and trade-offs in project selection, facilitating the preparation of economic plans for the seven regions of Egypt. The ISIPPM tracks various data related to economic, social, and development activities, including demographic data, economic and financial information, natural and technological resources, infrastructure, and existing and planned projects. It provides analytical tools, mathematical models, and accounting programmes to assist in data analysis and strategic decision-making.

This wealth of data allows MPED and its officials to monitor development progress, identify investment needs in different sectors, analyse future challenges and opportunities, and take necessary measures to achieve the goals set in development and investment plans.

Egypt's National System for Monitoring and Evaluation

The second system, Egypt's National System for Monitoring and Evaluation - known as ADAA - is a government-based network that facilitates the monitoring and evaluation of all state entities. Through quarterly reports sent to the Council of Ministers, Parliament, and the Administrative Control Authority, ADAA enables the government to assess the performance of the state administrative apparatus in accordance with international standards. This system is intricately linked to the state budget, ensuring efficient resource allocation, and serving as a foundation for government and institutional excellence.

The objectives of ADAA include implementing government-approved development targets, fostering co-ordination between ministries and agencies, highlighting national achievements, aligning government objectives with the performance of agencies and employees, improving service quality for citizens, ensuring effective public spending, and measuring the impact of development programmes on sustainable development goals. Notably, all indicators within ADAA are connected to the 17 Sustainable Development Goals of Agenda 2030.

Moreover, ADAA focuses on monitoring the performance of each government entity through entity-specific performance indicators. These indicators are updated on a quarterly basis and cover the entire process of plan preparation, follow-up, and assessment of development impact. The system incorporates over 3,000 performance measurement indicators, including 380 indicators specifically designed to measure the strategic impact of various government programmes. ADAA is an electronic system with an informative graphical interface that visually represents each government entity and its affiliated bodies.

Source: (OECD, n.d.^[26]).

Creating performance dialogues to discuss and ensure progress on indicators and objectives

174. Facilitating performance dialogues through the use and sharing of information is essential to ensure that objectives and targets are shared and reached, that various stakeholders and levels of government are aligned and integrated, thereby preventing duplication of work and maximising resource use. This will lead towards a more comprehensive and structured assessment of progress by combining different perspectives and data, providing a fuller understanding of the impact of various factors on the achievement of strategic goals (OECD, 2020^[1]).

175. The lack of a structured co-operation for collecting and sharing data between ministries in Uzbekistan hinders the ability to build on pre-existing information, knowledge, and solutions in a coordinated manner. This limits the ASR's ability to leverage existing data to inform comprehensive and cohesive planning efforts and can lead to potential discrepancies in data and analysis. A practical way for the ASR to improve these co-ordination efforts is by creating work routines, through which data is collected and disseminated according to a set rhythm that generates a recognisable pattern. This has been widely recognised as a crucial success factor in promoting the use and value of performance information in the policy-making process. Concretely, they contribute to giving decision-makers a good co-ordinated overview of the state of play so that they can easily identify policy areas in need of intervention to safeguard progress.

176. An innovative way to create work routines is hosting data-driven review meetings, as in the United States (see Box 2.15), that represent a strategic tool to monitor and improve the performance of policies and institutions and are characterised by their structured format that focuses on frequency and regularity. The engagement of high-level leadership in these meetings is shown to increase effectiveness, as exemplified in the United States where securing the engagement of the deputy-secretary has shown to have a strong positive impact on the overall process.

Box 2.15. Data Driven Review meetings in the United States

The 2010 Government Performance Reporting and Modernization Act (GPRAMA) introduced the need for quarterly review meetings on each long-term federal government priority goal to discuss the progress achieved during the most recent quarter, overall trend data, the likelihood of meeting, and the planned level of performance against quarterly targets and milestones.

The federal government priority goals are categorised according to their risk of not achieving their planned level of performance. For those federal government priority goals that have the greatest risk of not meeting their planned level of performance, review meetings allow for the identification of prospects and strategies for performance improvement, including any needed changes to agencies, organizations, programmes activities, regulations, tax expenditures, policies, or other activities. Accuracy and reliability of the data used to measure progress towards the priority goal is also discussed.

These meetings are organised by the Director of the Office of Management and Budget with the support of the Performance Improvement Council. Meetings include officials from the agencies, organisations, and program activities that contribute to the accomplishment of each Federal Government priority goal.

Since then, agencies started to organise regularly scheduled, structured, and rigorously prepared data-driven meetings to review performance indicators with department or programme personnel. According to the US Government Accountability Office (GAO), to engage in data-driven reviews, it is necessary that programmes have identified their strategic priorities, that there is authentic leadership support to engage in the process, and that programmes have the capacity to gather and synthesize data related to those priorities. On the latter, though several agencies are able to produce data-rich analyses that

identified trends and potential performance issues. Performance Improvement Officers reported that having accurate, timely, and useful data available remains a major challenge.

Source: (White House of the United States of America, 2019^[27]) (White House of the United States of America, 2010^[28]).

177. The ASR's placement at the CoG is crucial because of its comprehensive oversight or 'helicopter view' and its ability to perform a 'challenge function'. This involves posing critical questions to line ministries as they present data and evidence, ensuring their validity and utility. Consequently, the CoG can identify the most valuable pieces of information, crafting a strategic overview that provides maximum benefit for top-level decision-makers. The following practice could inspire Uzbekistan to embed a routine that offers high-level updates on the progress of the 2030 Strategy. In the United Kingdom (see Box 2.16) a fixed work-routine enables the Prime Minister to receive regular updates on the implementation of policy priorities. This debrief is agreed on by both the PM's top political advisors and the experts within the civil service, generating the perception that this analysis is legitimate. The ASR could also make use of the performance dialogue organised by the Ministry of Investment, Industry and Trade (see Box 2.17).

Box 2.16. Work-Routines for monitoring government priorities in the United Kingdom

Monthly and six-monthly state of affairs presented to the Prime Minister

The UK introduced reporting routines at the heart of the Prime Minister's Delivery Unit (PMDU), which provides the rhythm for the unit's work. There are two reporting routines to the Prime Minister: monthly delivery notes and six-monthly delivery reports.

The **monthly delivery notes** summarise progress for each of the Prime Minister's priorities. They highlight the main issues encountered in a short and data driven fashion and describe what is planned. Where necessary, some notes can be even more frequent.

Six-monthly delivery reports are designed to be a comprehensive assessment of the state of play for all the Prime Minister's priority areas in a given department. They are written by the Head of the PMDU for the Prime Minister and copied to the secretary of state and lead officials. Usually, the drafts are discussed with the lead officials first. Each priority's delivery report is just one page and is intended to:

- Report progress against trajectories for the priority.
- Outline what success looked like for the priority over the next six months.
- Determine the best path forward and identify key actions that needed to be taken.
- Reveal areas of disagreement between the delivery unit and the lead department.
- Act as a reference document against which to chart progress.

Source: (Institute for Governance, 2015^[29]).

Box 2.17. Executing state investment policy through the Ministry of Investment, Industry and Trade

The Ministry of Investment, Industry and Trade (MIIT) seeks to create a dynamic and favourable investment climate, driving sustainable economic growth and elevating Uzbekistan's global economic position. The ministry's mandate is centred on the execution of a cohesive state investment policy by co-ordinating the development and implementation of national and sectoral investment programmes.

Strategic framework and contribution to national priorities

The MIIT is guided by a strategic framework outlined in several presidential decrees and resolutions. Resolution No. PP-72 (30.12.2021) charts a long-term investment strategy through 2026, attracting foreign investment and enhancing project management methodologies. Resolution No. PP-292 (04.09.2023) underscores the implementation of investment programmes, fostering a supportive business environment. These are complemented by reforms outlined in Decree No. PD-111 (21.07.2023), aimed at optimising public administration in investment and trade sectors.

The *Uzbekistan 2030* strategy aims to attract \$250 billion in investments by 2030, with specific targets in technological advancements, infrastructure projects, and sector-specific growth. To ensure alignment with these objectives, the MIIT employs analytical tools such as gap analysis, scorecards and reviews, as well as the use of secondments to foster co-ordination and engagement across ministries.

Co-ordination of whole-of-government bodies

The Government Commission on Attracting Investments, Industry Development, and Trade Regulation Issues is central to the MIIT's efforts to co-ordinate economic policies across government. Its tasks include the creation of strategies to boost exports, project reviews to ensure efficient and effective delivery and the promotion of regional industrial and production clusters. These responsibilities enable the Commission to co-ordinate across sectoral bodies to streamline investment and trade activities.

Furthermore, the MIIT has implemented an online system as part of a broader performance dialogue to monitor the progress of the national investment programme in accordance with resolution No. 16 (16.01.2023). The resolution specifies a six-stage process for forming a three-year investment program, including:

- Initial drafting by relevant ministries and local authorities.
- High-level review by the Cabinet of Ministers
- Detailed project planning by ministries and local authorities.
- Final submission of the investment program to the Cabinet of Ministers and the Presidential Administration.

The MIIT submits monthly update reports as part of this performance dialogue to the Presidential Administration and the Cabinet of Ministers, facilitating oversight and adjustments.

Areas of opportunities

A clear mandate for co-ordination, coupled with a high-level political commitment to expand investment, places the MIIT in a strong position for guiding whole-of-government economic policy. Moreover, the MIIT has implemented good governance practices to foster coherence and co-ordination of their activities.

Nonetheless, the MIIT faces challenges in effectively implementing its agenda. Risk management could be improved to avoid project delays and financial losses. Furthermore, despite important efforts to

strategize the use of planning and monitoring, a skill gap regarding planning capacities and the development of key performance indicators.

Source: Interviews carried out by the OECD as part of the project.

Leveraging Uzbekistan's delivery unit

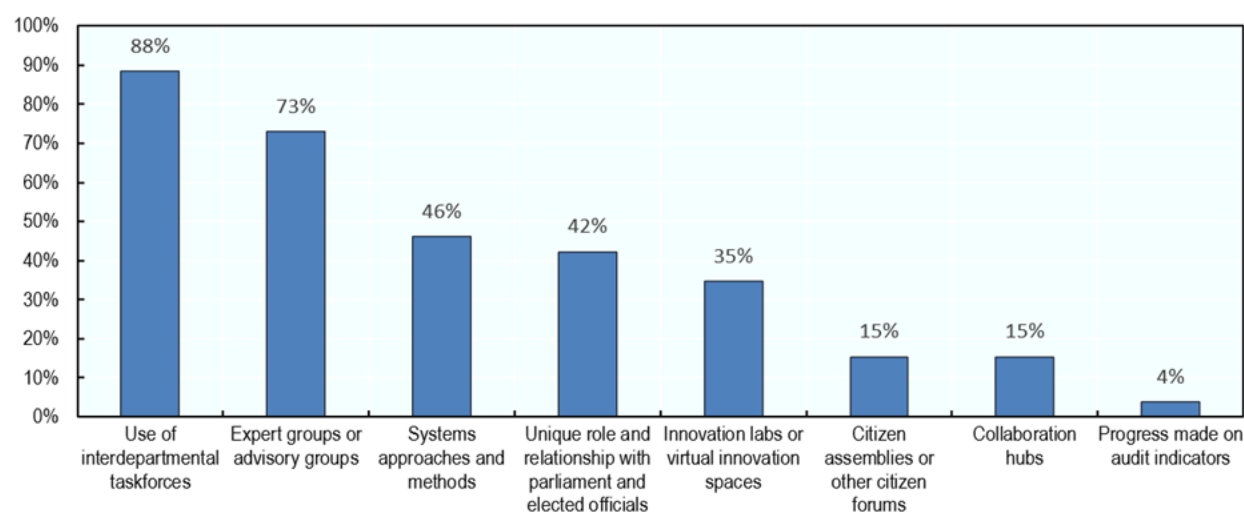
178. Some CoGs have also established dedicated units within their system that monitor and co-ordinate a select number of key priorities. Uzbekistan has established such a delivery unit underneath its Presidential Administration to assess the political realisations of line ministries, inspired by a model like that introduced and made popular by Tony Blair's government in the United Kingdom. Uzbekistan's Delivery Unit comprises a small team consisting of six individuals who focus on three main areas: public health, public education, and drinking water. They aim to monitor twelve specific KPI's such as the construction of new schools. One of their needs as shared during the OECD's fact-finding mission is a Geographic Information System (GIS) map to accurately allocate budget and resources for their KPI's. Furthermore, the unit faces challenges in distinguishing between raw data and processed statistics. Positioned above the ministries within the President's office, the delivery unit often encounters resistance from line ministries, which claim ownership of the data and may alter it to serve their interests.

179. The ASR should foster a strong partnership with the Delivery Unit to fully harness its capabilities in both data creation and analytical insights. This collaboration could contribute towards more successful implementation of the 2030 Strategy. By doing so, both the ASR and the DU can enhance their efficiency and effectiveness and avoid duplication of work and resources.

180. In fostering this relationship, it is crucial for the ASR to establish clear communication channels and regular interactions with the Delivery Unit. This will ensure ongoing alignment of strategies and facilitate timely adjustments to plans based on their respective insights. Moreover, leveraging the Delivery Unit's capabilities will enable the ASR to have a more data-driven perspective, leading to enhanced decision-making processes and more effective strategic planning efforts.

Improving co-ordination for more effective whole-of-government planning

181. The above-discussed performance dialogues are just one example of the variety of co-ordination mechanisms CoGs employ to enhance whole-of-government planning efforts and alignment across different stages of the policy cycle. These mechanisms further include both permanent and temporary structures such as taskforces, working groups, councils, committees, citizen assemblies, and innovation labs. These co-ordination efforts form a key tool for more effective strategic planning efforts. These structures not only support coherent, whole-of-government action but also promote peer learning and ensure that adequate resources are allocated for effective strategic planning.

Figure 2.5. Mechanisms used by CoGs to support co-ordination

Note: n=26. Respondents to the OECD survey were asked: “What enabling mechanisms does the CoG leverage to support co-ordination and coherence?”.

Source: (OECD, 2023^[9]).

182. Consulted CoGs in OECD Member countries (OECD, 2023^[9]) indicated that the most commonly used co-ordination tools are interdepartmental taskforces, expert groups, and advisory groups (see Figure 2.5). Effective co-ordination bodies often depend on strong leadership, the inclusion of appropriate representatives, and a well-defined purpose. Inter-departmental co-ordination arrangements can serve different purposes and have different benefits, for instance:

- They provide a forum for high-level political monitoring and decision-making and co-ordination across different ministries.
- They can help to ensure that policies are aligned with/integrated into the government programme’s strategic priorities and objectives.
- They can facilitate the development of cross-cutting policies that address complex, multidimensional issues that require input from multiple ministries.

183. In Uzbekistan, the strategic planning and co-ordination efforts undertaken by the ASR, the MoJ, and the CoM are undergoing change to improve their effectiveness. Initially, the planning process of long-term strategic documents such as the 2022-2026 Strategy was mostly led by working groups under the Cabinet of Ministers. The 2030 Strategy however, incorporated broader and more active involvement indicating a shift towards a more inclusive approach in strategic planning. Furthermore, the system is evolving from a report-oriented, bureaucratic approach to a result-oriented system, aiming for more effective implementation of strategies. Despite these efforts, the strategic planning process faces challenges of co-ordination and coherence.

Inter-ministerial committees for more effective co-ordination of planning efforts

184. To foster greater co-ordination and ensure policy coherence and effective implementation, both inter-ministerial committees at the political level as well as inter-departmental committees at the technical level, are instrumental. These committees play crucial roles by bringing together policymakers from different ministries to discuss and align on various policy aspects. This approach ensures high-level ownership and facilitate in-depth exchanges, enabling ministries to align their policies and actions with the broader national objectives:

- High-level committees are mandated to steer strategy formulation and oversee implementation while ensuring its coherence, are organised by thematic clusters (e.g., addressing economic and trade, social and cultural, and foreign and defence policies). At the “top” of a committee hierarchy, some countries have established a whole-of-government steering committee at the ministerial level, in some cases chaired by the head of state or government, to provide overarching integrated guidance in the pursuit of the Government Programme.
- These high-level, whole-of-government committee structures are supported by mirror inter-departmental committees of officials at the technical level that are responsible for providing data, evidence, and advice to their respective high-level committees. In addition, the main inter-ministerial oversight/steering committee is usually chaired by the head of government or a CoG minister and is supported by a CoG institution such as the ASR that works closely with relevant line-ministry strategy units and/or sustainable development units to feed the strategic policy decision-making process at the steering committee level.
- These inter-ministerial committees acknowledge the role the CoG can play as a central leader that facilitates co-ordination, collaboration and co-operation across the public administration. This is demonstrated by the case of the PlanAPP expertise centre in Portugal with its Public Administration Planning and Foresight Services Network (RePlan) (see Box 2.18).

185. In Uzbekistan, such co-ordination within the government remains a challenge, with strategic priorities often discussed on an ad-hoc basis and silos persisting due to a lack of formal coordination structures and performance management dialogue based on key performance indicators (KPIs).

186. A formal inter-ministerial committee for the 2030 strategy presided by the President with the ASR as its technical secretariat could lead to further support a political and technical dialogue, akin to the successful model of the current digital co-ordination commission. While an ad-hoc committee currently serves to review the progress and challenges of the 2030 Strategy, its temporary nature, and the lack of a permanent, structured entity for continuous guidance and oversight reflect the need for a more formalised approach to strategic planning and co-ordination. The High-Level Commission for Strategic Reforms, led by the President, exemplifies this need, and could be strengthened to be made fit for purpose. Despite its high-level leadership, the council’s current effectiveness has been questioned by consulted interlocutors, as seen in the inadequate implementation of the agriculture strategy, which failed to align with climate objectives.

187. As mentioned, technical support for coordination mechanisms is essential for their effectiveness, and the ASR should play a central role in supporting the 2030 Strategy mechanisms, acting as secretariat when needed. This support includes handling coordination tasks like invites and note-taking, supplying thematic data and evidence for strategic policy discussions at inter-departmental committees, and offering training for involved officials. The ASR should also facilitate interministerial workshops to improve coordination practices, manage multi-sectoral initiatives, foster collaboration, resolve conflicts, and optimise resource use. These workshops could focus on priorities identified in Uzbekistan 2030 to discuss and advance progress on each. These efforts will bolster the implementation of strategic initiatives, aligning with national goals and enhancing Uzbekistan's strategic planning framework.

Box 2.18. Governance arrangements and mechanisms for inter-ministerial co-ordination in Finland, Belgium and Portugal

Focused high-level inter-ministerial committees in Finland

Finland has established several co-ordination mechanisms to support strategy and decision-making supported by the CoG, particularly the Government Strategic Department. They bring together different line ministries and are usually shared by one or two lead ministries, depending on the topic. Finland has created:

- Four permanent Ministerial Committees on Finance, Economic Policy, European Union (EU) Affairs and Foreign and Security Policy that play a key role in co-ordinating government policies.
- Thematic working groups focusing on a few government priorities (e.g., the Ministerial Working Group on Developing the Digital Transformation, the Data Economy and Public Administration) that help steer, monitor and implement those priorities.
- Functional working groups on research and foresight.

The Belgian Interdepartmental Committee for Sustainable Development

The Interdepartmental Committee for Sustainable Development (ICSD) is responsible for preparing and coordinating actions by federal ministries and public services in the field of sustainable development.

The committee is mandated by law to:

- Propose areas of work for the Federal Institute for Sustainable Development (FISD) and the Federal Planning Bureau as part of their designated tasks outlined in the sustainable development the Act of May 1997.
- Coordinate the summary report of its members that they must compile 18 months before the end of the ongoing Federal Plan for Sustainable Development (FPSD).
- Prepare the draft of Federal Plan for Sustainable Development when a new government takes up office.
- Formulate a proposal regarding the modalities of the public consultation concerning the draft of the Federal Plan for Sustainable Development (FPDO).

It is composed of representatives from all federal government services and the Ministry of Defence. The Belgian Regions and Communities are also invited to appoint an observing member. The Federal Institute for Sustainable Development (FISD) as the dedicated federal administration for sustainable development located within the centre of government assumes the secretariat and the chairmanship of the committee.

The Public Administration Planning and Foresight Services Network (RePlan) in Portugal

In 2021, the Portuguese government established an inter-ministerial network for planning and foresight services of the public administration. Its objective is to support the government in building and aligning strategies for cross-cutting issues. And ensure that in Portugal, the planning processes are underpinned by a wide range of sources of data and evidence.

This acknowledges the role the CoG can play as a central leadership hub, to facilitate co-ordination, collaboration and co-operation across the public administration, including through the use of foresight in the planning process. Although RePLAN was de facto established in November 2022 and is still in its early stages, it has already identified some key success factors:

- The establishment of a long-awaited convening platform that brings together different practices such as foresight offers an opportunity for synergies, increased efficiency and effectiveness in core governance areas such as strategic planning and policy evaluation.
- A clear mandate, government empowerment and continuous political support.
- The engagement of relevant stakeholders from civil society, academia and the private sector to drive evidence-informed and inclusive strategies and plans.

Sources: (OECD, 2024^[8]); (Government of Belgium, 2024^[30]); (OECD, 2023^[2]).

Reinforcing vertical co-ordination

188. Finally, to enhance Uzbekistan's strategic planning efforts, reinforced vertical co-ordination is also an important point of attention. Especially given the recent elevation of the mahalla's role through the Presidential Decree of December 2023. This decree not only establishes a Republican Council for Mahalla Support and a nationwide association but also clarifies the responsibilities of each executive council member, known as the "mahalla seven," and the procedures within the mahalla. This structured framework significantly supports local governance, promoting better integration and co-ordination with national strategic objectives.

189. This initiative is critical as existing challenges in vertical co-ordination, including unclear expectations and responsibilities, have been identified by consulted stakeholders during the OECD's fact-finding missions as a clear reason for overburdening of regional capacities. The 2030 strategy's lack of clear work delineation for regional and local levels further complicates effective implementation. Moreover, the ASR's limited mandate and tools restrict its ability to effectively articulate and coordinate between local and national levels. Additionally, the quality of regional data remains severely limited, which undermines effective strategic planning and monitoring. By addressing these gaps and aligning local actions with national objectives, strengthened vertical co-ordination can significantly improve the execution of strategic objectives across different government levels. The below practice from Argentina (see Box 2.19) can inspire the ASR for more effective vertical co-ordination for the 2030 strategy.

190. Furthermore, a special unit named Project Cluster at the ASR is to link all stakeholders and the wider public through a complex of measures, mostly targeting the participation of non-governmental organisations (NGOs) and non-state experts, but also vertical co-ordination through involvement of representatives of local communities. The purpose of the Project Cluster is in large part to address societal concerns with the strategic planning process and to provide a means for a dialogue between the state and the citizens.

191. In conclusion, despite various initiatives for improvement Uzbekistan's co-ordination efforts face significant challenges which can be addressed with more effective integration of inter-ministerial and inter-departmental committees into the strategic planning process. Furthermore, while the regulations of the PA and the CoM provide a framework for resolving inter-ministerial conflicts, the details of these mechanisms are not well-defined, leading to difficulties in ensuring effective cooperation, particularly in crucial areas like budget adoption and policy evaluation.

Box 2.19. Improving vertical co-ordination for strategic planning in Argentina

In Argentina, the National Council for the Co-ordination of Social Policies (Consejo Nacional de Coordinación de Políticas Sociales, CNCPS), responsible for co-ordinating the implementation of the 2030 Agenda for Sustainable Development, is promoting co-operation agreements with the provinces to promote vertical co-ordination of the SDGs. Together with the Cooperation Agreement, the CNCPS provides provinces with an adaptation guide including methodological suggestions on the utilisation of the SDGs as a management and planning tool at the subnational level.

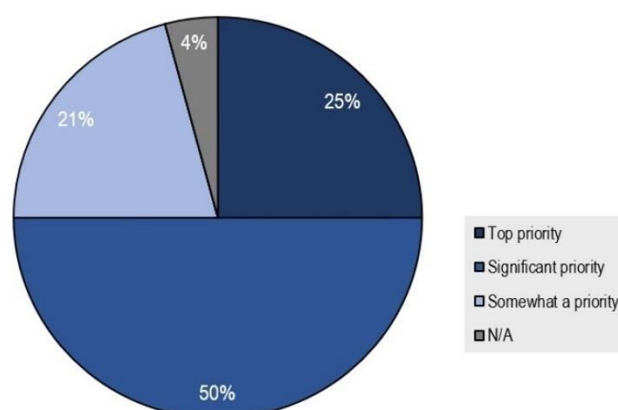
The CNCPS also invites provinces to participate in the voluntary Provinces Report (Informe Provincias), which seeks to highlight annual progress on the adaptation of the SDGs in each territory in relation to the SDGs under review by the High-level Political Forum every year. At the time of signature, the province had already adopted the goals and targets of the 2030 Agenda, set up focal points responsible for the local implementation of the SDGs and provided adequate resources. However, the signature was a trigger to use the adaptation guide as a key tool to ensure consistency between the provincial and national SDGs indicator frameworks. The province also committed to reporting to the CNCPS on the localisation process.

Source: (OECD, 2020^[31]).

Aligning the budget and the strategic planning processes

192. In the latest Survey on strategic decision-making at the centre of government (OECD, 2023^[9]), 75% of countries reported that the alignment both across different plans and with budget processes is a significant or top priority function for their CoG (see Figure 2.6). In doing so Uzbekistan can enhance its strategic decision-making and budgetary alignment by overcoming challenges such as the involvement of multiple institutions in the development process and the need to address and fund new priorities and measures. A structured approach towards this will foster more effective and efficient governance across the country. This can be done by aligning budget estimates with strategic priorities to ensure compliance with the fiscal framework. This is a key focus for the ASR, which works in conjunction with line ministries. However, this co-ordination role is often hampered by issues such as insufficient transparency, a lack of cooperative culture, overlapping mandates, and the need for improved capacities. Addressing these challenges will not only streamline processes but also enhance the overall governance landscape.

Figure 2.6. Importance of alignment across documents and with budget process function



Note: n=24; Respondents to the survey were asked: “How much of a priority are the following functions in the CoG [Alignment across documents and with budget process]?”.

Source: (OECD, 2023^[9]).

193. The draft presidential Decree that aims to formalise Uzbekistan’s strategic planning framework tries to address the above identified challenges for co-ordination that could prove complex to apply in practice. Strategic planning departments will require approval from key institutions on different aspects of their strategic plans, thus ensuring a thorough vetting process. The MEF, for example, will approve financial and economic justifications, while the Institute for Strategic and Regional Studies (ISRS) will handle threat assessments and scenario planning. The MoJ will monitor compliance with strategic planning requirements, with the Agency for Civil Service Development (ACSD) co-ordinating human resource management and capacity-building. The ASR will oversee the overall implementation of the 2030 Strategy and long-term national objectives, maintaining the hierarchy and compatibility between different strategic planning documents.

194. A dedicated case study regarding the alignment of strategic planning and budgeting through the MEF can be found in Box 2.20 below.

Box 2.20. Aligning strategic planning and budgeting through the Ministry of Economy and Finance

The Ministry of Economy and Finance (MEF) is responsible for the development of a sustainable and competitive economy by improving financial policies, the alignment of fiscal and budgetary procedures with plans and policies, and the transformation of state-owned enterprises in accordance with market principles. The ministry’s broad mandate allows for close budgetary co-operation with local governments and knowledge exchange with international partners.

Strategic framework and contribution to national priorities

The MEF operates under a comprehensive framework guided by numerous strategic documents, including the *Development Strategy of New Uzbekistan for 2022-2026* and *Uzbekistan 2030*. Since the creation of the Planning Division in 2020, the ministry has sought to implement a results-based management (RMB) system to better align activities with national strategic priorities. Significant progress has been made in the development of a multi-year budget, having developed a methodology

for results-based budgeting and launched a pilot programme within the MEF and the Ministry of Agriculture.

The MEF has created an open-access state budget portal to enhance transparency and accountability in budget implementation (www.openbudget.uz), outlining parameters including income, spending and deficit. However, the portal does not provide coherent and traceable information on the linkage between state and regional policies and dedicated financial resources.

Co-ordination of government bodies

Most co-ordination from the MEF occurs through the budgetary process, as all policies and programmes are reviewed by the MEF to ensure the availability of funds. This includes support and technical assistance to national and subnational institutions in budget preparation.

While the MEF currently measures programme implementation and expenditure, they cannot evaluate the efficiency and impact of their budget. The development of the RBM system will allow the MEF to play a stronger co-ordination role by measuring expenditure against impact, conducting spending reviews and performance evaluations, therefore allowing a better integration of the budget with *Uzbekistan 2030*. The MEF is thus expected to play a key role with ASR in checking the coherence of planning documents before they reach the Cabinet of Ministers and Parliament.

Areas of opportunities

Following the recent merger between the Ministry of Finance and the Ministry of Economy, the MEF's comprehensive mandate allows it to influence various critical sectors addressing socio-economic development and budgetary procedures and its capacity to streamline and align government goals with financial resources. Furthermore, the adoption of a results-based management model seeks to address the weak links within the planning system.

When creating the state budget, the MEF primarily focuses on the upcoming fiscal year. While this ensures synchronisation between government actions and annual budget cycles, it does not facilitate a longer-term view on financing national priorities. Medium-term budgeting (3-5 years) would allow the MEF to bring a longer perspective on financial resources and strategic priorities, as well as enhance its capabilities to monitor and evaluate budgetary performance. For this to work, the MEF equally has to work to improve the quality and availability of performance data to inform target indicators and streamline the number of strategic plans across government.

Source: OECD interview with the Ministry of Economy and Finance as part of the project.

Recommendations to enhance the effectiveness of Uzbekistan's strategic planning framework

To effectively implement the below identified recommendations for enhancing Uzbekistan's strategic planning system, the following approach can be proposed:

- As a priority, pass the Presidential decree and utilise it alongside the forthcoming Strategic Planning Act as essential tools to formalise and complete the current strategic planning system. Ensure these legislative instruments clearly define the roles, responsibilities, and processes involved in strategic planning across all levels of government.
- Develop the capacities and role on strategic planning, particularly on expertise, guidance, support and performance management, to enhance the alignment and implementation of strategies. Consider making the ASR the centre of expertise and competence of strategic planning in Uzbekistan, mirroring the example of PlanAPP in Portugal.
- Harness the strong political support for the strategic planning framework to drive the implementation of the recommendations. Engage with key stakeholders, including senior leaders, to advocate for the necessary resources and to ensure alignment with the 2030 Strategy.
- In the context of implementing programme-based budgeting, ASR and MEF should promptly join forces to align the respective methodologies, including requirements for content of planning documents and monitoring and reporting on performance, improve costing of strategies and quality of line ministries business plans.

Solidify the position of the 2030 Strategy to foster strategic clarity within the planning process

- Formalise a clear hierarchy of strategic documents that places the 2030 Strategy at the very top. Issue guidelines that require all sectoral and regional strategies to demonstrate alignment with the 2030 Strategy's objectives. This could involve revising existing strategies or drafting new documents with explicit references to how each contributes to the broader national objectives outlined in the 2030 Strategy.
- Develop and execute a comprehensive communication aimed at all public sector entities to clearly articulate the central role of the 2030 Strategy. This should include guidance that emphasises the strategy's objectives, its importance in the national planning landscape, and the expectations from each entity in supporting its implementation.
- Conduct a thorough review of the processes, methods, and achievements of the 2022-2026 Strategy. Identify elements that have been successful and can be integrated into the 2030 Strategy to avoid duplication of efforts and resources.

Enhance stability and efficiency in Uzbekistan's strategic planning system

- Clarify roles through the development and dissemination of clear "statements of purpose" and "who does what" guides across the CoG institutions (ASR, CoM, PA) to clearly define a division of labour that prevents duplication of work. This can be followed by dedicated training sessions to ensure all entities are fully aware of their respective roles and responsibilities.
- Create a more formal and regular coordination between the three main CoG units and between the CoG and the MEF to ensure alignment between the strategic framework and the national fiscal framework. This could involve creating a subcommittee working on a performance

dialogue that reports regularly to the main inter-ministerial committee and the CoG steering committee, and should comprise relevant players including the MEF and the statistics agency.

- Improve cooperation through the establishment of shared digital platforms and possibly co-located offices to facilitate daily interactions and streamline communication among CoG bodies. This should then also extend further towards line ministries and agencies to improve understanding of command lines and feedback mechanisms.
- Create change management plans and manuals to anticipate and manage restructuring within the CoG. This to preserve institutional memory and ensure a smooth transition during reforms.

Strengthen the ASR as the main driver and centre of expertise of the strategic planning process

- Make sure the ASR has sufficient political clout, recognition, resources (both personnel and financial) and tools to take on its functions as the main driver and communicator for Uzbekistan's strategic planning efforts across the public administration and whole of society.
- Strengthen the guidance and support on strategic planning that the ASR gives to line ministries:
 - Develop and distribute comprehensive manuals, guidelines, and toolkits for strategic planning considering the needs of line ministries and agencies. This should include best practices, step-by-step processes for document development.
 - The ASR should establish a central repository of templates, guidelines, and an online library, accessible through collaborative platforms, to streamline collaboration with ministries, facilitate their contributions and ensure alignment with their specific needs and objectives. This consolidated resource library should serve as a practical tool for enhancing co-ordination and cooperation between ministries, ultimately supporting the effective whole-of-government pursuit of the 2030 Strategy.
 - The ASR should spearhead targeted training programmes aimed at enhancing the skills of strategic planning units and staff within ministries. These programmes can cover areas such as data analysis and creation, policy integration, policy coherence and scenario planning to ensure that personnel are well-equipped to produce relevant and aligned strategic documents and they should also clarify the 2030 Strategy as the main strategic document/
- Strengthen ASR's review function of strategic documents to ensure their quality and alignment with the strategic priorities stemming from the 2030 Strategy. The ASR can consider the following lessons from OECD good practices:
 - Prioritise early engagement with ministries during the planning phase, particularly during objective setting. This proactive approach ensures alignment with national priorities and minimises wasted efforts.
 - By making the offered guidance streamlined and concise, it can enhance clarity and efficiency for its users. Nevertheless, guidance should clearly include key elements such as indicators and budget connections.
 - Recognise the value of feedback mechanisms. Rather than relying on veto power, employing a feedback mechanism that offers suggestions and encourages improvements fosters collaboration and enhances the quality of strategic plans.
 - Maintaining a small but dedicated team of experts within the ASR with sector-specific knowledge ensures ministries receive targeted and effective support, enhancing overall strategic planning efforts. These practices collectively contribute to the unit's success in supporting ministries and advancing national objectives.
- To support the development of strategic planning units and to ensure their sustainability:

- Make sure the ASR can monitor the role, mandate, and structure of the strategic planning units as recognised in the Presidential Decree on Public Administration Reform to enhance their stability and ensure their continued operation.
- Ensuring that adequate resources, both financial and human, are allocated to these units can enhance their effectiveness and ability to meet the strategic objectives.
- Creating a community of practice for strategic planning units across ministries can facilitate knowledge exchange, promote best practices, and improve co-ordination and integration of strategic planning efforts.
- Building on its review function the ASR should engage in the evaluation and performance management of strategic documents to verify the effectiveness of these documents through their impact and performance.

Strengthen performance management and evidence in Uzbekistan's strategic planning system:

- The ASR should evaluate strategic documents to ensure realisation of priorities and collaborate with the MoJ on a division of labour. Embed these monitoring efforts in a legal framework within the Presidential Decree to promote a culture of evidence-based policymaking.
- The ASR should set specific goals and monitor progress to identify performance gaps. Ensure that indicators related to the 2030 Strategy are implemented at all governance levels. Coordinate with agencies to review progress, align objectives and optimise the use of resources.
- The ASR should develop performance routines for regular data collection and dissemination. And establish a digital monitoring platform to track 2030 Strategy objectives, collecting key information from sectoral documents.
- The ASR should form a strong partnership with the Delivery Unit within the Presidential Administration to utilise data creation and analytical insights, enhancing efficiency and avoiding duplication of work and resources.

Strengthen co-ordination efforts for more effective strategic planning

- Require all ministries to work together through their strategic planning units to identify and harness linkages to pursue the 2030 Strategy. Make sure the ASR can support these planning units from sending out invites for co-ordination meetings to the distribution of templates and manuals.
- Revise the role and structure of the existing high-level committee – or create a new one for the 2030 Strategy presided by the President, with the ASR as its technical secretariat, to create a political dialogue and high-level ownership. This committee should follow-up on the implementation and state of play of the 2030 Strategy:
 - Make sure the committee has a clear mandate and functioning by clearly defining and documenting its roles and responsibilities to ensure a comprehensive and well-defined mandate.
 - Appoint the ASR as the technical secretariat to prepare agenda, documents and data and support the discussions.
 - Ensure committee meetings take place in a regular manner by organising them at a fixed frequency (for example quarterly) to ensure periodical discussions on progress and challenges for the 2030 Strategy.
 - Ensure that a diverse range of institutions, including non-governmental stakeholders, actively participate in committee activities.
- Strengthen vertical co-ordination for more effective implementation of the 2030 Strategy by:

- Establishing clear guidelines and frameworks that delineate specific roles, responsibilities, and expectations for regional and local levels in relation to the national objectives of the 2030 strategy. This should include detailed action plans and checklists that are tailored to the unique needs and capabilities of each regional and local entity.
- Mandating the ASR to facilitate better articulation and coordination between local and national levels. Equip the ASR with tools such as enhanced data access and authority to enforce compliance with strategic objectives.
- Creating regular co-ordination meetings and digital communication platforms that connect local, regional, and national authorities. These meetings can focus on sharing good practices, discussing challenges, and aligning local strategies with the 2030 strategy to ensure that local actions support national efforts.

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3

Promoting gender equality and mainstreaming in strategic planning of Uzbekistan

This chapter explores Uzbekistan's strategic planning efforts to promote gender equality, focusing on the critical role of a robust strategic framework in anchoring the government's vision and goals, both short- and long-term, for gender equality. By aligning with international standards and embedding gender equality into broader national policies, Uzbekistan can ensure comprehensive and lasting progress. The chapter also highlights the importance of legal frameworks, institutional co-ordination, and gender-disaggregated data in maximising the impact of gender mainstreaming. Through a detailed analysis of Uzbekistan's gender equality strategies, the chapter identifies both strengths and areas for improvement, concluding with actionable recommendations to enhance the effective implementation of these strategic plans.

Introduction

195. In recent years, Uzbekistan has implemented a series of reforms aimed at promoting gender equality. These efforts have been recognised by international indexes and reports, positioning Uzbekistan as a country with progress in areas such as pay and marriage (World Bank, 2024^[1]). To ensure these gains are long-lasting and have a truly transformative impact, a robust strategic framework is crucial.

196. A robust strategic framework is a powerful tool that can guide government action by anchoring its vision and short-, medium- and long-term goals for gender equality, providing a clear roadmap for action. There has been a growing recognition of effective strategic planning to advance equality across OECD member countries in recent years (OECD, 2022^[2]). Adopting gender strategies has notably allowed to align with international standards; enhance transparency and accountability; and build on past experiences to address remaining gaps (OECD, 2019^[3]). It has also led to tangible positive outcomes in countries, such as an increase in women's representation in public life in Australia (OECD, 2018^[4]).

197. In parallel, there is a need to embed gender equality visions into broader government policies and national development objectives, as well as across policy sector strategies (e.g., digital, environment, energy, transport, data strategies) to ensure a comprehensive approach towards gender equality (OECD, 2015^[5]). The COVID-19 pandemic further underscored the importance of strategic planning within all governmental frameworks, highlighting how strategic foresight can help effectively mitigate the disproportionate gender impacts exacerbated by a crisis (OECD, 2021^[6]).

198. Such efforts are maximised if they are supported by legal frameworks outlining institutions' mandates, requirements, as well as proposed actions to advance the defined goals of gender equality (OECD, 2021^[7]). In addition, effective implementation of strategic framework relies on enablers including sound institutional settings and co-ordination mechanisms, and the availability of gender-disaggregated data.

199. This chapter assesses Uzbekistan's approach to strategic planning for achieving gender equality, while identifying strengths and areas for improvement. It starts by providing an overview of Uzbekistan's strategies on gender equality, evaluating how they are being designed. Additionally, it assesses how gender equality objectives are being integrated in and across broader and sectoral strategies. Finally, it offers recommendations for the effective implementation of strategic plans on gender equality.

Mapping progress: an overview of strategic planning for gender equality in Uzbekistan

200. Uzbekistan's efforts are in general terms aligned with OECD practices, with the adoption of a wide range of legal and strategic documents aimed at fostering gender equality. Recently adopted documents include:

- Medium-term decrees and resolutions of the President of the Republic of Uzbekistan, including the National Programme to increase the activity of women in all spheres of economic, political, and social life of Uzbekistan for 2022 – 2026.
- Sector-specific plans, including the Programme for Increasing the Activism of Women in Government Bodies; the Road Map and the National Plan for the Implementation of UN Security Council Resolution No. 1325 "Women, Peace and Security"; the "Program for Increasing the Activity of Women in Public Administration".

The 2030 Strategy is envisioned as a long-term document supported by monitoring and reporting mechanisms

201. Efforts culminated with the adoption of the *Strategy of Achieving Gender Equality in the Republic of Uzbekistan until 2030* ("2030 Strategy") in 2021. The 2030 Strategy was developed with the aim to underpin the country's efforts in advancing its gender equality commitments over a span of 10 years. It outlines overarching goals, tasks, expected outcomes for the 10-year period, and foresees an action plan to be adopted on an annual basis. Box 3. outlines the 2030 Strategy's vision and areas of focus.

Box 3.21. Main areas of focus of the 2030 Strategy

The 2030 Strategy acknowledges recent progress in Uzbekistan, notably achieving gender parity in the national parliament for the first time. However, it also highlights persistent challenges such as limited female participation in decision-making and socio-economic activities. The 2030 Strategy reports gender disparities in education, healthcare, and media representation negatively affect women's rights and the country's global reputation. The 2030 Strategy's overall goal is to "ensure the true equality of women and men, regardless of their race, nationality, language, religion, social origin, belief, personal and social position". It emphasizes 11 key tasks ranging from expanding women's property ownership to ensuring equal opportunities in public employment. Based on the assessment of gaps and priorities, the main areas of the Strategy, which all contain approximately 10 measures, are:

- Electoral rights;
- Public service;
- Education, science, sports and healthcare;
- Socio-economic fields;
- Prevention of gender-based violence;
- Family relations and child upbringing;
- Planning and budgeting taking into account gender aspects;
- Improving the conduct of gender statistics.

Source: Strategy of Achieving Gender Equality in the Republic of Uzbekistan until 2030.

203. The adoption of the 2030 Strategy represents a timely opportunity to focus Uzbekistan's efforts effectively in the area of gender equality.

Paving the way: well-designed strategic frameworks for advancing the gender equality agenda

204. To be effective, a strategic framework on gender equality needs clear rationale, priorities, timelines, realistic objectives, result-oriented measures, and measurable targets (OECD, 2021^[7]). While designing strategies, it is important that governments keep these elements in mind to ensure that their action effectively addresses the needs of women and can be implemented with lasting impact over time.

Enhanced alignment between gender strategies and plans on gender equality is essential for the sound implementation

205. Uzbekistan's efforts to tackling inequalities has led to a proliferation of strategies and plans over the past years, as described in Chapter 2. This can pose challenges such as information overload and overlapping measures potentially diluting strategic focus and responsibilities across the government, ultimately affecting the effectiveness of these documents (OECD, 2021^[7]).

206. OECD analysis points to potential for greater alignment and complementarity between current plans, in particular between the *National Programme to increase the activity of women in all spheres of economic, political, and social life of Uzbekistan for 2022 – 2026* and the 2030 Strategy, which have similar yet different specific objectives, timelines, and measures.

207. Interviews also point to a diffusion of strategic focus, with different frameworks being referenced for action by various stakeholders. For instance, despite being designed as the umbrella strategy, there is limited and uneven awareness of the 2030 Strategy across the government and references to it for action, possibly reducing its potential to guide gender goals. In addition, interviews suggest an inclination towards developing new strategies rather than implementing existing ones, which may contribute to this diffusion of strategic focus.

208. OECD countries have taken steps to streamline efforts and ensure complementarity between strategic plans. Switzerland, for instance, has incorporated its *2022-2026 National Action Plan to implement the Council of Europe Convention on preventing and combating violence against women and domestic violence*, which includes 44 measures, into its umbrella gender strategy, the *2030 Equality Strategy* to ensure consistency (Swiss Confederation, 2023^[8]).

Evidence-based objectives based on consultations with relevant stakeholders is needed to grasp key areas for action

209. One of the main goals of strategic planning is to help improve decision-making processes by focusing attention on the most crucial issues and challenges (OECD, 2019^[3]). As governments operate within resource constraints, it is important that strategies are designed based on comprehensive analyses of a country's gender equality status. This entails using various indicators and targeting insufficiently explored areas (OECD, 2021^[7]).

210. The 2030 Strategy briefly assesses the overall situation at the beginning of the document, but there is limited link between this assessment and the tasks, goals, measures and indicators. OECD analysis shows potential for improvement to aligning more closely its gender goals with Uzbekistan's short-, medium-, and long-term challenges.

211. A way to ensure that defined objectives are based on evidence is to conduct in-depth consultations with relevant stakeholders, including civil society organisations and experts. This is essential in gathering insights and informing the state of play on gender equality (OECD, 2021^[7]). Noteworthy, Article 15 of the *Law on Guarantees with Respect to Equal Rights and Opportunities for Women and Men* (2019 Law on Gender Equality) foresees the participation of non-governmental actors in the development and implementation of gender policy. In addition, Uzbekistan has reported to have included non-governmental members when developing the 2030 Strategy. However, evidence points to consultations that primarily concern the initial stages of the development of the strategy, such as communicating the overarching gender vision. Overall, there is scope for further action to institutionalise this process by establishing formal mechanisms, ensuring external stakeholders have the information and access to participate. Interviews with civil society emphasised the significance of this need, particularly in a context where there is a noticeable lack of available information on gender gaps (See Section on Enablers).

212. OECD countries have adopted various approaches to ensure robust engagement with external stakeholders in the development of strategic frameworks for gender equality, as discussed in Box 3.2.

Box 3.2. Ensuring gender priorities reflect the needs of the population through extensive consultations

Czechia's Strategy 2021+

In 2021, Czechia adopted a gender strategy 2030 (Strategy 2021+). It sets out high-level goals, further defined and actionable through a set concrete measures and corresponding indicators, guiding the government action on gender equality over that period.

The development of the Strategy 2021+ included extensive consultations with various stakeholders, which allowed to reflect the collective insights and respond to societal needs. Specifically, a two-year consultation phase was held, involving thematic expert groups and roundtable discussions. Through this process, Czechia was able to refine the strategy proposal. On this basis, eight thematic chapters addressing key areas, such as women's equal participation in decision-making were defined. All these chapters are based on a thorough analysis of the current landscape in Czechia, alongside goals and specific measures to effectively achieve them.

Czechia then observed such approach had facilitated both the effectiveness of implementing the strategy and the relevance of the established direction.

Mexico's comprehensive and consultative strategy

Mexico's national *Program for Equality between Women and Men* was adopted in 2020, covering the period from 2020 to 2024. This strategy aims to substantively advance in achieving equality between women and men. Its design involved an extensive consultation process, engaging over 5,000 women from diverse backgrounds across all states of the country, allowing for a comprehensive overview of the gender challenges, taking specific local contexts into account.

Based on the consultations, the strategy consists of six priority objectives, 37 strategies, and 267 specific actions. It is reported to be implemented by all institutions of the public administration, and reflects a collaborative effort from the executive, judicial, and legislative branches of government.

Sources: (OECD, 2023^[9]); (OECD, 2023^[10]).

Prioritisation of short-, medium- and long-term measures could boost the effectiveness of the 2030 Strategy

213. When developing measures as part of their strategies, governments need to assess what actions are the most important to implement first.

214. The 2030 Strategy uses yearly action plans, with 35 measures in the 2021-2022 plan, and further actions planned for 2023, and 2024. This annual planning approach can serve as a prioritisation of action, while providing flexibility for more adaptable and swift government responses. Allowing for swift reaction from the government is needed to prevent the exacerbation of gender gaps in times of crisis, as exemplified during the COVID-19 pandemic, characterised by an increased risk of gender-based violence.

215. At the same time, relying solely on short-term measures implemented on an annual basis can pose additional challenges. Firstly, adopting overly ambitious measures can discourage or disrupt implementation (OECD, 2021^[7]). This could be the case for measures including "ensuring equal rights and

opportunities for women and men in the formation of election commissions" to be implemented within a 1.5-year timeframe. Interviews indicate that the choice of adopting yearly action plans might stem from the approach adopted to deliver fast results.

216. In addition, a yearly plan approach can lead to the alteration of the 2030 Strategy scope and goals over time. This, in turn, necessitates political leadership and ownership to gender equality across the government to continuously adopt measures towards achieving the objectives set out.

217. In the upcoming action plans, it might be beneficial to consider adopting longer-term plans that prioritise short-, medium- and long-term specific measures under each priority theme. To further boost this effort, it would be beneficial to allocate budgets to each measure and sequence budgeting accordingly. To this end, Uzbekistan could consider identifying both national and international sources of financing for each measure (OECD, 2023^[9]). Adopting budgeting practices could enhance Uzbekistan's action on gender equality (see the section on Gender Budgeting). According to the latest information shared by Uzbekistan, the Committee on Family and Women was preparing a 2024-2026 Roadmap to accelerate the achievement of the SDG 5. However, it is unclear whether this roadmap will be adopted as part of the 2030 Strategy or whether it is a separate instrument.

Embedding gender objectives in national and sectoral policy frameworks for a whole-of-government effort

218. Alongside standalone gender equality strategies, it is crucial for governments to integrate gender equality goals into their broader development and sectoral plans for sustainable impact on gender equality (OECD, 2015^[5]).

Further alignment of gender equality goals with overall policy planning is needed

219. Ideally, the vision set out in the 2030 Strategy should be reflected in development planning to help align policies and show commitment to gender equality. Such alignment is key in steering toward a whole-of-government approach towards gender equality (OECD, 2021^[7]). While recent reforms target formal jobs, entrepreneurship, and private sector involvement, these efforts often fall short for inclusive growth (World Bank, 2024^[11]). This highlights the need for a whole-of-government approach that engages all citizens, particularly women.

220. In particular, OECD analysis underscores the opportunity for Uzbekistan to enhance alignment between gender equality goals and overall policy planning. Interestingly, the main national development and gender equality strategic documents adhere to a same logic, with a "*Development Strategy for New Uzbekistan 2022-2026*", followed by a more recent "*2030 Uzbekistan Strategy*". Yet, this does not necessarily translate into the alignment of the documents. Despite some measures targeting reproductive health and women's participation in leadership positions, the limited gender equality vision in these strategies suggests a need for improved integration. "*2030 Uzbekistan Strategy*" is being complemented by the development of a comprehensive planning system (see Chapter on Strategic Planning). Integrating specific gender equality considerations (i.e., references to the 2030 Strategy's goals) into this system would be beneficial to ensure inclusive and sustainable development.

221. At the same time, the effectiveness of the specific measures outlined in the 2030 Strategy could be bolstered by their implementation in ministries through dedicated, sectoral plans. While some ministries, such as the Ministry of Justice (MoJ), have implemented gender frameworks, these are typically ad-hoc and limited to achieving specific objectives, such as conducting gender assessments of draft laws.

222. Overall, OECD analysis, supported by interviews, indicates that the approach to address gender equality in Uzbekistan remains fragmented. Clear communication from top management, emphasising the

value of collaborative action on gender equality issues can help overcome silos and facilitate a shift to a whole-of-government approach. This effort could be supported by establishing a dedicated state body, ideally located in the Centre of Government (CoG), to oversee gender mainstreaming across the government (See Section on Institutions).

223. OECD countries including Colombia and Lithuania present good examples of countries that mainstreamed gender equality goals in broader planning documents, as exemplified in Box 3.3.

Box 3.3. Gender equality at the centre of policy planning

Colombia's gender objectives cross-cutting goals of the National Development Plan 2018-2022

Over the past years, Colombia has aimed to reflect gender equality priorities in strategic national document. As a result, Colombia's National Development Plan 2018-2022 embraced a gender perspective for the first time, by introducing the "Pact for Women's Equality," a cross-cutting initiative within the plan. This pact addresses three key dimensions of women's rights: economic (such as overcoming poverty and addressing workplace inequality), political (enhancing women's participation in decision-making roles), and physical integrity (combatting violence and promoting sexual and reproductive rights). Various objectives include strengthening the gender institutional framework for women in Colombia; promoting education and economic empowerment to eliminate gender gaps at work; and committing to articulation and co-responsibility in the care economy. Within each overarching goals, the National Development Plan (NDP) delineates precise targets, which includes "reducing to 16.7% the monthly income gap average between men and women" and "reducing to 15.2% the percentage of pregnancy in adolescents".

Lithuania's strategic documents embed gender equality as a foundational horizontal principle

Lithuania's Law on Strategic Management mandates the inclusion of gender equality considerations across all stages of planning documents, from development to evaluation, aiming to mitigate potential obstacles or biases. Additionally, the National Development Programme for 2021–2030 prioritises equal opportunities as a fundamental principle, ensuring individuals, regardless of sex, nationality, disability, or age, have equitable access to public participation. Central government bodies are obligated to embed this principle into policy-making and regulations. The Ministry of Social Security and Labour oversees its implementation, integrating it into national development programmes, monitoring progress, providing expertise to other ministries, and fostering cooperation to promote behavioural and attitudinal shifts within the public sector.

Sources: (OECD, 2023^[11]); (OECD, 2023^[10]).

Global transitions provide a timely opportunity for mainstreaming gender across key policy areas

224. There is an increasing recognition that the major global transitions, including the green and digital transitions, present timely opportunities to advance gender equality objectives including those in the labour market. For example, the transition towards a net-zero emissions is expected to increase demand for "green" jobs, particularly in the field of renewable energy, which is an opportunity to enhance women's participation in the labour market (International Energy Agency, 2021^[12]). OECD analysis shows that tackling gender gaps in the employment can considerably increase GDPs¹ (OECD, 2023^[13]). At the same time, ensuring everyone benefits from these opportunities calls for promoting attractiveness in studying fields like STEM and ICT, where girls are underrepresented (OECD, 2017^[14]) (Encinas-Martín and Cherian,

2023^[15]). This shows how such transitions bring about more complex and intertwined policy challenges, highlighting the need for adopting whole-of-government efforts to effectively advance gender equality.

225. Uzbekistan has aimed to advance gender equality as part of its digital transformation, notably through the development of digital literacy and skills programmes targeting women such as “Tumaris Tech”; “IT Women Uz” “One Million Uzbek Coders” (UNDP, 2022^[16]). However, limited digital access and a significant gender gap in connectivity hinder women's entrepreneurship and employment in Uzbekistan (World Bank, 2024^[1]).

226. This context provides an opportunity for aligning key national plans with long-term goals of the 2030 Strategy. For example, the “*Digital Uzbekistan 2030 Strategy*” outlines five key focus areas: Digital Infrastructure, E-government, Digital Economy, National IT Sector, and IT Education, with more than 220 priority projects. Overall, the strategy would benefit from applying a gender lens. To do so, it would be key to identify gender equality among the next priority sectors. Specifically, this could be done by adding measures that support women in IT entrepreneurship and address their underrepresentation in STEM education could help ensure alignment with the 2030 Strategy’s long-term goals such as “*widely involving women in scientific activities, supporting their software development, innovative ideas, inventiveness, rationalization activities based on modern information and communication technologies*”; *development of women's entrepreneurship in the country*” (Senate of Uzbekistan, 2021^[17]). Integrating representatives from gender equality institutions (e.g., State Committees) into biannual Digital Strategy meetings can leverage existing efforts and address issues. For example, by incorporating gender expertise when tackling the challenge of digital skills development², the strategy could guarantee both men and women have equal access to these opportunities, also considering that these are skills required in higher paid jobs. Moreover, Uzbekistan's transition to renewable energy alternatives holds potential to advance efforts towards gender equality. Current efforts include a pilot green mortgage scheme that integrates gender-responsive criteria and targeting, which led to 67 percent of mortgages being secured by women-headed households, illustrating its effectiveness in promoting gender inclusivity within climate finance initiatives (UNDP, 2023^[18]). Yet, there is scope for improved integration of gender considerations within Uzbekistan’s national energy policy framework.

227. To ensure the systematic integration of gender goals across all sectors including those related to the green and digital transitions, Canada has developed a tool aimed at equipping policymakers across the government with the knowledge to integrate gender equality considerations into their daily tasks. In the context of the green and energy transitions, specific efforts have been deployed, as described in Box 3.4.

Box 3.4. Canada's practice to ensure gender goals are reflected in green frameworks

Gender-Based Analysis Plus (GBA Plus) is an analytical approach aimed at creating policies and programmes that are responsive and inclusive by considering their impacts on men and women. It involves identifying who is affected, adapting initiatives to meet diverse needs, and addressing potential barriers to access or benefit. GBA Plus is mandatory across all policy sectors of the government, including climate and environmental policies.

The Canadian Department of Environment and Climate Change (ECCC) therefore integrates Gender-based Analysis Plus (GBA Plus) into its operations. This includes incorporating GBA Plus into research, consultations, programme design, and reporting. To ensure effective implementation, ECCC has established a dedicated GBA Plus Centre of Expertise (CoE) within its Strategic Policy Branch, providing tools, guidance, and support to staff. It has been noted that over the previous year, capacity in GBA Plus had expanded, with the growth of the GBA Plus Branch Advisory Network and the launch of a pilot GBA Plus Interdepartmental Working Group on Environment and Science (IWG). These initiatives aim to enhance collaboration, leverage existing efforts, and promote evidence-based, inclusive decision-making within ECCC regarding science and environment-related issues.

Source: (Environment and Climate Change Canada, 2024^[19])

Enhancing impact: enablers to boost the implementation of strategic frameworks for gender equality

228. Adopting strategic frameworks that reflect women's needs and establish clear goals and measures is crucial. However, the effectiveness of these frameworks heavily relies on successful implementation. Across the OECD, challenges persist in their execution. They include a lack of quality data and ownership across line ministries, as well as limited resources (OECD, 2022^[2]). Uzbekistan has taken steps to strengthen its government capacities and establish mechanisms to implement key instruments but face similar challenges to those observed in OECD countries.

Empower gender strategies through robust institutional set-up, with pivotal involvement from the Centre of Government

229. Establishing institutional frameworks, with clear responsibilities and roles across the government is important to ensure the implementation of the gender equality agenda (OECD, 2015^[5]). To steer this effort, the OECD recommends involving the Central Gender equality Institution (CGI), alongside the CoG, line ministries, data-collecting bodies, independent oversight institutions, and public administrations at different government levels (OECD, 2021^[7]). All OECD countries have established CGIs, although the specific set-up of these institutions can vary among members (OECD, 2022^[2]). CGIs' role typically entails engaging in activities such as administering women's empowerment programmes, co-ordinating efforts for gender equality, issuing guidelines for gender mainstreaming, executing relevant policies, and making policy recommendations.

230. In recent years, CoGs across the OECD have become more involved in gender-related matters, with CGIs being progressively integrated within the structure of CoGs, as detailed in Box 3.5.

Box 3.5. The increasingly important role of CoG in advancing gender objectives across OECD countries

Since data on institutional set up for gender equality was first collected in 2011, there has been progressive shift toward placing the CGIs within Units in the CoG, which are now the common arrangement across the OECD. Units on gender equality in ministries of social affairs (or equivalent) continue to be one of the more common arrangements.

This shift has led to positive developments in countries, including Iceland, where it was noted that this centralisation had improved coordination among ministers regarding gender equality issues.

Sources: (OECD, 2022^[21]); (OECD, 2021^[7]) (OECD, 2019^[31]).

231. Placing CGIs in CoG can pose certain advantages, notably help clarify the roles of the line ministries, holding them accountable through mechanisms such as performance management frameworks, and ensuring adequate integration of a gender lens in their work (OECD, 2021^[7]). As the CoG oversees and co-ordinate cross-cutting policies, it is well-positioned to garner broader support within the government, establish clear expectations for line ministries and facilitate accountability and oversight. OECD evidence establishes a clear link between the involvement of CoG and the promotion of gender equalities in public policies. Yet, given their overarching role, placing the gender equality portfolio in CoG can lead to a dilution of efforts, especially if this issue is not prioritised on the political agenda.

232. In Uzbekistan, the governance of gender equality policy appears to be rather decentralised, with various actors responsible for advancing the gender equality agenda, notably according to the *2019 Law on Gender Equality*, as follows:

- The **Cabinet of Ministers**, in charge of ensuring a unified gender equality policy, notably via the development, approval and implementation of state programmes, national action plans and strategies on gender equality; the **State Committee for Family and Women**, mainly in charge of implementing specific measures, notably by allocating funds.
- The **Senate Committee on Women and Gender Equality** (Senate Committee), a parliamentary commission, which mainly oversees the implementation of the gender equality policy (and the 2030 Strategy) and formulates policy recommendations to the government.
- The **Republican Commission for the Enhancement of the Role of Women in Society, Gender Equality and the Family** (Republican Commission), established in 2019 and comprised of 33 members across the government at the Ministerial level and the Head of the Senate, in charge of implementing a coherent gender equality policy at the state level.

233. It appears that the State Committee's mandate is mainly associated with the implementation of specific measures, while policymaking on gender equality is in the portfolio of the Cabinet of Ministers and the Republican Commission (Uzbekistan, 2019^[20]). The State Committee was transferred from the Ministry of Employment and Poverty Reduction to the Cabinet of Ministers in December 2023³. It is premature to fully assess the impact of this new configuration on the gender equality agenda. However, it could possibly support the Cabinet of Ministers fulfil its role to "ensure a unified gender equality policy, develop and fund programmes, facilitate collaboration among governing bodies, and implement temporary measures for gender equality" (Uzbekistan, 2019^[20]). Given the high-level representation of the Cabinet of Ministers and the Republican Commission, empowering the State Committee to lead gender mainstreaming efforts across the government could be beneficial. Given its history of mandate expansion, including in 2022 with

a resolution of the President, further enlargement could potentially be envisioned. Yet, in practice there is a lack of clarity on the roles of each of these institutes.

Bolster the capacity of relevant bodies for strengthened implementation of gender equality objectives and sustainable impact

234. The establishment of gender focal points (GFP) across government agencies can facilitate the implementation of a whole-of-government framework on gender equality (OECD, 2015^[5]). Yet, across OECD member countries, GFP often face challenges such as the lack of necessary influence, mandate and capacity to contribute effectively to sectoral policy formulation.

235. In Uzbekistan, a notable practice is based on Article 13 of its Law on Gender Equality. It states that *“An authorised official on the issues of ensuring equal rights and opportunities for women and men (hereinafter referred to as the authorised person) shall be determined in state bodies. The fulfilment of the duties of the authorized person shall be assigned to one of the deputy heads of the state body.”* (Uzbekistan, 2019^[20]). While information on the role and mandate of this person is lacking, it appears that their role is similar to the role of a GFP. However, interviews revealed the voluntary nature of this role, as well as a lack of resources and gender expertise. Providing relevant authorised officials with targeted resources and mandatory training is key to enhance expertise in gender equality, and it could maximise current efforts. Moreover, addressing the voluntary nature of their role holds potential for mitigating the lack of ownership concerning the 2030 Strategy observed in interviews, which could facilitate its implementation across various state bodies. Finally, holding senior management and staff accountable for integrating gender equality into daily activities could also help promote full ownership of the 2030 Strategy (OECD, 2023^[10]).

236. In addition, according to the same article, heads of state bodies may create gender advisory bodies⁴ (Uzbekistan, 2019^[20]), (UNFPA, 2020^[21]). Yet, the information on how such bodies work in practice and who they include is lacking. Between 2020 and 2022, it was reported that 42 advisory bodies were created at the local and national levels (Senate of Uzbekistan, 2023^[22]). However, the first monitoring report of the 2030 Strategy by the Senate Committee identified a gap in the operationalisation of these advisory bodies, suggesting the need for targeted efforts toward key gender issues to enhance their effectiveness (Senate of Uzbekistan, 2023^[22]). Interviews confirmed that some key ministries had not set up a gender advisory body. Ensuring the operationalisation of these bodies, notably by clarifying their mandate and providing the necessary resources to their functioning, could boost effectiveness but also encourage further ministries and state bodies to establish advisory bodies.

Establish formal co-ordination mechanisms to enhance and streamline national efforts

237. Robust co-ordination across bodies at all levels of government can help ensure consistent implementation of the gender equality agenda (OECD, 2015^[5]).

238. Current efforts, mainly steered by the Republican Commission on Gender Equality, could benefit from formal horizontal and vertical co-ordination mechanisms for the implementation of the 2030 Strategy. The establishment of a Republican Commission, functioning as an inter-ministerial body and including external stakeholders in practice, tasked with the implementation of the 2030 Strategy, is a good practice. While the involvement of high-level members in the Commission can streamline decision-making processes, enhancing its effectiveness could be achieved by complementing it with a coordination mechanism at the technical level. Such a technical group could, for example, mirror the model of an inter-agency group established explicitly to monitor and fulfil international commitments (The Food and Agriculture Organization, 2019^[23]).

240. The role of the 9,400 Mahallas (local communities) in promoting gender equality at the local level underscores the necessity of establishing formal vertical co-ordination mechanisms. This could help

facilitate the flow of information back to the national level, where policies are formulated. Interviews revealed that such measures could build on existing efforts like the meetings held by the Senate Committee on Gender Equality. At the same time, the World Bank report published in 2024 flags that Mahalla leadership's potentially traditional or conservative views on gender roles remains an issue and can be a barrier to achieving gender equality (World Bank, 2024^[1]).

241. As elaborated in Box 3.6, OECD countries including Switzerland have put in place co-ordination mechanisms to facilitate implementation of gender strategies.

Box 3.6. Switzerland's cross-departmental committee for the implementation of their 2030 Equality Strategy

In 2020, Switzerland adopted its 2030 Equality Strategy. The action plan of the strategy includes measures to be implemented by all federal departments as well as the Federal Chancellery. The Federal Office for Gender Equality (FOGE) is responsible for co-ordinating the implementation of the 2030 Equality Strategy and its action plan. This plan includes 281 measures aimed at advancing gender equality across various sectors at the national, regional and local level.

Each state body is responsible for executing the measures outlined in the action plan. These entities work in close collaboration with FOGE, ensuring regular communication and reporting on the progress and outcomes of the measures. Moreover, to ensure co-ordinated implementation of measures and alignment with strategic objectives, a cross-departmental committee, led by FOGE has been established. It comprises representatives from relevant governmental agencies at the decision-making level and convenes regularly, usually twice a year.

Source: (Government of Switzerland, 2024^[24]).

Improve monitoring for gender policies tracking performance

242. Monitoring and reporting mechanisms are essential for successfully implementing policies and tracking progress over time (OECD, 2019^[3]). Clear targets and indicators should inform the foundations of these efforts, serving as benchmarks to guide policymakers in defining expectations and enforce accountability (OECD, 2021^[7]). OECD members identified the lack of clear monitoring frameworks in strategic plans stands out as a key barrier to effective implementation (OECD, 2022^[2]).

243. Chapter 6 of the 2030 Strategy outlines its monitoring system, which entails regular reporting of measures by relevant governmental bodies and other stakeholders, including civil society. These reports are reviewed during meetings of the Republican Commission and Senate Committee. To facilitate implementation, 61 indicators were identified to assess the execution of measures, with interim targets set for 2022, 2025, and 2027. In addition, the Strategy specifies that the Cabinet of Ministers is responsible for ensuring timely and high-quality performance of the tasks outlined in the programme of measures. It is mandated to provide updates on progress to Parliament quarterly, along with regional entities. Interviews revealed that the government is tasked with providing quarterly reports to the Cabinet of Ministers, presenting a proactive approach despite the resource constraints highlighted earlier.

244. A Resolution of the Senate, published in December 2022, reported on measures of the 2021-2022 action plan, and outlines new measures for the period 2023 (Senate of Uzbekistan, 2023^[22]). While reporting progress, it underscores that a number of measures were not achieved. In a context of limited resources, it could be advantageous to opt for yearly reporting to avoid overburdening the entities responsible for implementing the measures.

245. Overall, OECD analysis points to limited availability of relevant gender equality criteria for monitoring and limited systematic performance assessment against targets, despite the presence of interim targets for 2022. This could be exacerbated by the current limitations related to gender data (See Section on data). OECD analysis also revealed room for more consistency between the measures outlined in the 2021-2022 action plan and those incorporated in the subsequent 2023 and 2024 action plans, noting that unattained measures from the 2021-2022 period are omitted from subsequent action plans. Moreover, it could be beneficial to clarify the involvement of non-governmental actors in monitoring the implementation of the 2030 Strategy.

246. OECD countries have therefore sought to improve their monitoring systems for tracking gender equality performance through a variety of approaches, as illustrated in the Box 3.7 below.

Box 3.7. Performance evaluation approaches across OECD countries

Austria's leading practice in evaluation of gender objectives

Austria has implemented a comprehensive performance management process that includes strategic planning and internal evaluation procedures. Ministries and supreme organs are required to define medium-term gender-related outcome objectives, indicators, and measures. These are translated into a performance mandate, guiding actions related to gender equality. Self-evaluations and monitoring processes culminate in a standardized gender report submitted to Parliament and the public.

Spain's obligation of evaluation of all policies' gender implications

Spain's Gender Equality Law of 2007 institutionalised gender mainstreaming across all public bodies, mandating its adoption and implementation in legislative provisions and policy formulation. This involves conducting ex ante gender impact assessments for legislative and regulatory proposals, analysing their effects on eliminating inequalities and promoting equal opportunities between women and men. This assessment is particularly crucial for non-gender-related legislation, such as traffic laws. In addition, since 2015, the Annual Regulatory Plan has included ex post gender analysis as necessary, ensuring ongoing evaluation of policies' gender implications. Consequently, the Strategic Plan for Equal Opportunities 2014-2016 underwent ex post gender analysis, and a similar evaluation is planned for the current Strategic Plan for Equal Opportunities between Men and Women 2022-2025.

Sources: (OECD, 2023^[10]), (EIGE, 2022^[25]).

Integrate gender budgeting practices to drive the implementation of gender equality plans

247. Robust gender budgeting is a key step to transform a 10-year vision and plan like the 2030 Strategy into a practical roadmap with a clear financial path for achieving its goals. Most OECD countries (61%) use now a budgeting tool used to help close gender gaps (OECD, 2023^[26]).

248. The Uzbek government is transitioning towards result-oriented budgeting. The Ministry of Economy and Finance (MEF) established a strategic planning unit. In addition, a resolution on developing budget programmes was issued. However, while the resolution aligns with the overall 2030 development strategy, it does not address gender issues specifically.

249. In parallel, the MEF is developing a gender budgeting methodology, aligned with the 2030 Strategy's objective. A first draft methodology has been developed, aiming for implementation by 2030.

250. For the next gender strategy, it will be key to develop clear objectives, as well-defined gender equality goals highlighting priority areas for government action helps ensure effective gender budgeting. In addition, it will be key to have clear institutional arrangements to support a strong strategic framework for gender budgeting, including by identifying the most appropriate government authority to lead practices (OECD, 2023^[26]).

Reinforce legal frameworks for further impact

251. The legal framework of a country anchors a strategic framework for gender equality by establishing mandates, requirements, and affirmative actions to support the attainment of gender equality goals (OECD, 2021^[7]). OECD countries have increasingly turned to legislation to reinforce the implementation of gender equality objectives and plans (OECD, 2022^[2]).

252. Uzbekistan has made advancements in the adoption of laws, in particular with the adoption of the 2019 Law on Gender Equality, which, among others, delineates the state bodies' mandates. A new practice foreseen by this law is the “temporary special measures to ensure the implementation of gender policy”, enabling prompt responses to mitigate gender-disproportionate impacts of policies (Uzbekistan, 2019^[20]). Further analysis is needed to provide a comprehensive assessment of the impact of this measure on the advancement of gender goals.

253. To strengthen gender mainstreaming across government, the MoJ could leverage its role in providing recommendations for government strategies, notably by developing a standardised methodology for integrating gender considerations into such plans. In addition, article 7 of the 2019 Law on Gender Equality introduces another innovative practice, a gender assessment of draft laws. State bodies in relevant policy areas are tasked to conduct the assessment of laws, then verified by the MoJ. Such assessment is aimed to assess the draft laws against the principles outlined in the Law. In practice, “*Plans for gender and legal expertise of regulatory legal acts*” are adopted every few years. These plans outline the items that will be assessed, with 109 items for the 2022-2023 period. The assessment of laws plays a crucial role in eliminating gender norms and stereotypes from legislation. To maximise the potential of this practice, it is essential to ensure adequate training for policymakers across the government to develop the necessary expertise in gender equality for conducting and verifying such assessments. In addition to trainings, it could be beneficial to develop a clear framework to ensure consistent gender assessment procedures. For example, Estonia adopted an “Impact Assessment Methodology” to ensure consistency and robustness of the GIAs conducted by the government agencies (OECD, 2023^[10]).

254. In practice, it has been observed that at least one discriminatory provision was removed from a draft resolution (e.g., Paragraph 27 of Annex No. 2 and paragraph 5 of Annex No. 3 of the Resolution of the Cabinet of Ministers No. 408 of May 3, 2018). Yet, the 2019 Law on Gender Equality does not outline any procedures if draft laws fail to comply with its principles, potentially hindering their effectiveness.

255. Another question emerges concerning the comprehensive inclusion of all relevant draft laws in the “*Plans for gender and legal expertise of regulatory legal acts*”, the specific criteria for their inclusion, and the potential for ad-hoc additions to mitigate any oversight in the process.

256. Finally, to amplify the impact of this legislation, Uzbekistan could further clarify mandates to integrate measures from the 2030 Strategy into sectoral plans. The UK has leveraged legislation with the aim to enhance the mandate of public servants in advancing gender equality, as described in Box 3.8.

Box 3.8. The United Kingdom's law to legally mandate the consideration of gender equality in public servants' daily work

The Equality Act 2010 introduced the public sector equality duty, mandating all public bodies to consider how their policies or decisions impact individuals protected under the Act. These protected characteristics include age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion and belief, sex, and sexual orientation. The Act requires all public bodies to eliminate discrimination, harassment, victimisation, and other prohibited conduct, promote equality of opportunity among individuals with and without protected characteristics, and foster good relations between them. Additionally, public authorities have specific duties under the Equality Act to aid compliance with the public sector equality duty, such as publishing equality information.

Source: (OECD, 2023^[10]).

Bolster the systematic generation of gender-sensitive data to support evidence-based policymaking

257. Access to reliable data on gender equality within a country is essential, not only for accurately assessing the situation, identifying priorities, and effectively integrating gender equality considerations into all policies (OECD, 2021^[7]). It is also key to track the gender results against targets, and, more largely to monitor progress over time (OECD, 2021^[7]). Yet, the absence of gender statistics remains one of the key obstacles identified by OECD countries in achieving gender equality goals (OECD, 2022^[2]).

258. Uzbekistan has made progress in this area, particularly with the establishment of an online portal that includes some gender statistics (e.g., number of girls and boys enrolled at school), publicly accessible on a website (Uzbekistan, 2022^[27]). In addition, Uzbekistan has introduced a new digital system aimed at gathering input from each ministry. The production of gender statistics is also mandated by Article 8 of the Law on Gender Equality, which mentions that State bodies shall collect, analyse and disseminate gender data and generate gender indicators based on various types of data, including administrative ones (Uzbekistan, 2019^[20]).

259. Despite these efforts, OECD analysis indicates a pressing need for a more systematic approach to the production, dissemination, and use of data in Uzbekistan. Currently, a client-based approach is employed, wherein statistics are provided by the statistical agency upon request, making access to relevant data difficult for civil society organisations. In addition, interviews revealed the absence of mandatory training in the field of gender statistics, for both data producers and policymakers. They also suggested potential for enhanced, systematic, and digitalised co-ordination with the *Mahallas* to collect data in specific areas, including issues such as gender-based violence.

260. In practice, limited availability of relevant data can hinder the monitoring of progress on the 2030 Strategy, particularly to track progress against the 61 indicators. The use of standardised methods across the government, coupled with enhanced co-ordination and appropriate training could significantly improve the availability of gender-disaggregated data.

261. Across OECD membership, including in Australia, Portugal and Spain, various measures have been implemented to improve the collection and dissemination of gender-disaggregated data (Box 3.9).

Box 3.9. Countries' approaches to collecting and disseminating data on gender equality

Australia's strategy for gender statistics

Australia's strategy for gender statistics involves the collection of sex-disaggregated data sets by the Australian Bureau of Statistics (ABS) through more than 20 national surveys. These data sets support the Australian Government in shaping public policies across a range of areas including public safety, justice, healthcare, infrastructure, housing, socio-economic factors, and economic affairs. Moreover, the ABS annually publishes the Australian Gender Indicators, featuring 56 key indicators and an additional 96 related or detailed data series spanning six domains: economic security, education, health, work-life balance, safety and justice, and democracy, governance, and citizenship. These Gender Indicators draw from various ABS resources and statistics from other sources, including the Workplace Gender Equality Agency.

Portugal's National Statistics System on Gender Equality project

In 2019, Statistics Portugal initiated the National Statistics System on Gender Equality project. This project aims to review, update, and enrich the content and scope of the Gender Database (GDB). The objective is to create a more comprehensive system of gender statistics, providing information on various dimensions of equality and inequality between women and men. The enhanced GDB is intended to serve policymakers and society by offering valuable insights into gender-related issues. It will monitor a range of actions and strategic instruments, facilitating a deeper understanding of the status of women and men in Portugal. Ultimately, the updated indicators on Gender Equality derived from the GDB will form the basis for informed political and economic decision-making in the country.

Spain's collection and dissemination of indicators on gender equality

In Spain, the Institute of Women operates independently within the Ministry of Equality, focusing on gender equality initiatives. One of their primary projects is the "Women in Figures" (Mujeres en cifras) database, which provides valuable insights into gender dynamics. In 2022, the Institute adopted a new approach to information sharing. Instead of traditional reports, they now offer interactive content, including videos and infographics, to engage audiences. These monthly releases present statistics in a more accessible format, facilitating broader understanding. Additionally, the Institute collaborates with the National Institute of Statistics on "Women and Men in Spain" (Mujeres y Hombres en España), an online publication that provides curated insights into gender issues across various socio-economic sectors.

Source: (OECD, 2023^[10]).

Recommendations to promote gender equality in Uzbekistan's strategic planning

Enhance the strategic approach towards a whole-of-government effort for the achievement of gender equality in Uzbekistan by:

- Strengthening the implementation of the 2030 Strategy by adopting long-term action plans, with evidence-based resourced measures, supported by the adoption of clear relevant criteria for the monitoring of the 2030 Strategy, as well as reinforcing tracking of the implementation in light of relevant indicators;
- Reinforcing the capacity of gender focal points or equivalent as well as gender advisory boards to fulfil their role, notably by providing a clear mandate, mandatory training on gender equality to enhance expertise, as well as adequate resources;
- Envisaging to strengthen the mandate of the State Committee for Family and Women, assigning it a broader role in co-ordinating gender mainstreaming across the government, potentially accompanied by adequate resources to fulfil its mandate;
- Enhancing policy coherence for gender equality by considering the extension of the obligation to conduct gender impact assessments to all policies, using a sound and systematic approach to conduct such assessment, and to ensure the integration of gender goals in cross-sectoral strategic plans as well as in sector-specific strategic plans including, for example, those in the fields of green and digital transitions;
- Ensuring the coherence among various gender strategies and offering clear communication to policymakers about their complementary objectives;
- Systematising the production of gender statistics, notably by enhancing horizontal and vertical co-ordination mechanisms to produce relevant gender data, as well as providing mandatory training across the government related to both gender data production and use.

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Notes

¹ By 9.2% by 2060 across OECD economies (OECD, 2023^[13]).

² Highlighted in interviews as one of the main challenges.

³ The State Committee was under this Ministry for one year, before which it was under the Ministry for the Mahalla and Family Support.

⁴ “Gender advisory body” is one of the translations found in the main sources used for developing this chapter; some further sources refer to other terminology such as “advisory boards”.

4

Strengthening the conflict of interest and asset declaration system in Uzbekistan

This chapter provides an introduction into Uzbekistan's legal and institutional framework for managing conflicts of interest. In particular, it describes the existing arrangements for management, co-ordination and sanctioning of conflict-of-interest situations. Furthermore, it provides recommendations on the need to improve co-ordination and management in the conflict-of-interest regime, as well as the use of a risk-based approach in reviewing and analysing asset declarations.

Introduction

262. Public integrity refers to the consistent alignment of, and adherence to, shared ethical values, principles and norms for upholding and prioritising the public interest over private interests in the public sector. The perspective shifts the focus from ad hoc integrity policies to a context-dependent, behavioural, risk-based approach with an emphasis on cultivating a culture of integrity across the whole of society (OECD, 2017^[1]). The OECD Recommendation on Public Integrity (OECD, 2017^[1]) has called for countries to set high standards of conduct for public officials, in particular through:

- Setting clear and proportionate procedures to help prevent violations of public integrity standards and to manage actual or potential conflicts of interest.
- Providing easily accessible formal and informal guidance and consultation mechanisms to help public officials apply public integrity standards in their daily work as well as to manage conflict-of-interest situations.
- Averting the capture of public policies by narrow interest groups through managing conflict-of-interest situations.

263. A “conflict of interest” involves a conflict between the public duty and private interests of a public official. When conflict-of-interest situations are not properly identified and managed, they can seriously endanger the integrity of organisations and may lead to corruption in the public sector and private sector alike (OECD, 2004^[2]). Conflicts of interest have become a major matter of public concern worldwide. Furthermore, a public sector that increasingly works closely with the business and non-profit sectors gives rise to new forms of conflict between the private interests of public officials and their public duties. When prevention mechanisms fail and a conflict of interest becomes corruption, the reputation of democratic institutions are put to the test and trust in government is undermined. In the private sector too, conflicts of interest have been identified as a major cause behind corporate governance shortcomings (OECD, 2004^[2]). Therefore, having a strong and consolidated framework, where management and prevention of conflict-of-interest situations are effective, is key to safeguarding democratic achievements. Of key importance are the understanding and recognition that everybody has interests; interests cannot be prohibited, but rather must be properly managed.

Over the last few years, Uzbekistan has initiated ambitious anti-corruption reforms to overhaul many areas of public governance, backed by political commitment at the highest level (Table 4.1). These reforms, as of 2019, were still at the early stages of implementation (OECD, 2019^[3]). In particular, civil society organisations were of the view that conflict-of-interest situations are common in the public sector and are not perceived as inappropriate by the public. Moreso, ethical rules tended to be rarely enforced and not duly controlled (UNCAC Civil Society Coalition, 2021^[4]).

264. Uzbekistan adopted Law 419 of 2017, the “Law on Combatting Corruption”, which for the first time defined a clear legal framework for a preventive framework in the area of integrity. The law introduces Article 19, which contains a number of measures to prevent corruption in the sphere of public administration, including the implementation of parliamentary and public control over activities of state bodies; the prevention of corruption offenses in activities of state bodies and their employees; the introduction of performance criteria, standards and systems for assessing a quality of implementation by officials and other employees of state bodies of their official duties and the effective implementation of the rules of ethical conduct of employees of state bodies, among others (Government of Uzbekistan, 2017^[5]).

Table 4.1. Legal framework to fight corruption in Uzbekistan

Title of document	Scope of application (a)	Brief description (including b and c)	References or documentation (d)
Constitution of the Republic of Uzbekistan	Social values, general principles of public administration, etc.	Descriptions of values, delineations of branches of government, etc.	https://lex.uz/docs/6445147#6447217
Law "On Combating Corruption"	Countering corruption	Regulation of relations in the field of combating corruption	https://lex.uz/docs/3088013
Law "On Public Procurement"	Regulating public procurement	Eliminating conflicts of interest in public procurement	On public procurement (lex.uz)
Law "On Civil Service"	Activities of state civil servants in positions included in the State Register of State Civil Service Positions	Regulation of relations in the field of state civil service.	https://lex.uz/docs/6146009
Law "On Conflict of Interest"	Conflict of Interest	Regulating conflict of interest and adding definitions and channels for reporting	On conflict of interests (lex.uz)

Source: OECD desk research based on information provided by the government of Uzbekistan.

265. Furthermore, the law includes several innovative provisions, that albeit need to be fully implemented, create strong legal foundations for its future implementation. Amongst those are improvement of organisational and legal bases in resolving conflicts of interests of state employees and ensuring a monitoring of compliance. The recommendations provided in this chapter aim at strengthening implementation of this legal framework as well as providing Uzbekistan with practical tools that could help further develop already existing or future legal provisions.

Legal framework for conflict of interest and asset declarations

Conflict of Interest

266. Law 419 of 2017, the Law “On Combatting Corruption” provides an overarching legal framework for the management of conflict of interest in Uzbekistan. Article 3 established a definition of what would constitute a conflict of interest. Article 3 does not define the different categories of conflict of interest in accordance with OECD standards (OECD, 2004^[2]), namely it did not clarify the difference between real, potential and apparent conflict of interest. This Law also established several obligations, in particular for the management of conflict-of-interest situations. For example, it listed the measures to prevent and resolve conflicts of interest, including a blanket prohibition for not allowing personal interest to intervene in state decisions and promptly informing their immediate supervisor when a possible conflict may arise. No other channels for reporting were available. The law also established that “special units” or ethics commissions of institutions can monitor compliance with rules for resolving conflicts of interest. In principle, this allowed for a decentralised and custom-made approach which could be adapted at sector level. Finally, Article 21 of Law 419 of 2017, stated that employees of state bodies and their managers, who committed a violation of the requirements for prevention or settlement of conflicts of interest, are liable in accordance with the legislation. The criteria of what is considered a violation is not clear in the law, for instance, whether the act of not reporting a potential conflict of interest, reporting but with incomplete information, taking a decision that increases its personal benefit or not following the appropriate procedure for reporting. These distinctions are of the outmost importance as it may determine the severity of the sanction.

267. In 2024, Uzbekistan enacted the Law “On Conflict of Interest” that clarifies and provides further tools for the management of conflict of interest. This law is quite comprehensive and contains novel elements for any conflict-of-interest regime. Article 3 further clarifies the distinction between a real conflict of interest and a potential conflict of interest:

Article 3. A situation in which the personal interest (direct or indirect) of a person influences or may influence the proper performance of his official duties and in which a contradiction arises (real conflict of interest) or may arise (potential conflict of interest) between personal interest and rights, legitimate interests of citizens, organizations, society or the state.

268. Articles 6 and 15 address the issue of reporting a conflict of interest. The new legislation allows reporting not only to the direct supervisor but also to the anti-corruption division or HR department, making this a more flexible regime than the one stated in the previous legislation. However, Article 3 only provides a very general description of what an “special unit” entail (*internal anti-corruption control units and (or) personnel units of government bodies or other organisations*).

269. According to Uzbek authorities, the provisions on Law 419 of 2017 would rely on and be complemented by the guidance provided in the resolution of the Cabinet of Ministers “On additional measures to ensure compliance with ethical rules by state civil servants” of October 2022 (Box 4.1). However, an OECD report found that the guidance remains too general to be effective (OECD, 2019^[3]) and many of the issues regarding application remained unclear.

Box 4.1. Additional measures to ensure compliance with ethical rules by state civil servants

Definition of Conflict of Interest: Civil servants should not allow personal interest that leads or may lead to a conflict of interest during the performance of official or official duties. In the event of a conflict of interest, employees must immediately notify their supervisor. A leader who receives information about the existence of a conflict of interest is obliged to take timely measures to prevent or eliminate this conflict.

Control over compliance with ethical rules: Control over compliance with the rules of ethics by civil servants is carried out by human resources management units of state bodies and organisations or Ethics Commissions, as well as by a specially authorised state body. Civil servants appointed to positions in state bodies and organizations are introduced into the applicable ethical rules by the human resources management units. Service inspection of cases of violation shall be conducted by Ethics Commissions in accordance with the instructions of the head of state bodies and organisations.

Sanctions: The state of non-compliance with the Rules of Conduct by civil servants is the basis for the application of moral and disciplinary measures against them. The Ethics Commission applies the following ethical measures to civil servants for non-compliance with the rules:

- Warning
- Demand an apology or formal apology
- Reprimanding at collegial meetings of state bodies and organizations

The Ethics Commission may make a submission to the head of state bodies and organisations to apply disciplinary action against a civil servant. In case of violations of the rules of ethics by the head of the state body and organization, the Ethics Commission sends proposals to the head of the higher state body and organization regarding the issue of taking appropriate measures against them. Violation of the Code of Conduct by a civil servant is the basis for bringing them to disciplinary and other liability in accordance with the law.

Prohibition from engaging in entrepreneurial activities: civil servants may not engage in entrepreneurship or other paid activities (except for pedagogical, scientific and creative activities), except for the cases provided for by the laws of the Republic of Uzbekistan and the decisions of the President of the Republic of Uzbekistan.

Source: (Government of Uzbekistan, 2022^[6]).

270. Interviews conducted for this report provided an outlook of the difficulties in the implementation of the “Law on Combatting Corruption” that may trickle down into the effective implementation of the Law “On Conflict of Interest”. Indeed, improving the organisational and legal basis for resolving the conflict of employees of public bodies has become a key priority for Uzbek authorities. Therefore, several of the upcoming recommendations of this report could potentially make their way into a more detailed and prescriptive legislation, including making co-ordination between ethics/control commissions mandatory, providing managers with a typology of the most recurrent cases of conflict of interest and considering broadening liability for conflict-of-interest violations, which should not be limited to disciplinary sanctions. Many of these recommendations will be explained in detail in upcoming sections (OECD, 2019^[3]).

Asset declarations

271. As it comes to regulating assets and interest declarations, Uzbekistan does not have a legal framework that provides for these obligations nor regulates it. Previous reports have stated that the Public Prosecutor's Office (PPO) was instructed to draft proposals for the introduction of a system of mandatory declaration of property by public officials, including verification of the declarations and making them public. This proposal included:

- Obligation to file annually a declaration on property, income and large expenses, as well as a declaration on property, income and large expenses of their family members (parents, spouse, children, including adopted children).
- Additional requirements may be established for disclosure of property, income and large expenses, including an expanded range of family members listed in the declaration for certain categories of officials.
- Information on filing the declaration will be checked by the authorised body for the civil service affairs before the decision on enrolment of the candidate for civil service.

272. In light of upcoming legislation, this report will provide a few recommendations on how the system can be envisaged, including a risk-based approach for the number and categories of declarants, categories of assets to be declared and role and mandate of a possible reviewing institution.

Pre and post-employment regulations

273. One of the main risks and concerns related to conflict of interest is the revolving door. Movements between the private and public sectors result in many positive outcomes, notably the transfer of knowledge and experience. However, it can also be a vehicle for undue or unfair advantage to influence government policies if not properly regulated (OECD, 2020^[7]) (OECD, 2021^[8]). Uzbekistan does not have a thorough institutional framework in place for the identification and management of conflict-of-interest situations in pre and post public employment, even if legislations has been recently enacted on the latest. However, several good practices are identified in the recently enacted Law “On Conflict of Interest”, including providing the control unit with the responsibility to assess the situation on a case-by-case bases and identified if the official would be covered by this restriction.

274. However, the scope of the law remains general and further guidance must be given to officials. First, a blank prohibition of two-years may be very limiting for some former officials and there seem not to be in place a risk-based approach to determine the years of debarment based on the decision-making capacity of the official and the types of decision he was involved in. Second, it's unclear what the scope of the law refers to, whether this prohibition applies to the organisations or structural divisions the official exercised control over. This could mean that the official may take a position in a company in the same sector but not sign contracts or exert influence over his former institution, or that the official cannot take any kind of employment in the same sector he used to work in. Furthermore, it could indicate that the official may take employment in a company in the same sector, but not if they have contracts or procurement processes with the institution he used to work with. The multiple interpretations may be solved by the units deciding upon these issues, but questions remain of an equal application across public sector institutions. This very broad definition may create various levels of interpretation, per sector and even per institution and put an unnecessary burden on control units to assess whether they will be covered by the restriction or not. Finally, it is unclear what indirect control may mean or how to be interpreted by former officials. This situation is no different from other OECD countries, where public officials who leave the public sector, move beyond administrative government control (Box 4.2).

275. Furthermore, Uzbekistan lacks the appropriate legal provisions to regulate interaction with the private sector in pre-public employment situations. Besides the legal vacuum, Uzbekistan lacks a policy or procedure for detecting and timely addressing such situations, for example by screening candidates to senior positions with much greater care (pre-employment screening integrity checks or reference checks).

Box 4.2. Cooling-off periods in OECD countries

In **Germany**, the Civil Service Act stipulates cooling-off periods for civil servants after they have left public service or have reached retirement age. For members of the government and parliamentary state secretaries, the federal government may prohibit, either wholly or in part, taking up gainful or other employment for the first 18 months after leaving office, where there is a concern that such employment will interfere with the public interest. Decisions on a prohibition are taken after a recommendation from a three-member advisory body.

In **Spain**, the legal framework is used to encourage companies to comply with post-public employment legislation. Law 9/2017 on public sector contracts reinforces the obligation to post the employment activities of high-ranking officials, to minimise conflicts of interest. In particular, companies that have hired anyone who is under the two-year cooling-off period and violates the prohibition on providing services in private companies directly related to the competencies of the position formerly held are prohibited from contracting with any public administration, if the violation has been published in the Official State Gazette. The prohibition on contracting will remain for as long as the person is hired, with the maximum limit of two years from their termination as a high-ranking official.

Source: (OECD, 2021^[8]).

Institutional framework for conflict of interest and assets declarations

276. Uzbekistan's main anti-corruption body is the Anti-Corruption Agency (ACA), which was established in June 2020. The Agency reports to the President of the Republic of Uzbekistan and is accountable to the chambers of the *Oliy Majlis*. The ACA is directly entitled to enforce anti-corruption policies, including by co-ordinating all public bodies' efforts in this area. The body's notable powers include issuing warrants on preventing corruption activities (UNCAC Civil Society Coalition, 2021^[4]).

277. Furthermore, legislation has included a number of provisions for the establishment of institutional responsibilities (Table 4.2) as well as for co-ordination activities:

Table 4.2. Institutional Framework for Integrity in Uzbekistan

Name of the state body (or a subdivision within it)	Relevant laws	Mandate and related functions	Total number of integrity officers (full-time/ part-time)
Agency for Combatting Corruption of the Republic of Uzbekistan	On Combatting Corruption (dated 03.01.2017 No. ZRU-419) http://surl.li/jxtup	Formulates and implements the state policy in the field of preventing and combating corruption Coordinates the activities of ministries and agencies in the area of preventing and combating corruption	50
Office of the Procurator-General of the Republic of Uzbekistan		oversees the accurate and uniform implementation of anti-corruption legislation. coordinates the activities of bodies carrying out operational and investigative activities, pre-investigation, inquiry and preliminary investigation in the field of combating corruption.	The Agency does not have this information
State Security Service of the Republic of Uzbekistan		carries out operational and investigative activities, pre-investigation and preliminary investigation of corruption-related offenses	The Agency does not have this information
Ministry of Internal Affairs of the Republic of Uzbekistan		carries out operational and investigative activities, pre-investigation, inquiry and preliminary investigation of corruption-related offenses ensures that records and analysis of statistical data on corruption offenses are kept.	The Agency does not have this information
Ministry of Justice of the Republic of Uzbekistan		carries out and coordinates activities on legal propaganda among the population aimed at raising legal consciousness, legal culture in society and strengthening the rule of law	
Department for Combatting Economic Crimes under the Office of the Procurator General of the Republic of Uzbekistan		carries out operational and investigative activities, pre-investigations and inquiries into crimes related to legalization of proceeds of crime, economic and other crimes related to corruption	The Agency does not have this information

Source: Government of Uzbekistan, 2023.

278. When it comes to co-ordination, Article 8 of the Law “On combatting corruption”, Article 8 establishes the Anti-Corruption Council of the Republic of Uzbekistan and its territorial councils, to co-ordinate activities of the bodies and organisations that carry out and participate in anti-corruption activities. The order of formation and activities of the National Anti-Corruption Council of the Republic of Uzbekistan by the President of the Republic of Uzbekistan. Uzbekistan has also established said commissions at the

regional level by providing for the territorial councils. The main tasks of the National Anti-Corruption Council of the Republic of Uzbekistan and its territorial councils are:

- Organisation of development and implementation of state and other programs in the field of combatting corruption
- Co-ordination of activities and ensuring interaction of bodies and organisations that carry out and participate in anti-corruption activities
- Organisation of development and implementation of measures to increase legal consciousness and legal culture of the population, formation of an intolerant attitude towards corruption in the society
- Ensuring increase of efficiency of measures to prevent, detect, curb corruption offenses, eliminate their consequences, and causes and conditions that contribute to it
- Collection and analysis of information on a status and trends of corruption
- Monitoring of implementation of anti-corruption measures, assessing efficiency of existing organisational, practical and legal mechanisms in the area
- Preparation of proposals on improving the legislation on combating corruption and improving work in the area
- Co-ordination of activities of the territorial commissions

279. According to Uzbek authorities, co-operation between anti-corruption bodies is organised on the basis of the Regulation of the ACA by Presidential Decree No. PP-34 of 2021. These include a wide range of activities, such as:

- Exchange of data on measures taken to prevent and combat corruption.
- Exchange of data on criminal cases and cases on administrative offenses on facts of corruption, as well as on measures taken to respond to facts of corruption.
- Creating conditions for authorised employees of the Agency to obtain data on corruption offenses from electronic databases of law enforcement agencies.
- Establishment of joint working groups for research and administrative investigation, as well as preparation of analytical materials.
- Exchange of statistical information.
- Conducting joint study and publication of information containing facts of corruption that have attracted public attention.

280. As in the example shown below (Box 4.3), efforts have been made to co-ordinate anti-corruption initiatives in Uzbekistan, both at sector and local level. This recent anti-corruption initiative assessment tool has been a key component of the development of anti-corruption policies.

Box 4.3. Anticorruption assessment initiative

With the support of UNDP Seoul Policy Centre (USPC), UNDP Uzbekistan launched a project in 2018 to support Uzbekistan's institutionalisation of an AIA-(anti-corruption initiative assessment)-like mechanism. As part of this initiative, a high-level webinar was organised on 11 March 2019 by ACRC, USPC, UNDP Uzbekistan Country Office, PPO of Uzbekistan, and the Uzbekistan Ministry of Justice (MoJ). A study mission to Korea ensued on 3-5 September 2019, aiming to equip Uzbek officials with the technical knowledge and policy insights from Korea's AIA model.

This resulted in the President's issuance of Decree No. 81 on 12 January 2022 on the "implementation of a rating system for assessing the effectiveness of anti-corruption measures in government agencies, including local authorities." The Decree provided a solid legal and organisational framework for the implementation of an AIA-like mechanism in Uzbekistan.

The assessment of corruption risks by a state organisation is carried out on the basis of the requirements of the Methodology for Identification and Assessment of Corruption Risks in the Activities of State Authorities and Management Bodies, including their regional subdivisions, state unitary enterprises and institutions, organisations with a state share of more than 50 percent and is carried out annually until March 1. This assessment is included in "e-antikor.uz".

To date, the effectiveness of the fight against corruption in state bodies and organisations is assessed in 5 areas and 29 indicators. AIA has successfully promoted integrity within the public sector by providing clear, periodic guidance and supporting capacity-building on corruption prevention.

Source: (UNDP, 2022^[9])

281. Regardless, Uzbekistan should continue ensuring co-ordinated anti-corruption policies and measures. As previously noted by the OECD, the level of corruption remains high and trust in government is low (OECD, 2019^[3]). Anti-corruption institutions require adequate resources and training in order to operate effectively. The current legal framework, institutions and practice do not sufficiently guarantee the independence of judges and prosecutors. Many new integrity measures, such as provisions on prevention of conflict of interest, ethics, and whistleblower protection lack effective enforcement mechanisms (OECD, 2019^[3]).

282. Furthermore, at the institutional level, and after the passing of appropriate legislation, modern and effective mechanisms for the prevention of conflicts of interest as well as asset and interest disclosure system must be encouraged. For this, possible consideration could include providing the National Anti-Corruption Council of the Republic of Uzbekistan and its territorial councils with additional resources and targeted training. The Commission could also have a bigger role in establishing ethical guidelines and conflict of interest typologies, where public officials can consult examples of conflict-of-interest situations. This guidance could be provided in specific codes for areas or organisations, with the advantage of allowing to include concrete and relevant examples, or in a complementary guideline or manual. The example from Canada in Box 4.4 could provide an inspiration on how to frame such complementary guidance.

Box 4.4. Detailing expected behaviour from public officials in Canada

In Canada, the Code of Conduct of the Employment and Social Development Department includes the set of five public sector values – respect for democracy, respect for people, integrity, stewardship and excellence – that should guide public servants in everything they do. Additionally, the code includes the definition of each public sector value, along with the expected behaviours that support them. For example, the value “Respect for people” is further defined as follows:

- Definition: Treating all people with respect, dignity and fairness is fundamental to our relationship with the Canadian public and contributes to a safe and healthy work environment that promotes engagement, openness and transparency. The diversity of our people and the ideas they generate are the source of our innovation.

Expected behaviours associated with the value “Respect for people” are:

- Treating every person with respect and fairness.
- Valuing diversity and the benefit of combining the unique qualities and strengths inherent in a diverse workforce.
- Helping to create and maintain safe and healthy workplaces that are free from harassment and discrimination.
- Working together in a spirit of openness, honesty and transparency that encourages engagement, collaboration and respectful communication.

These lists of expected behaviours are further elaborated into practical examples and guidance on how the civil servant should act under certain circumstances. In this way, the code not only encompasses the standards of conduct, but also presents a practical tool for reaching ethical and lawful decisions, safeguarding the integrity of the public service and employees alike.

Source: (Employment and Social Development Canada, 2016).

283. Finally, the bodies responsible for developing and implementing anti-corruption strategies and measures to prevent corruption need institutional development in Uzbekistan as well as significant additional resources. In particular, the ACA would benefit from having additional human and financial resources. This could translate in the effective mainstreaming of integrity policies both at sector and local level.

Recommendations to enhance the legal framework of conflict of interest

Uzbekistan could consider clarifying key related concepts to guide public officials in correctly understanding, identifying and managing real, potential and apparent conflicts of interest

284. As previously explained, Uzbekistan does include a definition of conflict of interest in its legislation. However, many questions remain regarding such definition. For example, it includes a blanket prohibition for not allowing personal interest to intervene in state decisions and promptly informing their immediate supervisor or a “special unit” a possible conflict may arise. Further regulation, such as the newly enacted conflict of interest Law, addresses and fixes some of these faults. First, it includes a very thorough and complete definition of what a personal interest may be and even provides the cases in which a personal interest may contradict official duties, including not to force employees or other employees under their

direct subordination to actions pursuing their personal interests and not allowing personal interests that lead or may lead to a conflict of interest when performing official duties or official powers. Similarly, the Law includes a definition of real and potential conflict of interest and the procedure to declare both. Rightly so, the law does not clarify in which cases a personal interest can be considered to affect proper performance, nor what the scope of proper performance entails but this may be included in further guidance provided by the ACA with practical examples and guidance.

285. Furthermore, Uzbekistan could further elaborate to help clarify and guide public officials when it comes to managing conflict of interest. First, on the definitions of real, apparent and perceived conflicts, some definitions might be clarified by way of guidance (Box 4.5). In addition, the definition could be supported by *concrete examples*, while emphasising that this is not an exhaustive list of situations. Other OECD countries have moved towards this direction. A further example from Canada could be an inspiration on why and how to define and address real, potential, and apparent conflict of interest (Box 4.6).

Box 4.5. OECD definitions of Conflict of Interest

Recognising that countries have different historical, legal and public service traditions, which may impact on the way conflict-of-interest situations have been understood, the OECD Guidelines developed a definition of “conflict of interests” which is intended to be simple and practical, to assist effective identification and management of conflict situations:

A “conflict of interest” involves a conflict between the public duty and private interests of a public official, in which the public official’s private-capacity interests could improperly influence the performance of their official duties and responsibilities.

On this basis, a “conflict of interest” involves a situation or relationship which can be current or may have occurred in the past. Defined in this way, “conflict of interest” has the same meaning as **real conflict of interest**.

By contrast, **an apparent conflict of interest** exists where it appears that an official’s private interests could improperly influence the performance of their duties, but this is not in fact the case.

A **potential conflict of interest** occurs where a public official holds a private interest which would constitute a conflict of interest if the relevant circumstances were to change in the future.

It is important to note that this definitional approach is necessary to be consistent with the policy position which recognises that conflicts of interest will arise and must be managed and resolved appropriately.

Source: (OECD, 2004^[2]).

Box 4.6. Guidance on real, potential and apparent conflict of interest in Canada

The Treasury Board in Canada provides concrete definitions and guidance on real, potential, and apparent conflict of interest as part of the Values and Ethics Code for the Public Service. It is emphasised that “preserving the appearance of integrity in government is as important as actual integrity” and that public servants therefore are required to avoid apparent conflicts of interests as much as actual or potential ones.

The guidance provides the following definitions:

A "real" conflict of interest is where a public servant's private interests are sufficient to influence the exercise of his or her public duties. A "potential" conflict of interest is where such a situation could arise in the future. An "apparent" conflict of interest, however, is where it appears to members of the public that a public servant's private interests could improperly influence the performance of his or her duties. "Private interests" are not limited to financial interests.

As apparent conflicts of interest can be particularly difficult to understand and identify, further guidance is provided, emphasising for example:

In determining apparent conflicts of interest, the appearance of a public servant's actions to the public is the key, not the public servant's integrity or good faith. Public servants can be found to be in apparent conflict of interest even if they are not aware that their actions create an apparent conflict of interest. Public servants - and their managers – are required to think beyond the scope of their own perceptions and motives, and to consider how the public may perceive their actions.

An apparent conflict of interest is determined by the perception of "a reasonable person" (a hypothetical member of the public) who is "reasonably well-informed".

Such a person is to have a "reasonable perception" that a conflict of interest exists, even if the conflict of interest is not a major one.

The onus is on public servants to anticipate apparent conflicts of interest arising from their actions, and to take steps to comply with the rules.

This onus on public servants is ongoing, as apparent conflicts of interest may arise at any time, if their personal affairs or official duties change. This onus extends to disclosing items about which there is doubt, and continues after filing a disclosure report.

Whether a conflict of interest is apparent or potential or real, the consequences are the same. The conflict must be remedied. Efforts should therefore focus on determining appropriate methods of compliance, rather than making definitive classifications on the type of conflict of interest.

Source: <https://www.canada.ca/en/treasury-board-secretariat/services/values-ethics/conflict-interest-post-employment/apparent-conflict-interest.html#d1>.

286. Similarly, further guidance may be enacted by noting what is considered as affecting proper performance and the types of contradictions between personal interest and the rights and legitimate interests of citizens, organisations, society or the State (Box 4.7). This could be followed up by guidelines and training in practical cases.

Box 4.7. Core concepts for the application of conflict-of-interest legislation

There are two core concepts for “conflict of interest”: 1) real, potential and perceived conflict-of-interest situations, and 2) private interests. Examples of each are:

A **real conflict of interest** exists when there is a conflict between the public duty and private interests of an individual. For example, a Minister giving a board seat to their cousin might be an actual/real conflict of interest.

A **potential conflict of interest** exists when an individual has private interests that could lead to a conflict if they were to become involved in relevant (e.g. conflicting) responsibilities in the future. A potential conflict of interest rests on the idea of foreseeability – e.g. there is the possibility that the official’s private interest could lead to a conflict should their public duty and private interest collide in the future. For example, a Minister whose wife works for a company that has the possibility of winning a procurement process at the Ministry he runs.

A **perceived conflict of interest** exists when it appears that an individual’s private interests could improperly influence the performance of their public duties, but this is not in fact the case. For example, a Minister having lunch with their cousin who happens to work for a potential vendor is a perceived conflict of interest.

Regarding the second concept, **private interests** are not limited to financial or pecuniary interests, nor are they limited to interests which lead to a direct personal benefit to a public official. Conflicts of interest can arise when otherwise legitimate private-capacity activity, personal affiliations and associations, and family interests, could be reasonably considered likely to improperly influence the performance of a legislator’s duties. As such, private interests can include assets, liabilities and debts, personal relationships, family relationships, business interests, external activities and positions (including secondary employment), and gifts, benefits and hospitality.

Source: (OECD, 2004^[2])

287. Finally, Uzbekistan could consider complementary guidelines clarifying reporting obligations for real, potential and apparent conflict of interest and why each one is relevant to safeguard the public interest (Box 4.8) (OECD, 2004^[2]). This is particularly useful for both public officials and control units in charge of assessing whether there is a conflict and the measures required to manage it.

Box 4.8. Complementary guidelines for establishing real, potential and apparent conflicts of interest

Conflict of Interest-Also referred to as an actual or real conflict of interest

- Question 1: What official functions or duties is Official X responsible for?
- [Refer to functional duty statement, position description, law, or contract of employment, etc., or statement of the functions of the official's organisation, etc.]
- Answer 1: Official X is responsible for functions 1, 2, 3 (etc.) in ministry B.
- Question 2: Does Official X have private interests of a relevant kind?
- Answer 2: Yes, Official X has job-relevant private interests. [The relevant facts are clear.]

Conclusion: Official X has a conflict of interest

Apparent Conflict of Interest

- Question 1: What official functions or duties is Official X responsible for?
- [Refer to functional duty statement, position description, law, or contract of employment, etc., or statement of the functions of the official's organisation, etc.]
- Answer 1: Official X has official responsibility for functions 1, 2, 3..., in ministry B.
- Question 2: Does Official X hold private interests of a relevant kind?
- Answer 2: It appears to be the case that Official X may have relevant private interests. [The relevant facts are not certain.]

Conclusion: Official X has an apparent conflict of interest.

Potential Conflict of Interest

- Question 1: What official functions or duties is Official X responsible for?
- Answer 1: Official X is responsible for functions X,Y, in ministry B
- Question 2: Does Official X hold private interests of a relevant kind?
- Answer 2: No. at the present moment, Official X has interests which are not job-relevant, but it is reasonably foreseeable that in the future, X's personal interests could become relevant interests.

Conclusion: Official X has a potential conflict of interest.

Source: (OECD, 2005^[10]).

While provisions on the prevention of conflict of interest have been introduced in legislation, Uzbekistan could consider strengthening its management system by way of additional guidelines and training

Consider introducing training and guidance on the different reporting channels for the management of conflict-of-interest situations

288. As previously noted by the OECD, there appears to be major momentum to introduce legal reforms aimed at strengthening the integrity system in Uzbekistan. In June 2024, a conflict-of-interest Law was finally approved. This Law was established to prevent and manage conflict of interest situations and includes some regulation on post-employment situations. However, a full regulatory framework for pre- and post-employment regulations and an effective approach in creating a single common system of disclosure of assets and interests remain pending. Moreover, as previously explained, several articles of the Law “On Combatting Corruption” could be further explained and clearer procedures established.

289. First, stakeholders were of the view that Uzbekistan could further clarify the channels for reporting a conflict of interest (Article 21), that today relies on the direct supervisor, or a “special unit”. In the interviews conducted for this review, before new legislation came into place, it became clear that reporting to a direct supervisor, although valid by OECD standards (OECD, 2017^[1]), could create additional problems in the Uzbek context, where a conflict of interest situation may be seen as a form of corruption and where self-reporting still has strong cultural connotations. With the enactment of the Law “On Conflict of Interest”, Articles 6 and 15 partly resolve this situation by providing alternatives for reporting. Two issues require further clarification, however, and could potentially be introduced as guidance or secondary legislation.

290. For example, Uzbekistan could describe what the “special units” are within institutions. Considering the number of tasks and responsibilities assigned to these units in the new law, more guidance should be given, as the law states very broadly that these could be anti-corruption control units, HR units or even a very general reference to “other organisations”. More information should be provided into their composition, necessary expertise for the assigned tasks as well as what “other organisations” means (for example if it’s another unit within other Ministry does it still need expertise and independence to fulfil all the new tasks). Similarly, Uzbekistan may consider updating the decision on “Additional measures to ensure compliance with the rules by state civil servants” enacted by the Cabinet of Ministers of Uzbekistan which still provides the reporting obligation to be solely made to the direct supervisor (Chapter 7). For example, Uzbekistan could consider the possibility of making a specific reference in this guidance for the public official to not only to report, but seek previous advice to HR offices, in line with Article 6 of the Law “On Conflict of Interest”. This will provide coherence with the new legislation, clarification on what constitutes “advice from a special unit” in Article 6 (for example if this would fall within their rights or if it’s an obligation), as well as advice and possible avenues for the management of such conflict.

291. Even if the procedure of disclosure of conflict of interest has been somehow clarified in the new Law, Uzbekistan could consider targeted training on how to disclose such situations, to whom and when. For example, a compilation of case law or practical guidance establishing the standard of its application in the past, thus allowing each manager to make decisions based on its own criteria. Another avenue Uzbekistan could consider is relying on technological self-assessment tools, as a first filter (Box 4.9). As informed during the fact-finding mission, this lack of guidance to both public officials seeking advice and the superior taking a decision is quite concerning to Uzbek authorities.

Box 4.9. Argentina's online simulator for conflict-of-interest situations

To provide specific guidance and orientation on conflict-of-interest situations, the Anti-corruption Office of Argentina (*Oficina Anticorrupción*, OA) implemented an [online conflict-of-interest simulator](#). Through the selection of answers to certain questions, public officials receive an assessment of whether they are in a situation of current or potential conflict of interest and orientation about what to do. The simulator is available for future, current and past public officials. By asking the public official various questions throughout the simulation, the simulator determines if the official is in a conflict-of-interest situation based on the legal framework. If a potential conflict of interest is detected, the simulator informs the official of the violated norm of the Public Ethics Law and advises the public official to seek more specific guidance of the OA. The simulator is a useful tool to enable officials to clarify any doubts they might have over a situation.

Source: (OECD, 2019^[11]).

292. Besides clarification and training for the public official, Uzbekistan could consider providing awareness raising and training to those who manage or could potentially manage conflict of interest situations in an institution (supervisors, HR and special units). Currently, neither public officials nor their superiors receive regular training to guide their decisions. This would allow symmetry in the treatment of similar cases across sectors as well as ensure due process when providing advice for different categories of officials, who may otherwise receive a different treatment when confronted with similar situations.

293. According to Uzbek authorities, the Ministry of Justice developed a Code of Ethics in 2020-2021 before the adoption of the Law "On the State Civil Service" in 2022. As previously explained, in October 2022, the Cabinet of Ministers adopted the "Additional measures to ensure compliance with ethical rules by state civil servants", which was developed on the basis of Article 17 of the Law "On the State Civil Service". However, the additional measures provided by the Cabinet of Ministers do not equal a Code of Ethics, that should provide guidance on the establishing of integrity measures across the public administration. Therefore, the Ministry of Justice could update the existing 2020-2021 Code of Ethics by including new obligations and procedures brought under the Law "On Conflict of Interest". Similarly, as way of guidance, this could be generalised, meaning applied and mainstreamed across the public administration, as in other OECD countries (Box 4.10). Moreover, the management of conflict-of-interest situations should be addressed in such Code, alongside other issues that may create potential conflicts of interest, such as the procedure and rules for accepting gifts by public officials.

Box 4.10. Costa Rica's judiciary conflict-of-interest regulations and guidance

Costa Rica's judiciary has moved forward in establishing specific and well-defined conflict-of-interest regulations and in providing guidance. The Regulation for the "Prevention, Identification and Management of conflict of interest in the Judiciary" seeks to allow judicial operators to prevent, identify and manage possible conflicts of interest. It also provides a definition of a conflict of interest in the judicial branch and the types of private interests with the ability to generate conflicts of interest. The Regulation contains guidance on steps to formally report a possible conflict of interest (to its hierarchical superior) and recusals when handling cases related to their former private practice.

More interestingly, it contains a specific set of measures and obligations directed to managers. In those, it stresses the key role of management in identifying possible conflict of interest in their offices, sending reminders to staff about the importance of reporting conflict of interest situations and the scope of the applicable obligations. It also encourages management to create open spaces and an environment of confidence so that their teams can formulate questions and reveal situations that may place them in a potential conflict of interest. Furthermore, it states that providing an appropriate solution to situations is key to prevent a bigger negative impact on judicial management, affecting the image and credibility of the Judiciary.

Source: (OECD, 2022^[12]).

294. Further guidance has also been developed by the OECD regarding when conflicts of interest could be reported. First, upon taking up their duties, all new staff could be required to submit a conflict-of-interest declaration. In Uzbekistan, the new Law on conflict of interest enacted in June 2024 requires an employee of a government agency or other organisation to submit a declaration of potential conflict of interest when a potential situation of a conflict arises, as well as fill out and submit a declaration of a potential conflict of interest to a special unit annually and no later than January 15.

295. Second, OECD standards determine that staff should be required to disclose a conflict of interest when a new conflict arises – for example, a staff member's partner takes on a new job that leads to a real or potential conflict with the activities carried out by the staff. This is usually referred to as ad hoc or emerging conflicts of interest. Articles 14 and 15 of the new Law on conflict of interest seem to cover this situation.

296. Notwithstanding the very good tools provided by the new Law on conflict of interest, further analysis could be conducted on the scope and functionalities of Article 19. A conflict of interest arises when the individual decision-making power collides with a personal interest. An obligation of family members to report assets is quite clear, as some of those assets can be hidden by a third party. However, an interest declaration by third parties may be unnecessary as the official itself can include this information in its own declaration and specify any contrasting interest him or his relatives may have (OECD, 2021^[13]); (OECD, 2004^[2]). Another potential loophole in the management of conflict of interest in Uzbekistan is the lack of central registration of emerging conflicts of interest. Recent efforts have been made to address this. Clause 3 of the Presidential Decree No. PQ-210 tasked the ACA with analysing information on conflicts of interest through the "E-anticor.uz" platform, and plans to include a third module related to identifying and eliminating conflicts of interest within the platform. Details on the implementation of this module remain to be analysed. However, Uzbekistan could consider including an annual register of reported conflicting interests per institution and sector.

Consider strengthening and increasing co-ordination between control units and between existing Ethics Commissions

297. Considering the role provided by the Law “On Combatting Corruption”, in particular in Article 21, Uzbekistan could consider assigning a bigger role to the control units, both in law and in practice. According to the Presidential Decree No. PQ-5177, internal anti-corruption control units are established in all state bodies and organisations. These units are responsible for early detection and prevention of corruption cases, preventing conflicts of interest, and integrity awareness raising. Considering the successful role of these units, Uzbekistan could consider further strengthening its integrity management systems by creating a network of sector-specific “ethics or control units”, following the example of other OECD countries (Box 4.11). This would help in developing a more stringent meritocratic process through the sector as well as developing innovative tools to detect integrity violations, and in particular, to help mainstream conflict of interest regulations through the entire public administration in a coherent and cohesive manner.

Box 4.11. Austria: Network for Integrity advisors/officers (*Integritätsbeauftragten-Netzwerk*)

In Austria, the Federal Bureau to prevent and fight corruption (Bundesamt zur Korruptionsprävention und Korruptionsbekämpfung, BAK) created the Austrian Integrity Network (Integritätsbeauftragten Netzwerk) with the purpose to strengthen integrity by firmly anchoring integrity as a fundamental element in public sector. To this end, the BAK trains integrity advisors to become experts in the field of integrity and corruption prevention within the framework of the Integrity Network.

These integrity officers provide advice and guidance in their entities to strengthen integrity within specific entities. The integrity officers can access further information on compliance, corruption, ethics, integrity and organisational culture. In addition to the Internet platform, the BAK also offers regular follow-up meetings for integrity officers on specific topics such as risk management and ethics and values.

Source: (IBN, 2024^[14]).

298. Similar co-ordination efforts could be made between the Ethics Commissions, both at national and local levels. Such a network could develop the following actions, as part of its mandate:

- Monitor compliance with rules for resolving conflicts of interest, providing with a rule of supervising the adequate implementation of these regulations.
- Creating typologies of conflict-of-interest situations based on existing cases and practice.
- Developing methodologies for assessing individual and collective behavioural change of public officials in conflict-of-interest situations.
- Ethics guidance to be complemented with examples and specific cases, including by enacting regulation on gifts.

299. Overall, information reported by control units and then received by the Ethics Commission can trickle down into standardised guidance that can be applied at cross-sector level and with the local level. These networks of dedicated “integrity actors” in public entities can contribute to overcome the challenge of mainstreaming integrity policies to ensure implementation and to promote organisational cultures of integrity (Box 4.12).

Box 4.12. Dedicated integrity actors

Dedicated “integrity actors” in public entities can contribute to overcome the challenge of mainstreaming integrity policies to ensure implementation and to promote organisational cultures of integrity. International experience shows the value of having a specialised and dedicated person or unit that is responsible and can be held accountable for the internal implementation and promotion of integrity laws and policies.

In Peru, for example, Offices of Institutional Integrity have to be established throughout the national public administration and in local governments, with the Secretariat for Public Integrity as governing body.

In Brazil, the established Public Integrity System of the Federal Executive Branch (SIPEF) aims at mainstreaming integrity policies with the Office of the Comptroller General (CGU) as central organ and Integrity Management Units (UGI) in all entities of the federal executive branch.

In Romania, an initiative called the “Champions network for the local public administration” promoted the exchange of good practices on integrity issues at local level. Awareness raising activities have been developed with a selected group of local administrations to encourage them to make further use of existing planning methodologies provided by both the MoJ and the Ministry for Development, Public Works and Administration.

Sources: (OECD, 2023^[15]) (OECD, 2017^[16]) (OECD, 2022^[12]).

Consider defining the type of violations that could potentially constitute a sanction to the conflict-of-interest regime

300. The basic provisions of Article 21 of the Law "On Combatting Corruption" form the foundation for sanctioning conflict-of-interest violations. Additionally, the "Additional Measures to Ensure Compliance with Ethical Rules by State Civil Servants," approved by the Cabinet of Ministers in October 2022, provide clearer and more detailed interpretations of the rules governing such violations. As noted in previous OECD reports, these provisions require public servants, upon appointment and throughout their tenure, to declare any actual or potential personal interests that could influence the proper performance of their duties. Violations of conflict-of-interest rules are subject to sanctions. According to Chapter 10 of the "Additional Measures to Ensure Compliance with Ethical Rules by State Civil Servants," an investigation by the Ethics Committee results in a conclusion regarding whether a disciplinary or other violation has occurred. Based on the findings, a recommendation for appropriate disciplinary action is submitted to the head of the state body. Depending on the severity of the violation, the Commission may issue a warning to the public servant. For violations of the Ethics Rules, including failure to report personal interests that may affect the performance of duties (conflict of interest), the Ethics Commission may apply the following disciplinary sanctions: a warning, a request for an apology or formal apology, and public reprimanding at meetings of state bodies and organisations. Furthermore, the new Law on Conflict of Interest, enacted in June 2024, introduces additional administrative sanctions, including fines, for violations of the conflict-of-interest regime.

301. The Law also clarifies what qualifies as a violation and the different categories of violations. However, there are no specific sanctions for wilful violations of the conflict-of-interest regime or legal standard to determine whether the conflict-of-interest situation is the product of a mistake or a *dolus act*.

The situation becomes more confusing when public officials may face both criminal, administrative and disciplinary sanctions, because the law currently does not envisage such situations.

302. Therefore, by way of the recently enacted Law, Uzbekistan has included how the sanctioning regime would work in practice and strengthen the types of sanctions available. However, it has not included all types of violations, in particular some that may be difficult to assess in real cases, such as reporting with incomplete information, not following the appropriate procedure for reporting, or reporting to someone else than those established in the law. Uzbekistan has also established a set of rules on how the fines increase and aggravating factors. In any case, these rules remain quite general and focus only on repetition of the conduct rather than establishing mitigating and aggravating factors of the conduct. Therefore, principles to determine sanctions for each case remain absent. These distinctions are of the outmost importance as it may determine the severity and determination of the sanction.

303. Finally, Uzbekistan does keep not track or statistics of the overall number and type of violations to its current conflict of interest regime. On the contrary, this exercise seems to be dispersed and very much dependant of each institution. The situation creates possible legal loopholes, as each institution may sanction officials in a different way, even in situations with similar facts. The lack of standardisation may prove difficult to sustain if cases are taken to a higher instance. Therefore, as in some OECD countries, Uzbekistan may consider establishing legislation to reinforce specific disciplinary sanctions for violations of conflict-of interest regulations whilst considering wilful acts as opposed to slight negligence or mismanagement. This may be reinforced by the inclusion of conflict-of-interest standards in ethics codes as well as the development of internal regulations in public institutions to address specific sectorial situations. Furthermore, by means of legislation, the situations when both criminal and administrative sanctions apply. Finally, Uzbekistan would benefit from clarifying what administrative sanctions can be applied, including aggravating and mitigating factors, as well as which circumstance and which actor would be responsible for investigating and sanctioning in each situation.

Uzbekistan could consider developing conflict of interest policies with a risk-based approach

304. In Uzbekistan, efforts have been made to develop risk and compliance indicators at the central level. As explained in previous chapters Uzbekistan has developed a very stringent system to determine integrity violation and risks at the central level. However, a sectorial approach to mapping, preventing and mitigating conflict of interest is still missing. Furthermore, stakeholders interviewed for this report were of the view that the ACA currently lacks the capacity to conduct sectorial risk assessments and that the development of a methodology on conflict-of-interest risk assessment at sector level needs to be developed.

305. Uzbekistan could consider developing guidance at sector level on both the risks and frequency of conflict-of-interest situations at sector level and co-ordinate with compliance officers at each institution on their implementation. This would also ensure a higher understanding and awareness of existing regulations and available procedures for resolving a conflict of interest. Instead of providing generic guidance, a sector approach, based on a risk assessment of the most recurrent cases in the sector, would provide public officials with very concrete and realistic situations of conflict of interest (perhaps even based on examples from real life) that they can recognise and relate to their day-to-day work. Additionally, the ACA could provide guidance on the identification and management of conflict-of-interest situation per sector. This could be discussed and later mainstreamed at local level. To conduct a thorough risk assessment exercise on conflict of interest, Uzbekistan could consider developing a methodology to conduct sectorial risk assessments on conflict of interest and provide training to officials at the ACA on the newly developed methodology. Uzbekistan could also consider increasing the use of corruption research data on sector specific situations that may create conflicts for public officials combined with strengthening provisions in Codes of Conducts at sector level, targeting at risk areas.

306. Furthermore, Uzbekistan could consider establishing a structured checklist of possible interests to be disclosed for at risk officials (e.g., financial ties or other affiliations through consulting, stock or shares, grants, honoraria, travel support, patents) as well as an open-ended option to disclose any other interests not covered by the structured checklist. OECD guidance on this area could be helpful when identifying specific question and at-risk areas (Box 4.15). For example, in Australia, the National Health and Medical Research Council (NHMRC) has developed a list of sector-specific conflict of interest risks (Box 4.14).

Box 4.13. Generic Checklist for Identifying “at-risk” conflict of interest areas

Additional ancillary employment

- Has the organisation defined a policy and related administrative procedure for approval of additional/ancillary employment?
- Is all the staff made aware of the existence of the policy and procedure?
- Does the policy identify potential conflict of interest arising from the proposed ancillary employment as an issue for managers to assess when considering applications for approval?
- Is there a formal authorisation procedure, under which staff may apply in advance for approval to engage in additional employment while retaining their official position?
- Is the policy applied consistently and responsibly, so as not to discourage staff from applying for approval?
- Are approvals reviewed from time to time to ensure that they are still appropriate?

Inside information

- Has the organisation defined a policy and administrative procedure for ensuring that inside information, especially privileged information which is obtained in confidence from private citizens or other officials in the course of official duties, is kept secure and is not misused by staff of the organisation? In particular: – Commercially sensitive business information. – Taxation and regulatory information. – Personally sensitive information. – Law enforcement and prosecution information. – Government economic policy and financial management information.
- Is all staff made aware of the existence of the policy and procedure?
- Are all managers made aware of their various responsibilities to enforce the policy? 3 Contracts
- Does the organisation ensure that any staff/employed official who is or may be involved in the preparation, negotiation, management, or enforcement?

Contracts

- Does the organisation ensure that any staff/employed official who is or may be involved in the preparation, negotiation, management, or enforcement of a contract involving the organisation has notified the organisation of any private interest relevant to the contract?
- Does the organisation prohibit staff, etc. from participating in the preparation, negotiation, management or enforcement of a contract if they have a relevant interest, or require that they dispose or otherwise manage the relevant interest before participating in such a function?
- Does the organisation have the power to cancel or modify a contract for its benefit if it is proved that the contracting process was significantly compromised by a conflict of interest or corrupt conduct on the part of either an official or a contractor?
- Where a contract has been identified as compromised by a conflict of interest involving an official or former official of the organisation, does the organisation retrospectively assess other

significant decisions made by the official in his/her official capacity to ensure that they were not also similarly compromised?

Official decision making

- Does the organisation ensure that any staff/employed official who makes official decisions of a significant kind involving the organisation, its resources, strategies, staff, functions, administrative or statutory responsibilities, (for example, a decision concerning a draft law, expenditure, purchase, budgetary allocation, implementation of a law or policy, granting or refusing a licence or permission to a citizen, appointment to a position, recruitment, promotion, discipline, performance assessment, etc.) has notified the organisation of any private interest relevant to a decision which could constitute a conflict of interest on the part of the person making the decision?
- Does the organisation prohibit staff, etc. from participating in the preparation, negotiation, management or enforcement of an official decision if they have a relevant interest, or require that they dispose or otherwise manage the relevant interest before participating in such a decision?
- Does the organisation have the power, either by law or by other means, to review and modify or cancel an official decision if it is proved that the decision-making process was significantly compromised by a conflict of interest or corrupt conduct on the part of a member of its staff/an official?

Policy advising

- Does the organisation ensure that any staff/employed official who provides advice to the government or to other public officials on any official matter concerning any kind of policy measure, strategy, law, expenditure, purchase, the implementation of a policy or law, contract, privatisation, budget measure, appointment to a position, or administrative strategy, etc., has notified the organisation of any private interest relevant to that advice which could constitute a conflict of interest on the part of the person providing the advice?
- Does the organisation prohibit staff, etc. from participating in the preparation, negotiation, or advocacy of an official policy advice if they have a relevant interest, or require that they dispose or otherwise manage the relevant interest before participating in preparing or giving such policy advice?
- Does the organisation have the ability and processes to review and withdraw an official policy advice if it is proved that the advice-giving process was significantly compromised by a conflict of interest or corrupt conduct on the part of a member of its staff/an official? 6. Gifts and other forms of benefit
- Does the organisation's current policy deal with conflicts of interest arising from both traditional and new forms of gifts or benefits?
- Does the organisation have an established administrative process for controlling gifts, for example by defining acceptable and unacceptable gifts, for accepting specified types of gifts on behalf of the organisation, for disposing or returning unacceptable gifts, for advising recipients on how to decline gifts, and for declaring significant gifts offered to or received by officials?

Personal, family and community expectations and opportunities

- Does the organisation recognise the potential for conflict of interest to arise from expectations placed on individual public officials by their immediate family, or by their community, including religious or ethnic communities, especially in a multicultural context?

- Does the organisation recognise the potential for conflict of interest to arise from the employment or business activities of other members of an employed official's immediate family?

Source: (OECD, 2005^[10]).

Box 4.14. Sector-specific conflict of interest risks in the NHMRC (Australia)

Financial conflicts of interest in the health sectors may include:

- Fees paid for service to a company (e.g. consultancy payments, speaking fees, panel memberships). This includes for-profit and some not-for-profit organisations (e.g. Philip Morris Foundation for a Smoke-Free World).
- Indirect payments (e.g. funding of travel, accommodation, professional development, hospitality)
- Company stock
- Royalties
- Directorships
- Support for a researcher's clinical or research infrastructure (e.g. funding of data managers, scientists, equipment and clinical staff)
- Personal relationships with those who may have the above interests.

Organisational conflict of interest in the health sectors may include:

Conflicts of interest may also arise if guideline development group members serve as representatives of organisations with an interest in the guideline recommendations. This may include members that:

- represent, or have roles in, organisations with financial links or affiliations with industry groups which stand to benefit from or be affected by guideline recommendations
- represent, or have roles in, organisations which advocate known industrial or policy positions
- have personal relationships with those who may have the above interests.
- For example, a consumer member might represent an advocacy organisation that is vulnerable to pressure to represent the views of organisations that fund it or a member of a nutrition guideline development group who represents the processed food industry may feel pressured to represent industry views.

Source: (NHMRC, 2018^[17]).

307. Overall, through the ACA, Uzbekistan could consider using surveys and questionnaires, upcoming assets and interest declarations as well as constant communication with ethic units to assess and determine different risks categories at sector level. This should trickle down into guidelines to be mainstreamed at sector level and continued exercises of ownership of such guidelines with sector leaders.

Recommendations to enhance the legal framework and system of asset declarations

308. Considering that Uzbekistan implemented significant reforms in anti-corruption policies, including the adoption of the Law on Anti-Corruption, it must now move into the approval of the 2021 Presidential Decree mandating the establishment of a system for income and assets declaration for public officials. Uzbekistan should consider introducing a uniform system of disclosure of assets and interests by relevant public servants (including political officials, judges and prosecutors). Such a system could ensure filing and publication of electronic declarations as well as mandatory risk-based verification of declarations and effective sanctions for the non-submission of declarations or submission of false declarations. In this sense, Uzbekistan could consider the following recommendation when planning and designing such system.

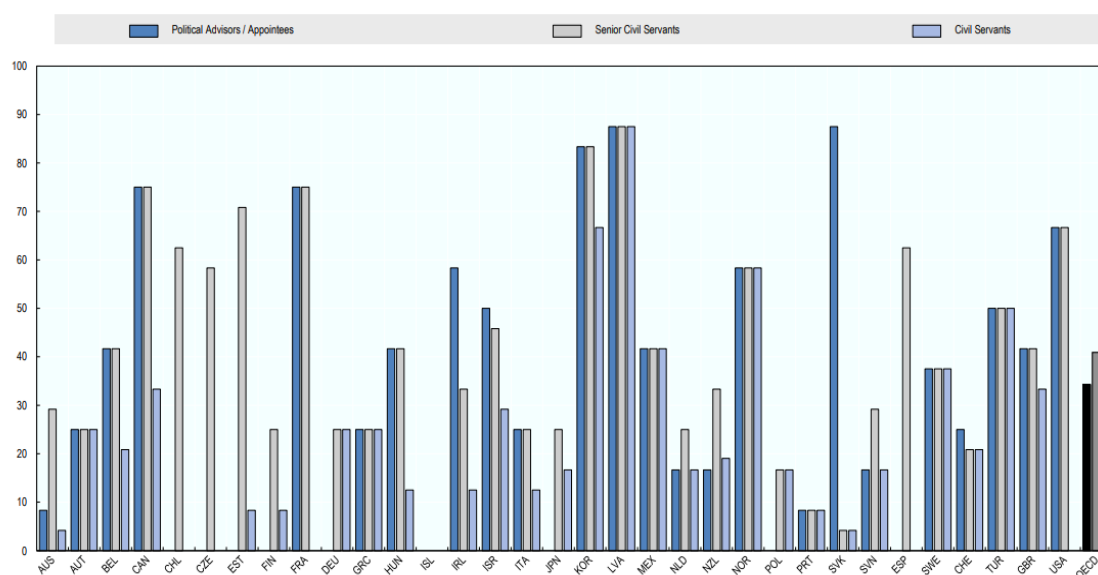
309. Overall, financial disclosures of assets or interests play an important role in national anti-corruption systems. Asset declarations cover the disclosure of pecuniary interests, they are usually verified with specific and pre-determined frequency, as their role is mainly to reveal inconsistencies and significant variances when comparing declarations for successive years. Asset declarations are not intended as a preventive tool, but rather as a post factum verification of unjustified wealth and illicit enrichment. Interest disclosures, which have existed in Uzbekistan since 2022, include both pecuniary and non-pecuniary interests, and are used to report, manage, and therefore prevent a conflict of interest from arising. By indicating whether the public official has an economic interest that may influence the decision-making process, a conflict-of-interest system may help prevent unlawful situations from arising in the first place. Interest declarations may be reviewed in an ad hoc manner, when the conflict of interest arises, providing flexibility as a preventive tool (OECD, 2023^[18]).

Uzbekistan could consider in upcoming legislation a risk-based approach to determine the scope of declarants as well as the assets to be declared

310. Uzbekistan could consider measures to strengthen the proposed amendments and provide for an increasingly robust asset declarations' system, in particular by expanding the range of officials subject to reporting obligations and the type of information required to disclose. In particular, it would be important to consider the inclusion of a range of family members and associates of the public official. As the OECD has stated, mechanisms to track the financial assets and interests of not only public officials but also their close relatives and household members can help prevent concealment of assets under the names of family members, spouses or other individuals (OECD, 2011^[19]).

311. In any case, as in some OECD countries, the Ministry of Justice and the ACA in Uzbekistan could consider a risk-based approach to determining the categories of declarants to be included in the law and subsequent form. In any case, certain criteria must be included for the verification of declarations for at risk categories of officials. Most OECD countries apply a risk-based approach to their financial and interest disclosure system. A risk-based approach is needed in the definition of declarants, in so far as it does not require all public officials to declare their assets, but only obliges those that face a higher risk of corruption due to their position. The narrowed-down, focused approach is in line with the majority of OECD countries (Figure 4.1). Given their decision-making powers, elected officials and senior civil servants are more influential and are at greater risk for capture or corruption. The focus on elected officials and senior public officials in all branches makes the best use of the capacities of the responsible bodies by not overburdening with the sheer quantity of declarations without appropriate human and financial resources (OECD, 2019^[11]).

Figure 4.1. A majority of OECD countries have stricter disclosure requirements for senior decision-makers



Source: (OECD, 2019^[11]).

312. Furthermore, selecting declarations for in-depth inspections should be based on clear and objective criteria established in law and, in practice, not all senior officials should undergo regular detailed checks. As stated, such a system could introduce regulations for disclosures for all risk positions and mandatory risk-based verification of declarations should be done based on the position, decision-making power and involvement in budgetary or procurement decisions of certain categories of officials. Other OECD countries have developed a similar risk-based approach to the one proposed (Box 4.15) by identifying public functions prone to conflict-of-interest risks in order to determine the categories of declarants. This may be advisable and in line with a risk-based approach to enforcement.

Box 4.15. Risk-based approach to the definition of declarants in Australia

Australia's Public Service Code of Conduct lists the following Agency activities with heightened risk of conflict of interest:

Procurement and recruitment:

- Procuring goods or services
- Tendering for and managing contracts
- Engaging and promoting employees
- Making appointments to statutory positions

Regulating individual or business activities:

- Inspecting, regulating or monitoring standards, businesses, equipment or premises
- Issuing qualifications or licences
- Issuing or reviewing fines or penalties

Distributing goods, services or funds:

- Providing a service
- Allocating grants of public funds
- Allocating subsidies, financial assistance, concessions or other relief

Making binding decisions:

- Issuing determinations on matters
- Passing binding judgements
- Exercising statutory powers
- Voting as a member of a board or committee

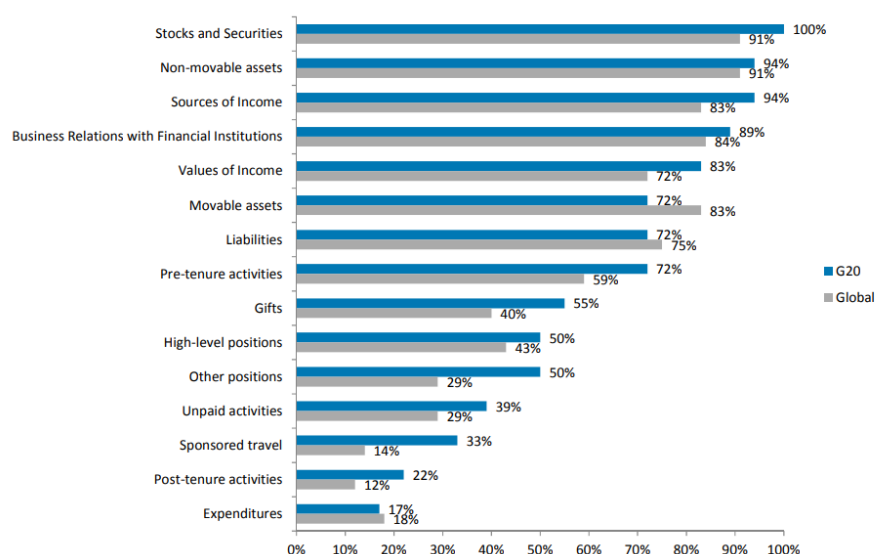
Source: (Australian Public Service Commission^[20]).

Uzbekistan could consider further developing the criteria for the information to be declared and assure its alignment with new trends to identify illicit enrichment

313. The categories of assets, amount of information and level of detail that an official may be required to disclose, vary from country to country depending on the objectives of the disclosure system and the laws, regulations, and administrative guidelines governing the conduct of public officials. However, most declaration forms require a combination of the following information: movable and non-movable assets, liabilities, financial and business interests, positions outside of office, and information on the sources and values of income.

314. Stakeholders interviewed for this report were of the view that outside activities and business relations is the main factor contributing to conflicts of interest. Therefore, Uzbekistan could consider following the trend of G20 countries of having greater coverage of financial aspects such as non-movable assets as well as outside activities and business relationships that may create conflicts of interest (OECD/WorldBank, 2014^[21]).

Figure 4.2. Categories of information covered in disclosure requirements



Source: (OECD/WorldBank, 2014^[21]).

315. As stated in other OECD reviews, to expand the scope of information to be reported in asset declarations possibilities may include (OECD, 2023^[18]):

- Income as a category in MPs declarations, as is the case for Ministers and Parliamentary Secretaries.
- Luxury and tangible assets (e.g., movable assets such as antiques, luxury cars, etc.) considered valuable assets. These are regularly used to hide profits from money laundering or corruption.
- Clear dates, for example on when a property was bought, as this would help in contrasting information on a later stage and understanding patrimonial increases over time.
- Disclosure of all types of income as well as gifts and sponsored travel, including disclosure of the identification details of the legal entity or individual who was the source of the income, gift or sponsored travel.
- Use of virtual assets (e.g., cryptocurrencies). The reporting of such assets in the form is an important step towards bringing transparency to this new mode of wealth accumulation.
- Disclosure of national and foreign bank accounts and safe deposits boxes (vaults) to which the declarant or family members have access, even if formally opened by another person.
- Blind trusts, as these are often channels used to evade tax as well as launder proceeds of corruption.
- Loans given or received, including to/from private individuals.
- Deferred corporate rights (e.g., options to purchase shares) and investments regardless of their form.
- Disclosure of expenditure above a certain threshold. This is essential to track significant changes in wealth by comparing income, savings and expenditures over time. Expenditures should cover not only acquisition of assets but also payment for services and works.

- Disclosure of interests not related to income or assets, notably contracts with state entities of the declarant and family members or companies in their control, prior employment, and any link with legal entities and associations (e.g. membership in governing bodies) (World Bank, 2021^[22]).

Uzbekistan could consider establishing a stringent review mechanism of asset declarations that include an automatised red flags system

316. Setting clear and proportionate procedures to manage assets declarations is key for the success of the system. As is the case in other countries, an electronic system simplifies the submission process by making the declaration form more user-friendly, reduces the number of mistakes made in the forms, facilitates further analysis and verification of declarations, and improves data management and security (Box 4.16).

Box 4.16. Electronic submission of assets declarations in France

The current asset and interest disclosure system in France is regulated by the 2013 law on Transparency in Public Life, which is administered by the High Authority for Transparency in Public Life. The initial scope of the October 2013 Law covered approximately 10 000 public officials. It incrementally expanded to reach about 15 800 public officials as of January 1, 2018.

These public officials must submit to the High Authority, within two months of taking office or beginning of their mandate, two declarations: a declaration of assets and a declaration of interests. Public officials must also submit an end-of-term declaration of assets no later than two months after termination of their functions or before the end of term for elected officials. In between, they must update their declaration of assets in case of substantive change (inheritance, acquisition of a property, etc.). If there is no substantial change in assets, the filers do not need to file a new declaration.

In 2014, all declarations were received in paper format only. Starting in March 2015, declarations submitted to the High Authority could either be sent by registered letter with a confirmation receipt or submitted in person at the High Authority, which issued a receipt confirming the submission or through the online service ADEL. Since October 2016, all declarations are filed online. Filers may contact a dedicated hotline (by phone or email) if they have questions, and guidelines are provided online for each step of the process. Beyond the declarations, the High Authority recommends online submission of all documents accompanying the declaration (e.g. blind trust, official notice of appointment etc.).

To register in the electronic filing system, filers need to use a mobile phone number and a valid email address. Registration is validated through text message. Text message validation is also used when a new declaration is filed or when public officials try to access their confidential personal information. The official can also choose to register using an official email address (gouv.fr, assemblee-nationale.fr or senat.fr).

Source: (HATVP, 2022^[23]) (Kotlyar and Pop, 2019^[24]).

317. Electronic filing (e-filing) may help raise the level of compliance with submission requirements. In addition, electronic submission also allows for an effective automated risk analysis. This analysis would certainly depend on external factors, like access to external sources of information through automated data exchange. There are also challenges of data quality and availability (Kotlyar and Pop, 2019^[24]). These issues create a complex process involving various legal, technological, financial, and institutional aspects. Uzbekistan could therefore consider, when planning its legal reforms, to assign in advance the role of the administration of a system of assets declarations to the ACA, whilst providing them with enough resources,

both human and technological, to develop such a complex system. On its part, the ACA should start preparations to assess the needs of such a system.

318. Similarly, the ACA should prepare legislative reforms aiming at allowing the agency to access several databases that permit comparison between the information reported by officials, whilst assigning a red flags system that permits comparisons over information submitted and over time. This is because disclosure forms should allow for year-on-year comparisons of officials' financial position. Disclosure systems can also vary significantly in functionality, design, level of complexity, or authentication methods. In some systems, for example, declarations are collected with the aim to do a preliminary data validation, followed by a more in-depth analysis of emerging discrepancies.

319. Therefore, Uzbekistan may consider developing a study, prior to the approval of the law, where all of these aspects are considered, and details are settled in advance. This could be made in co-ordination with the Ministry of Digital Technologies, who could advice on the best way forward. Similarly, the ACA could develop a list of sources of information it needs, to be able to process and compare, reported financial information. Sources may include the tax declarations, information gathered by the FIU as well as public registries.

320. Finally, Uzbekistan could consider providing the ACA with enough power and independence to achieve meaningful controls. Ensuring the reviewing agency access to information held by other agencies in order to identify discrepancies and verify inaccuracies and omissions is a key component of any asset declaration system (Box 4.17).

Box 4.17. Co-operation and databases cross-checking within the declaration system in France

To fulfil its mandate, the French High Authority for Transparency in Public Life (*Haute Autorité pour la Transparence de la Vie Publique*, HATVP) requires a high level of co-ordination and cooperation with institutions and individuals who detain information useful for the monitoring process of asset and interest declarations.

Considering this, the HATVP has signed several inter-agency agreements and protocols with public institutions aimed at ensuring better coordination and facilitating the exchange of relevant information:

- In 2016, the HATVP and the tax administration signed a protocol to clarify their relations. Since January 2017, staff members of the HATVP are allowed to connect directly to some of the tax administration databases and applications to carry out routine checks, especially to value real estates, to access the list of registered bank accounts or to access cadastral information.
- In September 2017, the HATVP and the National Anti-Money Laundering Service signed a protocol. This protocol, together with legislative developments conducted in December 2016, allows both institutions to share relevant information to their respective controls and investigation procedures.
- Regarding co-operation with courts, the HATVP and the Directorate for Criminal Matters and Pardons and the HATVP and the Attorney General signed a memo and an instruction, respectively, to formalise information sharing procedures with prosecutors and audit courts.
- In 2019, the HATVP signed a protocol with the French Anticorruption Agency to ensure better co-ordination of actions between the two institutions with complementary missions.

Source: (High Authority for Transparency in Public Life, 2024^[25]).

321. Finally, international co-operation is critical in fighting corruption (Burdescu et al., 2009^[26]). As previously stated by the OECD (OECD, 2023^[18]), interaction and co-operation with relevant international institutions and counterparts may facilitate knowledge sharing as well as project supporting for the development of specific institutional and legal standards. Considering this, the ACA could develop a strategy to engage in both formal and informal agreements with authorities in other jurisdictions to facilitate technical assistance and co-operation activities in the area of verification of assets and interest declarations. Similarly, it could consider inviting some of them to participate as observers in the technical working group on asset and conflict of interest declarations as a way to compare and measure the capabilities of its system against other examples.

Uzbekistan could consider strengthening the identification and management of conflict-of-interest situations in pre- and post-public employment

322. As stated, one of the main risks and concerns related to conflicts of interest is the revolving door. Time limits, or “cooling off” periods, are a useful tool to restrict post-public employment, “switching sides”, and use of insider information. Cooling-off period refers to a time limit imposed on officials previously employed by public sector organisations in order to prevent any offences that they might commit by engaging with their former contacts after they leave public employment (OECD, 2021^[8]). When considering the length of cooling-off periods, core factors to consider include whether the time lengths are fair, proportionate and reasonable considering the seriousness of the potential offence. Tailoring the duration of restrictions is necessary depending on the type of problem area and level of seniority (OECD, 2020^[7]).

323. Uzbekistan has recently enacted a conflict-of-interest Law that in Article 8 includes one post-employment provision. However, as explained before, this does not constitute a specific and through framework for regulating pre- and post-employment. In a nutshell the soon to be in force provision establishes that if an employee leaves an organisation, they must inform the internal anti-corruption division so they can do a check on a possible debarment of two years to take employment in the private sector.

324. Regardless, as stated previously, this does not constitute a full framework or system of pre- and post-employment. Eventually, Uzbekistan could consider discussions around this blanket limitation and a development of more specific requirements by way of guidance to both the public official and the anti-corruption control unit. Uzbekistan could consider a risk-based approach depending on the position the official held and decisions made during his time in office. Similarly, differentiate periods or prohibitions for certain categories of officials, develop specific prohibitions to sign contracts with the State for certain categories of officials, or provisions that limit contact and discussion with their former employee or colleagues (for example for former parliamentarian looking to lobby former colleagues). Therefore, Uzbekistan could consider developing a comprehensive framework on pre- and post-employment that considers the aforementioned situations and be of use to identify conflict of interest situations that a recently appointed employee may face (pre-employment check-ups) or those he may face after leaving office (post-employment prohibitions).

325. Many of these measures are difficult to implement, however, as countries may risk discouraging talented individuals from accepting public sector positions. In devising its revolving door regime, a country should keep in mind that revolving door restrictions should protect governmental processes from abuse but should not be so onerous that the public sector can no longer attract the highly talented individuals needed for certain positions. This requires a balance of competing public interests (Zimmermann et al., 2020^[27]). In some cases, blanket prohibitions, such as limiting post-employment equally for all types of officials in a defined number of years, may not work (Figure 4.3). Therefore, Uzbekistan may consider strengthening pre- and post-public employment restrictions in legislation by establishing the scope of officials and activities covered and the length of the cooling-off period, considering a risk-based approach

and an appropriate balance between restrictions and incentives for future public sector officials (e.g. bans on lobbying may be appropriate for a specific period of time, while restrictions related to certain insider information could be applied until the sensitive information becomes public).

Figure 4.3. Cooling-off periods in OECD countries



Source: (OECD, 2022^[28]).

326. Other measures could include more targeted initiatives, per category of official. First, legislation could create a distinction between civil servants on a general level and high-level officials such as ministers and parliamentarians, which are exposed to higher risks of conflict-of-interest because of their position (Table 4.3). Temporary “cooling-off periods” for public officials and lobbyists that prevent them from immediately taking up positions involving contact with their former employer can help reduce the risks while still allowing for valuable knowledge exchange between the public and private sectors. 19 OECD countries have introduced mandatory cooling-off periods for public office holders, but only two countries have introduced cooling-off periods for lobbyists before they can take public office (OECD, 2024^[29]).

Table 4.3. Provisions on cooling-off periods (post-public employment) in OECD countries

	Members of legislative bodies	Ministers and Members of Cabinet	Appointed public officials	Senior civil servants	Duration of the cooling-off period
Australia	○	•	•	•	18 months for ministers and Parliamentary Secretaries, in areas relating to any matter that they had official dealings with in their last 18 months in office. 12 months for ministerial staff, in areas relating to any matter that they had official dealings with in their last 12 months in office.
Austria	○	○	○	•	Six months under certain conditions for federal civil servants
Brazil	○	•	•	•	
Belgium	○	○	○	○	
Canada	•	•	•	•	Cooling period for lobbying (Lobbying Act): five years for cabinet ministers, their staff, parliamentarians and high ranked public servants. Cooling off period for conflicts of interests (Conflict of Interest Act and departments' Values and Ethics Code): two years for ministers and one year for public officials.
Chile	○	○	○	○	
Colombia	○	•	•	•	
Costa Rica	○	○	○	○	
Czech Republic	○	•	•	•	One year
Denmark	○	○	○	○	There are no cooling-off or other post-public employment provisions
Estonia	○	○	○	•	
Finland	○	○	○	○	There are no cooling-off or other post-public employment provisions
France	○	•	•	•	Three years for all
Germany	○	•	•	•	One year for Federal Ministers and Parliamentary State Secretaries (18 months in certain cases) Up to five years for civil servants
Greece	○	○	○	•	One year for members of government and deputy ministers and appointed officials
Hungary	○	•	•	•	Up to two years
Iceland	○	•	•	○	Six months
Ireland	○	•	•	•	One year
Israel	•	•	•	•	One year for Members of the Knesset Six months for parliamentary advisors at the Knesset
Italy	○	○	•	•	Three years
Japan	○	•	○	•	Two years for civil servants
Korea	•	•	•	•	Two years for all
Latvia	•	•	•	•	Two years
Lithuania	•	•	•	•	One year for members of legislative bodies and cabinet
Luxembourg	○	•	○	○	Two years of restrictions for ministers
Mexico	○	•	•	•	10 years for ministers, appointed officials and senior civil servants
Netherlands	○	•	○	○	Two years
New Zealand	○	○	○	○	
Norway	○	•	•	•	Six months for all

	Members of legislative bodies	Ministers and Members of Cabinet	Appointed public officials	Senior civil servants	Duration of the cooling-off period
Poland	○	•	○	○	One year
Portugal	•	•	•	•	Three years for ministers, one year for senior civil servants
Romania	○	○	○	•	One to three years for civil servants (depending on the activity)
Slovak Republic	•	•	○	○	Two years
Slovenia	•	•	○	○	One to two years for ministers or members of parliament (depending on the activity)
Spain	○	•	•	○	Two years for ministers and appointed public officials
Sweden	○	○	○	○	A body under parliament defines waiting period/restrictions if needed for Ministers and state secretaries (2018)
Switzerland	○	○	○	○	
Türkiye	○	○	○	•	Two years for senior civil servants
United Kingdom		•	○	•	Two years for Ministers* and senior civil servants
United States	•	•	•	•	One to two years

○ = No cooling-off period
 • = Cooling-off period exists

Source: OECD Product Market Regulation Indicators (2018) and additional research by the OECD Secretariat.

327. Furthermore, Uzbekistan could consider longer periods for at-risk positions, as well as compensation measures for those unable to be employed for a longer period of time. Following other OECD countries, public officials who leave the public sector and move beyond administrative government control could be provided a compensation (Table 4.4). The cooling-off period varies between public officials based on the seniority and the nature of the post as it is the case in Slovenia, the United Kingdom and the United States. During the cooling off period, only some categories of public officials in Austria, Israel, Norway, Portugal and Spain receive compensation. For instance, in Spain, public officials receive 80% of their basic salaries as compensation and in Norway, compensation is awarded only for prohibitions on taking up a specific appointment, the level of which is equivalent to the salary received at the time of the public official left public office (OECD, 2015^[30]).

Table 4.4. Post-public employment: Compensation during the “cooling-off” period

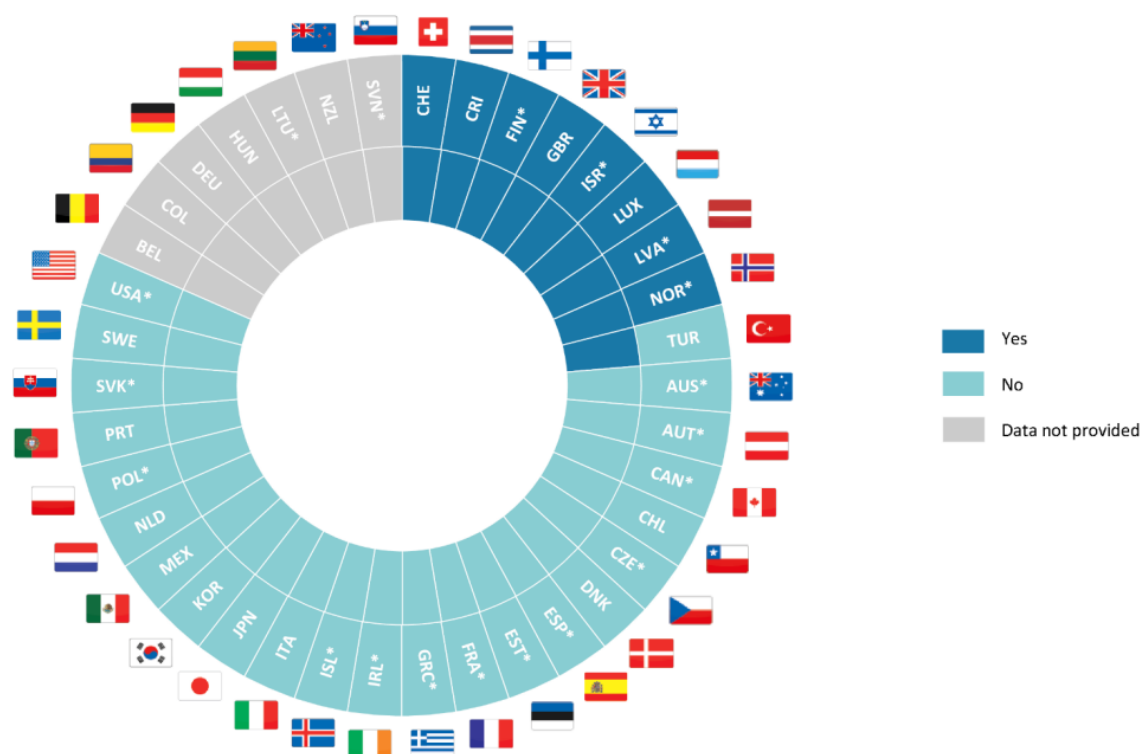
	President	Prime Minister	Minister or Members of Cabinet/Office	Political advisors/ appointees	Senior civil servants	Civil Servants
Australia	x	○	○	○	○	○
Austria	●	●	●	□	○	○
Belgium	x	□	□	□	□	□
Canada	x	○	○	○	○	○
Chile	□	x	□	□	□	□
Czech Republic	□	□	□	□	□	□
Estonia	□	□	□	□	○	○
Finland	□	□	□	□	□	□
France	□	□	□	○	○	○
Germany	□	□	□	○	○	○
Greece	□	□	□	□	□	□
Hungary	□	□	□	□	□	□
Iceland	□	□	□	□	□	□
Ireland	□	□	□	○	○	○
Israel	□	○	○	●	●	●
Italy	□	○	○	□	□	□
Japan	x	□	□	□	○	○
Korea	○	○	○	○	○	□
Mexico	○	x	○	○	○	○
Netherlands	x	□	□	□	□	□
New Zealand	x	□	□	□	□	□
Norway	x	●	●	●	●	●
Poland	○	○	○	□	○	○
Portugal	●	○	○	□	□	□
Slovak Republic	□	□	□	□	□	□
Slovenia	○	○	○	○	○	○
Spain	x	●	●	□	○	□
Sweden	x	□	□	□	□	□
Switzerland	x	□	□	□	○	○
Türkiye	□	□	□	○	○	○
United Kingdom	x	○	○	○	○	○
United States	□	x	○	□	○	○
OECD total						
● Yes	2	3	3	2	2	2
○ No	4	9	11	10	17	15
□ no cooling-off period	15	17	18	20	13	15
Brazil	□	x	●	●	●	□
Colombia	○	x	○	○	○	○
Latvia	○	○	○	○	○	○

Source: (OECD, 2015_[30])

328. Additionally, to provide more clarity and to avoid eventual misuse, Uzbekistan could clarify the institutional setup to review and provide advice on pre- and post-employment checkups. Most importantly,

most OECD countries, including many with mandatory cooling-off periods, are not tracking the post-employment activities of public office holders. Only nine OECD countries collect data on the frequency within the past five years with which ministers took up positions in a private sector organisation that operates in their former area of responsibility. Only eight collect the same data for the most senior civil servants (Figure 4.4). This data does not necessarily need to be made public, but the lack of data makes it difficult for governments to assess whether their rules on revolving door are being observed, and therefore whether they are mitigating the risks of movement in and out of public office (OECD, 2024^[29]).

Figure 4.4. Countries tracking office holders' movement into sectors they formerly regulated



Source: (OECD, 2024^[29]).

329. To allow for more clarity for companies hiring former public officials covered by post-employment regulations, the ACA could consider compiling a list of public officials subject to the cooling-off periods regulations, as well as establishing a channel for private sector consultations on the matter. This could be done by way of compiling the concept provided at each institution on individual decisions and making and publishing such list on their website.

330. With regards to the violation of this regulation, countries should seek to address it by establishing a variety of sanctions that can be applied in case of non-compliance with post-public employment. In addition to fines that are usually part of the sanctions applied to public officials breaching conflict of interest rules, countries may include also rules establishing (Transparency International, 2015^[31]):

- Cancellation or refusal of contracts with the private sector employer of the offending former official.
- Fines to the prospective private employer who hired a former public official irrespective of existing restrictions.
- Reduction of the former official's retirement pension.

- Prohibition to occupy public office for a certain period of time (5 to 10 years).
- Suspension of registration in professional association or registries.

331. In all cases, enforcement sanctions should be proportionate, timely and applied in a consistent and equitable manner (Transparency International, 2015^[31]). Furthermore, Uzbekistan could consider establishing a sanctions regime that covers different types of penalties, for both the public official who is in breach of this provisions as well as to the private company who has violated the existing rules.

332. As it comes to pre-employment check-ups, Uzbek authorities provided information during the fact-finding mission stating that much of the pre-employment check-ups gets done at Ministerial level, as it is an easier task to do in a decentralised manner. However, Uzbekistan could consider centralising pre-employment check-ups and providing advice to both the future public official and the contracting public institutions of possible conflicts of interest arising from their previous employment in the private sector, as is the case in other OECD countries.

Box 4.18. Pre-employment measures in France and the United States of America

France

The public service transformation Act of 6 August 2019 also tasks the High Authority for Transparency in Public Life (Haute Autorité pour la transparence de la vie publique, HATVP) with a “prenomination” control for certain high-ranking positions. A preventive control is carried out before an appointment to one of the following positions, if an individual has held positions in the private sector in the three years prior to the appointment:

- Director of a central administration and head of a public entity whose appointment is subject to a decree by the Council of Ministers.
- Director-general of services of regions, departments or municipalities of more than 40 000 inhabitants and public establishments of inter-municipal co-operation with their own tax system with more than 40 000 inhabitants.
- Director of a public hospital with a budget of more than EUR 200 million.
- Member of a ministerial cabinet.
- Collaborator of the President of the Republic.

The HATVP controls the pre-employment process by measuring the risk that the future public-sector employee might be pursued in application of article 432-12 of the Penal Code. To avoid any conflict of interests, the HATVP can formulate bidding reservation of actions. Indeed, for a period of three years, after the termination of their functions in their previous employment, these public officials may not be entrusted with the supervision or control of a private undertaking, with concluding contracts of any kind with a private undertaking or with giving an opinion on such contracts. They are also not permitted to propose decisions on the operations of a private undertaking or to formulate opinions on such decisions. They must not receive advice from or acquire any capital in such an enterprise. Any breach of this provision is punished by Article 432-12 of the Penal Code by five years’ imprisonment and a fine of EUR 500 000. Overall, this control is aimed to protect both the employee and the administration of any accusations and participate to enhance trust. Moreover, the amount of the fine can be doubled by the amount of the product of the infraction.

United States

Once they have taken office, former private-sector employees and lobbyists are subject to a one-year cooling-off period in situations where their former employer is a party or represents a party in a particular

government matter. This restriction applies not only to former private-sector employees and lobbyists, but also to any executive branch employee who has, in the past year, served as an officer, director, trustee, general partner, agent, attorney, consultant, contractor or employee of an individual, organisation or other entity.

In the case of an employee who has received an extraordinary payment exceeding USD 10 000 from their former employer before entering government service, the employee is subject to a two-year cooling-off period with respect to that employer.

Source: (OECD, 2021^[8]).

Recommendations

Enhance the legal and institutional framework for the management of conflict of interest.

- Clarifying key related concepts to guide public officials in correctly understanding, identifying and managing real, potential and apparent conflicts of interest.
 - Further elaborate on the definition of conflict of interest, by noting what is the proper performance and the types of contradictions between personal interest and the rights and legitimate interests of citizens, organisations, society or the State.
 - Enact complementary guidelines clarifying the difference between real, potential and apparent conflict of interest and why each one is relevant to safeguard the public interest.
- Improve the management system of conflict of interest, including by providing an alternative to reporting channels as well as training and guidance on management of conflict-of-interest situations.
 - Further clarify the procedure to report conflict-of-interest situations, including the available channels for reporting.
 - Design of a framework or policy guidelines for identifying and managing conflicts of interest to be mainstreamed through the entire public administration. This would provide consistency on the advice and guidance provided to senior managers and HR Offices.
 - Enact a set of guidelines for public officials to manage different kinds of conflict-of-interest situation that go beyond “prohibitions” and “incompatibilities” and provide practical examples on how to resolve a specific conflict.
 - Increase coordination across sectors to promote awareness raising on conflict of interest. In particular, the ACA may contribute to changing the negative connotation attributed to conflict of interest as an equal of corruption.
 - Develop other mechanisms to identify or detect emerging conflict-of-interest situations, including a platform to annually register conflicting interests or activities. The operation of the system could be located at the ACA.
- Strengthening and increasing co-ordination between control units and between existing Ethics Commissions
 - Strengthen its integrity management systems by creating a network of sector-specific “control units”.
 - Provide the National Anti-Corruption Council of the Republic of Uzbekistan and its territorial councils with additional resources and targeted training.

- Provide the Commissions with a role in establishing ethical guidelines and conflict of interest typologies, where public officials can consult examples of conflict-of-interest situations.

Similar co-ordination efforts could be made between the Ethics Commissions, both at national and local levels. Such a network could develop the following actions, as part of its mandate:

- Creating typologies of conflict-of-interest situations based on existing cases and practice.
- Developing methodologies for assessing individual and collective behavioural change of public officials in conflict-of-interest situations.
- Ethics guidance to be complemented with examples and specific cases, including by enacting regulation on gifts.
- Define the type of violations that could potentially constitute a sanction to the conflict-of-interest regime.
 - Establishing legislation to reinforce specific disciplinary sanctions for violations of conflict-of-interest regulations whilst considering aggravating and mitigating factors. This may be reinforced by the inclusion of conflict-of-interest standards in ethics codes as well as the development of internal regulations in public institutions to address specific sectorial situations.
 - Clarifying, by means of legislation, the situations when both criminal and administrative sanctions apply.
 - Keeping statistical information on the number of public officials with disciplinary sanctions for violations of conflict-of-interest regulations.
 - Clarify what sanctions can be applied for which circumstance and which actor would be responsible for investigating and sanctioning in each situation.
- Uzbekistan could consider developing conflict of interest policies with a risk-based approach.
 - Develop guidance at sector level on both the risks and frequency of conflict-of-interest situations at sector level and co-ordinate with compliance officers at each institution on their implementation.
 - The ACA could provide guidance to both HR offices and ethic units on the identification and management of conflict-of-interest situation per sector. This could be discussed and later mainstreamed at local level.
 - Provide the ACA with enough capacity and training to develop a methodology and procedures for the development of conflict-of-interest risk factors at sector level.

Enhance the legal framework and system of asset declarations

- Uzbekistan could consider in upcoming legislation a risk-based approach to determine the scope of declarants as well as the assets to be declared.
 - Consider measures to strengthen the proposed amendments and provide for an increasingly robust asset declarations' system, in particular by expanding the range of officials subject to reporting obligations and the type of information required to disclose.
 - Develop a risk-based approach to determining the categories of declarants to be included in the law and subsequent form.
- Uzbekistan could consider further developing the criteria for the information to be declared and assure its alignment with new trends to identify illicit enrichment.

- For upcoming legislation, Uzbekistan could consider following the trend of G20 countries of having greater coverage of financial aspects such as non-movable assets including outside activities or business relationships that may create conflicts of interest.
- Establish a stringent review mechanism of asset declarations that include an automatised red flags system.
 - Assign in advance the role of the administration of a system of assets declarations to the ACA, whilst providing them with enough resources, both human and technological, to develop such a complex system.
 - Develop a study, prior to the approval of the law, where all of these aspects are considered and details are settled in advance. This could be made in co-ordination with the Ministry of Digital Technologies, who could advice on the best way forward.
 - Develop a list of sources of information needed, to be able to process and compare, reported financial information. Sources may include the tax declarations, information gathered by the FIU as well as public registries.
 - Provide the ACA with enough power and independence to achieve meaningful controls. Ensuring the reviewing agency access to information held by other agencies in order to identify discrepancies and verify inaccuracies and omissions.
 - Develop a strategy to engage in both formal and informal agreements with authorities in other jurisdictions to facilitate technical assistance and cooperation activities in the area of verification of assets and interest declarations.

Strengthening the identification and management of conflict-of-interest situations in pre and post public employment

- Develop a comprehensive framework on pre- and post-employment, including by considering pre-employment check-ups and post-employment prohibitions.
- Strengthening pre and post-public employment restrictions in legislation by establishing the scope of officials and activities covered, considering a risk-based approach and an appropriate balance between restrictions and incentives for future public sector officials.
- Create a distinction between civil servants on a general level and high-level officials such as ministers and parliamentarians, which are exposed to higher risks of conflict-of-interest because of their position.
- Consider longer periods for at-risk positions, as well as compensation measures for those unable to be employed for a longer period of time.
- Clarify the institutional setup to review and provide advice on pre- and post-employment checkups.

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5

Evidence informed policymaking and regulatory quality in Uzbekistan

Evidence-informed policymaking has emerged as a cornerstone of governance reform efforts in Uzbekistan. This chapter explores the intersection of evidence-informed policymaking and regulatory quality in the country, emphasising their close-knit relationship. It explores recent advancements the country has made in its regulatory impact assessment (RIA) framework, the management of *ex post* reviews of regulations, and stakeholder engagement to ensure robust policy outcomes.

Introduction

333. Evidence-informed policymaking (EIPM) stands as a crucial process in the realm of public policy. Defined by the OECD, EIPM aims to enhance the quality of public policy decisions by strengthening the use of valid qualitative and quantitative information to advance government decision-making (OECD, 2020^[1]).

334. Regulations, alongside taxation and spending, represent one of the most important tools governments possess to achieve their goals. The principles underlying EIPM closely align with those supporting regulatory policy. Regulatory policy aims to achieve government objectives using regulations, laws, and other ways of influencing the behaviour of regulated subjects to deliver better economic and social outcomes, thereby enhancing the lives of citizens and businesses. It systematically employs evidence-based tools and stakeholder participation to advance the design and review of laws. Regulatory Impact Assessment (RIA), as one of the most significant regulatory management tools, uses evidence to measure the impacts and consequences of various regulatory and non-regulatory options. It helps substantiate decisions on when governments should intervene using regulations or when the costs of such intervention are too high relative to the potential benefits. *Ex post* reviews, on the other hand, entail systematic reviews of the stock of regulation against clearly defined policy goals. They include consideration of the costs and benefits of regulations in practice to ensure they remain up to date, cost-justified, effective, consistent, and deliver the intended policy objectives.

335. Following a request from the Government of Uzbekistan, this chapter focuses on implementing regulatory policy principles in Uzbekistan, namely regulatory impact assessment, *ex post* reviews of the existing stock of regulations, and stakeholder engagement to illustrate how EIPM is implemented in general. However, conclusions from this chapter are generally applicable to other disciplines of EIPM as well.

336. In recent years, the Government of Uzbekistan has demonstrated noteworthy progress in establishing a framework for evidence-based regulation. High-level government commitment to good regulatory practices (GRPs) is evident in various policymaking documents, reflecting an increasing momentum towards fostering a "smarter" and more participatory approach to law-making in the country.

337. However, a critical question remains: Have these policies translated into effective practice? This chapter aims to offer an overview of the recent developments the country has undertaken to enhance its regulatory policymaking framework and assess whether these practices have manifested into reality. The effectiveness of such policies extends beyond mere intentions; it hinges on the alignment of institutions, resources, and access to information. It additionally depends on the effective use of regulatory tools and methodologies. Thereby, this chapter will be segmented into two parts. The first part will look at the basic framework the government has put into place to strengthen evidence-informed regulatory policy, while the second will dig deeper into the use of regulatory tools and into the elements of what it means to inform evidence-based regulations. The chapter will put into context OECD best practices for guiding and reinforcing GRPs in Uzbekistan, where applicable.

Commitment to advancing evidence-informed regulations in Uzbekistan

338. Political support is the cornerstone for advancing principles of evidence-informed regulations. It provides top-down signalling to civil servants, businesses and the broader public that evidence in policymaking is key and that all parties should work together to gather better data, engage with stakeholders and ensure that ideas are tested for best informed regulatory policymaking (OECD, 2023^[2]). Without political support, policymakers will not be incentivised to adopt EIPM principles and contribute to an open and transparent regulatory development landscape. The first principle of the OECD's 2012

Recommendation on Regulatory Policy and Governance (OECD 2012 Recommendation) states that commitment at the highest political level should be made for adopting an explicit whole-of-government policy for ensuring regulatory quality (OECD, 2012^[3])

Since 2008, the Republic of Uzbekistan has implemented substantial reforms to enhance its regulatory policymaking landscape

339. Notably, between 2008 and 2014, the country initiated significant advancements that laid the foundation for a regulatory quality framework. A major milestone was achieved in 2014 when Uzbekistan institutionalised the use of RIA for economic impact assessments on business activities. The administration also worked closely with international partners, such as UNDP, to reinforce its regulatory landscape (UNDP, n.d.^[4]).

340. More recently, however, the Republic of Uzbekistan has undertaken more significant reforms to enhance its landscape for improved regulations. In 2018, with the acknowledgement of Presidential Decree No. 5505, the government understood that the existing laws, regulations, and associated processes did not adequately meet societal needs. In realising this, it kickstarted a second wave of substantial reforms for regulatory advancements within the country.

341. The first notable development to emerge from this second wave occurred in 2020 with the adoption of Presidential Decree No. PF-6075¹. This decree introduced a system of RIA to Uzbekistan and marked the initial steps in defining the Ministry of Justice (MoJ) as the regulatory oversight body for the administration. Shortly thereafter, in 2021, Uzbekistan adopted a second Presidential Decree, No. RP-5025², which advanced the guidelines for using regulatory impact assessments within the country. Today, RP-5025 serves as the whole-of-government better regulation strategy for the administration. The application of RIA has also been reinforced in Uzbekistan's new Law on Normative Legal Acts (ZRU-682)³, positioning it as a core component of preparing new normative legal acts.

Multiple legislative plans exist which challenge the landscape for regulatory coherency in Uzbekistan

342. The primary document governing the creation of new normative legal acts in Uzbekistan is ZRU-682. Chapter 3 of ZRU-682, titled "Planning, Initiation, and Preparation of Draft Normative Legal Acts", mandates that drafting regulatory legal acts can only occur within the framework of established plans or programs of normative work. Additionally, Article 20 of ZRU-682 stipulates that a new normative legal act may only be adopted if no existing legal mechanism can achieve the same governmental objective. Essentially, this provision ensures that new legislative actions are only taken when there is a clear gap in the current legal framework⁴.

343. While these provisions reflect a thoughtful approach to regulatory practices in Uzbekistan, challenges remain in maintaining regulatory coherence. A recent report by the Organisation for Security and Co-operation in Europe (OSCE) highlighted that Article 19 of ZRU-682 allows respective bodies that can adopt normative legal acts to develop and approve legislative plans on different timelines, such as semi-annual or longer-term plans extending beyond one year (OSCE, 2023^[5]). In these cases, this flexibility can result in the creation of multiple plans, making it difficult to align and co-ordinate various policy options and regulatory developments (OSCE, 2023^[5]). Stakeholders interviewed as part of this review also noted that there was often little cooperation between bodies when drafting their legislative plans, leading to co-ordination problems. As a result, the OECD found that overlaps and an overproduction of regulatory acts tended to persist in the Uzbek regulatory context.

Uzbekistan's policymaking landscape is also influenced by a strong top-down political culture

344. There also appears to be a strong top-down approach to policymaking in Uzbekistan. The Administration of the President is the primary policymaking body in charge of regulatory policy within the country (OSCE, 2023^[5]; OSCE, 2019^[6]). The President shares lawmaking powers with the Oliy Majlis (the Parliament) and all legislative plans administered by the Administration of the President lead to binding obligations for the government to implement. While it is acknowledged that other executive bodies can have a role in proposing regulatory acts, the direction of the Administration of the President has precedent in setting new regulations. This centralisation of policymaking power is largely due to the institutional set-up of Uzbekistan, given that the primary mandate of the country's Cabinet of Ministers is to supervise the implementation of the President's mandate in accordance with the State programme (OSCE, 2019^[6]).

Institutional set-up for evidence-informed regulations in Uzbekistan

345. In acknowledging the recent reforms Uzbekistan has undertaken to enhance an evidence-informed regulatory landscape, it is also important to recognise the new institutions and units supporting this progress. Regulatory oversight bodies play a crucial role in advancing effective "whole-of-government" regulatory governance and policymaking. These bodies are instrumental in promoting a culture of GRPs, guiding policymakers in the use of essential regulatory management tools and ensuring the development and design of high-quality regulations (OECD, 2021^[7]). In Uzbekistan, the role of regulatory oversight is fulfilled by the MoJ and its mandate is designated under paragraph 4 of RP-5025. The analysis and review of the MoJ is also supported by a unified methodology for regulatory impact assessment, outlined in the Ministry of Justice's Order No. 3292⁵.

Box 5.1. The mandate of the Ministry of Justice in Uzbekistan

As the designated oversight body to the administration, the Ministry of Justice is responsible for:

- Co-ordinating activities for state bodies and organisations on assessing regulatory impact and conducting public consultations on draft regulatory legal acts;
- Monitoring the activities of state bodies and organisations concerning regulatory impact assessment and public consultations on draft regulatory legal acts;
- Compiling a list of employees in state bodies and organisations responsible for regulatory impact assessment, making proposals for improving their qualifications and skills, including organising training abroad; and
- Routinely checking the performance of the system and developing proposals for its further improvement.

Source: Article 4 of Resolution of the President of the Republic of Uzbekistan (15.03.2021, No. RP 5025), <https://lex.uz/uz/docs/5700347#5700523>.

A reinforcement of analytical resources is required in the MoJ

346. Since its inception, the MoJ has appeared to manage its mandate effectively despite the growing demands on its competencies. However, the OECD has noted that for the MoJ to continue effectively serving its diverse functions, it will need to expand and augment its resources. At the time of this review, only 15 personnel were part of the oversight unit in the MoJ.

347. Without an increase in resources, the unit is likely to struggle in the coming years to maintain its current level of performance and fully meet all aspects of its mandate. The OECD had already observed that the unit faced challenges in meeting the administration's demand for additional training due to limited staff availability and capacity. The OECD team also noted that, at times, the Ministry lacked the capacity to review complex assessments. As a result, if the Ministry's resources are not reinforced in the short term, it could hinder the overall impact of better regulation across the administration. In the worst case, it could even reverse the progress the administration has seen in advancing principles of EIPM.

348. Earlier this year, however, under the developments of Presidential Decree No. UP-80, the Institute for Legislation Analysis and Regulatory Impact Assessment was established. This body is expected to collaborate closely with the MoJ to develop and implement programmes for assessing the regulatory impact of legislative acts. The body will be located under the MoJ. While the OECD was unable to evaluate the effectiveness of this organisation during the current review given its recent adoption, close monitoring, especially in its formative years, will be crucial to ensure that the institute achieves effective results. It is equally important that this body is also staffed with a sufficient number of human resources and that the relevance of providing adequate analytical resources is fully recognised.

Regulatory oversight should be ensured across the “whole-of-government”

349. In addition to reinforcing the human resources of the MoJ, there is a need to clarify whether regulatory oversight is considered across the whole-of-government. The MoJ appears to be responsible only for ensuring the quality control of laws developed at the executive level. However, several normative legal acts can also be adopted at higher levels of government, such as by the Administration of the President, the Cabinet of Ministers, and the Oliy Majlis. To the OECD, it was unclear whether the development and oversight of these acts were included as part of the MoJ's review.

350. Two laws exist in Uzbekistan, however, to support parliamentary oversight procedures—the Law of the Republic of Uzbekistan on Parliamentary Control⁶ and the Law on the Rules of Procedure of the Legislative Chamber of the Oliy Majlis (OSCE, 2023^[5]). That being said, these acts did not appear to align with the oversight practices of the MoJ (OSCE, 2023^[5]). Stronger alignment between the MoJ's regulatory oversight guidance and parliamentary oversight could improve the relevance of evidence-based lawmaking within the country. It could additionally support with reinforcing the approaches for GRPs across the whole-of-government.

The MoJ's analysis is supported by the assessment of three “statement issuing bodies”

351. Statement-issuing bodies in Uzbekistan's regulatory framework are administrative entities tasked with evaluating impacts within their areas of competence before the final RIA report and regulatory draft are submitted to the MoJ for final review. In Uzbekistan, according to Chapter 3 of RP-5025, these bodies are designated to:

- The Ministry of Economy and Finance of the Republic of Uzbekistan.
- The Competition Promotion and Consumer Protection Committee of the Republic of Uzbekistan; and;
- The Ministry of Ecology, Environmental Protection and Climate Change of the Republic of Uzbekistan.

352. These bodies provide essential feedback to developers on whether the impacts on entrepreneurial activity, competition, and the environment have been adequately addressed. They may also request additional information to developers to ensure the robustness of regulatory proposals and their evaluation of impacts. The establishment of these bodies underscores a strengthened commitment to ensuring the development of high-quality regulations in Uzbekistan. They further showcase the commitment to

enhancing transparency, improving regulatory processes, and fostering a more comprehensive approach to evidence-based policymaking across the government.

Analytical capacities for advancing evidence-informed regulations

353. In addition to the institutional framework supporting good regulatory governance, EIPM relies heavily on the effectiveness and skills of the civil service. The promotion of good governance largely depends on the ability of public servants to analyse data, conduct rigorous research, and communicate information effectively to shape and inform sound policy decisions.

354. In Uzbekistan, the administration faces significant analytical capacity constraints. The rapid introduction of RIA in the country has put new pressures and unprecedented demands on the administration to adapt. Although ministries have small units dedicated to regulatory analysis, these units appear to be inadequately resourced. Furthermore, only a limited number of policymakers appear to have the necessary skills to support the curation of well-founded policies.

There is a need to improve the training and guidance available for regulatory policymaking

355. To strengthen the administration's capacity for promoting good regulatory governance, regular training sessions and guidance materials could be made more widely available. This approach would not only ensure that the methodologies adopted are up to date but would also actively enhance and refresh the skills of the administration.

356. As part of its mandate, the MoJ plans training seminars and conferences for selected public staff members to reinforce capacities for regulatory management. Between 2021 and 2022, the MoJ organised 40 training seminars and conducted two international conferences on RIA. During this same period, the ministry also facilitated a two-week training session for 112 employees of state and local self-government bodies. These sessions featured both foreign and domestic experts in RIA and covered a range of topics, including how to develop and formulate an RIA, methodologies for assessing the regulatory impact of draft legal acts, methods of information collection, and on other related topics.

357. That said, the OECD did find that access to these trainings was not as inclusive as they could be. Many participants interviewed during this review expressed interest in attending these sessions, but most of the training opportunities appeared to be available only to those directly involved in regulatory policymaking. Additionally, there seemed to be no formal manual currently in place to support policymakers with providing ad hoc guidance.

358. Therefore, to address this, Uzbekistan could consider expanding the availability of these trainings to a broader range of public servants to advance the understanding of GRPs across the administration. Guidance and manuals could also be developed to improve the accessibility of information available to strengthen the quality of regulatory proposals. Encouragingly, it appeared, however, that during the period of this review, some of these developments were already underway.

The role of RIA focal points

359. In each ministry with the authority to develop new regulatory acts, RIA focal points have been appointed to lead and co-ordinate the use of GRPs. This has been a positive development towards advancing the culture of better regulation across the Uzbek administration. It has supported with ensuring that its principles and application are understood organically.

360. The OECD, however, understood that a significant proportion of this network comprised lawyers, given that the RIA focal point also had the dual responsibility of assessing legal opinions on drafts before

they were considered by management. Therefore, moving forward, it could be beneficial to ensure that the network also includes individuals from diverse backgrounds. This would involve not only including those who understand Uzbekistan's legal framework but also bringing in experts from other relevant fields, such as data science, econometrics, environmental science, and other specialised areas. Incorporating these diverse perspectives would highlight the range of skills needed to develop well-informed policies and promote a more collaborative, bottom-up approach to information and knowledge sharing across the administration.

The use of data for policymaking

361. While the strength of capacities is one element to advance the development of well-informed policies, data availability and the use of data in policymaking is equally relevant for supporting EIPM. Without adequate data, policymakers are constrained in their abilities to conduct thorough analysis and ensure the quality of regulations. Data serves as the foundation for identifying key issues, evaluating policy options, and measuring the impact of implemented strategies. Without it, the policymaking process becomes less precise, more susceptible to errors, and ultimately, less effective in addressing the needs and challenges of society.

362. Recent efforts in Uzbekistan have been dedicated to improving data availability across the administration. For instance, in August 2021, the State Committee of the Republic of Uzbekistan on Statistics launched an enhanced version of the Open Data Portal of Uzbekistan, replacing the previous version of the portal⁷. More recently, they also introduced a single database named "SIAT" for official statistics to enhance the accessibility of statistical information⁸. Currently, the Open Data Portal of the Republic of Uzbekistan hosts over 9,000 open datasets published by 160 ministries and departments. SIAT, on the other hand, culminates more than 2,000 indicators and has reportedly reduced the time for publishing and searching official statistics by 5 to 10 times (Daryo, 2023^[8]). These developments demonstrate Uzbekistan's commitment to making data more accessible across the administration and highlight the potential of further integrating data into the country's policymaking efforts.

Greater awareness of Uzbekistan's data supply is needed to reinforce the use of data in policymaking

363. The OECD observed that feedback from stakeholders varied significantly regarding their awareness of these data portals. This suggests that data may not be utilised as effectively as it could be for designing and informing evidence-based regulations. During discussions with stakeholders about their use of data in policymaking, many expressed that it was difficult locating relevant data across the administration, and most were unaware of the existence of these platforms.

364. Consequently, it is crucial to ensure that these portals receive effective buy-in and awareness across the administration. Providing better guidance and information about these portals to administrative staff could also be essential. Contemplating alternative ideas such as developing analytical tools that closely linked these portals to regulatory policy instruments could also help with advancing the use of data in regulatory policymaking.

365. For example, in some OECD countries, regulatory databases and analytical tools have been developed to facilitate a more seamless integration of statistical information into policymaking. Tools such as regulatory compliance cost calculators and burden calculators have supported policymakers in conducting more effective assessments of regulatory impacts. An overview of how some of these tools have been implemented in OECD countries, and their potential usefulness for Uzbekistan, is provided in Box 5.2.

Box 5.2. Regulatory Databases and Analytical Tools to Support Regulatory Analysis

Several OECD governments have already developed tools to support policy makers in integrating critical data when developing and reviewing regulation, from relatively simple regulatory compliance cost calculators to complex microsimulation models for regulatory impact analysis and evaluation. However, governments have generally developed only basic analytical tools and statistical databases to analyse regulation despite open data initiatives. Nonetheless, these tools have limited the burden on policymakers to find relevant data sources and in many cases, countries referred to general regulatory databases on business counts and wages to support the measurement of regulatory compliance costs.

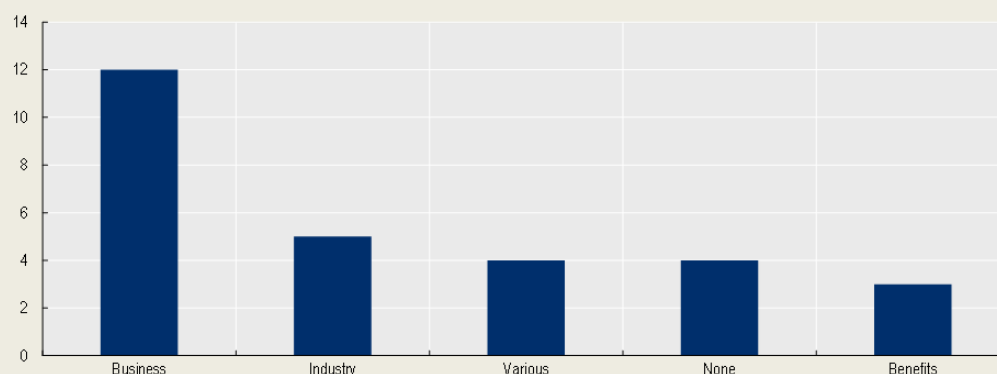
In **Canada**, for example, a regulatory compliance cost calculator (RCC) was developed to support policymakers to calculate the regulatory burden imposed on businesses of regulations made by the Governor in Council or by a Minister delegated through federal legislation. The RCC is populated with data from Canada's statistical agency – Statistics Canada – on the number of businesses in Canada meeting a specific criterion, and this data is then used to calculate the “population” factor under the Standard Cost Model. The RCC, however, is a tool for internal government use only.

Alternatively in **Australia**, the Australia Social Value Bank (ASVB) has been created to support relevant stakeholders, including government officials, to measure the social value of different government policies, programmes or other related social programs. The ASVB is a database of methodologically consistent and robust social values to help governments and NGOs measure the positive impact of their programs and policies. It currently contains 63 different social indicators related to aspects of Australian life (Australian Social Value Bank, n.d.^[9]). **New Zealand** purchased a license to use the ASVB in 2017.

In **Finland**, the Ministry of Economic Affairs and Employment has developed a Regulatory Burden Calculator to assist in the country's efforts to assess impacts on enterprises more effectively and for the country's efforts on one-for-one. The Regulatory Burden Calculator contains several items, which include data on prices, salaries, wages for positions across different levels, the average annual working hours, and other relevant categories (Ministry of Economic Affairs and Employment of Finland, n.d.^[10]). The evaluation that results from these calculations supports policymakers to promptly assess and contextualise the cost of the regulation within the economic landscape.

Figure 5.1 also offers an overview of the type of data which is most included as part of these analytical tools.

Figure 5.1. Type of data typically included in the analytical tool or database



Note: This data is based on a survey the OECD undertook in 2021 under a project funded by the European Union via the Technical Support Instrument (TSI) and implemented by the OECD, in co-operation with the European Commission Directorate-General for Structural Reform Support (DG REFORM) and the Government of Portugal (PlanAPP). The one-for-one calculations mentioned in the case of Finland, refers to the idea that regulatory agencies should not be able to adopt a new regulation without simultaneously abolishing an existing regulation (Trnka and Thuerer, 2019^[11]).

Source: (OECD, 2022^[12]), Regulatory databases and analytical tools to support regulatory analysis, Unpublished; (Australian Social Value Bank, n.d.^[9]); (Ministry of Economic Affairs and Employment of Finland, n.d.^[10]).

A closer look at the RIA framework in Uzbekistan

366. Acknowledging the progress Uzbekistan has made in developing a more robust framework for EIPM, the second part of this chapter will take a closer look at the RIA and stakeholder engagement framework in the country. As discussed earlier in the chapter, the legal framework for RIA in Uzbekistan is established under RP-5025. RP-5025 is further supported by the MoJ's Order No. 3292.

Regulatory impact assessment (ex ante RIA)

367. Regulatory impact assessments are a critical tool for governments. When applied systematically and comprehensively across all government sectors, they help ensure higher quality in government interventions (OECD, 2020^[13]). The RIA process itself is a systematic approach to weigh the benefits and costs of various regulatory and non-regulatory options for the government to address a specific problem in society. Governments must make decisions for new laws based on a sound rationale and evidence; otherwise, regulations and policies will not be-fit-for-purpose and, in the worst case, may do more harm than good.

368. RIA is a fundamental part of the *2012 OECD Recommendation on Regulatory Policy and Governance*, which all OECD member and partner countries are expected to follow. An overview of its principles and best practices can be examined in Box 5.3.

Box 5.3. OECD Best Practice Principles for Regulatory Impact Assessment

Building on the *OECD 2012 Recommendation* (OECD, 2012^[3]), the following best practice principles have been devised in relation to *ex ante* assessments.

Commitment and buy in for RIA

- Governments should:
 - Spell out what governments consider as “good regulations”.
 - Introduce RIA as part of a comprehensive long-term plan to boost the quality of regulation.
 - Create an oversight unit for RIA with sufficient competences.
 - Create credible “internal and external constraints”, which guarantee that RIA will be implemented effectively.
 - Secure political backing for RIA
- Securing stakeholder support is essential.
 - Governments have to enable public participation in the RIA process.

Governance of RIA – having the right set up or system design

- RIA should be fully integrated with other regulatory management tools and should be implemented in the context of the Regulatory Governance Cycle.
- RIA and its implementation should be adjusted to the legal and administrative system and culture of the country.
- Governments need to decide whether to implement RIA at once or gradually.
- Responsibilities for RIA programme elements must be allocated carefully.
- Efficient regulatory oversight is a crucial precondition for a successful RIA.
- Resources invested in RIA must be carefully targeted.
- Parliaments should be encouraged to set up their own procedures to guarantee the quality of legislation, including the quality of RIA.

Embedding RIA through strengthening capacity and accountability of the administration

- Adequate training must be provided to civil servants.
- Governments should publish detailed guidance material.
- There should be only limited exceptions to the general rule that RIA is required.
- Accountability- and performance-oriented arrangements should be implemented.

Targeted and appropriate RIA methodology

- The RIA methodology should be as simple and flexible as possible, while ensuring certain key features are covered.
- RIA should not always be interpreted as requiring a full-fledged quantitative cost-benefit analysis of legislation.
- Sound strategies on collecting and accessing data must be developed.
- RIA has to be undertaken at the inception stage of policy development.
- No RIA can be successful without defining the policy context and objectives, in particular the systematic identification of the problem.
- All plausible alternatives, including non-regulatory solutions must be taken into account.
- It is essential to always identify all relevant direct and indirect costs as well as benefits.
- Public consultations must be incorporated systematically in the RIA process.
- Insights from behavioural economics should be considered, as appropriate.
- The development of enforcement and compliance strategies should be part of every RIA.
- RIA should be perceived as an iterative process.
- Results of RIA should be well communicated.

Continuous monitoring, evaluation and improvement of RIA

- It is important to validate the real impacts of adopted regulations after their implementation.
- RIA systems should also have an in-built monitoring, evaluation and refinement mechanism in place.
- A regular, comprehensive evaluation of the impact of RIA on the (perceived) quality of regulatory decisions is essential.

- It is important to evaluate the impacts in cases where the original RIA document does not coincide with the final text of the proposal.
- Systematic evaluation of the performance of the regulatory oversight bodies is important.

Source: (OECD, 2020^[13]), OECD Best Practice Principles for Regulatory Policy, Regulatory Impact Assessment, OECD Publishing, Paris, <https://doi.org/10.1787/7a9638cb-en>.

The ex ante RIA process in Uzbekistan

369. In Uzbekistan, an *ex ante* RIA is mandatory for the development of all normative legal acts that involve entrepreneurship, the environment, and the civil liberties of citizens. The specific criteria to be evaluated as part of an *ex ante* assessment in Uzbekistan are detailed in Paragraph 11 of RP-5025 and include the following:

- **A description of the problem:** A clear identification of the policy issue and the potential negative consequences if regulatory action is not taken.
- **The feasibility and benefit of the proposed regulatory proposal:** An explanation of how the proposed regulation addresses the identified problem.
- **Identification of alternatives to the regulatory proposal:** An assessment of alternative methods for addressing the identified problem.
- **Identification of potential affected subjects:** An identification of the individuals or entities likely to be impacted by the draft law.
- **Analysis and comparison:** A quantitative analysis and comparison of the proposed regulation with alternative options.
- **Impact assessment:** An evaluation of the potential impacts of the proposed regulation.
- **Measures for goal achievement:** An outline of the goals to be achieved by the regulation.
- **Projected date of entry into force:** The anticipated date when the draft regulation is expected to become effective.
- **Additional data:** Any other relevant information pertaining to the impact assessment.

370. *Ex ante* RIAs are prepared by the competent ministry (i.e., the developer), which will implement and monitor the normative legal act once it will be enacted. In ministries, both the legal act and the RIA are prepared by established working groups, which include individuals with varying competences, such as lawyers, economists, representatives of expert and analytical groups, and employees responsible for the RIA (i.e., the RIA focal points). The RIA focal point within the ministry is responsible for managing the activities of the working group and co-ordinating the development of both documents.

371. Once an initial draft of both documents are prepared, several phases of consultation are undertaken. First, they are posted on Uzbekistan's public consultation portal for a period of at least 15 days. They are then submitted to the administration's three "statement issuing bodies" for an inter-ministerial review of the evaluated impacts. After the documents have undergone all pertinent consultations, they are then submitted to the MoJ for a final evaluation. In a period of 10 days, the MoJ formulates an opinion on whether it agrees with the evaluation of the regulatory dossier or whether the dossier must undergo further evaluation. If the regulatory dossier is deemed insufficient, the MoJ has the authority to reject the report and request amendments from the developer under a specified period. The MoJ's review includes assessing the developer's compliance with the requirements of this regulation during the RIA process, identifying any unjustified costs within the project, detecting the imposition of unnecessary obligations, prohibitions, and restrictions, and evaluating the validity of the proposed regulatory approach to solving the problem.

372. At the conclusion of the process, the MoJ submits all completed RIA reports to the Cabinet of Ministers. Based on the RIA results, the Cabinet of Ministers establishes the government's regulatory roadmap. This roadmap informs decision-makers about the status of regulations to be adopted based on their RIA results and includes information on any potential amendments to laws (to be further discussed in the Ex post reviews section). If the roadmap includes new legal acts, it may be submitted to the Legislative Chamber of the Oliy Majlis of the Republic of Uzbekistan for final consideration.

An assessment of Uzbekistan's ex ante RIA procedures

373. In general, the guidelines established in RP-5025 demonstrate elements of good practices. However, there are elements of Uzbekistan's RIA framework which could be reinforced or elaborated for practice. For example, Uzbekistan's proportionality principle appears to be broad defined, *ex ante* impact assessments are conducted late in the policymaking process, and there is a need to enhance clarity in defining regulatory objectives to improve the monitoring of regulatory performance. More details on this assessment, alongside others are provided below:

- Uzbekistan has made significant progress by introducing a comprehensive *ex ante* RIA framework. However, **this initiative lacks a proportional approach to ensure that limited resources are focused on regulations with the highest potential impact**. Currently, Uzbekistan's proportionality principle requires RIAs for draft regulations related to entrepreneurship, civil liberties, and environmental issues. While this is a positive step towards adopting best practices, the principle is applied too broadly, diverting resources to almost all regulations. Refining the proportionality principle to assess regulatory proposals based on their expected impact would be beneficial. The costs and time involved in developing and analysing a regulatory proposal should be justified by its positive impact on policy decisions or regulatory quality. Resources allocated to policy development should also align with the scale of the problem and its solution (OECD, 2020^[14]).
- **RIAs are implemented late in Uzbekistan's policymaking process**. According to the OECD's 2012 recommendation, RIA should be integrated at the earliest stages of the policy process (OECD, 2012^[3]). However, this essential practice is not consistently observed in Uzbekistan. In most cases, RIAs are conducted only after a regulation has been outlined in the Government's planning. While Paragraph 7 of RP-5025 allows for an early-stage RIA at the discretion of the Administration of the President, the Cabinet of Ministers, or at the initiative of the developer, this option appears to be rarely applied in practice.

To fully realise the benefits of *ex ante* RIAs, they must be positioned earlier in the policymaking process. Ideally, RIA should be initiated when legislative plans are first proposed. This approach ensures that the effectiveness of the regulation as a policy mechanism is thoroughly assessed and that alternative policy options are considered. Systematic and early application of RIA is crucial for maximising its potential to improve regulatory outcomes. Encouragingly, the OECD observed that the MoJ had recently developed a proposal to introduce the RIA mechanism at the planning stage of a regulatory legal act. During the period of this review, this proposal appeared to be under the consideration of the Presidential Administration.

- **RIAs are currently conducted only once during the regulatory policymaking process⁹**. Paragraph 7 of Chapter 1 of RP-5025 suggests that revisions to an RIA are unnecessary unless a new regulatory instrument, not included in the initial proposal, is introduced. However, this approach overlooks the possibility that any changes, whether minor or major, to a regulatory draft can impact the outcomes. As a result, RIAs should not only be implemented at the earliest stages of the policy development cycle but should also be employed as a standard tool throughout the entire regulatory policymaking process. If an RIA identifies new impacts, even if there are no changes to the regulatory instrument being applied, these developments should be communicated

to the government and relevant stakeholders. Alternative policy option should also be continuously considered when necessary.

374. The remaining assessments pertain to the OECD's observations on the quality of *ex ante* RIA:

- **Analysis of RIAs are not granular enough.** In the course of this review, the OECD was granted access to one RIA report, which focused on the adoption of information and communications technology to enhance public security in Uzbekistan. Specifically, this report examined the implementation of Closed-Circuit Television (CCTV) systems and was prepared through a collaboration between the MoJ and the European Bank for Reconstruction and Development. While this RIA was well-developed, it appeared to be an exception rather than the norm. Stakeholder discussions revealed that, in practice, the analysis of costs and benefits was often insufficient or incomplete, primarily due to a lack of data and the absence of clear guidelines on which impacts to assess¹⁰ e.g., detailed guidance on evaluating various environmental or social impacts. Additionally, alternatives to regulation appeared to be seldomly thoroughly considered. It is therefore essential to clearly define the impacts policymakers should evaluate¹¹ and to explore tools that can enhance the depth of these assessments (e.g., those described in Box 5.2).
- Finally, **policy objectives do not always appear to be clearly defined as part of the regulatory proposal.** Conversations with stakeholders suggested that the purpose of a regulation is not always clearly defined, making it difficult to assess the regulation's effectiveness later on. Monitoring regulations is crucial for determining whether a regulation or another policy tool is the best approach for addressing a specific issue. Establishing clear objectives for a regulation can not only clarify the rationale behind its imposition but also enables policymakers to track its performance and, if necessary, make adjustments to ensure the desired policy outcomes are achieved. OECD often advises that objectives of regulation should be set using the principles of SMART¹².

Box 5.4. Proportionality in RIA

Canada applies RIA to all subordinate regulations but employs a triage system to decide the extent of the analysis. The development of a Triage Statement (low, medium, high impact) early in the development of the regulatory proposal determines whether the proposal will require a full or expedited RIA. The triage system may be bypassed in favour of an expedited RIA if there is an immediate and serious risk to the security of Canadians, the environment, or the economy.

Switzerland uses a relatively complex checklist based on a set number of conditions. When three of the 10 conditions are met, then a more in-depth analysis is required. These conditions cover a wide variety of measures, including:

- General economic consequences
- Main stakeholders in at least 3 of the following categories: SMEs, large enterprises, workers, Confederation and / or cantons, taxpayers, consumers, environment, other / undetermined
- Number of enterprises affected
- Administrative burden, regulatory costs
- Competition
- Degree of international openness
- Attractiveness of the economy for investment
- Ecological sustainability
- Social sustainability

- Energy consumption

If the proposal has high administrative burdens, (at least 10,000 directly impacted businesses, increased administrative burden), the RIA must include not only a quantitative estimate of the costs of regulation, but also a qualitative assessment.

The **United States** operates a quantitative test to decide to apply RIA for subordinate regulation. Executive Order 12866 requires a full RIA for economically significant regulations. The threshold for “economically significant” regulations (which are a subset of all “significant” regulations) is set out in Section 3(f)(1) of Executive Order 12866: “Have an annual effect on the economy of USD 200 million or more or adversely affect in a material way the economy, a sector of the economy, productivity, competition, jobs, the environment, public health or safety, or state, local, or tribal governments or communities”.

The **European Commission** has a proportionate analysis approach to regulation. Impact assessments are prepared for Commission initiatives that are expected to have significant direct economic, social or environmental impacts. The Commission Secretariat general decides whether or not this threshold is met on the basis of reasoned proposal made by the lead service. Results are published in a roadmap.

Sources: (OECD, 2015^[15]), OECD Regulatory Policy Outlook 2015, OECD Publishing, Paris.

<http://dx.doi.org/10.1787/9789264238770-en>. (OECD, 2020^[14]), A closer look at proportionality and threshold tests for RIA, Annex to the Best Practice Principles for RIA, OECD, 2020.

Ex post reviews

375. Alongside *ex ante* assessments, *ex post* reviews play a crucial role in ensuring the suitability of regulations. While *ex ante* RIAs evaluate the potential impacts and effectiveness of proposed regulations before implementation, *ex post* reviews assess the actual outcomes and effectiveness of regulations after they have been enacted. It is therefore important to regularly monitor the stock of regulations to ensure their relevance and to ensure that regulations that may be efficient today are not inefficient in the future.

376. The importance of using *ex post* evaluations to assess the ongoing worth of regulations is recognised in the OECD’s *Best Practice Principles for Reviewing the Stock of Regulation*. An overview of its guidance is detailed in Box 5.5.

Box 5.5. OECD Best Practice Principles for *ex post* evaluation

Building on the *OECD 2012 Recommendation* (OECD, 2012^[3]) the following best practice principles have been devised in relation to *ex post* evaluation.

Overarching principles

- Regulatory policy frameworks should explicitly incorporate *ex post* reviews as an integral and permanent part of the regulatory cycle.
- A sound system for the *ex post* review of regulation would ensure comprehensive coverage of the regulatory stock over time, while “quality controlling” key reviews and monitoring the operations of the system as a whole.
- Reviews should include an evidence-based assessment of the actual outcomes from regulations against their rationales and objectives, note any lessons and make recommendations to address any performance deficiencies.

System governance

- There need to be oversight and accountability systems within government administrations to ensure that key areas of regulation are not missed and that reviews are conducted appropriately.
- There are benefits in institutional arrangements that combine oversight of the processes for *ex ante* as well as *ex post* evaluation processes, and that do so across the whole-of-government.
- The type of *ex post* review, and its timing or “trigger”, are best determined at the time regulations are made.
- Departments and agencies should provide advance notice of forthcoming reviews of regulation (ideally in the form of an annual “forward regulatory review plan”).
- There should be explicit provision in agency budgets to cover the costs of reviewing regulations for which they are responsible.

Broad approaches to reviews

- A “portfolio” of approaches to the *ex post* review of regulation will generally be needed. In broad terms, such approaches range from programmed reviews to those initiated on an ad hoc basis, or as part of ongoing “management” processes.
- **Programmed reviews:**
 - For regulations or laws with potentially important impacts on society or the economy, particularly those containing innovative features or where their effectiveness is uncertain, it is desirable to embed review requirements in the legislative/regulatory framework itself.
 - Sunset requirements provide a useful “failsafe” mechanism to ensure the entire stock of subordinate regulation remains fit for purpose over time.
 - Post-implementation reviews within a shorter timeframe (1 to 2 years) are relevant to situations in which an *ex ante* regulatory assessment was deemed inadequate (by an oversight body for example) or a regulation was introduced despite known deficiencies or downside risks.
- **Ad hoc reviews:**
 - Public “stocktakes” of regulation provide a periodic opportunity to identify current problem areas in specific sectors or the economy as a whole.
 - Stocktake-type reviews can also employ a screening criterion or principle to focus on specific.

- performance issues or impacts of concern.
- “In depth” public reviews are appropriate for major regulatory regimes that involve significant complexities or interactions, or that are highly contentious, or both.
- “Benchmarking” of regulation can be a useful mechanism for identifying improvements based on comparisons with jurisdictions having similar policy frameworks and objectives.

- **Ongoing stock management**

- There need to be mechanisms in place that enable “on the ground” learnings within enforcement bodies about a regulation’s performance to be conveyed as a matter of course to areas of government with policy responsibility.
- Regulatory offset rules (such as one-in one-out) and Burden Reduction Targets or quotas need to include a requirement that regulations slated for removal, if still “active”, first undergo some form of assessment as to their worth.
- Review methods should themselves be reviewed periodically to ensure that they too remain fit for purpose.

Governance of individual reviews

- The governance and resourcing of reviews, and the approaches employed, need to be proportionate to the nature and significance of the regulations concerned. While needing to be cost-effective, arrangements should be such as to facilitate findings that are sufficiently well supported to be publicly credible.
- For many regulations, evaluations will be best conducted within the departments or ministries having policy responsibility. Enforcement bodies normally should not conduct reviews themselves but are uniquely placed to offer relevant information and advice and should be closely consulted.
- The more “sensitive” a regulatory area, and the more significant its economic or social impacts, the stronger the case for an “arm’s-length” or independent review process. This in turn requires, at a minimum, that those leading a review are not beholden to the agency concerned and have no perceived conflicts of interest.
- Transparency is paramount for in-depth reviews. Reviews should be publicly announced, with scope for stakeholder input and the findings/recommendations as well as the government’s response made publicly available.

Key questions to be answered in reviews

- *Appropriateness*: reviews should address as a threshold question whether a valid rationale for regulating still exists.
- *Effectiveness*: reviews should determine whether the regulation (or set of regulations) actually achieves the objectives for which it was introduced.
- *Efficiency*: reviews need to determine whether regulations give rise to unnecessary costs (beyond those needed to achieve the regulatory goal) or other unintended impacts
- *Alternatives*: reviews should consider whether modifications to regulations, or their replacement by alternative policy instruments, are called for.

Methodologies

- Evaluations should be conducted within a cost-benefit framework that firstly identifies and documents impacts of relevance and then assesses their relative magnitudes.

- Quantification should be encouraged where feasible, as it brings additional rigour to assessments of impacts and potential outcomes.
- Data requirements are best considered at the time a regulation is being made, as part of wider.
- consideration of the type of *ex post* review that would be most appropriate.
- The observed impacts of a regulation should ideally be compared with “counterfactuals” – how things might have turned out otherwise.

Public consultations

- All reviews should involve consultations with affected parties, and to the extent possible, be accessible to civil society.
- The nature and extent (coverage, duration) of consultations should be proportionate to the significance of the regulations and the degree of public interest or sensitivity entailed.

Prioritisation and sequencing

- High priority should be given to reviewing regulations that have a) wide coverage across the economy or community and b) potentially significant impacts on citizens or organisations – i.e. “breadth and depth” – and for which there is c) *prima facie* evidence of a “problem”.
- Attention to sequencing can be important to maximise the realised gains from reforms.
- There are benefits in reviewing regulations as a group, rather than in a piecemeal fashion, where they are interactive or operate jointly to achieve related policy objectives.

Capacity building

- Having in-house capability in evaluation and review methods is essential, both in order to conduct reviews internally as well as to oversee those commissioned externally.
- Capacity enhancement needs to be pursued through the training of existing staff as well as through recruitment, with on-the-job learning an important element.
- Consultants can usefully supplement the expertise available within government, but how they may best contribute to specific cases needs careful consideration, and they should not be over utilised to the detriment of internal capability.

Committed leadership

- Support from political leaders is essential to the establishment and ongoing effectiveness of systems for the *ex post* review of regulation.
- Senior officials within the bureaucracy need to promote a culture of evaluation within their organisations and be vigilant in ensuring that good practice is actually followed “on the ground”.

Source: (OECD, 2020^[16]), OECD Best Practice Principles for Reviewing the Stock of Regulation, OECD Publishing, Paris, <https://doi.org/10.1787/1a8f33bc-en>.

The ex post review process in Uzbekistan

377. In Uzbekistan, *ex post* reviews can be conducted for all legal acts that have previously undergone *ex ante* RIAs. These reviews can only take place one year after the initial assessment. Similar to *ex ante* RIAs, *ex post* reviews are prepared by the relevant ministry responsible for overseeing the legislation. The complete guidance and methodology for *ex post* reviews is detailed in the MoJ’s Order No. 3292.

378. For the planning of *ex post* reviews, state bodies are required to submit a list of normative acts they believe should undergo review to the MoJ by 1 February each year. This list is typically based on public feedback of passed normative legal acts (as addressed in the following section) and quarterly implementation data provided by the ministries. The MoJ is responsible for compiling these proposals and preparing the annual monitoring plan. The initial draft of the monitoring plan (i.e., RIA plan) is prepared by 20 February and once completed, is submitted to the Cabinet of Ministers for final and higher review¹³.

379. Concurrently, the MoJ must also prepare an additional report for the Cabinet of Ministers, detailing the previous year's activities related to legislative monitoring and law enforcement practices. This report should include recommendations for the adoption, amendment, or cancellation of regulatory documents based on the prior year's *ex post* reviews, as well as proposals to improve law enforcement practices, address legislative gaps, and combat corruption.

380. The Cabinet of Ministers reviews and approves both the monitoring plan and the report by 20 March each year. Once approved, the plan is put into effect. Heads of State Administration Bodies are personally accountable for ensuring the quality and timeliness of legal monitoring, as well as for the development and reporting of the monitoring plan. The specifications of *ex post* reviews and their planning in Uzbekistan are detailed in Presidential Decree No. PQ-4505.

Administrative simplification efforts in Uzbekistan

381. In relation to *ex post* reviews, the Republic of Uzbekistan has made substantial progress in administrative simplification in recent years. In 2020, as part of its commitment to the 2017-2021 Action Strategy, Uzbekistan undertook a comprehensive inventory of existing regulations, resulting in the elimination of 2,500 outdated rules. Presidential Decree dated September 27, 2020 "*On measures to improve the business environment in the country through the introduction of a system for revising outdated legislative acts*" was developed and adopted as part of the implementation of the Concept for Improving Rule-Making Activities. The Executive Order introduced the principle of the "regulatory guillotine" as a mechanism for reducing the regulatory burden, ensuring a large-scale review and abolition of outdated and outdated norms that adversely affect the business climate¹⁴.

382. Moreover, Uzbekistan's 2030 Development Strategy has outlined plans to broaden its *ex post* review framework, with the objective of increasing the monitoring of regulatory legal acts to 100%. The goal is to ensure that by 2028, 100% of all drafts of regulatory legal acts undergo this assessment, and 50% of existing regulatory legal acts are also evaluated.

An assessment of Uzbekistan's ex post review procedures

383. Similar to its efforts in *ex ante* assessments, Uzbekistan has demonstrated a clear commitment to advancing its practices and guidance for *ex post* reviews. However, more systematic and consistent reviews of regulations are required. Despite upcoming efforts to broaden the *ex post* framework in Uzbekistan, it currently appears that most *ex post* reviews appear to be initiated based on proposals from ministries and public perception monitoring.

384. The following section provides more details on this assessment, as well as other relevant assessments related to Uzbekistan's *ex post* framework, are provided below:

- ***There is a need to develop a diverse portfolio of approaches for ex post regulatory reviews in Uzbekistan.*** At present, regulatory reviews in the administration appear to occur mostly on an ad-hoc basis, typically in response to public requests for specific regulations to be examined. However, integrating programmed reviews as part of Uzbekistan's regulatory management framework, could establish a more structured framework for *ex post* evaluations by specifying review timelines during the drafting of regulations. Examples of such programmed reviews can include sunset clauses and post-implementation reviews (OECD, 2020^[16]).

- **Regulations exempt from ex ante RIA are not explicitly required to undergo post-implementation reviews.** According to the guidance provided in RP-5025, ex post reviews apply only to draft regulatory acts that have undergone an ex ante assessment. However, there are circumstances in which Uzbekistan can exempt certain regulations from ex ante assessments. For example, in the following cases:
 - A regulatory legal act is aimed at preventing emergencies or eliminating their consequences, such as introducing restrictive measures (quarantine) to prevent the spread of infectious and parasitic diseases;
 - A draft regulatory legal act or adopted normative legal act provides for changes and additions aimed at aligning with the requirements of newly adopted legislative acts; or
 - A regulatory legal act or adopted regulatory legal extends beyond elements related to entrepreneurship, civil liberties, and the environment.

While swift administrative responses may sometimes require bypassing a full ex ante assessment, it is crucial to mandate a follow-up assessment shortly after the regulation's implementation. Sunset clauses, in this context, can be particularly effective, as they can automatically trigger reviews of regulations after a specified period.

- **There is also a need to better align the criteria used in ex post reviews with those from ex ante assessments.** The true effectiveness of a regulation ex post can only be known if it's measured against its originally set objectives. Therefore, linked to the assessment of needing to specify early-on the objectives of a regulation, it is important that these same objectives are used to re-assess the performance of the regulation. Presently, while the MoJ's Order No. 3292 advises that ex post reviews should verify whether a regulation has achieved its objectives, it remains difficult to assess the effectiveness of this process in practice, especially given the earlier observation that policy objectives are not always clearly defined in regulatory proposals.

385. The following assessments pertain to the OECD's observations on the governance of ex post reviews:

- **Similar considerations for refining Uzbekistan's proportionality principle should be applied to ex post reviews.** While Uzbekistan's commitment to extending its ex post assessment framework to 100% is significant, it is also crucial to consider its implications on available resources. The allocation of human resources for review should be based on a) their coverage across the economy or society, b) the significance of their impact on citizens, and c) the evidence of the problem. This assessment should help to determine the frequency of ex post reviews and the proportion of time and resources required for the review.
- **Training on ex post reviews should also be initiated to reinforce analytical capacities across the administration.** Although the MoJ has developed training modules for RIA, most appeared to focus on ex ante analysis rather than ex post analysis. While there may be common methodologies between the two, the importance and specific requirements of ex post analysis need to be more comprehensively addressed. Tailored training programmes could therefore be designed to cover the unique aspects of ex post reviews. Elements of the training could include the evaluation of regulatory outcomes, stakeholder impacts, and the alignment of regulations with their original objectives.
- **Finally, there could be scope to strengthen the parliamentary oversight on the evaluation of all laws and regulations.** The recent report by the OSCE also noted that "[while] monitoring and evaluation of the implementation of legislation is partly embodied in the ex post RIA exercise, [it] is conducted without any involvement of the parliament and it is not subject to a proper parliamentary oversight" (OSCE, 2023, p. 31^[5]).

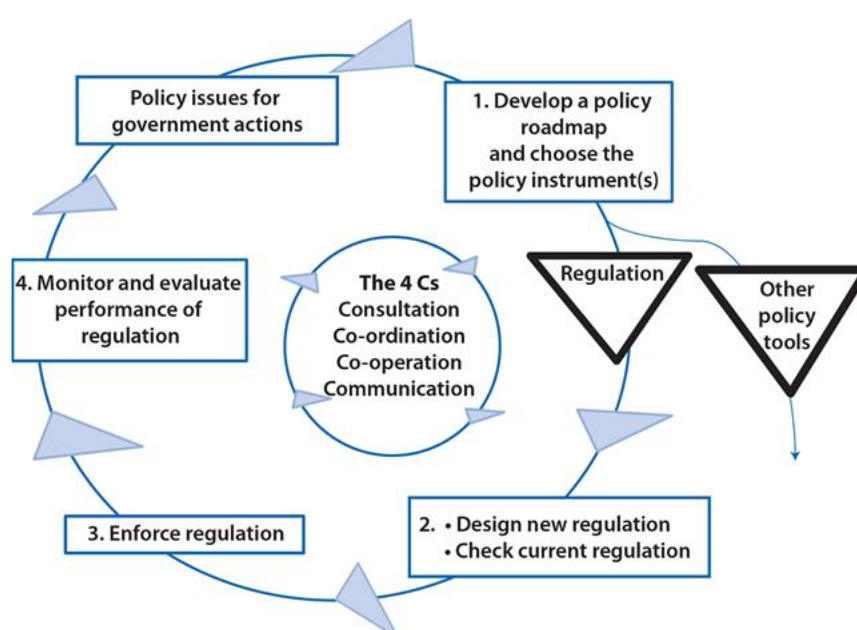
Parliamentary oversight, however, is essential for not only fostering healthy regulatory governance but also for ensuring the overall effectiveness and integrity of regulatory systems. By combining

the oversight provided by the MoJ with that of Parliament, it can be assured that regulation are serving the best interest of the public and that the right policy actions are being taken from the highest level of government¹⁵.

Stakeholder engagement

386. As a final component for assessing the development of evidence-informed regulations, stakeholder engagement is key. As depicted in Figure 5.2, stakeholder consultation, co-ordination, communication, and collaboration are core components to the evidence-informed regulatory policymaking cycle. Engagement with stakeholders helps to maintain transparency and accountability in the policymaking process and maintains that most up-to-date and realistic information is used to inform effective policy developments.

Figure 5.2. Regulatory policymaking cycle



Source: (OECD, 2011^[17]); OECD (2011), *Regulatory Policy and Governance: Supporting Economic Growth and Serving the Public Interest*, OECD Publishing, Paris, <https://doi.org/10.1787/9789264116573-en>.

The stakeholder engagement framework in Uzbekistan for regulatory processes

387. Public consultations in Uzbekistan's regulatory policymaking cycle occur at three distinct phases of the regulatory policy cycle. These stages are: prior to the drafting of regulatory proposals that hold significant economic and socio-political importance; during the development of regulatory acts, including as part of their RIA; and during the revision and review of enacted regulations.

Early-stage public consultations

388. From 1 March 2024, Presidential Decree No. PP-75 has necessitated Uzbekistan's administrative bodies to publish information about new regulatory acts with significant economic and socio-political impact on its consultation portal for stakeholder feedback (Box 5.6). This procedure has focused on increasing the involvement from civil society institutions, the scientific community, and the public in shaping and informing the design of regulatory projects.

Late-stage public consultations

389. Public consultations in Uzbekistan also take place following the development of an initial regulatory draft and RIA. Once a preliminary draft of a regulatory proposal, along with its accompanying RIA is formulated, the developers of the draft proposal must engage in a 15-day public consultation period. During this phase, the public can review the legal text, provide comments, and suggest alternative calculations if necessary¹⁶.

390. At the conclusion of this second point of consultation, the developing ministry of the regulatory proposal is obligated to summarise the comments and present an opinion on the results of consultations to stakeholders via the online consultation portal within five days. Should the regulatory draft undergo revisions based on the feedback received during consultations, a new round of public consultation is mandated. This process applies even if a regulatory proposal undergoes changes at the Cabinet of Ministers level. The developing ministry, either on its own initiative or at the request of the MoJ, can also conduct press conferences and briefings for representatives of the media, journalists, citizens, and business entities to explain the purpose, essence, content, and significance of a draft, when applicable.

Public consultations as part of ex post reviews

391. Finally, public consultations are taken for the preparation of the monitoring plan (i.e., RIA Plan) establishing the list of regulatory acts to undergo a reassessment. Annually, in early February, the MoJ solicits public consultation on this plan, over a period of 10 days. Upon the conclusion of this consultation period, the MoJ consolidates the received proposals, revises the plan as needed, and submits the updated plan to the Cabinet of Ministers for approval. Feedback from stakeholders is mainly used to support the identification of burdensome and/or obsolete regulatory procedures and to support with *ex post* reviews of regulations.

Box 5.6. Stakeholder engagement in Uzbekistan through e-consultations

All public consultations concerning regulatory projects and legal documents are centralised on the government's e-consultation platform, *regulation.gov.uz*. At the time of this review, the website compiled over 26,000 documents. Oversight of the platform is jointly provided by the MoJ and the Ministry for Digital Technologies.

The platform includes a dashboard that highlights projects with significant social relevance, along with an integrated checklist designed to help users assess various aspects of normative legal acts. This checklist enables users to verify whether the legal text is written in plain language, identify potential duplications in regulatory functions, and evaluate any conflicts of interest. Additionally, the portal provides document translations in both Uzbek and Russian.

The existence of this portal is acknowledged in Article 13 of Chapter 2 of RP-5025.

Source: Resolution of the President of the Republic of Uzbekistan (15.03.2021, No. RP-5025), <https://lex.uz/uz/docs/5700347#5700523>.

An assessment of Uzbekistan's stakeholder framework for regulatory development procedures

392. Regulatory reform initiatives in Uzbekistan have significantly strengthened the role of stakeholders in the country's regulatory policymaking process. However, it is essential to sustain stakeholder engagement throughout the entire regulatory process, ensure inclusivity, and guarantee full transparency

in policymaking. The following section provides a final set of assessments on Uzbekistan's regulatory framework, with a focus on the stakeholder engagement framework for regulatory developments.

- **Consultation with stakeholders may be exempted for certain regulations¹⁷.** Stakeholder consultation may be exempted for certain regulations. Similar to RIA processes, governments can bypass stakeholder engagement if they provide adequate justification based on specific criteria. Nonetheless, stakeholder involvement remains crucial for developing evidence-based regulations. Therefore, even in urgent situations when governments need to act swiftly, a minimum level of stakeholder consultation should be preserved. This could involve adjusting the consultation period or engaging a select group of stakeholders. Such practices were observed in some OECD countries during the COVID-19 pandemic (OECD, 2020^[18]).
- **Uzbekistan's guidance on the minimum period for stakeholders' consultation is observed as being relatively short.** Presently, the guidance for the minimum consultation periods is between 10-15 days (depending on the stage of consultation). This brief period may not provide stakeholders with sufficient time to gather and analyse the necessary data to prepare well-informed submissions. Box 5.7 provides an overview of some of the international standards observed across the OECD.
- **Engagement with stakeholders also does not appear to be widely diverse.** While Paragraph 16 of RP-5025 suggests that developers of regulatory drafts should consult various stakeholders, including academic and foreign interests, there seems to be a gap between this guideline and its practical implementation. Business associations are notably the primary participants providing feedback on regulatory proposals, while citizen involvement is comparatively limited. In this respect, regulatory oversight can be vital for maintaining robust practices in stakeholder engagement. If insufficient engagement is evident, ministries should be required to re-post their proposals and explore additional methods to consultations for ensuring as inclusive as possible stakeholder engagement (i.e., with vulnerable populations or less represented populations). Box 5.7 provides examples of how OECD countries have employed both informal and formal methods to strengthen their stakeholder engagement frameworks.

393. Finally on the governance of stakeholder engagement, the OECD observed the following assessments:

- **It is unclear how much of the final regulatory dossier submitted to the MoJ and the Cabinet of Ministers is shared with the public¹⁸.** It is essential however to ensure that all final reports of RIA and regulatory proposals are made available for stakeholder access. The OECD 2012 Recommendation highlights that governments should, whenever possible, make RIAs accessible to the public, including final RIA reports and ex post evaluations (OECD, 2012^[3]). Uzbekistan should clarify in its guidelines the requirement to publish all documents related to the regulatory dossier online or through various media channels to improve transparency in the regulatory policymaking process.
- **There should also be precision in the legal guidance regarding when regulatory drafts must undergo additional public consultations.** Paragraph 18 of RP-5025 states that if a draft undergoes revisions after its public consultation period and significantly differs from the initially posted text, it must be resubmitted for repeat consultation. This requirement applies to all levels of government, including ministries and the Cabinet of Ministers. However, the term "significantly" needs clarification to define the threshold for what constitutes "radical" changes. The guidance should be refined to eliminate ambiguity regarding when additional stakeholder engagement is necessary and whether a new RIA is required.

Box 5.7. An international perspective on minimum periods for public consultations

Governments should provide stakeholders with sufficient time to submit their view. Clear timelines should be set and publicised for stakeholder engagement activities, especially for public consultations. Stakeholder engagement is a resource-intensive exercise not only for the administration but also for stakeholders. Stakeholders must be informed sufficiently in advance on ongoing engagement activities they might get involved in and there must be enough time to get involved. Some NGOs, business associations or trade unions have to contact their members and then sometimes synthesise their inputs which makes the process even longer, especially in case of international organisations and associations.

A majority of OECD countries systematically make use of such minimum periods with a view to ensuring stakeholders have sufficient time to provide meaningful input in the rule-making process.

Generally, OECD countries allow for a minimum period of four weeks' consultation. Many countries require or recommend minimum periods of 30 or 60 days (or longer, when the regulatory proposal is particularly complex), although there are both shorter and longer periods across members. For instance, Costa Rica, Hungary, Iceland, Lithuania, Poland, and Spain provide for shorter periods, while both Switzerland and the European Union have 12-week minimum periods. Where such minimum periods exist, they are usually applied systematically, i.e. for all or major primary laws or subordinate regulations.

The OECD has series a country examples compiled online or in the Pilot database on stakeholder engagement practices in regulatory policy.

Source: (OECD, 2018^[19]), OECD Regulatory Policy Outlook 2018, OECD Publishing, Paris, <http://dx.doi.org/10.1787/g2g90cb3-en>; (OECD, 2020^[16]), OECD Best Practice Principles for Regulatory Policy: Reviewing the Stock of Regulation, OECD Publishing, Paris, <https://doi.org/10.1787/1a8f33bc-en>; Pilot database on stakeholder engagement practices in regulatory policy.

Box 5.8. Consultations with different groups of stakeholders provide different perspectives on policy problems

Informal consultations

When developing some of their regulations, the majority of OECD members engage in informal consultations with different social partners and stakeholders that might be affected by draft regulations being consulted. These include NGOs, social groups, employer and employee associations.

- **Costa Rica, Iceland, Korea and Poland** invite academics or experts to participate in informal consultations.
- In **Colombia**, some policy makers have informal sectoral consultations and roundtables at different stages of the regulatory cycle to inform the development of regulations.
- The **Canadian** Government Departments frequently meet with stakeholders to discuss regulatory proposals. For instance, during the development process of a new patient safety legislation, families, patients, healthcare providers and industry representatives were involved in the consultation process. The consultation helped regulators to identify safety improvements in the proposed regulation.
- **France** frequently holds informal consultations with various associations such as trade unions, professional organisations, environmental protection associations, and consumer associations.

Formal consultations

Most OECD members invite social partners and stakeholders who might be affected by a proposed regulation to formal consultations during the development of at least some of their regulations.

- In **Germany**, representatives of various associations are invited to participate in formal consultations. These associations include unions, legal persons or groups that promote common interests, such as economic, social, cultural or political interests (e.g., employers' associations or associations of workers).
- In **Lithuania**, representatives of The Small and Medium-sized Business Council and of the Tripartite Council (established by the tripartite co-operation between the Government, trade unions and employers' organisations) are invited to contribute to consultations.
- The **Netherlands** conducts panel discussions with individual SME entrepreneurs to examine the potential impact of regulations on this group of companies.
- In **Norway**, the Ministry of Education carried out in 2018 a formal consultation with relevant social partners that led to an agreement on a strengthened and more flexible adult education.
- In **Sweden**, legislative proposals are sent for consultation to the relevant authorities, organisations, municipalities and other stakeholders before the government submits the final draft of the regulation.

Source: (OECD, 2021^[7]), OECD Regulatory Policy Outlook 2021, OECD Publishing, Paris, <https://doi.org/10.1787/38b0fdb1-en>.

Recommendations for strengthening the institutional landscape for EIPM and regulatory quality in Uzbekistan

Uzbekistan has made significant progress in strengthening its regulatory framework. The adoption of RP-5025, alongside subsequent ministerial orders and Presidential Decrees focused on rulemaking, has established a foundation for embedding principles of sound regulatory practices across the administration. However, the critical challenge now lies in effectively translating these policies into actionable practices. Moving forward, Uzbekistan should prioritise enhancing the analytical capacities of the administration to ensure the adoption of GRPs, maintain a whole-of-government, but proportional approach to rulemaking, as well as reinforce the methodologies underpinning regulatory management tools. These steps are essential as the country advances its commitment to evidence-based policymaking.

The recommendations presented below build on the assessments covered within this chapter. They offer considerations towards what some next development could be for Uzbekistan as it looks onwards to strengthening a more informed and evidence-based regulatory policymaking landscape.

Reinforce communication of better regulation principles.

- **[short term] Continue** advancing the development of sound and effective regulatory practices while reinforcing communication on the importance of better regulation. This includes regularly demonstrating to both the public and the administration the impact of evidence-based regulations and how they contribute to a more accountable and transparent law-making landscape.

Promote a more cohesive regulatory landscape

- **[short-medium term] Advocate** for the streamlining of legislative plans to reinforce regulatory coherence. This could also promote a plan of prioritisation, and where applicable combine ministerial efforts to achieve common policy objectives. A common legislative plan across the administration could also strengthen transparency and accountability on government actions.

Strengthen the institutional framework for regulatory oversight by reinforcing resources and ensuring that it extends across the entire government.

- **[short-term] Reinforce** the capacities of the MoJ. To ensure the long-term sustainability of the Ministry's analyses, allocate effective human resources to support its operations. This should include maintaining there are a diversity of analytical skills and competences available within the Ministry to manage all levels of assessments.
- **[long-term] Ensure** a whole-of-government approach to regulatory oversight. Advocating for alignment in oversight procedures between the executive and parliamentary levels will be crucial for the development of evidence-based normative legal acts at higher levels of government. This alignment will also help ensure consistency in the quality of both primary laws and secondary regulations.

Analytical capacities for regulatory analysis should be reinforced across the whole-of-government.

- **[short-term] Allow** for the basic training on the relevance of better regulation to all civil servants. Particularly, making training more accessible and available to those who may be outside the scope of directly drafting regulatory policies and their RIA.

- **[short-term] Build** guidance and manual that provide ad-hoc support to civil servants on the relevance of RIA, its methodology, and how it should properly be applied as part of the policy development framework. This guidance can also support decision-makers with evaluating assessments and maintaining that good regulatory practices are endorsed at the highest level of governance. Guidance should also be extended to cover methodology across the entirety of the regulatory policymaking process, from *ex ante*, *ex post*, and stakeholder engagement.
- **[short - medium-term] Maintain** the network of RIA focal points to facilitate the coordination of RIA efforts across the administration and empower them as advocates of better regulation to communicate its benefits. However, this network should be inclusive, incorporating members with technical backgrounds such as data scientists, statisticians, econometricians, environmentalists, and other subject experts. This would demonstrate the variety of skills required for informed, well-designed, and evidence-based regulations.

Strengthen the use of data for EIPM and regulatory policymaking in Uzbekistan.

- **[short term]** Ensure the use of data in policymaking. Data should, wherever possible, be made open and interoperable across the administration. While Uzbekistan has made significant progress for advancing open data portals and software, communication and buy-in of these resources will be essential for maintaining that data is used as part of policymaking efforts. The use of data and these data portal for policymaking could also be incorporated as part of RIA guidance and manuals.
- **[long term]** Consider developing standardised regulatory databases or analytical tools to reinforce and support the use of data in policymaking Box 5.2 provides examples of how some countries have adopted this approach.

Recommendations for the use of *ex ante* RIA, *ex post* reviews, and stakeholder engagement.

Reinforcing Uzbekistan's *ex ante* RIA framework

- **[short to medium-term] Refine** Uzbekistan's principle of proportionality for RIA. Many OECD countries recognise that not every regulation requires the same level of scrutiny. The costs and time involved in developing and analysing a regulatory proposal should be justified by its positive impact on policy decisions or regulatory quality. Resources allocated to policy development should align with the scale of the problem and its solution. The consideration of a proportionality principle can even be considered as early as the legislative planning phase. An overview of how the proportionality principles has been adopted in some OECD countries is presented in (OECD, 2020^[14]).
- **[short to medium-term] Enhance** the integration of RIA into the earliest stages of policymaking. To fully realise the benefits of *ex-ante* RIAs, they must be initiated at the beginning of the policymaking process. Ideally, RIA should commence when legislative plans are first proposed. This approach helps maintain the quality of the regulation, ensures consideration of alternative policy options, and guarantees continued alignment with broader policy objectives. RIAs should also be employed as a standard tool throughout the entire regulatory policymaking process to monitor any relevant changes, to the policy environment and assessment, and ensure that policy evaluations remain consistent with overarching objectives.
- **[short] Clarify** the impacts that should be addressed as part of the *ex-ante* RIA assessment. According to the OECD 2021 Regulatory Policy Outlook, the most commonly observed impacts by countries include competition, the public sector, the budget, small businesses, the environment, gender equality, and social goals.

- **[short-term] Ensure** that clear and measurable policy objectives are set as part of the regulatory policymaking process (e.g., SMART objectives). This should guide the need of the regulation (or other policy alternatives) and support in measuring its achievements, *ex post*.

Systemising *ex post* reviews of regulations

- **[short term] Adopt** the similar parameters of the proportionality principle for *ex post* reviews.
- **[medium-long term] Integrate** programmed reviews as part of Uzbekistan's *ex post* review framework. Systematic reviews of regulations should be undertaken on a regular basis to manage the health of the regulatory stock. Adopting measures such as sunset clauses, embedded or thematic-led reviews could help with automatically triggering the review of regulations.
 - This practice should also encompass all regulations that have been exempted from *ex ante* RIA as well. In such cases, *ex post* reviews should be obligatory and conducted within a shorter timeframe (e.g., 1-2 years) after the regulation's introduction.
- **[short-term] Align** the methodological framework for *ex post* reviews as closely as possible to the criteria to *ex ante* assessment. This will help to connect the way regulations are assessed for performance in comparison to what was perceived during their initial assessment.
- **[medium – long term] Align** the reviews of laws and regulations at the parliamentary level. The role of parliamentary oversight should be to assess the quality of laws and regulations proposed by the Cabinet of Ministers or the Administration of the President. Strengthening oversight at both levels will also help ensure regulatory consistency and quality across the entire government.

Strengthening stakeholder engagement for inclusive policymaking

- **[short-term] Engagement, consultation and communication with stakeholders** should happen throughout the regulatory policymaking process. Stakeholders should even be engaged as far as possible on regulatory proposals that may need to be approved under expedited process. For regulations exempted from *ex ante* RIAs, the government should, to the greatest extent possible, seek to involve the public, even if it necessitates adjusting the consultation period or involving only a selected group of stakeholders.
- **[short term] Increasing** the minimum period of stakeholder consultations to allow for more meaningful engagements with stakeholders. On average OECD countries prescribe four weeks for public consultations (OECD, 2018^[19]).
- **[short term] Ensure** that a diversity of stakeholders is engaged. Diversity of stakeholders should include vulnerable populations, those who are underrepresented and those who may not typically engage in government procedures. The Government should also be proactive in using alternative approaches for meaningful engagement such as interviews, public forums, and focus groups to maximise engagements. As the regulatory oversight body, the MoJ should also aim to ensure that sufficient engagement with stakeholders have been taken.
- **[short term] Enforce** that all relevant documents of the regulatory dossier are made available to the public for purposes of advancing transparency and openness. This could include RIA reports, both *ex ante* and *ex post* and all versions of the legal text of regulatory drafts.

Maintain clarity in the guidance for stakeholder engagement should be given to ensure there is no ambiguity between when stakeholders should be consulted or who should be consulted.

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⁹ A similar assessment is mentioned in para. 59 in (OSCE, 2023^[5]).

¹⁰ A related assessment is mentioned in para. 54 in (OSCE, 2023^[5]).

¹¹ Most OECD countries continue to have a strong focus on analysing the economic impacts of regulatory impacts. That said, policymakers in OECD countries have increasingly started to drive their attention to address impacts related in domains of the environment, social goals, sustainable development and gender equality. See the OECD's Regulatory Policy Outlook 2021 for more information: <https://doi.org/10.1787/38b0fdb1-en>.

¹² Specific, Measurable, Achievable, Relevant, and Time-Bound.

¹³ The Ministry of Justice annually by February 10, based on the proposals of state bodies and organisations, develops a draft plan for conducting RIA and posts it on the portal for a period of 10 days for public discussions.

¹⁴ The core principle behind this idea is the ability to swiftly review and repeal a substantial number of normative acts following a filtration process aimed at identifying ineffective, non-functional, or inappropriate regulations, as well as those that contradict the law. These acts are then proposed for annulment. However, the process does not include an analysis of the benefits and costs for stakeholders.

¹⁵ A similar assessment is made in para. 93 of (OSCE, 2023^[5]).

¹⁶ Uzbek officials note that conclusions from alternative assessments of regulatory impact, prepared by participants in public discussions, are to be considered by the relevant state bodies. However, it is important to note that this practice has not yet been observed in Uzbekistan.

¹⁷ A related assessment is mentioned in para. 77 of (OSCE, 2023^[5]).

¹⁸ A similar assessment is mentioned in para. 82 of (OSCE, 2023^[5]).

6

Building the basis for a strategic civil service in Uzbekistan that delivers results

This chapter analyses the human resource management system in Uzbekistan and its recent reform agenda. It looks at four main challenges central to prioritising reform efforts and to build the basis for the strategic management of public employment in Uzbekistan: 1) Establishing the right ecosystem by placing the Agency for the Development of Public Service at the centre; 2) Strengthening merit-based recruitment; 3) Defining civil service competences and integrating them in the human resources cycle; and 4) Building an effective senior civil service.

Introduction

394. In recent years, Uzbekistan has undergone an ambitious reform programme aimed at modernising and liberalising the economy and attracting foreign investment, streamlining the bureaucracy and strengthening anti-corruption. It marks a shift towards greater openness and reform. One of the key areas supporting this reform programme is the civil service.

395. The civil service plays a crucial role in fostering economic growth and societal well-being. It serves as the backbone of public administration, overseeing essential services like healthcare, education, and social assistance programmes crucial for citizens' welfare and economic stability. Moreover, civil servants are tasked with efficiently managing government resources, including budget allocation and procurement, to bolster sustainable economic growth and ensure fair distribution of resources. Additionally, they actively contribute to shaping regulatory frameworks and policy formulation aimed at nurturing economic prosperity, tackling societal disparities, and safeguarding public welfare.

396. In 2017, Uzbekistan introduced the *Concept of Administrative Reform* which sets out six directions for reforming the public administration and establishing an effective and transparent system of public administration capable of safeguarding citizens' rights and enhancing Uzbekistan's economic competitiveness on the global stage. Defined by six priority areas, including the improvement of institutional, organisational, and legal frameworks within executive authorities and the establishment of a professional civil service system, the Concept represents a concerted effort to modernise governance structures and combat corruption within the public sector.

397. Overseeing the reform and implementation of human resources standards, the Agency for the Development of Public Service under the President of the Republic of Uzbekistan (ARGOS) was established in 2019. ARGOS was tasked with a range of responsibilities, including the initiation of reforms in the civil service, facilitation of co-ordinated personnel policies across state agencies, implementation of innovative methods for personnel management, oversight of the National Personnel Reserve, introduction of a system for evaluating civil servants' effectiveness, and organisation of transparent and independent competitive selections for vacant positions. Furthermore, the Agency assumed responsibility for the administration of the "El-Yurt Umidi" Foundation under the Government of Uzbekistan. This foundation provides scholarships for bachelor's, master's, or PhD programs abroad in specialties needed in the public service. Grantees are required to work in the public service for three years after completing their studies.

398. The impetus for reform of the civil service was further strengthened by the *Development Strategy of New Uzbekistan 2022-26*. The strategy outlines seven priorities, with the first priority focussed on building a people's state by elevating human dignity and advancing civil society. Within this priority, Goal 10 specifically targets the re-organisation of the civil service system in alignment with modern standards. The objectives under Goal 10 include the elimination of factors contributing to corruption, recruitment of personnel through competitive processes, evaluation of performance based on key performance indicators (KPIs), enhancement of professional training, pay, and social security benefits for civil servants, formation of a National Personnel Reserve, implementation of the "Digital Civil Service" project, and revision of working hour requirements and labour standards.

399. The reforms in the civil service regime were further solidified with the Law on Public Civil Service in 2022. The law provides the legal framework for the civil service, including a basic classification of positions:

Table 6.1. Classification of position in the civil service of Uzbekistan

Groups of positions of the civil service	Categories of positions in the state civil service	Qualification ranks of positions in the state civil service	Appointed	Selected through competition
Political	Leadership	Advisor of the highest rank 1st rank Advisor 2nd rank Counsellor 3d rank Counsellor	X X X X	
Managerial	Managerial personnel	1st rank Employee 2nd rank Employee 3rd rank employee		X X X
Auxiliary	Specialists	4th rank employee 5th rank employee 6th rank employee		X X X

Source: based on the Law of the Republic of Uzbekistan on public civil service and information provided by ARGOS.

400. Despite these reform efforts, Uzbekistan's civil service continues to face myriad challenges, as acknowledged by expert assessments (World Bank Group, 2019^[1]) (World Bank, 2022^[2]). Efficiency and staff capacities remain relatively low. Opaque decision-making and outdated recruitment practices dominate on the ground, while nepotism persists. Senior staff lack strong accountability, and ineffective communication within and between government departments remains prevalent. These systemic shortcomings have severely impeded the development of a modern, effective bureaucracy.

The OECD framework for Public Service Leadership and Capability

401. Recognising the need for a whole-of-government approach for public employment, in 2019, the OECD Council adopted the *Recommendation on Public Service Leadership and Capability* (OECD, 2019^[3]). The recommendation is a normative instrument that aims to guide member and partner countries in developing a future-ready public sector workforce equipped with the skills, supported by effective organisations and practices. The fourteen principles provide a framework for building a values-driven culture and leadership, investing in public service capability and setting up a responsive and adaptive public service (Figure 6.1).

Figure 6.1. OECD Recommendation on Public Service Leadership and Capability



Source: (OECD, 2019^[3]).

402. In adopting a strategic approach to public employment, OECD countries typically exhibit several shared characteristics. Firstly, senior leadership acknowledges the significance of people management strategies in attaining organisational objectives. They actively engage in strategies aimed at attracting and retaining top talent for the civil service. Secondly, the participation of senior leaders includes a focus on organisational capability, including through positioning Human Resources (HR) departments/ministries or units as proactive partners capable of aiding in the achievement of strategic goals—not merely as passive administrators of staff records. Thirdly, the importance of cultivating a workforce with the appropriate skill and competency mix at both individual and team levels is recognised. The majority of OECD countries utilise competency frameworks to guide recruitment campaigns, assessment queries, performance evaluations, and promotion/mobility determinations. This approach is designed to establish a symbiotic relationship where distinct organisational goals align with observed traits of individuals who contribute effectively to their attainment (OECD, 2021^[4]).

403. Against the backdrop of reform and transformation in Uzbekistan, this review analyses how to anchor the reforms in a long-term strategic approach to ensure that the right people with the right skills work in the right places to achieve goal and objectives as effectively and efficiently as possible. In line with OECD standards and the Recommendation on Public Service Leadership and Capability, this means designing a system that is able to determine what skills are needed, evaluate how people with those skills can be attracted to the public sector, develop a culture of learning to support employee development and using those skills optimally through sound management practices and organisational structures. The review looks at four main challenges to prioritise reform efforts and to build the basis for the strategic management of public employment in Uzbekistan:

1. Establishing the right ecosystem by placing ARGOS at the centre;
2. Strengthening meritocracy in the civil service;
3. Defining civil service competences and integrating them in the human resources cycle;
4. Building an effective senior civil service.

Size and shape of the public employment in Uzbekistan

404. The civil service employs approximately 94,000 individuals. Of this number, 2.1% work at the national level across 10 different state bodies (e.g., the Presidential Administration), 55% are employed in republican executive bodies (e.g., committees or inspection bodies), and the remaining 42% work at the regional level, including in khokimivats. According to ARGOS, a breakdown of roles shows that 0.2% hold political positions, 22.7% managerial positions and 77.1% occupy auxiliary positions. In 2024, public sector employment constituted 18.5% of total employment as reported by the Uzbek Statistics Agency. Unfortunately, no current information is available on the government expenditure for employee compensation.

Getting the ecosystem right for civil service reform in Uzbekistan

ARGOS needs to consolidate its role as the central HR actor

405. Within the framework of the public employment system, numerous institutions and entities play a role in strategic HR management. It is important to establish transparent and co-ordinated institutional responsibilities for formulating, leading, and executing the components of the HR system. This ensures adherence to normative requirements and the implementation of measures that mutually reinforce one another, driving positive transformation. However, the effectiveness of these responsibilities hinges upon the provision of mandate, resources, and capabilities.

406. Before 2017, the configuration of the civil service in Uzbekistan reflected a hierarchical model inherited from the Soviet era. Various government ministries and agencies held responsibility for distinct sectors and functions. Patronage influenced appointments, promotions, and career advancements, leading to a highly politicised civil service. Decisions regarding appointments and career progressions were frequently aligned with political agendas rather than solely based on merit or professional qualifications. This lack of transparency and political influence presented challenges in establishing standards for recruitment, training, and career progression within the civil service.

407. The establishment of ARGOS in 2019 represents a significant transformation in the structure and operation of Uzbekistan's civil service. Tasked with strategic HR leadership for the public sector, ARGOS co-ordinates, oversees, and standardises HR practices. The establishment of one single body responsible for HR guidance and development aligns with the reform agenda aimed at modernising the civil service and enhancing its efficiency and improve co-ordination.

408. The *OECD Recommendation on Public Service Leadership and Capability* (PSLC) underscores the importance of clarifying institutional responsibilities for people management to bolster the efficiency of the public employment system by:

- Setting up an institutional authority to establish and oversee common minimum standards for merit-based people management.
- Delegating an appropriate level of autonomy to individual agencies, ministries, leaders, and/or managers to align people management with their strategic business objectives.
- Ensuring effective mechanisms for communication and information sharing among institutional actors in the public employment system.
- Ensuring that each institutional actor in the public employment system possesses the requisite mandate and resources for effective functioning.

409. Similar to the model in Uzbekistan, nearly all OECD countries, except Germany and the Slovak Republic, have at least one central HRM unit at the national level. Among OECD countries, 22 countries have established central units tasked with overseeing key HR functions, such as pay setting, performance

appraisal systems, and codes of conduct. Additionally, eleven OECD countries, including Australia, Austria, Belgium, Finland, France, Iceland, Ireland, Italy, Portugal, Slovenia, and Sweden, have central HRM units that serve a co-ordinating role across line ministries, despite not having formal responsibility for HRM functions (Figure 6.2).

Figure 6.2. Delegation of HR responsibilities to line ministries in central government, 2016

	General management of pay systems (salary levels, progressions)	Flexibility of working conditions (number of hours, etc.)	Allocation of budget envelope between payroll and other expenses	Performance appraisal systems	Management of the variable portion of pay benefits; performance-related pay	Number and types of posts within organisations	Recruitment into the civil service
Australia	■	■	■	■	■	■	■ ▲
Austria	◆	◆	■	◆	■	◆	■
Belgium	◆	◆	■	◆	❖	■	◆
Canada	◆	◆ ❖	■	◆ ■	◆ ❖	■	■ ▲
Chile	◆ ■	■	◆ ■	❖ ■	◆ ■ ▲	◆ ■	◆ ■
Czech Republic	◆	◆ ■	◆	■	❖ ■	◆ ❖	■
Denmark	❖	◆ ■	◆	■ ▲	■	■	■ ▲
Estonia	■	■ ▲	■	■	■	■	■
Finland	◆ ■	❖	■	❖	■	■	■
France	◆	❖ ■ ▲	◆ ■	❖ ■ ▲	❖	◆ ■	◆ ■ ▲
Germany	■	■	■	■	■	■	■
Greece	◆	◆	x	◆	x	x	◆
Hungary	◆	■	◆ ■	◆	◆ ❖ ■	◆ ■	■
Iceland	◆	■ ▲	■	x	❖ ■	■	■ ▲
Ireland	x	❖	◆	◆	x	■	◆ ❖
Israel	◆	◆	◆	■	◆	◆	◆
Italy	❖ ■	❖ ■	■	■	■	■	■
Japan	❖	❖	x	❖	❖	❖	❖
Korea	◆	◆	◆	❖	❖	x	❖
Latvia	◆	◆ ■	◆ ■	◆	■	◆ ■	■
Luxembourg	◆	◆	◆	◆	x	◆	❖
Mexico	◆	◆ ■	◆ ■	◆ ■	◆ ■	◆ ■	◆ ■
Netherlands	◆	◆ ■	◆	◆	◆	■	■
New Zealand	■	■	x	■	■	x	■
Norway	❖	❖	◆ ■	■ ▲	■ ▲	■	▲
Poland	■	■	◆ ■	◆	■	■	■
Portugal	■	■	■	■	■	■	■
Slovak Republic	■	■	■	■	▲	■	■
Slovenia	❖	■	◆	■	■	❖	■
Spain	◆	◆	◆ ❖	◆ ❖	■	◆ ❖	◆ ❖
Sweden	■	■ ▲	■	■ ▲	■ ▲	■	■ ▲
Switzerland	❖	◆ ■	❖	◆	■	❖	■ ▲
Turkey	◆	■	◆	■	◆	◆	❖
United Kingdom	■	■	◆	■	■	■	■
United States	◆	■	■	◆	■	■	■
Total OECD							
Central HRM body ◆	19	14	18	15	7	11	8
Central HRM body but with some latitude for ministries/ agencies ❖	6	7	2	6	8	5	6
3 Ministries/ agencies ■	12	23	20	18	23	23	25
4 Unit/team level ▲	0	4	0	4	4	0	8
x = not applicable/ not available	1	0	3	1	3	3	0
Colombia	◆	■	x	❖	◆	◆ ■	x
Costa Rica	◆	x	◆	◆	■	◆	◆
Lithuania	◆	◆	◆	◆	◆	■	■

Source: (OECD, 2017^[5]).

410. ARGOS, as the central strategic HR body for the civil service in Uzbekistan, has an ambitious mandate encompassing co-ordination, oversight, standard-setting, and direct management of key HR

processes. Despite its pivotal role, ARGOS has encountered significant challenges in fulfilling its potential to shape the HR agenda.

411. Capacity constraints, prevalent throughout the public sector, have impacted ARGOS. While the agency boasts skilled experts, their capacity is often limited to the dedicated project teams, hindering broader implementation. Furthermore, while ARGOS has undertaken a vast reform agenda, there has been limited consideration and understanding for the optimal allocation of resources, the sequencing of projects, and the identification of potential challenges in implementation. This has resulted in a dispersed focus, weak implementation across the civil service, and limited progress on foundational elements essential for subsequent initiatives.

412. For example, despite a thorough development process involving the analysis of national and international reports, best practices, and extensive consultation with over 400 deputy ministers, heads of departmental divisions, and heads of departments, the planned competency model has not been fully integrated into HR processes. Interviews revealed a lack of shared understanding among stakeholders regarding its implementation, hindering its effectiveness in driving organisational performance.

413. At the same time, a lack of prioritisation can be identified where the quantity of reforms is prioritised over targeted successful initiatives. This runs the risk of projects and reforms becoming tick-box exercises without real progress. Moreover, there is limited understanding of project goals, intermediate milestones and desired impact beyond the core ARGOS team, affecting stakeholder engagement and potential resistance to change.

414. To overcome these challenges and garner support, ARGOS needs to enhance transparent communication, clearly articulating its objectives and reform agenda. Effective collaboration with key stakeholders, including HR units within entities, the National Academy of Public Administration (APA), and the Agency for Strategic Reform (ASR), is essential. In some areas, ARGOS has taken strides in this direction, such as partnering with the Ministry of Digital Technologies.

415. ARGOS has also established a Public Council under its leadership, comprising representatives from various agencies, ministries, such as the APA, and the public, for example a representative from the Federation of Trade Unions of Uzbekistan. The Public Council meets quarterly to discuss progress on the civil service reform agenda.

416. The objectives of the Public Council are to discuss challenges to the development of the civil service, implementation challenges to regulatory acts and programmes and to develop proposals for improving the legislative framework for the civil service. To fulfil its mandate, the Public Council has the right to consult procedural and statistical information necessary for developing and implementing proposals and make proposals to the heads of the state body and subordinate organisations.

417. The Public Council has the potential to improve co-ordination among civil service actors. However, interviews suggest that further efforts are needed to create a shared vision, co-ordinate and prioritise efforts and proactively address implementation challenges during the project planning phase.

Strengthen the Public Council to prioritise projects and avoid overly ambitious projects

418. To achieve better co-ordination and a targeted focus in its reform agenda, the Public Council needs to be leveraged more effectively. The current membership of the Council is rather large, which risks hindering effective discussion. While a diverse membership ensures broad perspectives, the formation of technical working groups can address specific issues and bring together experts with relevant expertise. These groups would meet regularly to advance in their areas and report back to the broader Public Council.

419. For example, Ireland established a Civil Service Management Board to oversee the implementation of the priorities set out in the Irish Civil Service Renewal Plan. The Board is chaired by the Secretary General to the Government, comprises all secretaries general and heads of offices. Two sub-

groups drive progress on specific actions. The minutes of meetings and annual reports on reform progress and follow-up actions are published regularly.

420. In Uzbekistan, to improve project management, ARGOS needs to prioritise a set of manageable initiatives with defined objectives and allocate resources accordingly. Project scopes need to be realistic and manageable, focusing on foundational elements. Therefore, a priority of the Public Council should be to review the current portfolio of reform projects and rank priorities. A dedicated sub-working group, including ARGOS, APA, and relevant agencies and ministries, could prepare this review. For each identified priority, the Public Council should agree on targeted outcome goals. The HR strategy, currently under development, should inform these discussions and serve as a roadmap.

421. Once a limited and manageable number of priorities have been established, experts from member organisations could meet in thematic technical subgroups to break down priority projects in terms of scope, sequencing, intermediate outputs, resource requirements, costs, implementation barriers, timelines, and necessary data. These findings would be presented to the Public Council for review.

422. Robust monitoring and evaluation mechanisms are necessary to inform future projects. Once adopted, the Strategy would be guided and monitored by the Public Council and the relevant working group. This approach fosters a shared vision among the civil service and stakeholders, supports priority-setting, focuses on delivery, ensures effective sequencing, and avoids overly ambitious or poorly designed reforms.

423. These exercises should be conducted regularly for both ongoing and new initiatives. Outcome reports of Public Council meetings, including recommendations to clarify scope, goals, sequencing, and costs, should be published to enhance transparency.

Increase the availability of capable personnel by leveraging the National Personnel Reserve

424. To effectively implement the ambitious reform agenda, addressing capacity constraints within ARGOS and the wider public sector is paramount. A critical step is to increase the availability of skilled personnel capable of driving priority projects. While training initiatives are underway, their impact will take time to materialise.

425. To bridge this gap, leveraging the National Personnel Reserve as a flexible talent pool presents a promising strategy. The Reserve prepares selected personnel for managerial roles through tailored development plans and specialised training. By enhancing the mobility of its members and enabling their deployment to specific projects, ARGOS can augment project teams with skilled personnel, meeting immediate capacity needs while also further developing future leaders with practical experience.

426. Drawing inspiration from the Australian Public Service, the concept of task forces could be adapted to the Uzbek context. In Australia, task forces are assembled for specific projects/priorities, bringing together public servants with diverse expertise. Members are seconded from their regular roles for a defined period, contributing their skills to the project while gaining valuable experience. Upon completion, they return to their original positions, enriching their skillset and potentially assuming leadership roles. This could be done in a similar way for those civil servants belonging to the National Personnel Reserve. By strategically addressing capacity constraints through talent development, workforce flexibility, and targeted deployment, ARGOS can significantly enhance its ability to deliver on its mandate and contribute to the modernisation of the Uzbek civil service.

427. In summary, while ARGOS has made commendable efforts, it faces significant challenges in fulfilling its mandate. By addressing capacity constraints, improving project management, and strengthening stakeholder engagement, ARGOS can enhance its effectiveness as a strategic HR leader and contribute to the modernisation of the Uzbek civil service.

APA is a strong partner in the reform agenda with a focus on training that could be further strengthened

428. A key partner for the civil service reform agenda led by ARGOS is APA. APA plays a pivotal role in civil service learning and development, coupled with a research function. It offers a broad range of training courses and is central to addressing the current skills gap.

429. Given its expertise, APA's role could focus on three key areas: capacity building aligned with the competency framework, developing a centre of excellence for senior civil servants, and conducting research to inform policy and provide advice to ministries and agencies on civil service.

430. APA's expertise lies in designing and delivering training courses, ranging from leadership development to specialised courses. While progress has been made towards more practical and transferable skills training, a stronger emphasis on building a learning culture is needed. For example, to develop civil servants capable of leading change and managing complex programs, APA could consider incorporating other learning modalities such as internal secondments and cross-government placements into its training offerings. The offer needs to be co-ordinated with other schools of government to avoid overlap.

431. Improving civil service capability is paramount. As planned by ARGOS and APA, the future competency framework should guide APA's training programme development, for both long-term and short-term initiatives. Training courses must align with the competency framework, focussing on essential skills for all civil servants, including leadership competencies. These programmes should be practical, interactive, and demonstrate how to apply skills for improved public service delivery.

432. APA can also play a pivotal role in developing senior-level civil servants. By positioning itself as a Centre of Excellence for senior-level civil servants, APA can offer specialised training and development courses tailored to the unique challenges and responsibilities of senior-level civil servants. This includes strategic management, change management, public policy development, performance management of staff, and stakeholder management. Through a combination of executive education courses, mentorship, and coaching, APA can cultivate a cadre of skilled and visionary leaders capable of driving the reform agenda forward. Some steps towards this have already been taken with training courses being offered.

433. Lastly, APA's academic foundation positions it uniquely to serve as a research centre supporting the civil service reform agenda and providing expertise in forecasting future needs as well as strategies to improve public administration efficiency. By conducting in-depth research, assessments, and data analysis, APA can:

- Identify knowledge gaps: Pinpoint areas where data and information are lacking to inform effective policymaking.
- Inform policy development: Provide evidence-based recommendations to support the development and implementation of new policies.
- Evaluate policy impact: Assess the effectiveness of existing policies and programs to inform future initiatives.
- Build a knowledge base: Create a repository of research findings and data to support continuous learning and improvement.
- Develop research capacity: Strengthen the research capabilities of civil servants through training and mentorship.
- Collaborate with stakeholders: Partner with government agencies, academia, and civil society to conduct collaborative research projects.

434. By focussing on these areas, APA can further strengthen its role as a source of evidence-based information and contribute significantly to the success of the reform agenda.

Using the HR strategy to guide HR reforms under ARGOS leadership

435. A strategy or strategic policy for HR in the civil service is essential to support a coherent and comprehensive HR system. Strategic planning, based on insights gained from data, consultation and evaluations to learn from past practices as well as foresight on future trends, is crucial to build a forward-looking civil service. The PSLC Recommendation calls on countries to develop a long-term, strategic and systematic approach to people management based on evidence and inclusive planning. Indeed, in 2016, a majority of OECD countries reported articulating a strategic medium to long-term vision for the civil service (OECD, 2017^[6]).

436. Uzbekistan is currently in the process of developing the *Strategy for the Development of the civil service until 2030*. This presents a significant opportunity for ARGOS to bolster its leadership credibility in driving reforms to modernise Uzbekistan's civil service. Firstly, ARGOS should ensure that the civil service strategy reflects a vision aligned with the broader reform agenda, articulating targeted goals and objectives aimed at enhancing professionalism, efficiency, and transparency within the civil service. By demonstrating a strong commitment to addressing key challenges and priorities identified in the reform agenda, ARGOS can instil confidence in its leadership role.

437. Moreover, ARGOS needs to leverage the development process as a platform for extensive stakeholder engagement, actively involving ministries, agencies, and civil society organisations in shaping the strategy. In the majority of OECD countries, HR strategies are endorsed at the political level, with their development typically involving internal and/or external consultation. Countries like Estonia and Finland engage senior management in the strategy's development, while countries such as the Netherlands, Slovak Republic, Sweden, and the United States take it a step further by soliciting input from all civil servants. In the Netherlands, the *HR Strategy 2020 for the central public administration* was initiated by an in-depth analysis of trends and forecasts, followed by an inclusive drafting process with directors of HR and Organisational Development of all ministries. In addition, civil servants, experts and young people from outside the public administration were asked for critical feedback on draft versions.

438. As part of this Review, the HR Strategy of Uzbekistan was not available for analysis given its current drafting process. The Review focussed therefore on the development process. The process seems to follow a similar approach closely involving actors across the public sector as well as the public. ARGOS has been organising seminars and workshops with ministries and agencies to gather direct input into the strategy. This inclusive approach not only fosters a sense of ownership among stakeholders but also enhances the strategy's relevance and effectiveness by incorporating diverse perspectives and expertise. However, while the inclusive development process is commendable, it is crucial to expedite the finalisation and adoption of the strategy to enable immediate action. The strategy is essential for guiding reforms, and it should be implemented promptly without compromising due process.

439. Prioritisation is crucial in the development of HR strategies. Effective strategies are characterised by an approach that focusses on a limited number of objectives. As discussed previously, rather than attempting to address every potential issue, well-crafted strategies identify key priorities based on careful analysis and consultation. This approach ensures that resources and efforts are directed towards the most critical areas for improvement, maximising the strategy's impact. By narrowing down the focus to a manageable set of priorities, countries are able to develop strategies that are more targeted, actionable, and ultimately, more successful in achieving their intended outcomes. Under the leadership of the Public Council, ARGOS should similarly prioritise its objectives in consultation with relevant stakeholders. This can ensure that the HR strategy is both comprehensive and focussed on addressing the most pressing needs and challenges within the public sector, while avoiding the current overload of projects which are not sequenced adequately.

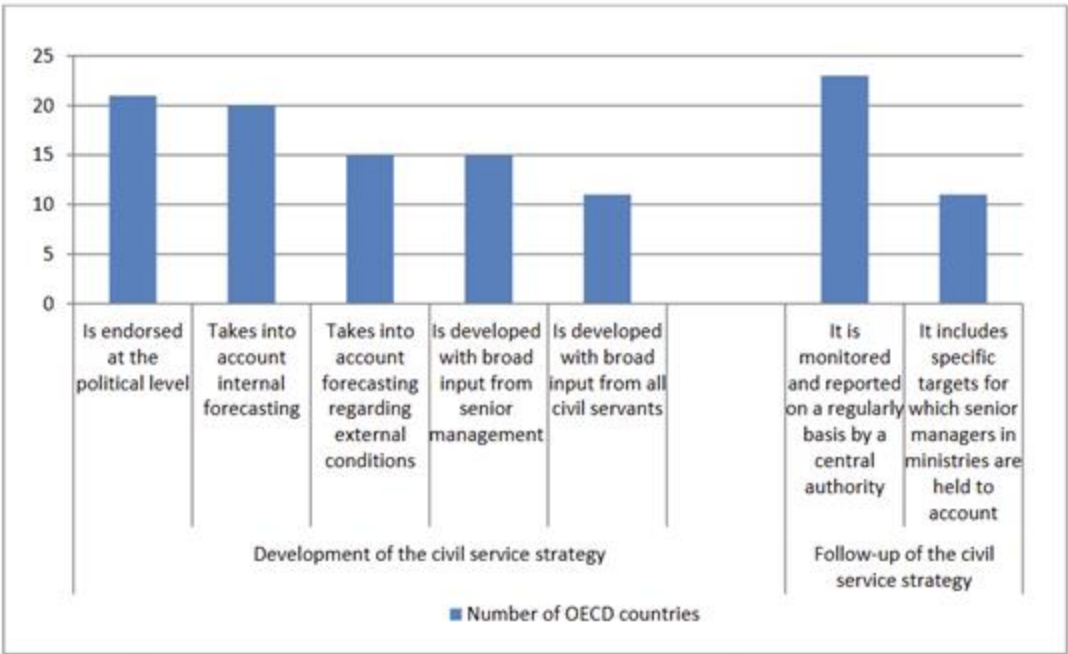
440. Additionally, ARGOS should prioritise transparency and accountability throughout the strategy development process, ensuring that decisions and actions are open to scrutiny and public feedback. An

important step would be if ARGOS, as planned, opens the final Strategy to a rigorous review process involving all ministries, legal and public experts, and make it accessible to the public for feedback. By embracing transparency, ARGOS can mitigate doubts regarding its intentions and build trust with stakeholders. Uzbekistan has planned to adopt the HR strategy through a regulatory legal document by the President of the Republic of Uzbekistan. This would showcase commitment at the highest level.

441. Furthermore, ARGOS should emphasise the importance of implementation and monitoring mechanisms within the strategy, outlining pathways for execution and evaluation of progress. In OECD countries, most strategies foresee a process for reporting on implementation. Some countries also hold senior management directly accountable for results (Figure 6.3). In Uzbekistan, there are currently no concrete measures to monitor and evaluate strategy implementation or to hold senior managers accountable for strategy implementation.

442. Lastly, once adopted, a continuous and sustained communication strategy should be planned beyond the initial roll-out of the strategy to reach the different ministries and agencies. This should target in part the HR offices who will be responsible for implementation, civil servants, as well as the public.

Figure 6.3. Development and follow-up of civil service strategy



Source: (OECD, 2017^[6]).

Box 6.1. Developing an HR strategy in the Netherlands

In the Netherlands, the HR Strategy 2020 for the Central Public Administration was developed in an interactive process between October 2011 and March 2013. This development not only included senior level public servants, but all willing civil servants. The highlights were included in the reform agenda of the new Minister of Housing and Central Public Administration in May 2013.

The process of development started with an in-depth analysis of internal trends and forecasts of personnel development, and external economic, social and technological trends. These included labour market, labour relations and labour conditions, as well as trends that would influence the policy areas and operational management of central public administration.

The directors of HR and Organisational Development of all ministries, chaired by the director of the central department for civil service of the Ministry of Interior, were responsible for the development of the Strategy 2020. This group met monthly during the first half of 2012 to discuss various areas related to the strategy. Each meeting was prepared by the programme leader from the Ministry of Interior, together with members of this group and external experts. One of the meetings was with the strategic advisors on policy areas of the ministries. The secretaries-general of the ministries and their directors for operational management were asked in individual interviews for their image of the future, and were involved in steering boards for their agreement during several phases of the process.

The strategy began to take shape as a PowerPoint presentation with a lot of background analyses and information and focused on the main challenges and basic assumptions for future HR-policy development for specific areas. In summer 2012, groups of experts from the ministries and agencies further developed each area to come up with shared ideas and to identify the policies in each area and the inter-connections across areas that needed to be successful. The evolving presentation was adjusted and expanded in order to be used internally by each ministry.

In September 2012, a group of young people from outside the public administration was asked to critically reflect on the draft HR-strategy 2020. In October 2012, the final draft interactive presentation of the HR Strategy 2020 was approved by the directors of HR from all ministries, their directors of operational management and the secretaries-general.

A draft policy paper on the HR Strategy 2020 was developed and posted on the internal website of central public administration in order to engage all civil servants in discussions on the strategy. Individual civil servants, as well as groups or departments from all over the central public administration, works councils and unions, sent their responses and suggestions. Finally, the (political) highlights became part of the reform agenda in May 2013. A flyer and a video were made to inform all civil servants. The HR Strategy 2020 continues to provide the framework for policy development in specific HR areas or topics, and after several years a process to update the strategy will be launched.

Source: (OECD, 2017^[6]).

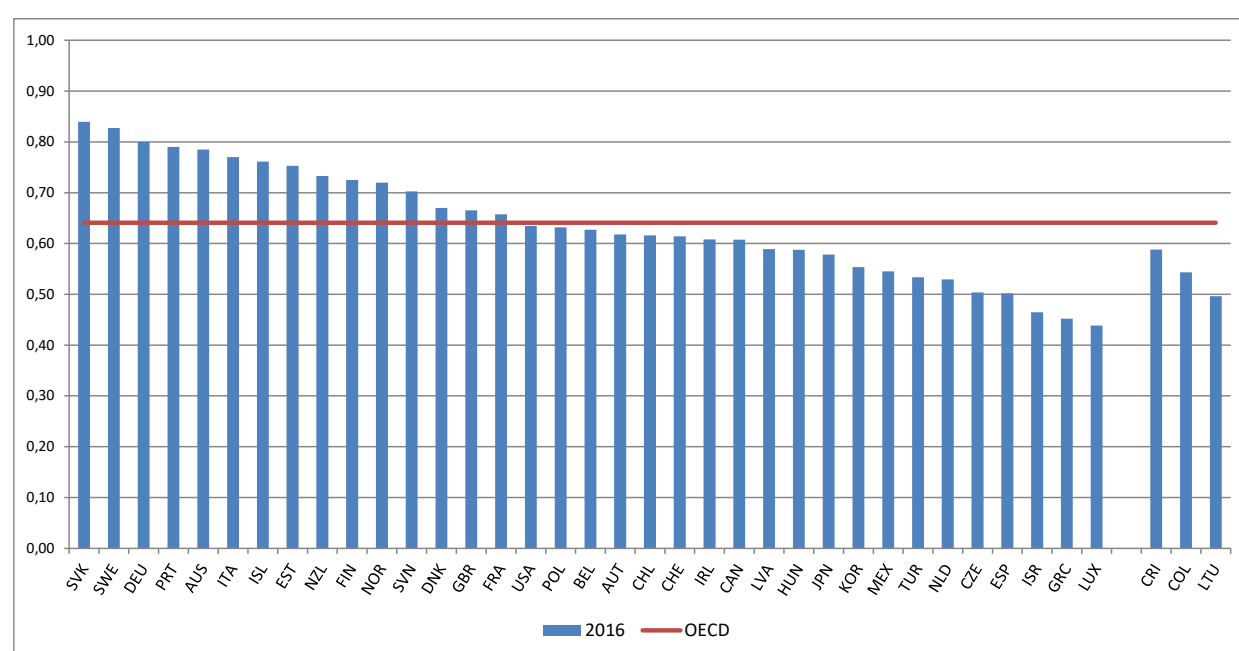
HR bodies in the ministries fulfil mostly administrative roles

443. Having a central HR body does not preclude the delegation of responsibilities. Delegation, under appropriate framework conditions and minimum standards, empowers public managers to oversee their staff effectively. This allows them to consider the unique needs of their respective ministry or agency. Such an approach has the potential to align HR planning more effectively with organisational strategy. However, delegation in the absence of common HR standards and central oversight often leads to disparities in pay

scales and limits opportunities for comprehensive government-wide HR planning. Moreover, it increases the risk of nepotism and political intervention in staffing decisions.

444. Analysing the delegation levels in OECD countries, it is noteworthy that the structure of HR decision-making in countries typically seeks to maintain an equilibrium. In 2016, several OECD countries exhibited a notable degree of delegation, with examples such as the Slovak Republic and Sweden standing out. In the Slovak Republic, the absence of a central HRM unit overseeing minimum standards poses challenges in data collection for HR planning and the establishment of common performance processes. Meanwhile, Sweden's delegation model is accompanied by robust standards managed by the central HR authority, facilitating more effective delegation (Figure 6.4).

Figure 6.4. Extent of delegation of human resources management practices in line ministries in central government, 2016



Source: (OECD, 2017^[5]).

445. HR units or departments play a crucial role in overseeing all stages of an individual's career and managing HR within the ministry or agency. HR units are uniquely positioned to understand and address the specific needs and challenges faced by ministries and their staff. Their proximity to the day-to-day operations allows them to serve as strategic allies in driving organisational transformation. With the advent of digital tools, HR units have the opportunity to transition to higher-value work, expanding their responsibilities beyond traditional administrative tasks to encompass areas such as work organisation, career development, training, and change management.

446. While some OECD countries have made strides in this direction, Uzbekistan's HR function appears to be lagging behind. HR units in ministries and agencies often find themselves overwhelmed with administrative duties and lacking the necessary resources and capabilities for more strategic people management. Without adequate support, HR units struggle to innovate and meet the evolving needs of the civil service.

447. The support ARGOS gives to HR units in enhancing their skills is a lever for transformation. ARGOS and APA have facilitated workshops, seminars, and conferences where representatives from

various ministries and agencies at all levels of government can exchange best practices, share insights, and address common human resources management challenges. This includes seminars on human resource management, focussing on new HR technologies, selection and recruitment, staff development, performance evaluation, and the utilisation of analytics and metrics. In 2023, 16 training courses were held.

448. Furthermore, ARGOS has undertaken measures to alleviate the administrative burden faced by HR units. For instance, it has set up a central recruitment platform, which not only fosters greater transparency and open competition but also lightens the workload of HR units. Previously, candidates had to supply about 16 documents. This has been replaced by one electronic questionnaire. To further streamline administrative processes, a unified information system for personnel records management has been introduced. This has the potential to considerably alleviate HR administrative tasks.

449. However, further reinforcement is necessary to equip HR bodies with personnel capable of fulfilling a strategic role and transitioning beyond purely administrative functions. ARGOS has reviewed the responsibilities and activities of HR units using specific metrics. On the basis of this analysis, a draft resolution on Model Regulations on Personnel Departments of Republic and Local Executive Authorities was prepared. The draft was not available for review by the OECD team and as such could not be assessed. In implementing the draft, ARGOS could consider focussing on reducing administrative burdens through measures such as automation, while striving to maximise value.

450. For instance, in 2015, the Australian Public Service (APS) initiated a review process to enhance the effectiveness of strategic HR units within ministries and agencies. This review began with a forward-looking vision for the future public service and involved an assessment of existing reforms alongside benchmarking exercises against international good practices. It identified the imperative to overhaul HR practices, highlighting a deficiency in focussing on high-value strategic activities, partly attributed to capability shortfalls. Furthermore, the review underscored a lack of clarity regarding the role of the APS Commission in HR matters and identified opportunities to revamp learning and development initiatives, while harnessing technology to enhance HR performance and service delivery.

451. As HR professionals assume a more strategic role, there is merit in contemplating the development of a structured HR career path in Uzbekistan. Such a pathway would entail specific training and learning programmes tailored to equip HR professionals with the skills needed to adopt a more strategic HR approach within their ministries and entities, thereby providing crucial support to line managers. A step towards a HR career is the planned introduction of a master's degree in human resources management.

452. By conducting a comprehensive review and bolstering HR units and their activities, HR units can allocate a greater portion of their resources towards higher-value tasks. Strengthening these units allows them to dedicate their expertise to the development and implementation of strategic programmes aimed at more effectively managing personnel within ministries or agencies.

Box 6.2. Supporting the human resources function in OECD public administrations

Many OECD governments recognise that building institutional human resource capacity is essential for public administrations to fulfil their missions:

- **Australia:** The Australian Public Service Commission (APS) commissioned a review of its human resource capabilities in 2017. The Review found that the human resources function was a critical component of the best performing areas of the public service. It concluded that people working in the human resources sector, and in particular human resources managers, should develop specialised competences and play a more distinct role in planning and operational decisions.
- **Canada:** The Policy on Workforce Management provides deputy ministers with the fundamental support needed to recruit and retain high-performing officers, thereby ensuring good governance and quality services to Canadians, as well as an inclusive, safe and barrier-free workplace that embodies public service values such as respect for people and democracy, integrity, responsible management, and excellence in action and decision making. The policy defines the human resources goals and expected results, the role of other government organisations and the consequences of non-compliance.
- **France:** Human resources (HR) are an important lever for the performance and modernisation of public intervention. The HR sector is accordingly at the heart of transformations, which concern both the professionalisation of its players and the renewal of its functions focused on new strategic, forward-looking and steering missions. Based on the comment of an image deficit in the sector, which leads to difficulties in recruiting and retaining agents, in a framework of permanent transformation of the professions, the General Directorate of the Public service has developed an "action plan for the transformation of the HR function" in 2019. This ambition is reflected first of all in the opening in 2020 of a project that forms part of the government's priority reforms, aimed at modernising the recruitment function. An "interministerial plan to transform the recruitment function" has produced concrete deliverables such as: the basis of an "employer brand" to promote the sector and develop its attractiveness; a guide to structuring the recruitment function; an interministerial recruitment training market; an "induction toolbox"; methods and tools for describing needs, sourcing and managing recruitment pools. These actions will be extended in 2021 to support the transformation of the HR function, processes and businesses.
- **Ireland:** The third pillar of the people Strategy for the Public Service 2017-2020 focuses on strengthening the human resource capacity of managers and better positioning the human resource functions to contribute to organisational goals.
- **United Kingdom:** The UK Public service has established a set of minimum standards and expectations for various public sector roles, including human resource management. This norm forms part of a set of operational standards that define the government's management expectations. Standards can include both mandatory and advisory elements.

Source: (OECD, 2021^[7]), Australia: <https://www.apsc.gov.au/redesigning-hr> ; Canada <https://www.tbs-sct.gc.ca/pol/doc-fra.aspx?id=32621>; France, https://www.fonction-publique.gouv.fr/files/files/publications/coll_outils_de_la_GRH/guide-transformation-de-fonction-RH.pdf ; Ireland, <https://assets.gov.ie/7232/1bd4d30f2003444a9ca59f1cf87afc28.pdf>; United Kingdom: https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/818838/6.5721_CO_Government_HR_Functional_Standard_FINAL_GOV.UK.pdf

Strengthening meritocracy

453. A merit-based civil service is essential for the effective functioning of a modern state. Such a system ensures qualified individuals are placed in positions where they can make the greatest contribution, while also enhancing public trust and confidence in government institutions. Beyond recruitment, meritocracy fosters a culture of continuous learning and performance improvement. When promotions are based on objective criteria rather than personal connections, civil servants are incentivised to develop their skills and expertise, leading to a more professional and responsive civil service.

Digitising the recruitment process is a step towards strengthening the consistent application of merit

454. Uzbekistan has undertaken significant reforms in recent years, aiming to establish a more open and competitive recruitment process. These include:

- **Centralised online portal:** The introduction of a central web portal (www.vacancy.argos.uz) allows for online applications and vacancy announcements. All stages of the selection process have been automated and decisions communicated through the web portal. This promotes transparency and accessibility, potentially attracting a wider pool of qualified candidates.
- **Standardised exams:** Standardised tests assess candidates' basic skills and knowledge, including IQ, logical thinking, and language proficiency. While a positive step, these tests alone may not capture the specific skills and competencies required for specific roles. As a result, ARGOS is working to further improve the procedure and include tests for more specific roles.

455. To publish a vacancy, ministries and agencies first need to ensure that they remain within the approved headcount. Positions are automatically opened for competitive application on a web portal upon vacancy registration with ARGOS. By moving the application process online, counterparts have indicated that it helped to attract younger generations to apply for positions. On average, each vacant position receives 55 applications. To maximise the effectiveness of the web portal as a recruitment tool, it is essential to evaluate compliance with the requirement of publishing all vacancies on the portal.

456. Candidates must meet qualification criteria before undergoing a standardised examination assessing IQ, logical thinking, Uzbek language proficiency, and constitutional and civil service legal knowledge. This test does not evaluate skills or competencies.

457. Successful candidates proceed to interviews conducted by a ministry or agency selection committee, with ARGOS acting as an observer. Interviews consist of presentations on a specific topic or case studies, including five standard questions selected from a question catalogue followed by up to five additional questions at the interviewer's discretion. This can help to assess specific skills not addressed in the standardised exams.

458. Candidates have the possibility to lodge a complaint to ARGOS in cases where they feel the recruitment process did not follow the rules. Where there are justified grounds, ARGOS makes binding recommendations to the recruiting authority on removing the causes and contributions contributing to the violations. Since 2022, ARGOS has received 464 complaints, primarily related to administrative issues. According to ARGOS, the majority of the complaints related to administrative issues.

459. Despite these efforts, in practice, there still a strong perception of limited meritocracy in the civil service. Recruitment processes often prioritise degrees over practical skills, neglect comprehensive talent assessment, and lack consistent implementation of standards. In addition, instances of nepotism persist (Bertelsmann Stiftung, 2024^[8]).

Capabilities among ministries and agencies for recruitment needs to be strengthened before delegating the recruitment process

460. While Uzbekistan has made progress in digitising the recruitment process, **establishing a robust governance structure and baseline capability is crucial to ensure consistent application of merit principles**. Clearly defined roles and responsibilities for all stakeholders, namely ARGOS, APA, and HR units, are essential. ARGOS needs to monitor the application of the standardised procedures and tools more closely. In addition, over-emphasis on standardisation has led to insufficient skills and competency assessment. Implementing a competency framework is crucial to address this (see also the following section).

461. To ensure effective implementation, HR units and managers require capacity building. Ministries and agencies have assumed recruitment responsibilities without adequate preparation. ARGOS, in co-ordination with APA, have provided trainings to more than 300 members of recruitment commissions at all levels of government. However, these types of capacities can be built only gradually and is, if done effectively, a longer process. Therefore, ARGOS needs to take a more active role in guiding recruitment in those agencies and departments where capacities have not yet been developed. As capabilities grow, ARGOS can gradually transfer responsibilities and focus on oversight. For advanced ministries and agencies, some level of delegation, for example of developing vacancy descriptions and holding interviews can be considered.

462. Regular audits to assess implementation, data analytics, and monitoring of candidate experience are essential for continuous improvement. By leveraging data and analytics on recruitment outcomes, candidate profiles and candidate experience can help identify trends, measure effectiveness, and inform future strategies. Building data analytics capabilities within HR functions will be crucial for evidence-based decision-making. In the long-term this data should also help to support strategic workforce planning.

463. Ultimately, establishing a culture of meritocracy requires consistent application of these principles and a long-term commitment to improvement. By systematically monitoring progress and adapting practices accordingly, Uzbekistan can build a civil service that is both efficient and effective.

Defining competences to structure the civil service

The introduction of a competency framework is a step towards systematising competences and skills

464. An integral aspect driving strategic personnel management is competency management, i.e., the articulation of requisite abilities and behaviours essential for various job roles. Integrating competences into HR management policies and processes such as recruitment, performance management and learning and development ensures that the public sector develops and maintains a workforce equipped with the necessary skills (OECD, 2017^[6]).

465. A competency-based model underscores the significance of skills, knowledge, and abilities essential for individuals to perform effectively in their respective roles, irrespective of their job titles or assigned tasks. Competences encompass expected abilities and behaviours crucial for success across various job functions, such as communication, problem-solving, teamwork, and leadership. These competencies serve as elements guiding recruitment, learning and development initiatives, and performance management within the civil service (OECD, 2011^[9]).

466. In contrast, a functional model for personnel management within the civil service primarily revolves around structuring tasks and responsibilities based on specific job functions or roles (OECD, 2011^[9]). Within this model, employees are typically assigned duties in accordance with their job titles or positions.

467. While a functional model relies on predefined job descriptions and tasks to structure personnel management, a competency-based approach prioritises the identification and cultivation of core competences crucial for success across various roles. This approach fosters greater flexibility and adaptability in job assignments and performance assessments by emphasising the fundamental skills and capabilities indispensable for achieving organisational objectives (Table 6.2) (OECD, 2011^[9]).

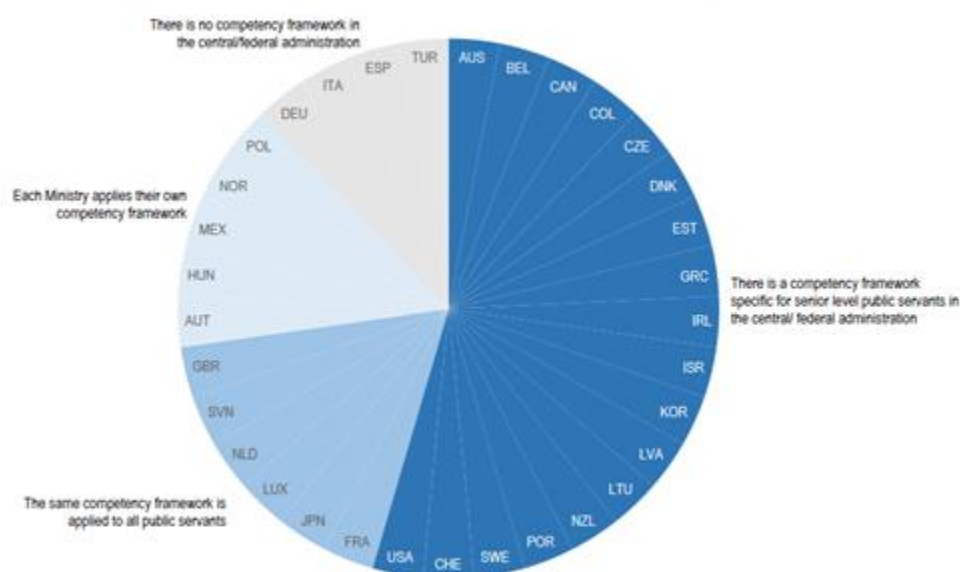
Table 6.2. Differences between a functional and competency-based approach to HR

Functional approach	Competency approach
Job description What is done? Cluster of core tasks and functional requirements (knowledge, skills, self-responsibility)	Competency profile What is done, why, and how? Cluster of core tasks and competency requirements (knowledge, skills, personality, attitude, values and norms, incentives)
Selection How is the person? Selection in order to realise a fit between the function and the individual Selection in order to fill a vacancy Selection criteria based on the current function Selection criteria focusing on knowledge, personality, and attitude	Selection How does the person function? Selection in order to realise a fit between the individual and the organisation Selection with a view to the growth and development of an organisation in the long term Selection criteria based on the future Selection criteria: knowledge, personality and attitude, but also skills, values and behaviour
Development Development of knowledge Aimed at hierarchical promotion With a view to raising job skills	Development Development of knowledge, ability and willingness Aimed at horizontal mobility and maximum use of human potential With a view to developing skills and behaviour
Appraisal Focus on functioning in the job Focus on dedication	Appraisal Focus on functioning in the job, performance, results and potential Focus on behaviour
Reward Pay according to the job The relative weight of the function determines the wage Focus on responsibility, knowledge and seniority	Reward Pay according to work The competencies required for the organisation determine the wage Focus on output

Source: (OECD, 2011^[9]) (Limbourg, 1997^[10]).

468. In OECD member countries, there is a notable trend towards adopting common competency frameworks, particularly at the highest levels of leadership within the public sector. Among OECD member countries, 18 countries have implemented common competency frameworks, specifically designed to highlight the leadership skills expected from public managers. In contrast, only six countries have established a centralised competency framework applicable to all civil servants (Figure 6.5). This trend reflects a strategic approach to managing senior executive groups separately, emphasising the transversal leadership qualities deemed essential for effective governance (see also the following section) (OECD, 2021^[11]).

Figure 6.5. Common competency frameworks in OECD countries



Note: Data not available for Chile, Iceland, and the Slovak Republic, other answer for Finland. Original survey question: "Is there a standard competency framework for senior level public servants?"

Source: (OECD, 2021^[11]).

469. Aligned with OECD standards and practices, Uzbekistan initiated the development of a competency model in 2022, under the guidance of ARGOS. This collaborative effort involved APA, stakeholders representing different agencies and government levels, and international experts. The ongoing development process aims to establish a comprehensive framework comprising ten competences: strategic thinking, leadership, teamwork, result orientation, decision-making, time management, initiative, change management, self-development, and analytical thinking. The ultimate goal is to formulate a competency framework that encompasses the entire public service, categorised by groups of position, i.e., political, managerial and support. The draft competences are largely in line with OECD practices. However, Uzbekistan could include additional emerging competences in its framework to address evolving challenges, such as digital technologies, diversity and inclusion, crisis management, resilience, and emotional intelligence, as some OECD countries have done (OECD, 2021^[11]).

470. While the inclusive development approach is a commendable first step in structuring the civil service around competencies, promoting professionalism and merit-based practices, it currently lacks concrete measures for implementing the competency framework. A robust implementation strategy is crucial to avoid the framework becoming a paper tiger. ARGOS has indicated plans to begin training and implementing competencies at various levels of ministries and departments starting in the second half of 2024, and to extend this effort to the management of ministries and departments in their areas of activity in the middle of 2025. However, no specific actions have been outlined, and interviews suggest limited understanding of how to apply the competency framework to practical HR processes.

471. To remedy this, the following actions could already be contemplated throughout the development process. First, this entails communicating the competency framework, particularly to HR units and line managers. To facilitate this, ARGOS could provide them with information material explaining the competences. For example, Switzerland provides, for each competence, a definition, various dimensions that give the competency tangible relevance, and a statement outlining the kinds of behaviours that demonstrate this competence (Box 6.3). Second, the competency framework needs to be integrated into

HR processes. Currently, plans for integrating the competency framework into HR processes appear undefined in Uzbekistan. Therefore, it is crucial to proactively strategise on leveraging the competency framework to guide HR processes and policies. Third, it is advisable to incorporate regular reviews of the competency framework to ensure its continued relevance.

Box 6.3. Competences for civil servants in Switzerland

The competency model of the Swiss federal administration is made up of 10 competencies grouped under management, personal and social competencies as follows:

- **Management competences:** leadership, people management, effective action in the political context, strategic thinking and action, change management, entrepreneurial thinking and action.
- **Personal competences:** personal responsibility, loyalty, focus on objectives and results, ability to cope with stress, self-reflection, capacity for learning and changing, analytical and conceptual thinking, networked thinking.
- **Social competences:** ability to communicate, ability to deal with criticism and conflict, ability to work in a team, service orientation, diversity management.

Each competency is printed on a card that includes a definition of the competency, various dimensions which give the competency tangible relevance, and a statement of the kinds of behaviours that demonstrate this competency. For example:

Effective action in the political context refers to the ability of individuals to analyse the political context in its full complexity, to recognise opportunities for taking action, and to consider and take advantage of the dynamics of political processes to achieve the goals that lie within the scope of their own responsibility:

- **Dimensions:** Political sense, ability to act in the political process, ability to forge consensus and compromise, focus on stakeholders, public appearance skills.
- **Behaviours:** Analyses the political context and takes advantage of opportunities to act. Considers political processes in order to achieve objectives within scope of own responsibility.
- Keeps up with political developments and deepens own understanding of events.
- Takes the political process into account in the performance of own tasks.
- Puts forward own suggestions to help reach a consensus or compromise.
- Knows the needs and expectations of political stakeholders, networks effectively with the political environment.
- Represents own administrative division plausibly in wider political and media circles.

Source: (OECD, 2017^[6]).

The competency framework needs to be integrated in the HR processes

Recruitment and selection

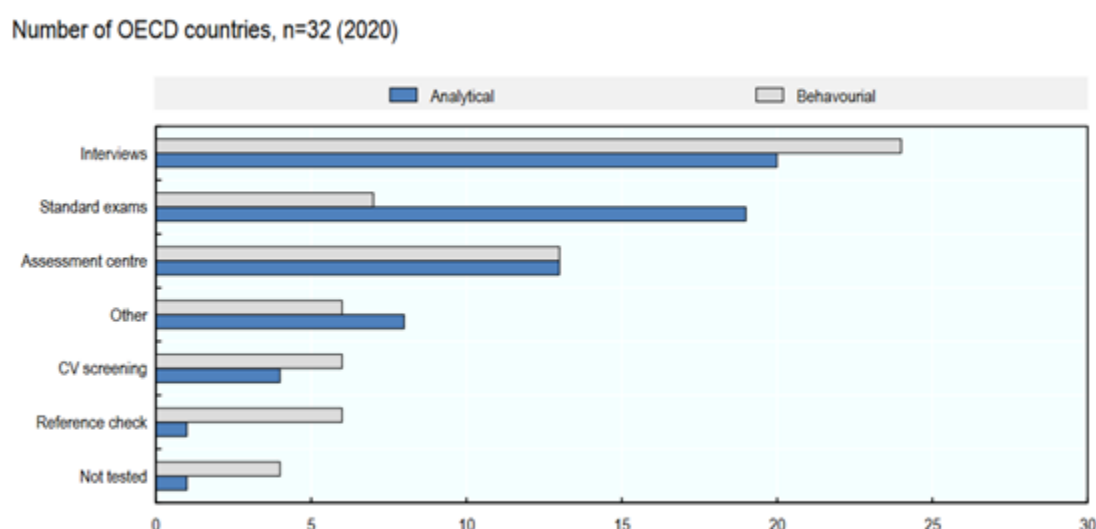
472. To determine the competences required for different positions, many OECD countries use job profiling. A job profile combines a description of job expectations with an outline of the competences, skills, abilities, and behaviours, necessary for effective job performance. When appropriately employed and supported by suitable assessment methods, a set of competences offers a rigorous objective means of

evaluating candidate suitability. Competency assessment allows for the evaluation of how well both internal and external candidates meet the requirements of a particular role (OECD, 2011^[9]).

473. **While the current recruitment process includes job-related presentations and question topics, it does not systematically assess competencies or skills.** To integrate the competency framework, ARGOS, in collaboration with HR units, could develop job profiles for each qualification rank of civil service positions based on the framework. ARGOS reported that job profiles have been drafted in the draft regulation on Model Job descriptions of civil servants of the Republic of Uzbekistan. While these were not available to be reviewed, it is important that these profiles outline both generic and job-specific competences, along with their respective development levels. During the recruitment phase, more fine-tuned competency assessments could be integrated into the candidate evaluation process based on this.

474. In OECD countries, a diverse range of methods is employed to evaluate the analytical and behavioural competences of candidates during the recruitment phase (Figure 6.6). Common approaches include assessing analytical competences through interviews or examinations, with some countries employing more comprehensive assessment centres. Additionally, methods such as computer-based tests, psychological assessments, and simulation games fall under the category of 'other' approaches used to evaluate these competences. It is noteworthy that almost all OECD countries incorporate assessments for behavioural competences. These assessments offer valuable insights into candidates' problem-solving approaches, decision-making abilities, and interpersonal skills within professional settings (OECD, 2021^[11]).

Figure 6.6. Testing for analytical and behavioural competences



Note: Original survey question: "How are the following criteria tested for applicants to the civil service?"

Source: (OECD, 2021^[11]).

475. By aligning the recruitment process with the competency framework and employing diverse assessment methods, ARGOS can ensure a comprehensive evaluation of candidates' competences. This approach enables the selection of candidates who not only possess the requisite skills and abilities, but also demonstrate behaviours aligned with the values and objectives of the civil service.

476. To kickstart the integration of the competency framework in HR processes, Uzbekistan could start with a pilot process for a specific area in a specific ministry or agency or among the senior civil servants. The planned Centre for the Evaluation of Senior Personnel could support this. Given the priority of

reforming the recruitment process, Uzbekistan could start introducing the competence framework in this area.

Learning and development

477. Competency management serves as a valuable tool for identifying employees' current competency gaps and devising targeted training and development plans to address them. Most OECD countries use managerial feedback on skill gaps or other forms of employee skills and competences assessment. This can help to structure learning and development (OECD, 2023^[12]).

478. In Uzbekistan, there has been no gap analysis of the competences and skills available in the civil service and those missing. The adoption of a competency framework offers the opportunity to develop a structured approach to assess and address the learning needs of civil servants.

479. The approach to learning and development appears fragmented. While APA offers training courses, these lack a clear focus on skills development. Ministries and agencies have their own programmes, contingent upon HR unit involvement. For instance, the Ministry of Justice mandates a training programme for its staff, including modules relevant to their roles. While decentralised training can be effective, effective planning, organisation, and co-ordination are vital for success. OECD countries with robust learning systems feature centralised, universal frameworks fostering communication and best practices (OECD, 2023^[12]). As such, co-ordinated efforts between ARGOS and APA, aligned with the competency framework, are essential for steering cohesive learning and development across the public sector. While there are efforts to use the competency framework, once adopted, to guide training, there are no concrete plans to implement these.

480. Based on the job profiles developed, ARGOS could consider providing HR units with specific learning templates that would help to develop individualised personal development plans, outlining the specific competences they need to strengthen for enhanced performance in their roles. These plans are customised to address the unique requirements and career aspirations of civil servants, ensuring relevance and effectiveness in their professional development journey. For these to be effective, the role of HR and line managers is crucial in identifying trainings need and creating a culture in which learning is seen as beneficial.

Performance management

481. Currently, Uzbekistan lacks a standardised performance management system for civil servants and, as such, effective accountability structures. The forthcoming competency framework needs to form the foundation for performance assessments. Under ARGOS' leadership, criteria and processes for performance evaluations aligned with the competency model must be developed. ARGOS has drafted several regulatory acts on performance evaluation, but these have not yet been adopted and therefore cannot be assessed at this time.

482. Competences offer clear expectations for individuals, providing an objective set of measures against which performance can be evaluated. Incorporating competences into performance assessment ensures that evaluations are based on tangible behaviours and skills relevant to the job roles. It can enhance the fairness and objectivity of performance evaluations and ensure that merit-based principles are upheld in assessing and rewarding employees' contributions.

483. Moreover, competences enable a more comprehensive evaluation of performance by considering not only the outcomes achieved but also the behaviours demonstrated in achieving those outcomes. This holistic approach to performance assessment allows for a deeper understanding of employees' strengths and areas for development, facilitating targeted training and support initiatives.

Building a senior public service that sets an example

Further efforts are needed to invest in managing senior-level public servants

484. The reform agenda pursued in Uzbekistan regarding the civil service aims to enhance transparency, professionalism, and accountability. Within this framework, senior leadership plays a crucial role in fostering an efficient, innovative, and trustworthy public sector. They are instrumental in creating an environment where employees feel engaged and supported to effectively fulfil the public sector's mission. Effective leaders drive efficiency and productivity by fostering conditions conducive to employee engagement. Engaged employees, in turn, demonstrate higher performance levels and are more productive and innovative.

485. Recognising the role of senior leadership in civil service performance, the PSLC Recommendation underscores the importance of leaders and managers in strengthening HR capacity across governmental bodies. Specifically, the recommendation highlights the importance of:

- Clarifying the expectations incumbent upon senior-level public servants to be politically impartial leaders of public organisations, trusted to deliver on the priorities of the government and uphold and embody the highest standards of integrity without fear of politically motivated retribution.
- Considering merit-based criteria and transparent procedures in the appointment of senior-level public servants and holding them accountable for performance.
- Ensuring senior-level public servants have the mandate, competencies and conditions necessary to provide impartial evidence-informed advice and speak truth to power.
- Developing the leadership capabilities of current and potential senior-level public servants (OECD, 2019^[3]).

486. In most OECD countries, a dedicated system is established to manage the senior public service (Figure 6.7). It is common that recruitment is more centralised and a greater emphasis is placed on avoiding conflicts of interest and on performance management. Senior public-level servants typically have less job security. At the same time, more attention is paid to the management of their careers with career mobility being encouraged.

487. These systems are designed to equip administrative public leaders with the requisite skills and resources by creating pathways for career advancement and professional growth for individuals. This entails initiatives aimed at nurturing leadership potential, providing specialised training and development programmes, and fostering a culture that values continuous learning and progression. By investing in the career development of senior officials, governments can ensure a steady pipeline of capable leaders equipped to navigate the complexities of public administration. Beyond the individual level, countries also seek to establish an enabling operating environment for senior-level public servants to effectively carry out their responsibilities. Lastly, given the political-administrative interface that many senior public level servants need to navigate, specific provisions are often taken to limit the political influence on this level (OECD, 2021^[11]) (Gerson, 2020^[13]).

Figure 6.7. Characteristics of the employment framework of senior level public servants in OECD countries

Country	Differences between senior level public servants compared to other public servants:					
	They are recruited with a more centralized process	They are identified early on in their careers and more attention is paid to the management of their careers	More emphasis is put into avoiding conflicts of interest	More emphasis is put into the management of their performance	They are encouraged to have more career mobility	They can be dismissed or demoted more easily than other public servants
Australia	○	○	○	●	○	○
Austria	○	○	○	○	○	○
Belgium	●	○	○	●	●	●
Canada	●	●	●	●	●	○
Colombia	●	○	●	●	○	●
Czech Republic	○	○	●	○	○	●
Denmark	●	○	●	○	○	○
Estonia	●	○	○	○	●	●
Finland	●	○	●	●	●	●
France	●	○	●	●	●	●
Germany	○	○	○	○	○	●
Greece	●	○	●	●	○	○
Hungary	○	○	●	●	○	●
Ireland	●	○	○	○	●	○
Israel	●	○	●	●	●	●
Italy	○	○	●	●	●	●
Japan	●	○	○	●	○	○
Korea	●	○	●	●	●	●
Latvia	●	○	●	●	○	○
Lithuania	○	○	○	●	○	○
Luxembourg	●	○	○	○	○	●
Mexico	●	○	○	○	○	●
Netherlands	●	○	○	○	●	○
New Zealand	●	○	○	○	○	○
Norway	○	○	○	○	○	○
Poland	○	○	●	○	○	●
Portugal	●	○	●	●	○	●
Slovenia	●	○	○	○	○	●
Spain	○	○	●	○	○	●
Sweden	●	○	○	●	○	●
Switzerland	○	○	○	○	○	○
Turkey	○	○	○	○	○	●
United Kingdom	●	●	●	●	●	●
United States	○	○	●	○	○	●
OECD Total						
● Yes	21	2	17	17	11	21
○ No	13	32	17	17	23	13
Brazil	○	○	●	○	●	●
Costa Rica	○	○	○	○	○	●
Romania	●	○	○	○	○	○

Source: (OECD, 2021^[14]).

488. Given the pivotal role that senior-level public servants play in driving organisational performance and shaping the overall culture of the public service, Uzbekistan would benefit from targeting reform efforts at this level. According to the qualification ranks set by the Civil Service Law, this would be the political and managerial group, which are usually either appointed or going through a public competition.

489. By concentrating resources and attention on implementing reforms targeting senior officials, Uzbekistan can harness the significant influence these leaders wield within the public service. Focussing reforms on this specific cohort not only allows for targeted interventions but also maximises the ripple effect that improvements at the senior level can have throughout the entire public service. Furthermore, reform initiatives undertaken at the senior level send a powerful message of commitment to transparency, professionalism, and accountability, setting the tone for broader organisational culture and practices. Therefore, directing reform efforts towards the senior level of the public service represents a strategic approach to catalysing comprehensive and sustainable transformation within Uzbekistan's public administration. Adopted successfully at that level, reforms could be rolled out in subsequent stages.

Procedures for the appointment and dismissal of senior civil servants need to be adopted and legally regulated.

490. Regarding recruiting and selecting leaders, Uzbekistan can draw insights from OECD practices, where the majority of countries recruit senior civil servants through competitive processes. While the merit principle is enshrined in the Uzbek law, its application in senior appointments is inconsistent. According to the newly introduced groups of position, the political group are appointed, while the managerial group is selected through competition. As indicated by Uzbekistan, the appointment of civil servants of the political group is made from the National Personnel Reserve.

491. The National Personnel Reserve is a centralised pool of high-potential individuals identified for future leadership roles in the Uzbek civil service. Its aim is to enhance meritocracy through fair and transparent selection and development. Candidates for the National Personnel Reserve undergo a competitive selection process based on qualifications, experience, and performance. This typically involves written examinations and interviews led by ARGOS.

492. ARGOS is responsible for developing and implementing the National Personnel Reserve selection criteria and procedures, and providing training and development in co-ordination with APA. This means there is a pool of candidates having undergone stringent selection as well as training to be well-prepared for leadership positions.

493. While the civil service strives to adhere to merit-based principles, there are instances where political considerations may influence appointments, particularly at higher levels (this does not apply to inherent political appointees such as the prime minister or local authorities). Political influence can have negative consequences on merit, independence and stability. It can also create an environment in which senior-level public servants do not speak out or provide evidence-based advice in opposition to political priorities out of fear of dismissal (Gerson, 2020^[13]).

494. While some level of political involvement in senior appointments is not uncommon in OECD countries, efforts are made to manage this influence to safeguard merit and accountability. This may entail allowing ministers to select a candidate from a shortlist presented by a selection panel, thereby ensuring transparency and accountability in the process. Alternatively, in some OECD countries, a recruitment panel ranks candidates according to merit-based criteria, granting political officials the discretion to make the final choice based on specific criteria. In certain cases, appointments may also require confirmation by the legislature. Another approach to curbing political influence is the establishment of minimum requirements for senior-level public positions. The fundamental principle underlying these mechanisms is to ensure an open and transparent matching of appointees' skills with the requirements of the position. This fosters accountability, as decisions need to be transparently justified.

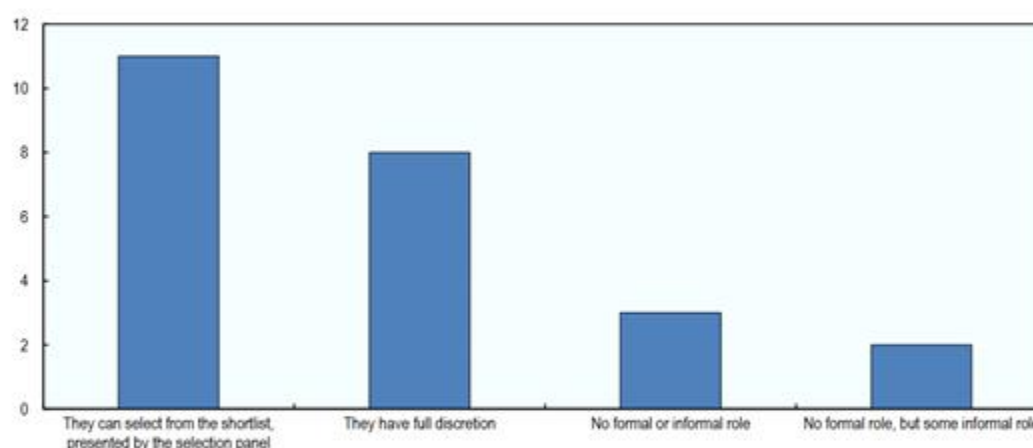
495. Uzbekistan has yet to develop procedures by law for appointment and dismissal for public servants belonging to the political group and, as such, lacks minimum requirements, leaving the selection process vulnerable to political discretion. To mitigate this, Uzbekistan could introduce competency-based

qualification criteria for senior appointments. This should apply to both the political and managerial group of positions.

496. Political influence can also manifest in politically motivated dismissals, particularly at lower hierarchical levels. Legal safeguards against such dismissals are lacking in Uzbekistan, unlike in many OECD countries where stringent regulations protect senior civil servants from arbitrary termination by ministers (OECD, 2021^[11]). While ARGOS formally needs to be notified of any dismissals and has the mandate to oppose dismissals in the case of unjust reasons, in practice this does not seem to be fully enforced.

497. Strengthening legal protections for senior officials in Uzbekistan would enhance their independence and safeguard against politically motivated actions, fostering a more stable and professional civil service environment and promoting a culture of meritocracy and accountability in line with OECD standards.

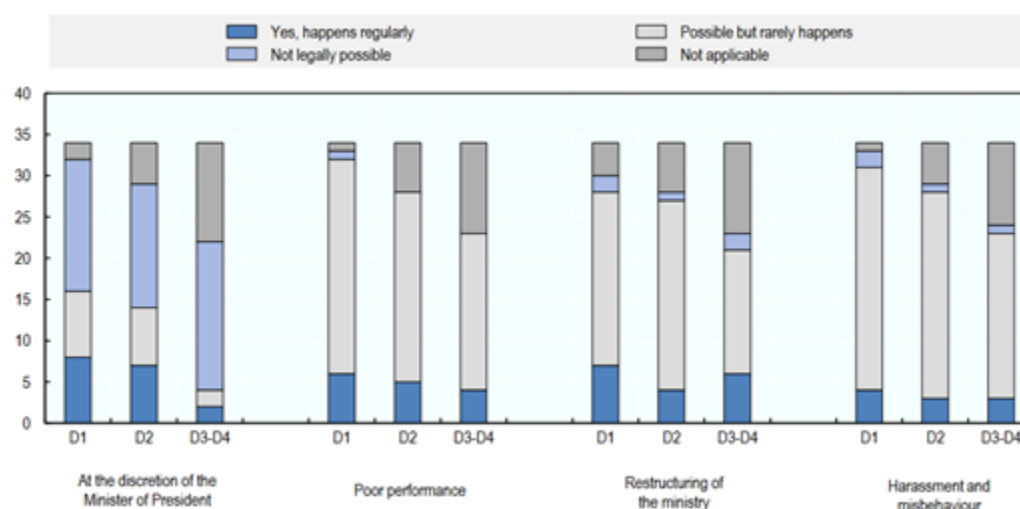
Figure 6.8. Role of political officials in the recruitment of senior level public servants



Note: 10 OECD countries indicated 'other' as a response to the question given that the role often varies according to the level of senior civil servant recruited. For New Zealand, ministers have no formal role, but some informal role. They may not always have this informal role though. Original survey question: "What role, if any, do political officials (president, prime minister, ministers, etc.) have in the recruitment/selection of senior level public servants?"

Source: (OECD, 2021^[11]).

Figure 6.9. Reasons for dismissing senior level public servants before the end of tenure



Note: Original survey question: "Can a senior level public servant be dismissed before the end of his/ her term, for any of the following reasons?"
Source: (OECD, 2021^[11]).

The National Personnel Reserve needs to be strengthened with a focus on merit and used as an exclusive recruitment pool for senior positions

498. Centralising the recruitment process for senior civil servants offers the advantage of ensuring quality and consistency. It can also strengthen meritocracy. In the OECD, 62% of OECD countries have a centralised recruitment process for senior level public servants (OECD, 2021^[14]). For example, in Chile, an external enterprise prepares a shortlist of candidates according to the analysis of the curriculum vitae of candidates. This shortlist is reviewed by the Senior Public Management Council which interviews the candidates and prepares a final shortlist for the competent authority.

499. Uzbekistan has taken steps towards using the National Personnel Reserve as the exclusive pool for recruitment. In addition, the Centre for Assessment of Senior Personnel under the Civil Service Development Agency under the President of the Republic of Uzbekistan is being established. The main objective of the Centre is to assess skills and competencies in the appointment of senior civil servants. These are steps towards reducing political influence on senior civil servant appointments.

500. However, **the National Personnel Reserve is used as an exclusive pool for senior civil servant appointments**, the effectiveness of the National Personnel Reserve is hampered by instances of inconsistent application and a lack of data on its impact. Centralising the recruitment process under the leadership of ARGOS, could consist of a mandatory shortlist of candidates from the Reserve for any vacant senior public servant position. Individuals not previously included in the Reserve would need to undergo the same qualification process as those already selected. From this shortlist, interviews and assessments could be conducted to create a final shortlist for the recruiting agency's selection. This approach would enable ministers to retain discretion in candidate selection while ensuring appointments are based on necessary skills and competencies, thereby enhancing transparency and accountability in senior appointments.

501. In addition to the steps already taken, the following actions are essential to further strengthen the selection process for the National Personnel Reserve:

- **Refine selection criteria:** Strengthen selection criteria with a focus on core competencies and leadership potential. While the existing assessment includes tests, 360-degree assessments, and

interviews, these could be further refined to more effectively identify candidates with the necessary skills and aptitudes. These could include

- Case studies: These can assess a candidate's problem-solving skills and analytical abilities in a simulated work environment.
- Group exercises: These can assess a candidate's teamwork, communication, and interpersonal skills.
- Psychometric testing: These tests can assess a candidate's cognitive abilities, personality traits, and emotional intelligence.
- **Enhance transparency:** Increase transparency by maintaining a comprehensive record of all appointments to senior posts, including internal promotions, external hires, and presidential reserve placements, as already implemented through the *hrm.argos.uz* platform. This record should detail:
 - Whether each appointment was filled through an open, competitive process.
 - Whether the appointed individual met the required competency standards.
- **Invest in ongoing development:** Continue to provide comprehensive training and development programs for National Personnel Reserve members to ensure they maintain their skills and knowledge at the required level.
- **Evaluate and adapt:** Regularly assess the National Personnel Reserve's effectiveness in meeting the needs of the civil service. This evaluation should include analysis of how well the selection process identifies and recruits high-performing candidates. Based on this assessment, make necessary adjustments to the selection criteria and assessment methods to ensure the Reserve remains a valuable source of talent for the civil service.

502. By implementing these strategies, ARGOS can position the National Personnel Reserve as a cornerstone of a high-performing and trusted civil service.

Competency-based assessment for senior public servants needs to be strengthened

503. To enhance the selection and development of senior public servants, Uzbekistan needs to prioritise a robust competency-based approach. This involves clearly defining the core competencies required for senior leadership roles, align competencies to the requirements of senior leadership positions, developing assessment tools to measure these competencies and train HR professionals in using these, and incorporating the assessment tools into the recruitment and development process.

504. While OECD countries consider seniority and education, the emphasis is placed on evaluating job-related experience and leadership competences. Experience-based interviews, situational interview questions, and simulation exercises are commonly employed to assess candidates' leadership potential and behavioural attributes.

505. In Uzbekistan, the recruitment process does not systematically assess competences. As such, ARGOS needs to reform the recruitment process and introduce a mix of assessment methodologies. Additionally, some OECD countries incorporate integrity tests to uphold ethical standards among senior-level public servants, a practice Uzbekistan could explore to underscore the importance of integrity and ethical conduct in senior positions (OECD, 2021^[11]). The Centre for Assessment of Senior Personnel, upon establishment, plans to utilise more targeted assessment methods, such as case studies, simulations, problem-based learning, and business games, to evaluate competencies in areas such as digital technologies, diversity and inclusion, crisis management, resilience, emotional intelligence, values, norms, and incentives.

Publishing information on the recruitment process of senior public servants can strengthen trust in a merit-based process

506. Currently, Uzbekistan is not actively disclosing information on recruitments of senior public servants, such as how many candidates are recruited from the National Personnel Reserve. To underscore its commitment to merit-based recruitment, Uzbekistan could enhance transparency by actively disclosing information about the recruitment process. This could include details about the vacancy, position requirements, and the number of applicants for each position. Furthermore, anonymous information on candidate profiles, such as age, gender, and ethnicity, could be made available to promote diversity and inclusion. While some OECD countries only publish information about the vacancy and position requirements, others, like Norway, go a step further by publishing the list of all candidates, further enhancing transparency and accountability in the recruitment process.

Box 6.4. Senior civil service recruitment and selection in Chile

In 2003, the Chilean government, with the agreement of all political actors (opposition political parties, non-governmental organisations, civil society), created the *Sistema de Alta Dirección Pública* (SADP), a central senior civil service system. The aim of the SADP was to establish a professional senior management. Following the reform, there are three distinct groups:

1. The most senior positions, which are filled by direct designation by the government (1 000 positions out of 2 million in central government).
2. The SADP, for which recruitment is based on public competition (1 000 positions in central government). There are two levels within the SADP: approximately 1% at the first hierarchical level (heads of service, directors general), and the remainder at the second hierarchical level (regional directors, heads of division).
3. Middle management positions (2 000 positions in central government) at the third hierarchical level, which form part of the career civil service.

The SADP has been implemented gradually by recruiting by open competition whenever a post falls vacant and by expanding it over time to additional groups. For example, it has been expanded to include 3 600 municipal education directors and 2 800 new senior management posts in municipalities. Most of the selection process for the SADP is contracted out to specialised recruitment agencies. The National Civil Service Directorate is responsible for management of the SADP. However, the Senior Public Management Council is in charge of guaranteeing the transparency, confidentiality and absence of discrimination of the selection process. It is chaired by the director of the National Civil Service Directorate and has four members proposed by the president of Chile and approved by the Senate. The selection process, which takes about four months, begins with the publication of the vacancy in the media.

A specialised enterprise commissioned by the Senior Public Management Council analyses the curricula vitae of the different candidates and prepares a shortlist for the council or a selection committee (under the council's supervision). Professional competence, integrity and probity are some of the criteria used in the selection process. Subsequently, the council or the committee selects the best candidates for interview and prepares a final shortlist for the competent authority for the final appointment.

The system is considered one of the main achievements of the modernisation of Chile's public management. One outcome has been the decline in the number of political appointees in the central government; they currently represent only 0.5% of the total public workforce. It is also argued that the

presence of women in senior positions has increased under the system; they occupy 32% of positions, compared to 15% in the Chilean private sector.

Source: (OECD, n.d.^[15]).

The learning and development approach for the senior civil service is one-size-fits-all and needs to be diversified

507. To ensure continuous learning and development among senior civil servants in Uzbekistan, it is crucial to provide structured opportunities that are both relevant and adaptable to their busy schedules. Learning initiatives must be tailored to address the highly specific challenges faced by senior-level public servants and foster a culture of learning within the public sector. In Uzbekistan, APA plays a crucial role in training senior leaders in the public services. Approximately 20,000 top managers undergo in-person training through 50 different programmes annually. The plan is to also incorporate the competency model as soon as it is adopted. These trainings are strongly encouraged with specific training days for all public leaders held in December of each year. In addition, ARGOS organises several training courses for managerial personnel at the national, regional and local level. It has also developed an online learning platform to facilitate regular learning opportunities.

508. Uzbekistan could diversify its efforts for learning and development and work towards creating an effective learning culture that values investment in learning, and offers regular and quality feedback. OECD countries offer a diverse range of learning opportunities and peer support mechanisms for senior public servants, aimed at enhancing their skills and capabilities in navigating complex public challenges. For example, a majority of OECD countries have put networks for senior level public servants in place (Box 6.5). These can strengthen an environment of continuous learning, boost network collaboration and help build connections across organisational siloes. They can also confront senior-level public servants with different voices and perspectives not common in their area and inspire new solutions to problems. Additionally, OECD countries offer coaching opportunities for senior leaders, providing tailored learning experiences that may strengthen their commitment to learning (OECD, 2021^[11]). Given the position of APA in learning and development, it would be in a good position to lead these efforts and could as a kind of Centre for Excellence for senior-level public servants.

509. While learning and development for existing senior-level public servants is important, setting up a pipeline for future leaders can be equally beneficial. The National Personnel Reserve is a step towards building such a pipeline for future leaders within the public sector. Uzbekistan could draw additional inspiration from leadership programmes in other countries, such as Ireland, which has developed an extensive development programme for future leaders (Box 6.6).

Box 6.5. Peer support for senior-level public servants in OECD countries

In **Ireland**, the civil service management board is formalised structure which brings all Secretaries General together to discuss government-wide challenges and potential solutions. The assistant Secretary General's network provides less formal opportunities for networking around learning events.

Estonia's Top Civil Service Excellence centre brings together top civil servants to participate in the Centre's activities. The development of a trusted network and ability to improve relationships across ministries was commonly cited as one of the most important outcomes of these activities. This is particularly important in Estonia where no hierarchical relationship exists among SGs and few formal structures to direct co-ordination and collaboration.

In **Finland**, Secretaries General meet weekly for on Monday mornings, and they organise special days with the Prime Minister and other high-level informative and motivational speakers for the broader SCS, which provide opportunities to network. For example, The Ministry of Finance organises an annual Public Management Day with high quality speakers and discussions, including with invited mayors and municipal leaders, to promote networking and cooperation among the whole public sector. Finland has also developed more formalised small peer support groups, made up of approximately 10 leaders in each group, which meet approximately 4 times per year. Participants are stable for at least 2 years in the same group, and SCS talk openly about their experience in a comfortable and trusted environment. These groups also enable the sharing of innovations and collective problem solving.

The **Netherlands'** Senior Civil Service Bureau has set up "Intercollegiate Groups" to help SCS to learn from the insights of their peers. SCS can use these groups to access additional perspective and experiences when in the thick of particularly complex leadership challenges. Groups of 6 SCS commit to meet together 12 times over a period of 2 years. These groups are each supervised by a professional coach, with 1-2 being present at each meeting to facilitate discussions. At each meeting, they focus on a particular SCS and the challenge they face, and use different tools to generate insights from the group, challenge assumptions and look at the problems from different perspectives.

Canada and **France** have used various approaches to mentoring and reverse-mentoring, whereby senior leaders are paired with younger employees who provide advice to the senior leader on various possibilities regarding the use of social media and the potential benefits of a more digitally advanced workspace, among other things. In France, Digital Mentors allow public managers who are in charge of digital transformation to work with digitally native internal coaches, who present managers different digital concepts (cloud, big data...) that can provide a solution for specific challenges. Reverse mentoring does not only need to be digitally focused, but can also be a way of sparking new ideas and creating a more inclusive orientation in the senior civil service. Canada had a Deputy Minister (DM) Innovation Committee in which each DM and their reverse mentor participated together, with the mentors treated as equals around the table at these discussions.

Source: (Gerson, 2020^[13]).

Box 6.6. Leadership development programme in Ireland

The Executive Leadership Programme for Senior Public Service and Principal Officers is designed to help participants explore various aspects and styles of leadership, thereby advancing their personal and professional development. This initiative aligns with the Irish Civil Service Renewal Plan, which advocates for structured and transparent talent management programmes to identify and support future leaders at key career stages.

Managed by the Department of Public Expenditure and Reform and delivered by the UK-based Roffey Park Institute, these programmes also benefit from input from Secretaries General (for the Senior Public Service programmes) and Assistant Secretaries (for the Principal Officers programmes) to provide contextually relevant information and current insights during the modules.

The programmes encompass crucial aspects such as leading transformation at times of ambiguity and Complexity, working with Ministers and the political system, empowering systems and staff, emotional intelligence, finding the time for leadership, resilience in the face of unrelenting pace and pressure, and collaboration across boundaries.

The programmes include:

- A one-day development centre for assessing current leadership strengths and areas for development.
- Three two-day modules:
 - Module 1: developing the necessary emotional intelligence and presence to meet the challenges of 21st century Leadership in Government
 - Module 2: Enhancing the capability required to empower senior leaders across the civil service.
 - Module 3: Leading across boundaries and fostering effective cross-Government collaboration.
- A one-day organisation workshop designed to explore partnership and collaboration across systems.
- A review event.
- Coaching with external accredited executive coaches focused on applying learning.
- Mentoring from recently retired Secretaries General and current Assistant Secretaries General to support both the programme and the participants more broadly.

Source: (McCarthy, Holland and Bohle Carbonnel, 2019^[16]).

Recommendations

For the ambitious civil service reform efforts in Uzbekistan to succeed, it is crucial to begin with foundational steps that focus on getting the basics right. This involves strengthening ARGOS as the central authority for HR management and focussing on manageable, well-designed priority projects. Developing and implementing the HR strategy may be an important lever to do so. By empowering HR units to become strategic partners in HR initiatives, strengthening merit, developing a competency framework, and outlining plans for its integration into HR processes, the groundwork can be laid for long-term change.

Furthermore, it is wise not to overextend efforts initially and instead focus on the senior civil service as a priority to introduce HR standards and practices. Senior leadership plays a pivotal role in setting the

tone for reform efforts and shaping the culture of the civil service. Therefore, there should be a concerted effort to enhance the capabilities of senior leaders. Specialised training programmes can be implemented in the short term to equip senior managers with the necessary skills and knowledge. Additionally, consideration should be given to reducing political influence on senior appointments.

Getting the ecosystem right for civil service reform in Uzbekistan

- ARGOS needs to consolidate its role as the central HR authority, fully embracing its mandate and driving forward the civil service reform agenda:
 - Strengthen the Public Council to prioritise projects, avoid duplication, and ensure efficient co-ordination with the overall reform agenda. Stakeholders should be represented by senior leadership. Technical proposals could be prepared in smaller workstreams.
 - Public Council meetings should identify actions to clarify project scope, goals, sequencing, and costs.
 - Assign responsibilities within ARGOS and APA to support the work of the Council by preparing meeting agenda, information and outcome reports.
 - Prioritise and manage projects effectively:
 - Leverage the forthcoming HR strategy to guide project selection.
 - Focus on foundational elements with clear objectives, milestones and realistic timelines and identify potential barriers for implementation.
 - Implement robust monitoring and evaluation mechanisms.
 - Utilise data from the HR database (HRM.ARGOS.UZ) for informed project design and impact assessment.
 - Utilise the National Personnel Reserve as a flexible talent pool to ring together diverse expertise for specific projects.
- APA is a key partner for the civil service reform agenda led by ARGOS. In order to leverage APA's expertise, it could focus on three main areas:
 - Develop a comprehensive training portfolio: Align training courses with the forthcoming competency framework, emphasising practical skills and leadership development.
 - Position APA as a leading authority in civil service learning and development by developing a centre of excellence for senior-level civil servants, focussing on leadership development and evidence-based practice.
 - Utilise research to inform policy: Conduct in-depth research to identify training needs, evaluate program effectiveness, and inform evidence-based decision-making.
- The Strategy for the Development of the civil service could be an opportunity for ARGOS to push for ambitious goals and assume its mandate as the central HR body:
 - The process for developing the strategy is key and should be guided by these elements:
 - Assessing the current state
 - Engage stakeholders
 - Define objectives and priorities
 - Set ambitious, but realistic goals and targets
 - Assign responsibilities for implementation
 - Allocate the necessary resources for implementation

- Conduct an analysis of the strategy impact and develop a robust communication and change management plan
 - ARGOS could work towards political endorsement of the HR Strategy at the highest level to ensure ownership.
- The HR bodies in the ministries and agencies are currently mostly fulfilling administrative tasks. Bolstering their role as strategic partners for ARGOS facilitates the implementation of civil service reforms:
 - Establish a clear profile of the role of HR units based on the review already conducted as well as additional assessments where needed.
 - ARGOS needs to invest further in building capacities among staff in the HR units. They also need to support HR units in having the necessary resources available.
 - ARGOS could set up a community of practice for HR units to exchange on good practices and challenges.
 - In the medium-term, the HR profession could be developed as a specific career path, outlining clear development steps and goals to build capabilities

Strengthening meritocracy

- To strengthen merit, the procedures and processes introduced by ARGOS through the introduction of the online recruitment platform need to be effectively implemented. This means to
 - Build the capacity of ministries and agencies to effectively manage the recruitment process by providing additional targeted training to HR units and managers on recruitment processes, competency frameworks, and interview techniques.
 - Routinely assess candidates' skills and competencies, in addition to technical knowledge.
 - Initially, ARGOS should take a more active role in guiding recruitment, gradually transferring responsibilities as ministries and agencies develop their capabilities.
 - Collect and analyse data on recruitment outcomes, candidate profiles, and candidate experience to inform decision-making.
 - Build data analytics capabilities within HR functions.
 - Regularly assess candidate satisfaction to identify areas for improvement.
 - Maintain a sustained focus on improving the recruitment system and continuously assess the effectiveness of the recruitment process and make necessary adjustments.

Defining competences to structure the civil service

- ARGOS is working on the development of a competency framework for the civil service. This is a step towards systematising competences and skills. To support implementation, ARGOS could consider providing practical support to HR on what the competences mean in practice. For example, better guidance could explain the dimensions and behaviours related to the competences.
- Scrutiny needs to be given on how to integrate this in HR processes, such as recruitment, learning and development and performance assessment. In this way, a competency framework can help to guide career paths supporting attractiveness of the public sector:
 - For recruitment, this means to develop additional means for assessing competences that go beyond the current general test and standard interview and are more targeted

to the competences needed in the job. In addition, ARGOS could introduce behavioural questions and situational tests.

- For learning and development, ARGOS needs to engage in further efforts to set up a learning culture in the public sector and setting requirements for developing individual learning plans. The offer and type of learning offers should also be diversified and aligned to identified competences.
- For performance assessment, ARGOS should push ahead with introducing a standardised process for assessing performance. The performance assessment should not only look whether targets have been achieved, but also on how they have been achieved and assess the performance according to the competences displayed.
- ARGOS could propose to develop an initial pilot in a selected ministry to apply the competency framework in the recruitment process. Prior to doing this, job profiles setting out the relevant competences need to be developed in co-ordination with HR units and line managers.
- In the medium term, ARGOS should use the competency framework to develop gap assessments for the public sector and supporting HR units to conduct such assessments in their ministries and agencies.

Building a senior public service that sets an example

- Given the pivotal role that senior level public servants play in driving organisational performance and shaping the overall culture of the public service, Uzbekistan would benefit from prioritising reform efforts at this level.
- Merit-based recruitment of senior level public servants needs to be strengthened. This could be done by:
 - Undertake efforts to introduce merit-based principles into the appointment procedures for the political and managerial group of position. ARGOS could suggest reforms mandating minimum requirements and competences for these group of positions and advocating for the selection of candidates from a pre-determined shortlist. Efforts should also be undertaken to introduce legal safeguards for senior level public servants against politically motivated dismissals.
 - Develop a specific competency model for senior level public servants and align job profiles with it.
 - Strengthen selection criteria for the National Personnel Reserve with a focus on core competencies and leadership potential.
 - Increase transparency by:
 - maintaining a comprehensive record of all appointments to senior posts, including internal promotions and external hires, as well as presidential reserve placements;
 - detailing whether each appointment was filled through an open, competitive process;
 - documenting whether the appointed individual met the required competency standards.
 - Invest in additional comprehensive training and development programmes for National Personnel Reserve members.
 - Regularly assess the National Personnel Reserve's effectiveness and make necessary adjustments.

- Experience-based interviews, situational interview questions, and simulation exercises could be used to assess candidates' leadership potential and behavioural attributes.
- To underscore its commitment to merit-based recruitment, Uzbekistan could enhance transparency by actively disclosing information about the recruitment process. This could include details about the vacancy, position requirements, and the number of applicants for each position. Furthermore, anonymous information on candidate profiles, such as age, gender, and ethnicity, could be made available to promote diversity and inclusion.
- The learning and development approach should be further diversified and targeted to senior-level public servants. This could include networks for senior-level public servants to boost network collaboration and help build connections across organisational siloes. Coaching opportunities could also be offered. ARGOS would need to reach out to APA and HR units to co-ordinate efforts and ensure implementation.

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